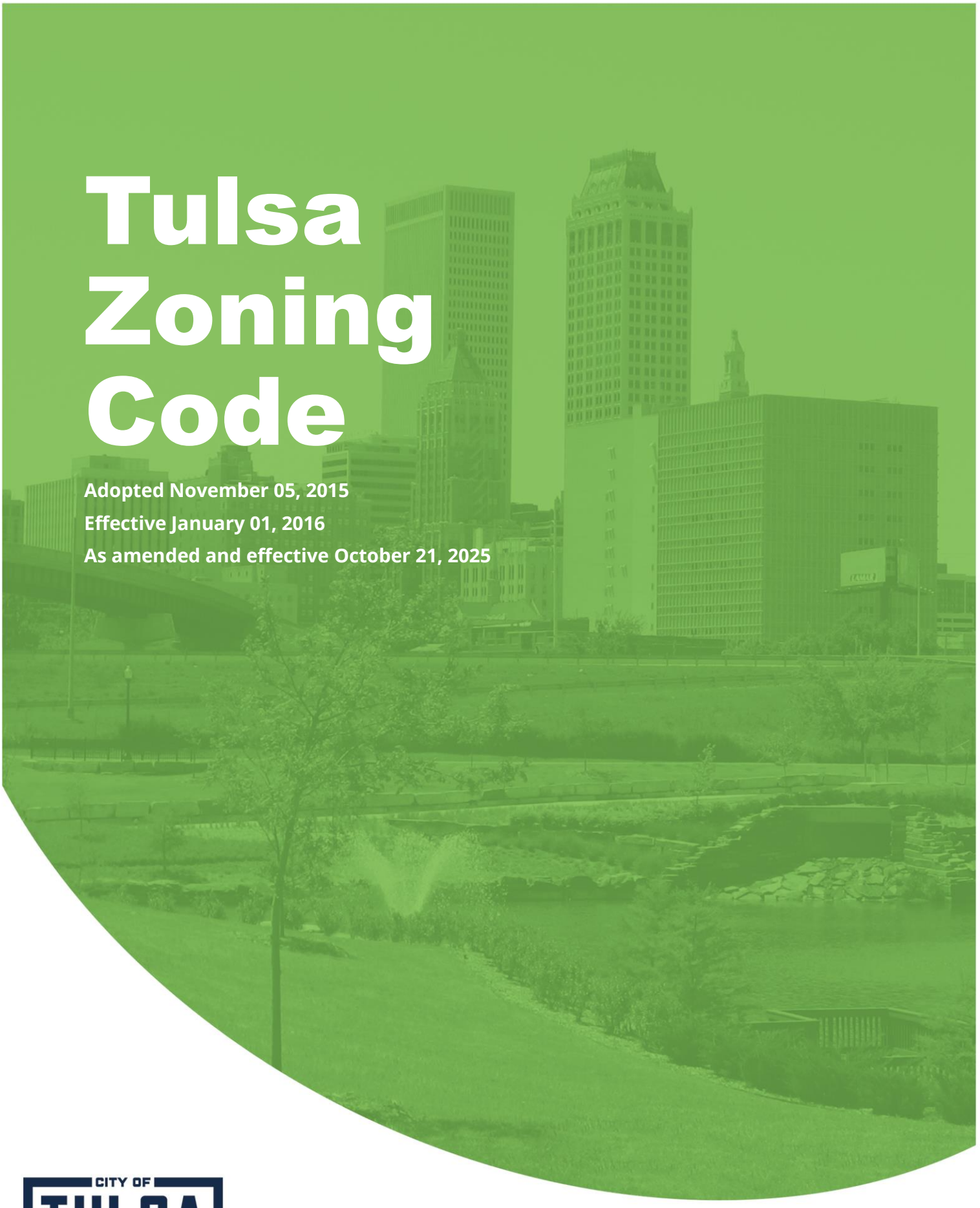


Tulsa Zoning Code

Adopted November 05, 2015
Effective January 01, 2016
As amended and effective October 21, 2025

CITY OF TULSA

Title 42 Tulsa Revised Ordinances
Zoning and Property Restrictions

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Chapter 1 | Introductory Provisions

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Section 1.010 Title

Title 42 Tulsa Revised Ordinances is known and may be cited as the "Tulsa Zoning Code." For convenience, it may be referred to as the "zoning code."

Section 1.020 Authority

This zoning code is adopted pursuant to the powers granted in the Tulsa City Charter (Article I, Section 3).

Section 1.030 Effective Date

The provisions of this zoning code become effective on January 1, 2016, except as otherwise expressly stated.

Section 1.040 Applicability and Jurisdiction

The provisions of this zoning code apply to all public and private use and development of properties within the corporate limits of the City of Tulsa, except as provided by state or federal law or as otherwise expressly stated in this zoning code.

Section 1.050 Purposes

This zoning code is adopted for the purposes of:

1.050-A Protecting and promoting the public health, safety, and general welfare; and

1.050-B Implementing the policies and goals of the comprehensive plan and other relevant, officially adopted plans of the city.

Section 1.060 Minimum Requirements

1.060-A The provisions of this zoning code are the minimum requirements deemed necessary to carry out the zoning code's stated purposes.

1.060-B In addition to the requirements of this zoning code, all uses, buildings and structures must comply with all other applicable ordinances, laws, and regulations.

1.060-C All references in the zoning code to other governmental regulations are for informational purposes only and do not constitute a complete list of such

regulations. These references do not imply any responsibility for the city to enforce regulations imposed by other government authorities.

Section 1.070 Compliance Required

1.070-A Land may not be used for any purpose other than one that is allowed by the provisions of this zoning code.

1.070-B A building or structure may not be erected, located, moved, reconstructed, extended, or structurally altered except as allowed by this zoning code.

1.070-C Buildings, structures, and land may be used and occupied only in compliance with the provisions of this zoning code.

1.070-D All lots created or modified must comply with all applicable provisions of this zoning code.

Section 1.080 Conflicting Provisions

1.080-A Conflict with State or Federal Regulations

If the provisions of this zoning code are inconsistent with state or federal law, the more restrictive provision governs, to the extent allowed by law. The more restrictive provision is the one that imposes more stringent controls.

1.080-B Conflict with Other City Regulations

If the provisions of this zoning code are inconsistent with one another or if they conflict with provisions found in other adopted ordinances or regulations of the city, the more restrictive provision governs unless otherwise expressly stated. The more restrictive provision is the one that imposes more stringent controls.

1.080-C Conflict with Private Agreements and Covenants

This zoning code does not interfere with, abrogate, or annul any easement, covenant, deed restriction, or other agreement between private parties. If the provisions of this zoning code impose a greater restriction than imposed by an agreement or covenant among private parties, the provisions of this zoning code govern. The city is not responsible for monitoring or enforcing agreements or covenants among private parties.

Section 1.090 Rules of Language and Construction

1.090-A Meanings and Intent

Words and terms expressly defined in this zoning code, including those defined in Chapter 95, have the specific meanings assigned unless the context indicates another meaning. Words that are not expressly defined in this zoning code have the meaning given in the latest edition of *Merriam-Webster's Unabridged Dictionary*.

1.090-B Computation of Time

1. References to "days" are to calendar days unless otherwise expressly stated. References to "business days" are references to regular city government working days, excluding Saturdays, Sundays, and holidays observed by city government.

2. The time in which an act is to be completed is computed by excluding the first day and including the last day. If the last day is a Saturday, Sunday or holiday observed by city government, that day is excluded.
3. A day concludes at the close of business, and any materials received after that time will be considered to have been received the following day.

1.090-C Tenses and Usage

1. Words used in the singular include the plural. The reverse is also true.
2. Words used in the present tense include the future tense. The reverse is also true.
3. The words “must,” “will,” “shall” and “may not” are mandatory.
4. The word “may” is permissive, not mandatory or required.
5. When used with numbers, “up to x,” “not more than x” and “a maximum of x” all include “x.”
6. The word "person" includes a firm, association, organization, partnership, limited liability company, trust, or corporation, as well as an individual.
7. The words “used" and "occupied" include "intended, designed or arranged to be used or occupied."

1.090-D Conjunctions

Unless the context otherwise expressly indicates, conjunctions have the following meanings:

1. “And” indicates that all connected items or provisions apply; and
2. “Or” indicates that the connected items or provisions may apply singularly or in combination.

1.090-E Headings and Illustrations

Headings and illustrations are provided for convenience and reference only and do not define or limit the scope of any provision of this zoning code. In case of any difference of meaning or implication between the text of this zoning code and any heading, drawing, table, figure or illustration, the text governs.

1.090-F Versions and Citations

All references in this zoning code to other city, state or federal regulations are to be construed as referring to the most up-to-date version and citation for those regulations, unless otherwise expressly indicated. When the referenced regulations have been repealed and not replaced by other regulations, zoning code requirements for compliance are no longer in effect.

1.090-G Lists and Examples

Unless otherwise expressly indicated, lists of items or examples that use “including,” “such as,” or similar terms are intended to provide examples only. They are not to be construed as exhaustive lists of all possibilities.

1.090-H Delegation of Authority

Whenever a provision appears requiring the head of a department or another officer or employee of the city to perform an act or duty, that provision will be construed as authorizing the department head or officer to delegate that responsibility to others over whom they have authority. Delegation of authority is not allowed when the provisions of this zoning code expressly prohibit such delegation.

1.090-I Public Officials and Agencies

1. Unless otherwise expressly stated, all employees, public officials, bodies and agencies to which references are made are those of the City of Tulsa or individuals or agencies legally authorized to act on behalf of the City of Tulsa.
2. References in this zoning code to the "city" are references to the City of Tulsa.
3. References in this zoning code to the "city council" are references to the Tulsa City Council.
4. References in this zoning code to the "planning director" are references to the director of the Tulsa Planning.
5. References in this zoning code to the "planning commission" are references to the Tulsa Metropolitan Area Planning Commission.
6. References in this zoning code to the "board of adjustment" are references to the City of Tulsa Board of Adjustment.
7. References in this zoning code to the "preservation commission" are references to the City of Tulsa Preservation Commission.
8. References in this zoning code to the "preservation officer" are references to the planning director or the staff member to whom the planning director assigns responsibility for performing the preservation officer's duties under this zoning code.
9. References in this zoning code to the "development administrator" are references to the director of the City of Tulsa development services department. In the performance of his or her duties, the development administrator may consult with the land use administrator.
10. References in this zoning code to the "land use administrator" are references to the director of the Tulsa Planning Office. In the performance of his or her duties, the land use administrator may consult with the development administrator.

Section 1.100 Zoning Map

1.100-A Establishment

The location and boundaries of the zoning districts defined in this zoning code must be established by ordinance and shown on a geographic coverage layer that is maintained as part of a geographic information system (GIS) under the direction of the land use administrator. This "Zoning" geographic coverage layer constitutes Tulsa's official zoning map.

1.100-B Maintenance and Updates

The land use administrator is responsible for directing revisions to the official zoning map to reflect its amendment as soon as possible after the effective date of zoning map amendments (rezonings).

1.100-C District Boundaries

Zoning district boundary lines must be described by legal description or by a map that accompanies the ordinance establishing the district or amending the district boundaries. When a legal description is used, the zoning district boundary is deemed to extend to the centerline of abutting streets. When a map is used, district boundary lines must be established by dimensions, property lines, recorded lot lines, or the centerline of abutting streets, alleys, or railroad rights-of-way, as those features were of record at the time of adoption.

1.100-D Map Interpretations

Where any uncertainty exists about a zoning boundary that was established by legal description, the legal description accompanying the amending ordinance governs. In other cases, the land use administrator is authorized to make an interpretation in accordance with the procedures of Section 70.090. The following rules apply to all map interpretations:

1. A boundary shown on the zoning map as approximately following the shoreline or centerline of a river, stream, lake or other watercourse will be construed as following the actual shoreline or centerline of the watercourse. If, subsequent to the establishment of the boundary, the shoreline or centerline of the watercourse should move as a result of natural processes (flooding, erosion, sedimentation, etc.), the boundary will be construed as moving with the shoreline or centerline of the watercourse.
2. A boundary shown on the zoning map as approximately following a ridge line or topographic contour line will be construed as following the actual ridge line or contour line. If, subsequent to the establishment of the boundary, the ridge line or contour line should move as a result of natural processes (erosion, slippage, subsidence, etc.), the boundary will be construed as moving with the ridge line or contour line.
3. A boundary shown on the zoning map as approximately following lot lines or other lot boundaries will be construed as following such lot lines or lot boundaries.
4. A boundary shown on the zoning map as approximately following a street or railroad right-of-way line will be construed as following the centerline of the street or railroad right-of-way.
5. A boundary shown on the zoning map as approximately following the boundary of an adjacent municipality will be construed as following that boundary.
6. A boundary shown on the zoning map as approximately parallel to, or as an apparent extension of, a feature described above will be construed as being actually parallel to, or an extension of, the feature.

1.100-E Zoning of Annexed Land

When land is annexed or otherwise brought into the zoning jurisdiction of the city, it may be classified in the AG district or assigned another zoning classification based on the comprehensive plan, existing land uses, any applicable annexation agreement and other relevant considerations.

Section 1.110 Transitional Provisions

The provisions of this section address the transition to this zoning code from the zoning code in effect immediately preceding the effective date specified in Section 1.030.

1.110-A Applications, Permits and Approvals

1. Any building, development or structure for which a building permit was issued or a complete building permit application had been accepted for processing before the effective date specified in Section 1.030 may be completed in conformance with the issued building permit and other applicable permits and conditions, even if such building, development or structure does not comply with provisions of this zoning code. If the building, development or structure is not commenced and completed within the time allowed under the original building permit and any authorized permit extension, the building, development or structure may be constructed, completed and occupied only if it complies with the regulations of this zoning code.
2. Complete applications for PUDs, development plans, special exceptions, variances or other zoning-related approvals that are pending approval on the effective date specified in Section 1.030 must be reviewed wholly under the terms of the zoning code in effect immediately preceding the effective date specified in Section 1.030. Building permits for construction and development approved under such zoning approvals may be issued in accordance with 1.110-A3.
3. The development administrator is authorized to issue building permits for construction or development approved before the effective date specified in Section 1.030 and for developments pending approval under 1.110-A2, even if such building, development or structure does not fully comply with provisions of this zoning code. If building is not commenced and completed within the time allowed under the building permit and any authorized permit extension, then the building, development or structure may be constructed, completed and occupied only if it complies with the regulations of this zoning code.
4. When a use classified as a special exception under this zoning code exists as an approved special exception or permitted use on the effective date specified in Section 1.030, that use will be considered a lawfully established special exception under this zoning code. When any amendment to this zoning code changes the classification of a permitted use to a special exception, any use lawfully established before such amendment will be considered a lawfully established special exception after the effective date of the amendment. A lawfully established existing use that is not allowed as a special exception or permitted use in the district in which the use is now located will be considered

a nonconforming use and will be subject to all applicable regulations of Chapter 80.

1.110-B Zoning District Name Conversions

1. General

The zoning district names in effect before the effective date specified in Section 1.030 are converted in this zoning code as follows:

Table 1-1: Zoning District Name Conversions

Map Symbol	Previous Zoning District Name	Map Symbol	New Zoning District Name
RESIDENTIAL (See Chapter 5)			
RE	Residential Single-family Estate	RE	Residential Single-family Estate
RS-1	Residential Single-Family Low Density	RS-1	Residential Single-family 1
RS-2	Residential Single-Family Med. Density	RS-2	Residential Single-family 2
RS-3	Residential Single Family High Density	RS-3	Residential Single-family 3
RS-4	Residential Single Family Highest Density	RS-4	Residential Single-family 4
No existing equivalent		RS-5	Residential Single-family 5
RD	Residential Duplex	RD	Residential Duplex
RT	Residential Townhouse	RT	Residential Townhouse
RM-0	Residential Multi-family Lowest Density	RM-0	Residential Multi-family 0
RM-1	Residential Multi-family Low Density	RM-1	Residential Multi-family 1
RM-2	Residential Multi-family Medium Density	RM-2	Residential Multi-family 2
RM-3	Residential Multi-family High Density	RM-3	Residential Multi-family 3
RMH	Residential Manufactured Home	RMH	Residential Manufactured Housing
MIXED-USE DISTRICTS (See Chapter 10)			
No existing equivalent		MX1	Neighborhood Mixed-use
No existing equivalent		MX2	Community Mixed-use
No existing equivalent		MX3	Regional Mixed-use
OFFICE, COMMERCIAL AND INDUSTRIAL (See Chapter 15)			
OL	Office Low Intensity	OL	Office–Low
OM	Office Medium Intensity	OM	Office–Medium
OMH	Office Medium-High Intensity	OMH	Office–Medium-High
OH	Office High Intensity	OH	Office–High
CS	Commercial Shopping	CS	Commercial Shopping
CG	Commercial General	CG	Commercial General
CH	Commercial High Intensity	CH	Commercial–High
CBD	Central Business	CBD	Central Business
IL	Industrial Light	IL	Industrial–Light
IM	Industrial Moderate	IM	Industrial–Moderate
IH	Industrial Heavy	IH	Industrial–Heavy
SPECIAL DISTRICTS (See Chapter 25)			
AG	Agriculture	AG	Agricultural
PK	Parking	PK	Parking
CO	Corridor	CO	Corridor
SR	Scientific Research	SR	Scientific Research
MX-I	Mixed-Use Institutional	IMX	Institutional Mixed-Use
No existing equivalent		MPD	Master Planned Development
FBC	Form-Based Code (Title 42-B)	MPD-FBC	Master Planned Development-Form-Based Code
OVERLAY DISTRICTS (See Chapter 20)			
PUD	Planned Unit Development	PUD	Planned Unit Development "Legacy" (See Section 30.010)
HP	Historic Preservation	HP	Historic Preservation

Map Symbol	Previous Zoning District Name	Map Symbol	New Zoning District Name
No existing equivalent		Varies	See Chapter 20
No existing equivalent		PI	Parking Impact

2. Form-Based Code of Title 42-B

a. The form-based code district in effect before the effective date specified in Section 1.030 is hereby converted to the MPD-FBC district. The MPD-FBC district is governed by the regulations of the following chapters of Title 42-B Tulsa Revised Ordinances in effect immediately prior to the effective date referred to in Section 1.030, which are adopted to serve as the development standards for development within the MPD-FBC district:

(1) Chapter 3, Regulating Plans, section 301;

(2) Chapter 4, Building Form Standards;

(3) Chapter 5, Urban Space Standards;

(4) Chapter 6, Parking Standards; and

(5) Chapter 7, Definitions.

b. Properties zoned FBC immediately prior to the effective date specified in Section 1.030 are designated MPD-FBC-1. Chapter 3, Regulating Plans of Title 42-B, Section 302 serves as the development plan for MPD-FBC-1.

c. "Adult entertainment establishments," as referred to in Title 42-B means bars and other use types that cater exclusively or primarily to adults 21 years of age or older. References in Title 42-B to Section 705 of Title 42 mean Section 40.370 of this zoning code. References in Title 42-B to Section 1204.C of Title 42 mean Section 40.420 of this zoning code.

d. The provisions of Title 42-B in effect immediately prior to the effective date referred to in Section 1.030 must be maintained and be available for public review in the office of the land use administrator.

1.110-C Violations

The adoption of this zoning code does not affect any pending or future prosecution of, or action to abate, violations of the previous zoning code that occurred before the effective date specified in Section 1.030.

Section 1.120 Severability

If any portion of this zoning code is held to be invalid or unconstitutional by a court of competent jurisdiction, that portion is to be deemed severed from the zoning code and in no way affects or diminishes the validity of the remainder of the zoning code.

Chapter 5 | Residential Districts

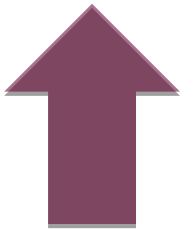
Section 5.010 Districts 5-1
Section 5.020 Use Regulations 5-1
Section 5.030 Lot and Building Regulations 5-4
Section 5.040 Other Relevant Regulations 5-7

Section 5.010 Districts

5.010-A List

The residential zoning districts are listed in Table 5-1. When this zoning code refers to "residential" zoning districts or "R" districts, it is referring to these districts.

Table 5-1: Residential (R) Zoning Districts

Map Symbol	District Name	Relative Intensity Scale
RE	Residential Single-family Estate	Least intensive "R" district
RS-1	Residential Single-family 1	
RS-2	Residential Single-family 2	
RS-3	Residential Single-family 3	
RS-4	Residential Single-family 4	
RS-5	Residential Single-family 5	
RD	Residential Duplex	
RT	Residential Townhouse	
RM-0	Residential Multi-family 0	
RM-1	Residential Multi-family 1	
RM-2	Residential Multi-family 2	
RM-3	Residential Multi-family 3	Most intensive "R" district
RMH	Residential Manufactured Housing	RMH not included in relative intensity scale

5.010-B Purposes

Residential zoning districts are primarily intended to create, maintain, and promote a variety of housing opportunities for individual households and to maintain and promote the desired physical character of existing and developing neighborhoods. While the districts primarily accommodate residential uses, some nonresidential uses are also allowed. The various R districts are primarily differentiated on the basis of allowed building types, density and lot and building regulations.

Section 5.020 Use Regulations

Principal uses are allowed in R districts in accordance with Table 5-2.

5.020-A Use Classification System

Uses are listed in the first column of Table 5-2. This zoning code classifies uses into categories and subcategories, which are defined in Chapter 35. In some cases, specific use types are listed in addition to the use categories and subcategories. Building types are also defined in Chapter 35.

5.020-B Permitted Uses

Uses identified with a "P" are permitted as-of-right in the subject zoning district, subject to compliance with any supplemental regulations identified in the final column of Table 5-2 and with all other applicable regulations of this zoning code.

5.020-C Special Exception Uses

Uses identified with an "S" may be allowed if reviewed and approved in accordance with the special exception procedures of Section 70.120. Special exception uses are subject to compliance with any supplemental regulations identified in the final column of Table 5-2 and with all other applicable regulations of this zoning code.

5.020-D Prohibited Uses

Uses identified with an "–" are expressly prohibited. Uses that are not listed in the table and that cannot be reasonably interpreted (as stated in 35.020-E) to fall within any defined use category are also prohibited.

5.020-E Supplemental Regulations

The "supplemental regulations" column of Table 5-2 identifies additional regulations that apply to some uses. Unless otherwise expressly stated, compliance with these regulations is required regardless of whether the use is permitted as-of-right or requires special exception approval.

5.020-F Accessory Uses

Accessory uses, such as home occupations, are not regulated by Table 5-2. Customary accessory uses are allowed in conjunction with principal uses permitted by right or by special exception, subject to compliance with all applicable accessory use regulations of Chapter 45.

Table 5-2: R District Use Regulations

USE CATEGORY **Subcategory** Specific use	RE	RS-					RD	RT	RM-				RMH	Supplemental Regulations
		1	2	3	4	5			0	1	2	3		
RESIDENTIAL														
Household Living (if in allowed building type identified in Table 5-2.5)														
Single household	P	P	P	P	P	P	P	P	P	P	P	P	P	
Two households on single lot	–	–	–	S	S	S	P	P	P	P	P	P	–	
Three or more households on single lot	–	–	–	–	–	P	S	P	P	P	P	P	–	
Group Living														Section 40.160
Assisted living facility	S	S	S	S	S	S	S	S	P	P	P	P	–	
Community group home	S	S	S	S	S	S	S	S	P	P	P	P	–	Section 40.100
Convent/monastery/novitiate	S	S	S	S	S	S	S	S	P	P	P	P	–	
Elderly/retirement center	–	–	–	–	–	–	–	–	P	P	P	P	–	
Fraternity/Sorority	–	–	–	–	–	–	–	–	P	P	P	P	–	
Homeless center	S	S	S	S	S	S	S	S	S	S	S	S	S	Section 40.130
Life care retirement center	S	S	S	S	S	S	S	–	P	P	P	P	–	
Re-entry facility	S	S	S	S	S	S	S	S	S	S	S	S	S	
Residential treatment center	S	S	S	S	S	S	S	S	S	S	S	S	S	Section 40.130
Rooming/boarding house	–	–	–	–	–	–	–	–	P	P	P	P	–	
Shelter, emergency and protective	S	S	S	S	S	S	S	S	S	S	S	S	S	Section 40.130
Transitional living center	S	S	S	S	S	S	S	S	S	S	S	S	S	Section 40.130
PUBLIC, CIVIC AND INSTITUTIONAL														
Airport	S	S	S	S	S	S	S	S	S	S	S	S	S	
Cemetery	S	S	S	S	S	S	S	S	S	S	S	S	S	Section 40.150
College or University	S	S	S	S	S	S	S	S	S	S	S	S	S	Section 40.070
Day Care														Section 40.120
Family Child Care Home established on or before Nov. 15, 2023 [2]	P	P	P	P	P	P	P	P	P	P	P	P	P	Section 40.120
Family Child Care Home established after	S	S	S	S	S	S	S	S	S	S	S	S	S	Section 40.120

USE CATEGORY Subcategory Specific use	RE	RS-					RD	RT	RM-				RMH	Supplemental Regulations
		1	2	3	4	5			0	1	2	3		
Nov. 15, 2023														
Child Care Center	S	S	S	S	S	S	S	S	S	S	S	S	S	Section 40.120
Detention and Correctional Facility	S	S	S	S	S	S	S	S	S	S	S	S	S	Section 40.130
Fraternal Organization	S	S	S	S	S	S	S	S	S	S	S	S	S	Section 40.140
Governmental Service or Similar Functions	S	S	S	S	S	S	S	S	S	S	S	S	S	
Hospital	S	S	S	S	S	S	S	S	S	S	S	S	S	Section 40.070
Library or Cultural Exhibit	S	S	S	S	S	S	S	S	S	S	S	S	S	Section 40.200
Natural Resource Preservation	P	P	P	P	P	P	P	P	P	P	P	P	P	
Parks and Recreation	S	S	S	S	S	S	S	S	S	S	S	S	S	
Postal Services	S	S	S	S	S	S	S	S	S	S	S	S	S	
Religious Assembly	S	S	S	S	S	S	S	S	S	S	S	S	S	Section 40.320
Safety Service	S	S	S	S	S	S	S	S	S	S	S	S	S	
School														
Established on or before Jan. 1, 1998	P	P	P	P	P	P	P	P	P	P	P	P	P	Section 40.350
Others	S	S	S	S	S	S	S	S	S	S	S	S	S	Section 40.350
Utilities and Public Service Facility														
Minor	P	P	P	P	P	P	P	P	P	P	P	P	P	
Major	S	S	S	S	S	S	S	S	S	S	S	S	S	
Wireless Communication Facility														
Freestanding tower	S	S	S	S	S	S	S	S	S	S	S	S	S	Section 40.420
Building or tower-mounted antenna	P	P	P	P	P	P	P	P	P	P	P	P	P	Section 40.420
COMMERCIAL														
Broadcast or Recording Studio	–	–	–	–	–	–	–	–	–	S	S	S	–	
Farmers Market	–	–	–	–	–	–	–	–	S	S	S	S	–	Section 40.430
Financial Services (except as below)	–	–	–	–	–	–	–	–	–	S	S	S	–	
Personal credit establishment	–	–	–	–	–	–	–	–	–	–	–	–	–	
Funeral or Mortuary Service	–	–	–	–	–	–	–	–	–	S	S	S	–	Section 40.150
Lodging														
Bed & breakfast	S	S	S	S	S	S	S	S	S	S	S	S	S	Section 40.060
Short-term rental	P	P	P	P	P	P	P	P	P	P	P	P	P	Section 40.375
Marina	S	S	S	S	S	S	S	S	S	S	S	S	S	
Office														Section 40.260
Business or professional office	–	–	–	–	–	–	–	–	–	S	S	S	–	
Medical, dental or health practitioner office	–	–	–	–	–	–	–	–	–	S	S	S	–	
Self-service Storage Facility	–	–	–	–	–	–	–	–	–	S	S	S	–	Section 40.360
Studio, Artist or Instructional Service	–	–	–	–	–	–	–	–	–	S	S	S	–	Section 40.380
AGRICULTURAL														
Animal Husbandry		See Title 2, Ch. 2 of the Tulsa Revised Ordinances												
Community Garden	P	P	P	P	P	P	P	P	P	P	P	P	P	Section 40.090
Farm, Market- or Community-supported [1]	S	S	S	S	S	S	S	S	S	S	S	S	S	Section 40.090
OTHER														
Oil or Gas Well	S	S	S	S	S	S	S	S	S	S	S	S	S	Section 40.270

Table 5-2 Notes

The following notes refer to the bracketed numbers (e.g.," [1]") in Table 5-2:

[1] A Farm, Market- or Community-supported, may only be allowed in a residential district where the land area of a single parcel is greater than 2 acres.

[2] Only family child care homes that were operating as a principal-use family child care home under a valid license issued from the State of Oklahoma on or before November 15, 2023, and have been issued a certificate of occupancy for a family child care home by December 31,

2025, may be considered established for the purposes of this provision. Said license may be for a Family Child Care Home or Large Family Child Care Home as permitted by the State of Oklahoma, provided that the child care home has a licensed capacity of no greater than 12 children. At the time the license expires, is revoked by the State of Oklahoma, is transferred to another entity, or the child care home ceases operation for longer than 6 months, the property will lose its status as established and the family child care home will require a Special Exception.

5.020-G Residential Building Types

Residential uses allowed in R districts must be located in residential buildings. Descriptions of the residential building types and references to applicable regulations are found in Section 35.010. The following residential building types are allowed in R districts.

Table 5-2.5: R District Building Type Regulations for Household Living

USE CATEGORY **Subcategory** Specific Uses Building Type	RE	RS- 1	RS- 2	RS- 3	RS- 4	RS- 5	RD	RT	RM- 0	RM- 1	RM- 2	RM- 3	RMH	Supplemental Regulations
RESIDENTIAL														
Household Living														
Single household														
Detached house	P	P	P	P	P	P	P	P	P	P	P	P	S	
Patio House	–	–	–	P	P	P	P	P	P	P	P	P	–	Section 40.290
Townhouse														
2-unit townhouse	–	–	–	S	S	P	P	P	P	P	P	P	–	Section 40.390
3+-unit townhouse	–	–	–	–	–	–	–	P	P	P	P	P	–	Section 40.390
Manufactured housing unit	S	S	S	S	S	S	S	S	S	S	S	S	P	Section 40.210
Manufactured housing subdivision	–	–	–	–	–	–	–	–	–	–	–	–	P	Section 40.220
Mobile home	–	–	–	–	–	–	–	–	–	–	–	–	P	Section 40.240
Mixed-use building	–	–	–	–	–	–	–	–	–	S	S	S	–	
Vertical mixed-use building	–	–	–	–	–	–	–	–	–	S	S	S	–	
Two households on single lot														
Duplex	–	–	–	S	S	S	P	P	P	P	P	P	–	
Mixed-use building	–	–	–	–	–	–	–	–	–	P	P	P	–	
Vertical mixed-use building	–	–	–	–	–	–	–	–	–	P	P	P	–	
Three or more households on single lot														
Cottage house development	–	–	–	–	–	P	S	S	P	P	P	P	–	Section 40.110
Multi-unit house	–	–	–	–	–	S	S	P	P	P	P	P	–	Section 40.250
Apartment/Condo	–	–	–	–	–	–	–	–	P	P	P	P	–	Section 40.030
Mobile home park	–	–	–	–	–	–	–	–	–	–	–	–	P	Section 40.240
Mixed-use building	–	–	–	–	–	–	–	–	–	P	P	P	–	
Vertical mixed-use building	–	–	–	–	–	–	–	–	–	P	P	P	–	

P= Permitted; S=Special Exception Approval Required; – = Prohibited

Section 5.030 Lot and Building Regulations

5.030-A Table of Regulations

The lot and building regulations of

Table 5-3 apply to all principal uses and structures in R districts, except as otherwise expressly stated in this zoning code. General exceptions to these regulations and rules for measuring compliance can be found in Chapter 90. Regulations governing accessory uses and structures can be found in Chapter 45.

Table 5-3: R District Lot and Building Regulations

Regulations	RE	RS-1	RS-2	RS-3	RS-4	RS-5	RD	RT	RM-0	RM-1	RM-2	RM-3	RMH
Minimum Lot Area (sq. ft.)													
Detached house	22,500	13,500	9,000	6,900	5,500	3,300	5,500	5,500	5,500	5,500	5,500	5,500	5,500
Patio house	–	–	–	6,900	5,500	3,300	5,500	5,500	5,500	5,500	5,500	5,500	–
Townhouse	–	–	–	4,500	4,500	2,200	2,750	1,600	1,600	1,600	1,600	1,600	–
Cottage house development	–	–	–	–	–	10,000	10,000	10,000	10,000	10,000	10,000	10,000	–
Duplex	–	–	–	6,900	5,500	3,300	5,500	5,500	5,500	5,500	5,500	5,500	–
Multi-unit house	–	–	–	–	–	3,300	6,900	5,500	5,500	5,500	5,500	5,500	–
Apartment/Condo	–	–	–	–	–	–	–	–	10,000	10,000	6,000	24,000	–
Mobile home park	–	–	–	–	–	–	–	–	–	–	–	–	[1]
Other allowed buildings/uses													
Permitted by right	22,500	13,500	9,000	6,900	5,500	5,500	5,500	5,500	5,500	5,500	5,500	5,500	5,500
Special exceptions	22,500	13,500	12,000	12,000	12,000	12,000	12,000	12,000	12,000	12,000	12,000	12,000	12,000
Min. Lot Area per Unit (sq. ft.)													
Detached house	22,500	13,500	9,000	6,900	5,500	3,300	5,500	5,500	5,500	5,500	5,500	5,500	–
Patio house	–	–	–	6,900	5,500	3,300	5,500	5,500	5,500	5,500	5,500	5,500	–
Townhouse	–	–	–	4,500	4,500	2,200	2,750	1,600	1,600	1,600	1,600	1,600	–
Cottage house development	–	–	–	–	–	2,500	2,500	2,500	2,500	2,500	2,500	2,500	–
Duplex	–	–	–	3,450	2,750	1,650	2,750	2,750	2,750	2,750	2,750	2,750	–
Multi-unit house	–	–	–	–	–	1,100	1,800	1,800	1,800	1,375	1,100	900	–
Apartment/Condo	–	–	–	–	–	–	–	–	2,900	1,750	1,100	400	–
Other allowed buildings/uses													
Permitted by right	–	–	–	–	–	–	–	–	5,500	5,500	5,500	5,500	5,500
Special exceptions	22,500	13,500	12,000	12,000	12,000	12,000	12,000	12,000	12,000	12,000	12,000	12,000	12,000
Minimum Lot Width (ft.)													
Detached house	150	100	75	60	50	30	50	50	50	50	50	50	–
Patio house	–	–	–	60	50	30	50	50	50	50	50	50	–
Townhouse	–	–	–	30	25	20	25	20	20	20	20	20	–
Cottage house development	–	–	–	–	–	75	75	75	75	75	75	75	–
Duplex	–	–	–	60	50	30	50	50	50	50	50	50	–
Multi-unit house	–	–	–	–	–	30	50	50	50	50	50	50	–
Apartment/Condo	–	–	–	–	–	–	–	–	100	100	50	100	–
Other allowed buildings/uses													
Permitted by right	150	100	75	60	50	50	50	50	50	50	50	50	50
Special exceptions	150	100	100	100	100	100	100	100	100	100	100	100	100
Minimum Street Frontage													
Residential bldgs/uses [2]	30	30	30	30	30	30	30	30	30	30	30	30	30
Min. Building Setbacks (ft.)													
Street [3]													
Arterial or fwy service rd.	35	35	35	35	35	35	35	35	10	10	10	10	35
Other streets	35	35	30	25	20	20	25	10	10	10	10	10	25
Side (interior) [4]	15	5	5	5	5	5	5	5[5]	5[6]	5[6]	5[6]	5[7]	10
Rear [4]	25	25	25	20	20	20	20	20	20	20	10	20	15
Min. Open Sp./Unit (sq. ft.)	12,000	7,000	5,000	4,000[8]	2,500	600	2,000	1,200	1,200	600	200	–	2,500
Max. Building Height (feet)	35	35	35	35	35	35	35	35	35	35	35	–	35

5.030-B Table Notes

The following notes refer to the bracketed numbers (e.g.," [1]") in

Table 5-3:

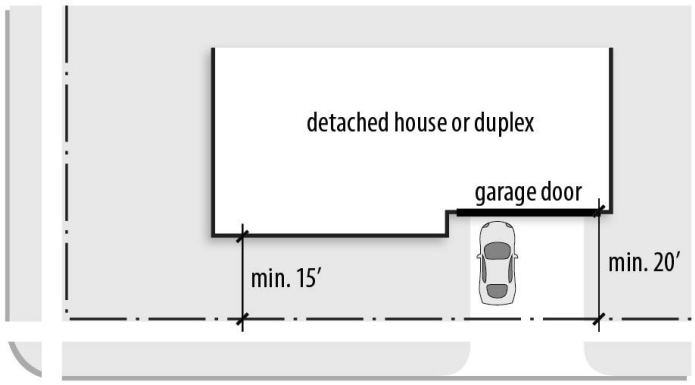
[1] See Section 40.240 for detailed regulations governing mobile home parks.

[2] Minimum street frontage requirements apply to townhouse developments, not to individual townhouse units. Cottage house developments require minimum street frontage of 75 feet. Minimum street frontage requirements do not apply to nonresidential uses.

[3] For detached houses and duplexes on corner lots, the minimum side street setback may be reduced to 15 feet, provided that the minimum setback for street-facing garage doors is 20 feet or 20 feet from the back of the sidewalk, whichever is greater. The street setback specified in

Table 5-3 applies along the other street.

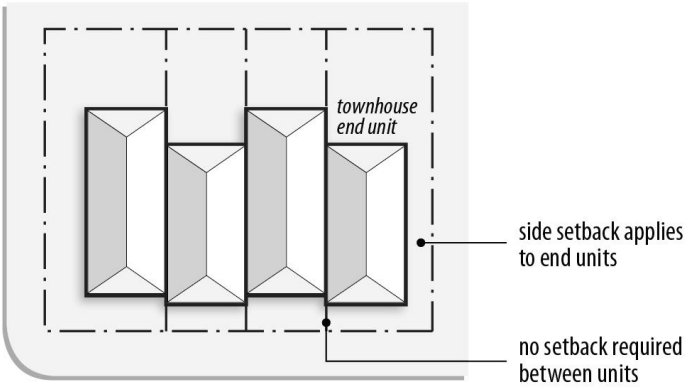
Figure 5-1: Street Side Setback on Corner Lots



[4] Non-residential uses requiring special exception approval in R zoning districts, excluding Day Cares, require minimum 25-foot building setback from R-zoned lots that are vacant or occupied by residential uses. Day Cares are not subject to the 25-foot building setback.

[5] No side setback is required for interior units in townhouse developments. Side setback applies to end units (see Figure 5-2).

Figure 5-2: Side Setbacks for Townhouses



[6] Minimum interior side setback is 10 feet for apartment/condo and permitted nonresidential buildings.

[7] Minimum interior side setback is 25 feet for apartment/condo and permitted nonresidential buildings.

[8] Minimum required open space for duplex in RS-3 is 2,500 square feet per unit.

Section 5.040 Other Relevant Regulations

Uses and structures in residential zoning districts may be subject to other regulations and standards, including the following.

5.040-A Nonconformities

See Chapter 80.

5.040-B Accessory Uses and Structures

See Chapter 45.

5.040-C Parking

See Chapter 55.

5.040-D Signs

See Chapter 60.

5.040-E Landscaping and Screening

See Chapter 65.

5.040-F Temporary Uses

See Chapter 50.

5.040-G Outdoor Lighting

See Chapter 67.

5.040-H Access Across R-zoned Property

The use of RE-, RS-, RD- or RT-zoned land for access to any RM, O, C, or I zoning district, or the use of an RM district for access to any O, C, or I zoning district is prohibited unless permitted through an approved PUD or MPD.

Chapter 10 | Mixed-use Districts

Section 10.010 General 10-1
Section 10.020 Use Regulations 10-2
Section 10.030 Character Designations 10-5
Section 10.040 Height Designations 10-12
Section 10.050 Other Relevant Regulations 10-13

Section 10.010 General

10.010-A List

The mixed-use zoning districts are listed in Table 10-1. When this zoning code refers to "mixed-use" zoning districts or to "MX" districts it is referring to all MX districts. (Note: IMX district regulations are found in Section 25.060)

Table 10-1: Mixed-use (MX) Zoning Districts

Map Symbol	District Name	Relative Intensity Scale
MX1	Neighborhood Mixed-use	Least intensive MX district
MX2	Community Mixed-use	
MX3	Regional Mixed-use	Most intensive MX district

10.010-B Purposes

1. **MX1, Neighborhood Mixed-use**
   The MX1, Neighborhood Mixed-use district is intended to accommodate small-scale retail, service and dining uses that serve nearby residential neighborhoods. The district also allows a variety of residential uses and building types.

2. **MX2, Community Mixed-use**
   The MX2, Community Mixed-use district is intended to accommodate retail, service, entertainment, and employment uses that serve many surrounding neighborhoods. The district also allows a variety of residential uses and building types.

3. **MX3, Regional Mixed-use**
   The MX3, Regional Mixed-use district is intended to accommodate large-scale employment, retail, civic and institutional and entertainment uses that draw visitors and workers from around the region.

10.010-C Use, Character and Height Designations

1. Each MX district consists of a use designation (MX1, MX2 or MX3), a character designation (–P, –U, –V or –F) and a height designation (–35, –45, –55, –65 or –unlimited). This "modular" approach allows the creation of finely tuned, context-sensitive zoning districts.

2. MX districts and their respective use, character and height designations may be established or amended only through the zoning map amendment procedures of Section 70.030.

3. On the zoning map, all the components of the applicable mixed-use zoning district will be identified as a single map symbol. MX1-P-45, for example, is the map symbol denoting a neighborhood-oriented mixed-use district (MX1) that requires a very pedestrian-oriented (–P) building pattern (character) and that allows buildings up to 45 feet in height (–45).

Section 10.020 Use Regulations

Principal uses are allowed in mixed-use districts in accordance with Table 10-2.

10.020-A Use Classification System

Uses are listed in the first column of Table 10-2. This zoning code classifies uses into categories and subcategories, which are defined in Chapter 35. In some cases, specific use types are listed in addition to the use categories and subcategories. Building types are also defined in Chapter 35.

10.020-B Permitted Uses

Uses identified with a "P" are permitted as-of-right in the subject zoning district, subject to compliance with any supplemental regulations identified in the final column of Table 10-2 and with all other applicable regulations of this zoning code.

10.020-C Special Exception Uses

Uses identified with an "S" may be allowed if reviewed and approved in accordance with the special exception procedures of Section 70.120. Special exception uses are subject to compliance with any supplemental regulations identified in the final column of Table 10-2 and with all other applicable regulations of this zoning code.

10.020-D Prohibited Uses

Uses identified with an "–" are expressly prohibited. Uses that are not listed in the table and that cannot be reasonably interpreted (as stated in 35.020-E) to fall within any defined use category are also prohibited.

10.020-E Supplemental Regulations

The "supplemental regulations" column of Table 10-2 identifies additional regulations that apply to some uses. Unless otherwise expressly stated, compliance with these regulations is required regardless of whether the use is permitted as-of-right or requires special exception approval.

10.020-F Accessory Uses

Accessory uses are not regulated by Table 10-2. Customary accessory uses are allowed in conjunction with principal uses permitted by right or by special exception, subject to compliance with all applicable accessory use regulations of Chapter 45.

Table 10-2: MX District Use Regulations

USE CATEGORY **Subcategory** Specific use	MX1	MX2	MX3	Supplemental Regulations
RESIDENTIAL				
Household Living (allowed building types regulated by character zone)	P	P	P	
Group Living				Section 40.160
Assisted living facility	P	P	P	
Community group home	P	P	P	Section 40.100

USE CATEGORY **Subcategory** Specific use	MX1	MX2	MX3	Supplemental Regulations
Elderly/retirement center	P	P	P	
Life care retirement center	P	P	P	
Shelter, emergency and protective	S	S	S	Section 40.130
PUBLIC, CIVIC AND INSTITUTIONAL				
College or University	S	S	P	Section 40.070
Day Care				
Family Child Care Home	P	P	P	Section 40.120
Child Care Center	P	P	P	Section 40.120
Fraternal Organization	S	P	P	
Governmental Service or Similar Functions	S	S	S	
Hospital	S	S	S	Section 40.070
Library or Cultural Exhibit	P	P	P	
Natural Resource Preservation	P	P	P	
Parks and Recreation	P	P	P	
Postal Services	S	S	S	
Religious Assembly	P	P	P	
Safety Service	S	P	P	
School	–	–	P	Section 40.350
Utilities and Public Service Facility				
Minor	P	P	P	
Major	S	S	S	
Wireless Communication Facility				Section 40.420
Freestanding tower	S	S	S	
Building or tower-mounted antenna	P	P	P	
COMMERCIAL				
Animal Service				Section 40.020
Boarding or shelter	–	–	S	
Grooming	P	P	P	
Veterinary	P	P	P	
Assembly and Entertainment				Section 40.040
Indoor				
Small (up to 250 persons capacity)	S	P/S[1]	P/S[1]	
Large (>250 person capacity)	–	P/S[1]	P/S[1]	
Outdoor	–	S	S	
Broadcast or Recording Studio	S	P	P	
Commercial Service				Section 40.080
Building service	–	S	P	
Business support service	–	S	P	Section 40.300
Consumer maintenance/repair service	P	P	P	
Personal improvement service	P	P	P	
Research service	–	P	P	Section 40.225
Farmers Market	P	P	P	Section 40.430
Financial Services (except as below)	P	P	P	
Personal credit establishment	–	P	P	Section 40.300
Funeral or Mortuary Service	–	P	P	Section 40.150
Lodging				
Bed & breakfast	S	P	P	Section 40.060
Short-term rental	P	P	P	Section 40.375
Hotel/motel	–	P	P	Section 40.170
Marina	S	P	P	

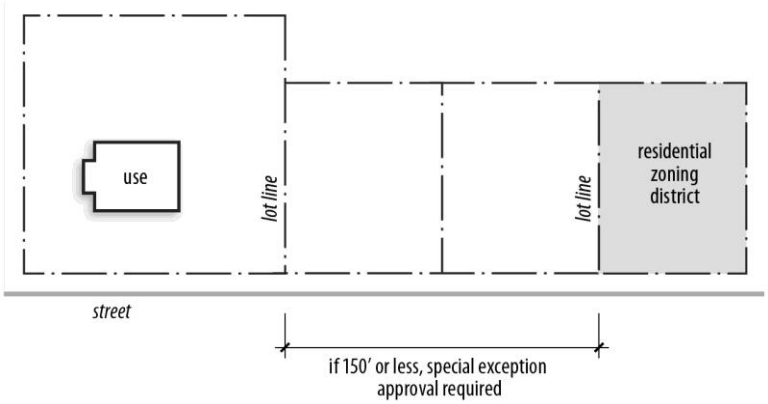
USE CATEGORY **Subcategory** Specific use	MX1	MX2	MX3	Supplemental Regulations
Office				Section 40.260
Business or professional office	P	P	P	
Medical, dental or health practitioner office	P	P	P	
Plasma center	–	–	P	Section 40.300
Parking, Non-accessory	–	S	S	§55.080-C2
Restaurants and Bars				
Restaurant	P	P	P	Section 40.330
Bar	P/S[1]	P/S[1]	P/S[1]	Section 40.050
Retail Sales				Section 40.340
Building supplies and equipment	–	S	P	
Consumer shopping goods	P	P	P	
Convenience goods	P	P	P	Section 40.300
Grocery Store	P	P	P	
Small Box Discount Store	P[2]	P[2]	P[2]	
Medical Marijuana Dispensary	P	P	P	Section 40.225
Self-service Storage Facility	–	–	S	Section 40.360
Sexually Oriented Business Establishment	–	–	S	Section 40.370
Studio, Artist or Instructional Service	P	P	P	Section 40.380
Trade School	–	S	S	
Vehicle Sales and Service				Section 40.400
Commercial vehicle repair/maintenance	–	S	S	
Commercial vehicle sales and rentals	–	S	S	
Fueling station	–	P	P	
Personal vehicle repair and maintenance	–	S	P	
Personal vehicle sales and rentals	–	S	S	
Vehicle part and supply sales	–	P	P	
Vehicle body and paint finishing shop	–	S	S	
INDUSTRIAL				Section 40.180
Low-impact Manufacturing & Industry	–	–	S	
RECYCLING				Section 40.310
Consumer Material Drop-off Station	–	S	P	
AGRICULTURAL				
Community Garden	P	P	P	Section 40.090
OTHER				
Drive-in or Drive-through Facility (as a component of an allowed use)	–	S	S	Section 55.100
Oil or Gas Well	S	S	S	Section 40.270

10.020-G Table Notes

The following notes refer to the bracketed numbers (e.g.," [1]") in Table 10-2:

[1] Proposed use requires special exception approval if selling or serving alcoholic beverages and located on a lot within 150 feet of any residential zoning district other than R-zoned street right-of-way (see Figure 10-1).

Figure 10-1: Special Exception Requirement within 150 Feet of R zoning



[2] When located in the Healthy Neighborhoods Overlay (HNO) district the use is regulated as stated in Section 20.060-C.

Section 10.030 Character Designations

10.030-A List

There are 4 character designations established for the MX districts, as identified in Table 10-3. These designations govern allowed building types as well as required building and development patterns.

Table 10-3: MX District Character Designations

Map Symbol	General Character
–P	Pedestrian
–U	Urban
–V	Variable
–F	Flexible

10.030-B Pedestrian Character Designation

1. Intent

The –P, Pedestrian character designation is generally intended to be applied in locations where a high level of pedestrian orientation is present or desired, such as areas designated by the comprehensive plan as "main street" areas.

2. Allowed Building Types

The following building types are permitted in –P character zones (see building type definitions in Section 35.010):

a. Vertical mixed-use buildings

b. Commercial buildings

c. Civic/Institutional buildings

d. Open space sites

3. Lot and Building Regulations

The lot and building regulations of Table 10-4 apply to all new construction and building additions in –P character zones, except that civic/institutional buildings and open space sites are subject to –F character zone regulations (see

Section 10.030-E). General exceptions to lot and building regulations and rules for measuring compliance can be found in Chapter 90. See Figure 10-3 for illustration of selected regulations. Existing buildings are exempt from compliance with build-to-zone (BTZ), ground floor ceiling height and transparency regulations.

Table 10-4: Lot and Building Regulations for –P Character Zones

Minimum Lot Area (sq. ft.)	3,500
Minimum Lot Width (feet)	25
Minimum Street Frontage (feet)	20
Minimum Open Space per Unit (sq. ft.)	100
Minimum Building Setbacks (feet)	
Street	0
Abutting R district	10
Abutting nonresidential district	0
Abutting alley	5
Build-to-Zone (BTZ) (minimum/maximum in feet) *See Section 90.110 for BTZ measurement*	0/20
Primary street BTZ (%)	80
Secondary street BTZ (%)	30

Min. Ground Floor Ceiling Height (feet)	12
Minimum Transparency (%)	
Ground floor	50
Upper floors	20
Min. Parking Setbacks (ft) (see also Section 55.080-C)[1]	
Primary street	30
Secondary street or R zoning district	10
Nonresidential zoning district	0
Street-facing Entrance Required	Yes

[1] Parking spaces, not including drive aisles, are prohibited between building and street right-of-way (see Figure 10-2). Parking structures are subject to Section 40.280.

Figure 10-2: Parking Prohibited between Building and Street Right-of-Way (–P Character Zones)

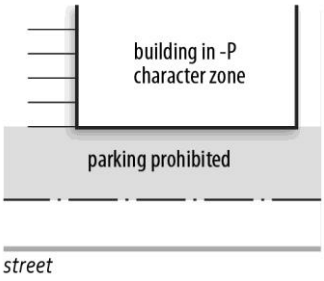
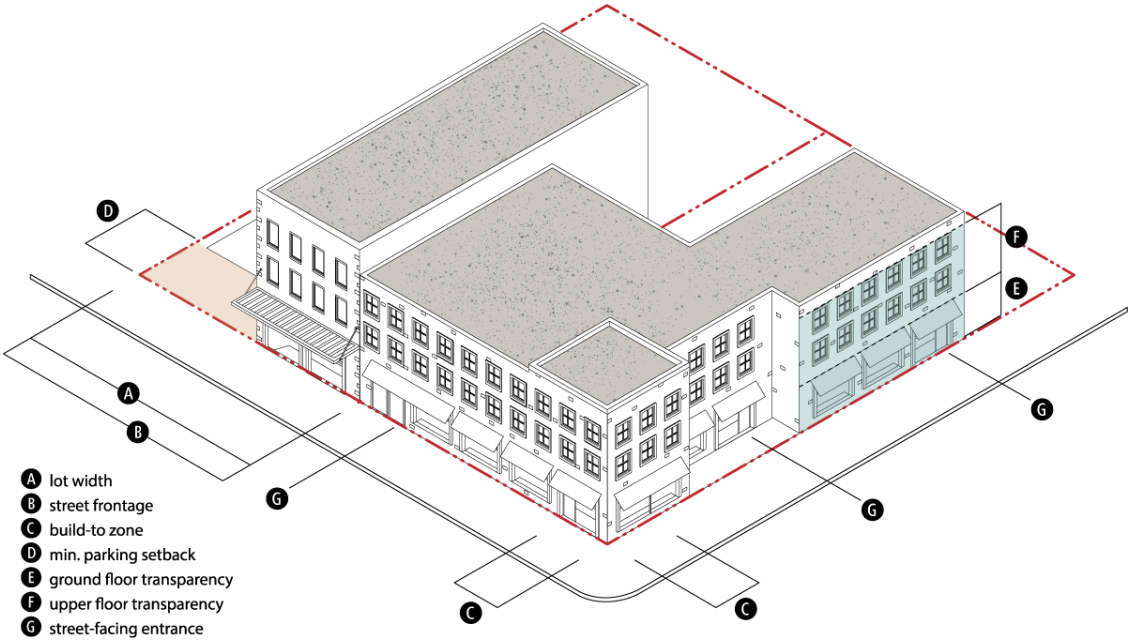


Figure 10-3: MX District Lot and Building Regulations (–P Character Zone)



10.030-C Urban Character Designation

1. Intent

Like the –P character designation, the –U, Urban character designation is generally intended to be applied in areas with high levels of walkability, but where a greater variety of building types are present or desired, such as in areas designated by the comprehensive plan as neighborhood, town and regional centers and along some plan-designated mixed-use corridors.

2. Allowed Building Types

The following building types are permitted in –U character zones (see building type definitions in Section 35.010):

a. Vertical mixed-use and mixed-use buildings

b. Commercial buildings

c. Apartments/Condos

d. Townhouses

e. Civic/Institutional buildings

f. Open space sites

3. Lot and Building Regulations

The lot and building regulations of Table 10-5 apply to all new construction and building additions in –U character zones, except that civic/institutional buildings and open space sites are subject to –F character zone regulations (see Section 10.030-E). General exceptions to lot and building regulations and rules for measuring compliance can be found in Chapter 90. Existing buildings are exempt from compliance with build-to-zone (BTZ), ground floor ceiling height and transparency regulations.

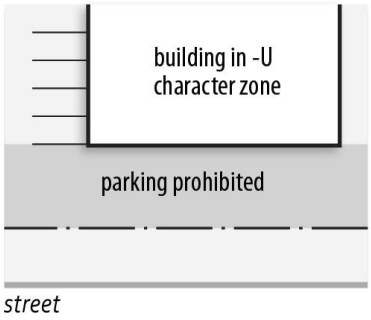
Table 10-5: Lot and Building Regulations for –U Character Zones

Minimum Lot Area (sq. ft.)	
Townhouse	1,600
Apartment/Condo	7,500
All other	3,500
Minimum Lot Width (feet)	
Townhouse	20
Apartment/Condo	50
All other	25
Minimum Street Frontage (feet)	20
Minimum Open Space per Unit (sq. ft.)	
Townhouse	200
Apartment/Condo/Mixed-use	100
Minimum Building Setbacks (feet)	
Street	0
Abutting R district	10
Abutting nonresidential district	0
Abutting alley	5
Build-to-Zone (BTZ) (minimum/maximum in feet) *See Section 90.110 for BTZ measurement*	0/20
Primary street BTZ (%)	60
Secondary street BTZ (%)	30

Min. Parking Setbacks (feet) (see also Section 55.080-C)[1]	
Primary street	30
Secondary street or R zoning district	10
Nonresidential district	0
Min. Ground Floor Ceiling Height (feet)	
Vertical mixed-use, mixed-use, and commercial buildings	12
Other buildings	–
Minimum Transparency (%)	
Vertical mixed-use buildings	
Ground floor	40
Upper floors	20
Commercial buildings and mixed-use buildings	
Ground floor	35
Upper floors	20
Other buildings	20
Street-facing Entrance Required	Yes

[1] Parking is prohibited between building and street right-of-way (see Figure 10-4). Parking structures are subject to Section 40.280.

Figure 10-4: Parking Prohibited between Building and Street Right-of-Way (–U Character Zones)



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10.030-D Variable Character Designation

1. Intent

The –V, Variable character designation is generally intended to be applied in auto-oriented areas where a transition to greater levels of walkability are underway or desired. The regulations allow greater flexibility in the siting of buildings and parking areas by, for example, allowing more generous maximum building setbacks, which can be used for landscape and streetscape elements or limited amounts of parking.

2. Allowed Building Types

The following building types are permitted in –V character zones (see building type definitions in Section 35.010):

a. Vertical mixed-use buildings and mixed-use buildings
b. Commercial buildings
c. Apartments/Condos
d. Townhouses
e. Civic/Institutional buildings
f. Open space sites

3. Lot and Building Regulations

The lot and building regulations of Table 10-6 apply to all new construction and building additions in –V character zones, except that civic/institutional buildings and open space sites are subject to –F character zone regulations (see Section 10.030-E). General exceptions to lot and building regulations and rules for measuring compliance can be found in Chapter 90. See Figure 10-6 for illustration of selected regulations. Existing buildings are exempt from compliance with build-to-zone (BTZ), ground floor ceiling height and transparency regulations.

Table 10-6: Lot and Building Regulations for –V Character Zones

	Minimum Lot Area (sq. ft.)	
	Townhouse	1,600
	Apartment/Condo	7,500
	All other	3,500
A	**Minimum Lot Width** (feet)	
	Townhouse	20
	Apartment/Condo	50
	All other	25
B	**Minimum Street Frontage** (feet)	20
	Minimum Open Space per Unit (sq. ft.)	
	Townhouse	200
	Apartment/Condo/Mixed-use	100
	Minimum Building Setbacks (feet)	
	Street	0
	Abutting R district	10
	Abutting nonresidential district	0
	Abutting alley	5

C	**Build-to-Zone (BTZ)** (minimum/maximum in feet) *See Section 90.110 for BTZ measurement*	0/110
	Primary street BTZ (%)	50
	Secondary street BTZ (%)	25
D	**Min. Parking Setbacks** (feet)(see also Section 55.080-C)[1]	
	Street or R zoning district	10
	Nonresidential zoning district	0
	Min. Ground Floor Ceiling Height (feet)	
	Vertical mixed-use, mixed-use and commercial buildings	12
	Other buildings	–
	Minimum Transparency (%)	
	Vertical mixed-use buildings	
E	Ground floor	40
F	Upper floors	20
	Commercial buildings and mixed-use buildings	
E	Ground floor	35
F	Upper floors	20
	Other buildings	20
G	**Street-facing Entrance Required**	Yes

[1] A maximum of one double-loaded parking aisle (2 parking bays) is permitted between the building and street right-of-way (see Figure 10-5 and Figure 10-6). Parking structures are subject to Section 40.280.

Figure 10-5: Limited Parking between Building and Street Right-of-Way (–V Character Zones)

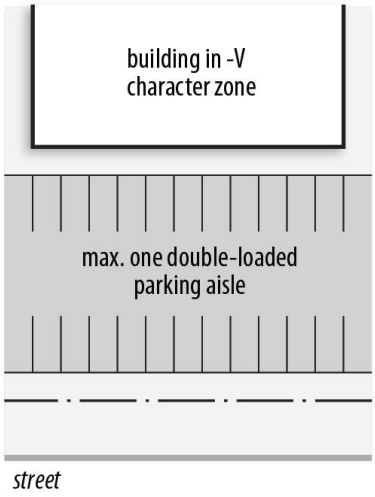
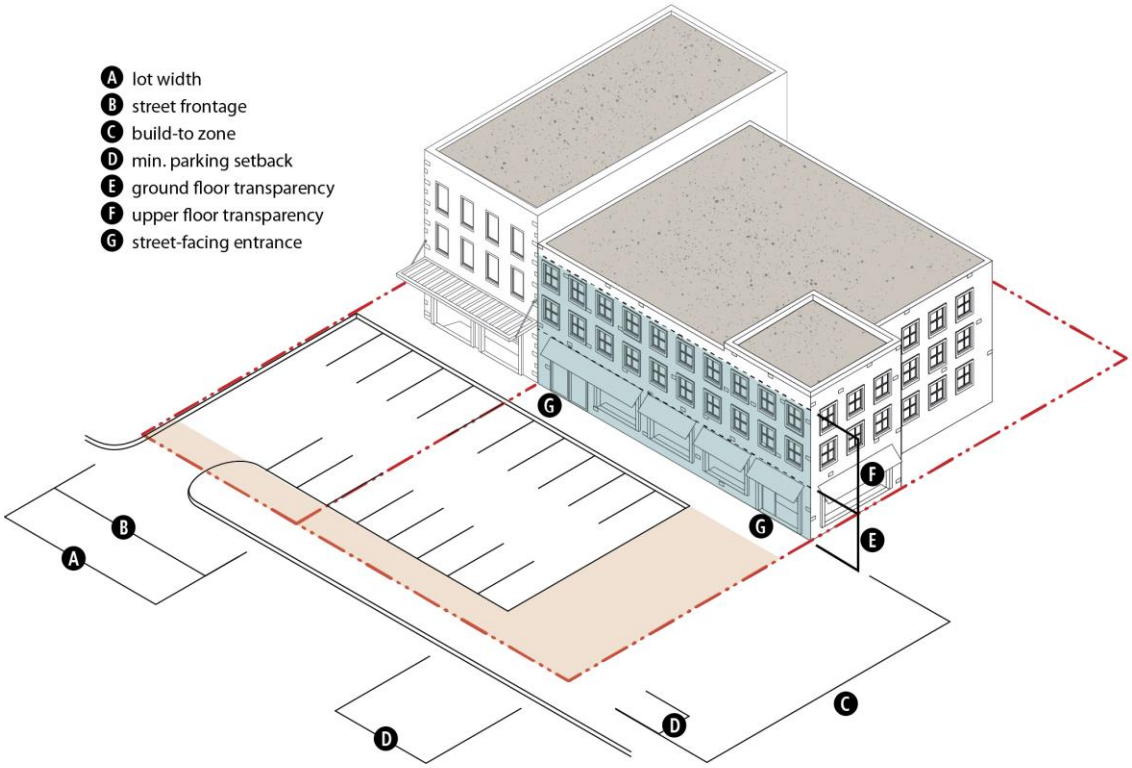


Figure 10-6: MX District Lot and Building Regulations (–V Character Zone)



10.030-E Flexible Character Designation

1. Intent

The –F, Flexible character designation is generally intended to allow the highest levels of flexibility in terms of allowed building types and development patterns.

2. Allowed Building Types

The following building types are permitted in –F character zones (see building type definitions in Section 35.010):

a. Vertical mixed-use and mixed-use buildings
b. Commercial buildings
c. Apartments/Condos
d. Townhouses
e. Duplexes
f. Detached houses
g. Civic/Institutional buildings
h. Open space sites

3. Lot and Building Regulations

The lot and building regulations of Table 10-7 apply to all new construction and building additions in –F character zones. General exceptions to lot and building regulations and rules for measuring compliance can be found in Chapter 90. Existing buildings are exempt from ground floor ceiling height and transparency requirements.

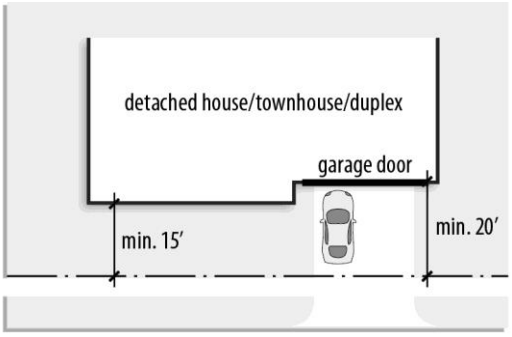
Table 10-7: Lot and Building Regulations for –F Character Zones

Minimum Lot Area (sq. ft.)	
Townhouse	1,600
Duplex	5,000
Apartment/Condo	7,500
Other buildings	3,300
Minimum Lot Width (feet)	
Townhouse	20
Duplex	45
Apartment/Condo	50
Other buildings	20
Minimum Street Frontage (feet)	20
Minimum Open Space per Unit (sq. ft.)	
Detached house	400
Townhouse/Duplex	200
Apartment/Condo/Mixed-use	100
Minimum Building Setbacks (feet)	
Detached house/townhouse/duplex	
Street	15[1]
Side	3[2]
Rear	20
Other buildings	
Street	5
Abutting R district	10
Abutting nonresidential district	0
Abutting alley	5

Minimum Parking Setbacks (feet) (see also 55.080-C)	
Detached house/townhouse/duplex	–
Other buildings [3]	
Street	10
Abutting R district	10
Abutting nonresidential district	0
Abutting alley	2
Min. Ground Floor Ceiling Height (feet)	
Vertical mixed-use, mixed-use and commercial buildings	14
Other buildings	–
Minimum Transparency (%)	
Vertical mixed-use buildings	
Ground floor	40
Upper floors	20
Commercial buildings and mixed-use buildings	
Ground floor	35
Upper floors	20
Other buildings	20
Street-facing Entrance Required	Yes

[1] Garage doors must be set back at least 20 feet from back of sidewalk (see Figure 10-7).
[2] For townhouses, side setback applies only to exterior wall of end units.
[3] Parking structures are subject to Section 40.280.

Figure 10-7: Garage Door Setback



Section 10.040 Height Designations

10.040-A Regulations

MX district height designations are indicated by a dash and number suffix at the end of an MX district map symbol. Except as stated by the transition standards of 10.040-B, building heights in MX districts may not exceed the limits established in Table 10-8.

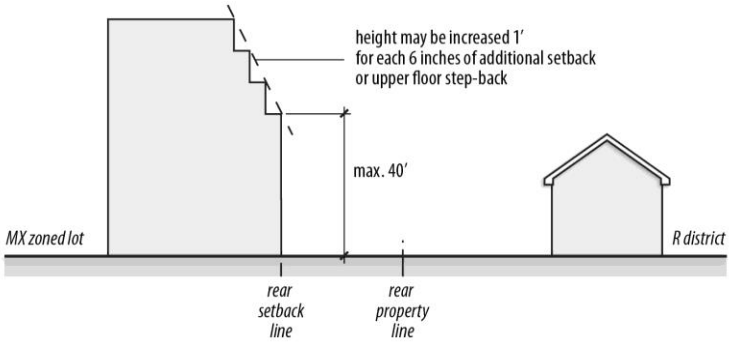
Table 10-8: MX District Height Designations

Height Designation	**Maximum Height** (feet)
-35	35
-45	45
-55	55
-65	65
-U	Unlimited (no maximum)

10.040-B Height Transition

For MX-zoned lots that abut an R-zoned lot, the maximum building height limit at the point of the required minimum setback is 40 feet. Height may be increased above 40 feet by up to one foot (vertical) for each 6 inches of additional building setback, up to the maximum height allowed in the district. The additional setback may be provided for the entire building or only the portion of the building above 40 feet in height (see Figure 10-8).

Figure 10-8: Transitional Height Standards



Section 10.050 Other Relevant Regulations

Uses and development in mixed-use zoning districts may be subject to other regulations and standards, including the following.

10.050-A Nonconformities

See Chapter 80.

10.050-B Accessory Uses and Structures

See Chapter 45.

10.050-C Parking

See Chapter 55.

10.050-D Signs

See Chapter 60.

10.050-E Landscaping and Screening

See Chapter 65.

10.050-F Temporary Uses

See Chapter 50.

10.050-G Outdoor Lighting

See Chapter 67.

Chapter 15 | Office, Commercial and Industrial Districts

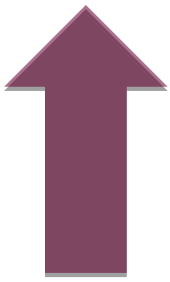
Section 15.010 Districts 15-1
Section 15.020 Use Regulations 15-3
Section 15.030 Lot and Building Regulations 15-7
Section 15.040 Other Relevant Regulations 15-8

Section 15.010 Districts

15.010-A List

The office, commercial and industrial zoning districts are listed in Table 15-1. When this zoning code refers to "office," "commercial" or "industrial" zoning districts or to "O," "C" or "I" districts, respectively, it is referring to these districts.

Table 15-1: Office, Commercial and Industrial Zoning Districts

Map Symbol	District Name	Relative Intensity Scale
OL	Office–Low	Least intensive O, C or I district
OM	Office–Medium	
OMH	Office–Medium-High	
OH	Office–High	
CS	Commercial Shopping	
CG	Commercial General	
CH	Commercial–High	
CBD	Central Business	
IL	Industrial–Light	
IM	Industrial–Moderate	
IH	Industrial–Heavy	Most intensive O, C or I district

15.010-B Purposes

1. General

Office, commercial and industrial zoning districts are intended to accommodate and promote neighborhood-, community-, and region-serving commercial uses, as well as industrial and employment uses.

2. OL District

The OL district is primarily intended to facilitate the development and preservation of low-intensity office development.

3. OM District

The OM district is primarily intended to accommodate medium-intensity office development, together with community facilities typically found in conjunction with offices.

4. OMH District

The OMH district is primarily intended to provide for multi-story office development.

5. OH District

The OH district is primarily intended to provide areas for high-intensity office uses, together with community facilities, and commercial uses typically found in conjunction with high-intensity office uses.

6. CS District

The CS district is primarily intended to accommodate convenience, neighborhood, subcommunity, community, and regional shopping centers providing a range of retail and personal service uses.

7. CG District

The CG district is primarily intended to:

a. Accommodate established commercial uses, while providing protection to adjacent residential area; and

b. Accommodate the grouping of compatible commercial and light industrial uses.

8. CH District

The CH district is primarily intended to:

a. Accommodate high-intensity commercial and related uses primarily in the core area of the city;

b. Encourage use of properties and existing buildings along older commercial corridors; and

c. Minimize encroachment and adverse land use impacts on stable residential neighborhoods.

9. CBD District

The CBD district is primarily intended to:

a. Accommodate and encourage the most desirable, most productive, most intense use of land, without regard to the regulation of building height, floor area, land coverage and parking requirements, within the central core area of the city;

b. Encourage a diversity of high-intensity uses that mutually benefit from close proximity to, and from the available services of, the high transportation carrying capacity afforded by locations within the boundaries of the Inner Dispersal Loop; and

c. Preserve and promote the public and private investment of the existing central core area.

10. IL District

The IL district is primarily intended to provide areas suitable for manufacturing, wholesaling, warehousing, and other industrial activities that have few if any adverse land use or environmental impacts.

11. IM District

The IM district is primarily intended to group together a wide range of industrial uses that may produce some moderate adverse land use or environmental impacts in terms of their operation and appearance.

12. IH District

The IH district is primarily intended to provide areas for manufacturing and other industrial activities that may constitute substantial adverse land use or environmental impacts or hazards.

Section 15.020 Use Regulations

Principal uses are allowed in office, commercial and industrial districts in accordance with Table 15-2.

15.020-A Use Classification System

Uses are listed in the first column of Table 15-2. This zoning code classifies uses into categories and subcategories, which are defined in Chapter 35. In some cases, specific use types are listed in addition to the use categories and subcategories. Building types are also defined in Chapter 35.

15.020-B Permitted Uses

Uses identified with a "P" are permitted as-of-right in the subject zoning district, subject to compliance with any supplemental regulations identified in the final column of Table 15-2 and with all other applicable regulations of this zoning code.

15.020-C Special Exception Uses

Uses identified with an "S" may be allowed if reviewed and approved in accordance with the special exception procedures of Section 70.120. Special exception uses are subject to compliance with any supplemental regulations identified in the final column of Table 15-2 and with all other applicable regulations of this zoning code.

15.020-D Prohibited Uses

Uses identified with an "–" are expressly prohibited. Uses that are not listed in the table and that cannot be reasonably interpreted (as stated in 35.020-E) to fall within any defined use category are also prohibited.

15.020-E Supplemental Regulations

The "supplemental regulations" column of Table 15-2 identifies additional regulations that apply to some uses. Unless otherwise expressly stated, compliance with these regulations is required regardless of whether the use is permitted as-of-right or requires special exception approval.

15.020-F Accessory Uses

Accessory uses are not regulated by Table 15-2. Customary accessory uses are allowed in conjunction with principal uses permitted by right or by special exception, subject to compliance with all applicable accessory use regulations of Chapter 45.

Table 15-2: O, C and I District Use Regulations

USE CATEGORY **Subcategory** Specific use	OL	OM	OMH	OH	CS	CG	CH	CBD	IL	IM	IH	Supplemental Regulations
RESIDENTIAL												
Household Living (if in allowed building type identified in Table 15-2.5)												
Single household	P	P	P	P	P	P	P	P	S	S	S	
Two households on single lot	P	P	P	P	P	P	P	P	S	–	–	
Three or more households on single lot	P	P	P	P	P	P	P	P	S	–	–	

USE CATEGORY **Subcategory** Specific use	OL	OM	OMH	OH	CS	CG	CH	CBD	IL	IM	IH	Supplemental Regulations
Group Living												Section 40.160
Assisted living facility	S	P	P	P	P	P	P	P	–	–	–	
Community group home	S	P	P	P	P	P	P	P	–	–	–	Section 40.100
Convent/monastery/novitiate	S	P	P	P	P	P	P	P	–	–	–	
Elderly/retirement center	S	P	P	P	P	P	P	P	–	–	–	
Fraternity/Sorority	S	P	P	P	P	P	P	P	–	–	–	
Homeless center	S	S	S	S	S	S	S	S	S	S	S	Section 40.130
Life care retirement center	S	P	P	P	P	P	P	P	–	–	–	
Re-entry facility	S	P	P	P	S	S	S	S	P	S	S	
Residential treatment center	S	P	P	P	S	S	S	S	P	S	S	Section 40.130
Rooming/boarding house	S	P	P	P	P	P	P	P	–	–	–	
Shelter, emergency and protective	S	S	S	S	S	S	S	S	S	S	S	Section 40.130
Transitional living center	S	P	P	P	S	S	S	S	P	S	S	Section 40.130
PUBLIC, CIVIC AND INSTITUTIONAL												
Airport	S	S	S	S	S	S	S	S	S	S	S	
Cemetery	S	S	S	S	S	S	S	S	S	S	S	Section 40.150
College or University	S	P	P	P	P	P	P	P	S	S	S	Section 40.070
Day Care												
Family Child Care Home	P	P	P	P	P	P	P	P	S	S	S	Section 40.120
Child Care Center	P	P	P	P	P	P	P	P	S	S	S	Section 40.120
Detention and Correctional Facility	S	S	S	S	S	S	S	S	S	S	S	Section 40.130
Fraternal Organization	S	S	S	S	S	S	S	S	S	S	S	
Governmental Service or Similar Functions	S	S	S	S	S	S	S	S	S	S	S	
Hospital	S	P	P	P	P	P	P	P	S	S	S	Section 40.070
Library or Cultural Exhibit	S	P	P	P	P	P	P	P	S	S	S	
Natural Resource Preservation	P	P	P	P	P	P	P	P	P	P	P	
Parks and Recreation	S	P	P	P	P	P	P	P	S	S	S	
Postal Services	S	S	S	S	S	S	S	S	S	S	S	
Religious Assembly	S	P	P	P	P	P	P	P	S	S	S	
Safety Service	S	S	S	S	P	P	P	P	P	P	P	
School												Section 40.350
Established on or before Jan. 1, 1998	P	P	P	P	P	P	P	P	P	P	P	
Others	S	P	P	P	P	P	P	P	S	S	S	
Utilities and Public Service Facility												
Minor	P	P	P	P	P	P	P	P	P	P	P	
Major	S	S	S	S	S	S	S	S	S	S	S	
Wireless Communication Facility												Section 40.420
Freestanding tower	S	S	S	S	P	P	P	P	P	P	P	
Building or tower-mounted antenna	P	P	P	P	P	P	P	P	P	P	P	
COMMERCIAL												
Animal service												Section 40.020
Boarding or shelter	–	–	–	–	S	P	P	P	P	P	P	
Grooming	–	–	–	–	P	P	P	P	P	P	P	
Veterinary	–	–	–	–	P	P	P	P	P	P	P	
Assembly and Entertainment												Section 40.040
Indoor gun club	–	–	–	–	S	S	S	S	S	S	S	
Other indoor												
Small (up to 250-person capacity)	–	–	–	–	P[2]	P[2]	P[2]	P[2]	S	S	S	
Large (>250-person capacity)	–	–	–	–	S	S	S	S	S	S	S	
Outdoor gun club	–	–	–	–	S	S	S	–	S	S	S	
Other outdoor	–	–	–	–	S	S	S	S	S	S	S	

USE CATEGORY **Subcategory** Specific use	OL	OM	OMH	OH	CS	CG	CH	CBD	IL	IM	IH	Supplemental Regulations
Broadcast or Recording Studio	P	P	P	P	P	P	P	P	P	P	P	
Commercial Service												Section 40.080
Building service	–	–	–	–	S	P	P	P	P	P	P	
Business support service	–	–	–	–	P	P	P	P	P	P	P	Section 40.300
Consumer maintenance/repair service	–	–	–	–	P	P	P	P	P	P	P	
Personal improvement service	S	S	S	S	P	P	P	P	P	P	P	
Research service	–	–	–	–	–	S	P	P	P	P	P	Section 40.225
Farmers Market	P	P	P	P	P	P	P	P	P	P	P	Section 40.430
Financial Services (except as below)	P	P	P	P	P	P	P	P	P	P	P	
Personal credit establishment	–	–	–	–	P	P	P	P	P	P	P	Section 40.300
Funeral or Mortuary Service	P	P	P	P	P	P	P	P	P	P	P	Section 40.150
Lodging												
Bed & breakfast	S	S	S	S	P	P	P	P	S	S	S	Section 40.060
Short-term rental	P	P	P	P	P	P	P	P	P	P	P	Section 40.375
Campgrounds and RV parks	–	–	–	–	S	P	P	P	P	P	P	
Hotel/motel	–	–	S	S	P	P	P	P	S	S	S	Section 40.170
Marina	S	S	S	S	S	S	S	S	S	S	S	
Office												Section 40.260
Business or professional office	P	P	P	P	P	P	P	P	P	P	P	
Medical, dental or health practitioner office	P	P	P	P	P	P	P	P	P	P	P	
Plasma center	–	–	–	–	P	P	P	P	P	P	P	Section 40.300
Parking, Non-accessory	P	P	P	P	P	P	P	P	P	P	P	
Restaurants and Bars												
Restaurant	P[1]	P[1]	P[1]	P	P	P	P	P	P	P	P	Section 40.330
Bar (except as below)	–	–	–	–	P[2]	P[2]	P[2]	P[2]	S	S	S	Section 40.050
Brewpub	–	–	–	–	S	S	S	P[2]	S	S	S	Section 40.050
Retail Sales												Section 40.340
Building supplies and equipment	–	–	–	–	P	P	P	P	P	P	P	
Consumer shopping goods	–	S[3]	S[3]	P[3]	P	P	P	P	P	P	P	
Convenience goods	–	S[3]	S[3]	P[3]	P	P	P	P	P	P	P	Section 40.300
Grocery Store	_	S[3,6]	S[3,6]	S[3,6]	P	P	P	P	P	P	P	
Small Box Discount Store	-	S[3,6]	S[3,6]	S[3,6]	P[6]	P[6]	P[6]	P[6]	P[6]	P[6]	P[6]	
Medical Marijuana Dispensary	–	–	–	–	P	P	P	P	P	P	P	Section 40.225
Self-service Storage Facility	S	S	S	S	S	P	P	P	P	P	P	Section 40.360
Sexually Oriented Business Establishment	–	–	–	–	P	P	P	P	S	S	S	Section 40.370
Studio, Artist or Instructional Service	P	P	P	P	P	P	P	P	P	P	P	Section 40.380
Trade School	–	S	S	S	S	P	P	P	P	P	P	
Vehicle Sales and Service												Section 40.400
Commercial vehicle repair/maintenance	–	–	–	–	S	P	P	P	P	P	P	
Truck stop	–	–	–	–	–	S	S	–	P	P	P	
Commercial vehicle sales and rentals	–	–	–	–	S	P	P	P	P	P	P	
Fueling station	–	–	–	–	P	P	P	P	P	P	P	
Personal vehicle repair and maintenance	–	–	–	–	P	P	P	P	P	P	P	
Personal vehicle sales and rentals	–	–	–	–	S	P	P	P	P	P	P	
Vehicle part and supply sales	–	–	–	–	P	P	P	P	P	P	P	
Vehicle body and paint finishing shop	–	–	–	–	S	P	P	P	P	P	P	
WHOLESALE, DISTRIB. & STORAGE												Section 40.410
Equip. & Materials Storage, Outdoor	–	–	–	–	S	P	P	P	P	P	P	
Trucking and Transportation Terminal	–	–	–	–	S	P	P	P	P	P	P	

USE CATEGORY Subcategory Specific use	OL	OM	OMH	OH	CS	CG	CH	CBD	IL	IM	IH	Supplemental Regulations
Warehouse	–	–	–	–	S	P	P	P	P	P	P	
Wholesale Sales and Distribution	–	–	–	–	S	P	P	P	P	P	P	
INDUSTRIAL												Section 40.180
Low-impact Manufacturing & Industry	–	–	–	–	–	S	S	S	P	P	P	
Moderate-impact Manufacturing & Industry	–	–	–	–	–	–	–	–	S	P	P	Section 40.225
High-impact Manufacturing & Industry	–	–	–	–	–	–	–	–	–	S	P	
Mining or Mineral Processing	–	–	–	–	–	–	–	–	–	S	S	Section 40.230
Junk or Salvage Yard	–	–	–	–	–	–	–	–	–	S	P	Section 40.190
RECYCLING												Section 40.310
Construction or Demolition Debris	–	–	–	–	–	–	–	–	S	S	P	
Consumer Material Drop-off Station	–	–	–	–	P/S[5]	P	P	P	P	P	P	
Consumer Material Processing	–	–	–	–	–	–	–	–	P	P	P	
AGRICULTURAL												
Animal Husbandry	–	–	–	–	–	–	–	–	–	P	P	
Community Garden	P	P	P	P	P	P	P	P	P	P	P	Section 40.090
Farm, Market- or Community-supported	P	P	P	P	P	P	P	P	P	P	P	
Horticulture Nursery	–	–	–	–	–	S	S	–	P	P	P	Section 40.225
OTHER												
Drive-in or Drive-through Facility (as a component of an allowed principal use)	S	S	P	P	P	P	P	S	P	P	P	Section 55.100
Off-Premise Outdoor Advertising Sign [4]	–	–	–	–	P	P	P	P	P	P	P	Chapter 60
Oil or Gas Well	S	S	S	S	S	S	S	S	S	S	S	Section 40.270

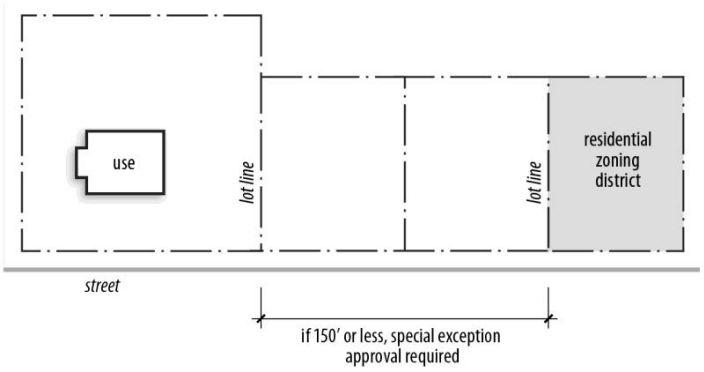
15.020-G Table Notes

The following notes refer to the bracketed numbers (e.g.," [1]") in Table 15-2:

[1] Restaurant is permitted as accessory use in OL, OM, and OMH districts. Use must be located entirely within the principal office building and may not occupy more than 5% of the building's floor area.

[2] Use requires special exception approval if alcoholic beverages are sold or served, and the subject lot is located within 150 feet of any residential zoning district other than R-zoned street right-of-way (see Figure 15-1).

Figure 15-1: Special Exception Requirement within 150 Feet of R zoning



[3] Retail sales uses that are allowed in O districts must be located entirely within the principal building and may not occupy more than 15% of the floor area of the building in which such uses are located.

[4] Allowed in specified zoning district only when location within freeway sign corridors. See Chapter 60 for other supplemental regulations that apply to off-premise outdoor advertising signs.

[5] Use permitted as of right only if there is no outdoor storage and gross floor area does not exceed 5,000 square feet. Otherwise, special exception approval is required.

[6] When located in the Healthy Neighborhoods Overlay (HNO) district the use is regulated as stated in Section 20.060-C.

15.020-H Residential Building Types

Residential uses allowed in O, C, and I districts must be located in residential buildings. Descriptions of the residential building types and references to applicable regulations are found in Section 35.010. The following residential building types are allowed in O, C, and I districts.

Table 15-2.5: O, C, and I District Building Type Regulations for Household Living

USE CATEGORY **Subcategory** Specific use Building Types	OL	OM	OMH	OH	CS	CG	CH	CBD	IL	IM	IH	Supplemental Regulations
RESIDENTIAL												
Household Living												
Single household												
Detached house	P	S	S	S	S	S	S	S	–	–	–	
Townhouse	P	P	P	P	P	P	P	P	–	–	–	
Patio House	P	S	S	S	S	S	S	S	–	–	–	Section 40.290
Manufactured housing unit	–	–	–	–	–	S	S	–	S	S	S	
Mixed-Use building	P	P	P	P	P	P	P	P	S	–	–	
Vertical mixed-use building	P	P	P	P	P	P	P	P	S	–	–	
Two households on single lot												
Duplex	P	P	P	P	P	P	P	S	–	–	–	
Mixed-Use building	P	P	P	P	P	P	P	P	S	–	–	
Vertical mixed-use building	P	P	P	P	P	P	P	P	S	–	–	
Three or more households on single lot												
Multi-unit House	P	P	P	P	P	P	P	P	–	–	–	Section 40.250
Apartment/Condo	P	P	P	P	P	P	P	P	–	–	–	Section 40.030
Mixed-Use building	P	P	P	P	P	P	P	P	S	–	–	
Vertical mixed-use building	P	P	P	P	P	P	P	P	S	–	–	
Cottage house development	P	P	P	P	P	P	P	P	–	–	–	Section 40.110

P= Permitted; S=Special Exception Approval Required; – = Prohibited

Section 15.030 Lot and Building Regulations

15.030-A Table of Regulations

The lot and building regulations of

Table 15-3 apply to all principal uses and structures in office, commercial and industrial districts, except as otherwise expressly stated in this zoning code. General exceptions to lot and building regulations and rules for measuring

compliance can be found in Chapter 90. Additional regulations governing accessory uses and structures can be found in Chapter 45.

Table 15-3: O, C and I District Lot and Building Regulations

Regulations	OL	OM	OMH	OH	CS	CG	CH	CBD	IL	IM	IH
Minimum Lot Area (sq. ft.)	–	–	–	10,000	–	–	–	–	–	–	–
Minimum Street Frontage (feet) [4]	50	50	50	–	50	50	–	–	50	50	50
Maximum Floor Area Ratio (FAR)	0.40	0.50	2.00	8.00	0.50	0.75	–	–	–	–	–
Minimum Lot Area per Unit (sq. ft.)	–	–	–	–	–	–	–	–	–	–	–
Min. Open Space per Unit (sq. ft.)	–	–	–	–	–	–	–	–	–	–	–
Building Setbacks (feet)											
Street [1]	10	10	10	10	10	10	–	–	10	10	10
From AG, AG-R, or R district	10	10[2]	10[2]	10	10[2]	10[2]	–	–	75[3]	75[3]	75[3]
From O district	–	–	–	–	–	–	–	–	75[3]	75[3]	75[3]
Max. Building Coverage (% of lot)	–	–	–	–	–	–	–	–	–	–	–
Maximum Building Height (feet)	35	–	–	–	–	–	–	–	–	–	–

15.030-B Table Notes

The following notes refer to the bracketed numbers (e.g.," [1]") in Table 15-3:

[1] Garage doors must be set back at least 20 feet or 20 feet from the back of the sidewalk, whichever is greater.

[2] When abutting RE-, RS- or RD-zoned lot, 2 feet of additional building setback required for each foot of building height above 15 feet.

[3] Minimum building setback abutting freeway right-of-way or railroad right-of-way that is zoned AG, AG-R, R, or O is 10 feet.

[4] Minimum street frontage requirements apply to townhouse developments, not to individual townhouse units.

Section 15.040 Other Relevant Regulations

Uses and development in office, commercial and industrial zoning districts may be subject to other regulations and standards, including the following.

15.040-A Outdoor Storage and Display

In the CS district, outdoor storage, including storage of recyclable materials, and outdoor merchandise display is prohibited within 300 feet of an abutting R or AG-R district.

15.040-B Nonconformities

See Chapter 80.

15.040-C Accessory Uses and Structures

See Chapter 45.

15.040-D Parking

See Chapter 55.

15.040-E Signs

See Chapter 60.

15.040-F Landscaping and Screening

See Chapter 65.

15.040-G Temporary Uses

See Chapter 50.

15.040-H Outdoor Lighting

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Chapter 20 | Overlay Districts

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Section 20.010 General

20.010-A Purpose and Intent

As the name implies, overlay districts "over-lay" applicable base zoning district classifications to alter some or all of the base zoning district regulations that apply to particular sites. Overlay zoning districts work to modify or supplement the regulations imposed by base zoning district when necessary to address special situations or accomplish specific city goals. Overlay zoning is intended to be used when the base zoning district applied to an area remains generally appropriate, but when an additional, modified or eliminated requirement could help implement the city's planning goals or address an area-specific planning, design, or land use regulation issue.

20.010-B Establishment and Public Engagement

1. A pre-application meeting is required before the filing of any owner-initiated overlay district application (see 70.010-C2).
2. Proposed regulations and overlay district boundaries must be based on an adopted plan or be prepared following an inclusive, transparent, and equitable planning and public involvement process that includes opportunities for affected property owners and residents to participate in the formulation of the district regulations or otherwise offer recommendations and provide input.
3. At the time of the public hearing to consider adoption of an overlay district, the applicant must document the public involvement process used in preparing the proposed regulations and district boundaries, by providing at least the following information:
    a. The opportunities provided for participation and input;
    b. The types of information disseminated to affected residents, businesses and property owners and the methods of dissemination;
    c. The level of participation by affected residents, businesses and property owners in meetings and discussions; and

d. The level of support shown by affected residents, businesses and property owners for the proposed regulations and overlay district boundaries.

20.010-C Interpretation

1. All applicable regulations of the underlying base zoning district apply to property in an overlay district unless otherwise expressly stated in the overlay district regulations.

2. When overlay regulations conflict with regulations that otherwise apply in the underlying base zoning district, the regulations of the applicable overlay govern. If property is classified in multiple overlay districts and the regulations of one overlay district conflict with the regulations of another overlay district, the more restrictive regulations govern.

20.010-D Procedure

Overlay districts are shown on the official zoning map. The following procedures apply to the establishment, amendment or termination of all overlay districts unless otherwise expressly stated.

1. Overlay district regulations must be established, amended or terminated in accordance with the zoning code text amendment procedures of Section 70.020.

2. Except as otherwise expressly stated, zoning map amendments establishing, expanding or reducing the boundaries of an overlay district or terminating all or part of an overlay district must be processed in accordance with the zoning map amendment procedures of Section 70.030.

3. A recommendation to establish an overlay district must be accompanied by a report containing at least the following information:

   a. Specific findings regarding the need for the proposed overlay and its consistency with the zoning code's general purposes (Section 1.050) and the stated purpose and intent of the applicable overlay.

   b. Any recommended overlay-specific use, development or design regulations that will apply within the overlay and what actions (e.g., new development, building additions, change of use) will trigger compliance with those regulations.

   c. A description of public education and outreach activities undertaken to inform property owners, residents and tenants of the effect of proposed overlay regulations;

   d. A map showing the boundaries of the proposed overlay, including all lots included within the boundaries and identifying those owners of property within the proposed overlay who have indicated, in writing, their support or opposition to the overlay district text or map amendment. Property owners may submit their written indication of support or opposition at informal informational meetings, at public hearings, or by writing directly to the land use administrator or planning commission.

The report and all other pertinent information must be transmitted to the planning commission and city council before their public hearing and final action, respectively.

Section 20.020 HP, Historic Preservation Overlays

20.020-A Purposes

HP, Historic Preservation overlay districts and the other historic preservation-related regulations of this zoning code are intended to:

1. Promote the educational, cultural, economic and general welfare of the public through the conservation, preservation, protection and regulation of historic resources within the City of Tulsa;
2. Safeguard the cultural, social, political and architectural heritage of the city by conserving, preserving and regulating historic preservation districts;
3. Conserve, preserve and enhance the environmental quality and economic value of historic preservation districts;
4. Strengthen the city's economic base by promotion of conservation and reuse of the city's historic resources; and
5. Promote the development of the community in accordance with the comprehensive plan and historic preservation plan.

20.020-B Use Regulations

The use regulations of the underlying base zoning district apply in HP overlay districts.

20.020-C Lot and Building Regulations

The lot and building regulations of the underlying base zoning district apply in HP overlay districts.

20.020-D Design Guidelines

Design guidelines governing the applicable HP zoning district must be adopted before or concurrent with any HP zoning map amendments. When the boundaries of an HP zoning map amendment include a City of Tulsa park, design guidelines governing the applicable HP zoning district must identify the historic resources within the park.

20.020-E Establishment or Amendment of HP Overlay Districts

See 20.010-D and Section 70.060 for procedures and requirements governing establishment or amendment of HP overlay districts.

20.020-F HP Permits

See Section 70.070 for requirements and procedures governing the review and approval of HP permits in HP overlay districts.

Section 20.030 SA, Special Area Overlays

20.030-A General

This section establishes the general authority and basic procedure for establishment of SA, Special Area overlay districts. Historic Preservation Overlays

(HP), Parking Impact Overlays (PI), and Planned Unit Developments (PUD) are not considered SA overlays.

20.030-B Purpose and Intended Use

1. SA overlays are intended to address neighborhood planning and design issues when other available zoning tools or other techniques cannot achieve the desired results. SA overlays may be used to relax or eliminate requirements that apply under base zoning or to impose requirements in addition to those of base zoning. SA overlays are not intended to be used as a de facto downzoning tool. SA overlays may be appropriate for one or more of the following purposes:
   a. Protect unique development, building or land use patterns in residential, commercial or mixed-use areas when such patterns are not adequately addressed by applicable zoning regulations;
   b. Promote reinvestment and redevelopment in residential, commercial, or mixed-use areas where change is desired and when existing zoning regulations hinder achievement of the desired change; or
   c. Help implement neighborhood plans or planning studies.
2. Without limiting the general purpose and intent of 20.030-B1, SA overlays may be used for the following express purposes:
   a. Allow principal or accessory uses and building types that are not allowed under base zoning;
   b. Allow densities and intensities of development that are not allowed under base zoning; or
   c. Establish reasonable, clear, and objective site, building, and design standards that promote the general purpose established in 20.030-B1.
3. SA overlays may not be used to impose requirements that conflict with the comprehensive plan or any other officially adopted plan.

20.030-C Underlying Zoning

SA overlays may be approved in areas classified in any residential or nonresidential base zoning district, except the Central Business District (CBD). SA overlays may not be applied in combination with Central Business District (CBD) zoning.

20.030-D Minimum Contiguous Areas

SA overlay district boundaries must encompass at least 10 lots, and in all cases must include at least one acre of contiguous land area. Smaller areas may be designated as SA overlays if they abut and extend an existing SA overlay district or if they include all lots within an original subdivision plat.

20.030-E Recordation

The land use administrator must file a copy of all SA overlay zoning map amendment ordinances and maps indicating the boundaries of approved SA overlays in the county clerk's office of the county in which the property is located.

Section 20.040 PI, Parking Impact Overlay

20.040-A Purpose

The purpose of the Parking Impact (PI) overlay district is to provide supplemental parking regulations for specified areas experiencing negative impacts due to the relative absence of parking, transit, and alternative transportation mode choices. The intent of the PI overlay is to identify areas of high parking demand and increase the off-street parking requirements accordingly.

20.040-B Underlying Zoning

The PI overlay may be approved in areas classified in any underlying base zoning district.

20.040-C Regulations

Special parking requirements apply to many uses located within the boundaries of the PI overlay, in accordance with the minimum off-street parking ratios of Section 55.020.

Section 20.050 RDO, River Design Overlays

20.050-A General

1. Purpose and Intent

The RDO, River Design Overlay regulations of this section establish regulations governing form, function, design and use for properties located within the boundaries of the River Design Overlay district. The regulations are generally intended to maintain and promote the Arkansas River corridor as a valuable asset to the city and region in terms of economic development and quality of life. The regulations are also intended to:

a. Support and enhance the river corridor as a lively people-oriented destination, connecting nodes of high-quality development with parks and open spaces;

b. Protect the city's investment as well as the investments of property owners, developers and others who enjoy the benefits of the Arkansas River corridor;

c. Encourage development that enhances the appearance of the Arkansas River corridor and the surrounding area;

d. Ensure development and redevelopment that is sensitive to the area's natural resources and environmental qualities;

e. Establish the area as an interconnected, pedestrian-oriented, cultural and recreational destination, attracting both residents and visitors to the Arkansas River; and

f. Foster a sense of community and civic pride.

2. Districts

Three RDO districts are established, as follows:

a. RDO-1

The RDO-1 district is primarily intended to apply to park, recreation and open space uses adjacent to the river. RDO-1 regulations help promote development that is compatible with public parks and green space and that complements park uses.

b. RDO-2

The RDO-2 district is primarily intended to apply to other (non-RDO-1) properties with direct access to the river. RDO-2 regulations help to ensure safe, attractive, and activated pedestrian areas by requiring that new development is oriented to the river and abutting streets. The regulations also promote integration with the River Parks trail system and avoidance of adverse environmental impacts.

c. RDO-3

The RDO-3 district is primarily intended to apply to properties that do not have direct access to the river but that are visible from riverfront areas. These areas benefit from proximity to the river and contribute to the overall visual environment of the riverfront area.

3. Applicability

Except as otherwise expressly stated, the RDO regulations of this section apply within the boundaries of the RDO districts to all new uses and structures and all building alterations and site modifications that require a building permit.

4. Exemptions

a. Existing detached houses and duplexes and additions to existing detached houses and duplexes are exempt from compliance with all of the RDO regulations of this section (Section 20.050).

b. Uses and structures that are accessory to existing or new detached houses or duplexes are exempt from compliance with all of the RDO regulations of this section (Section 20.050).

c. New detached houses and duplexes, where allowed, are exempt from compliance with all of the site and building design regulations of §20.050-D.

d. New or modified public utility and service uses and accessory uses customarily incidental to park and recreation uses (excluding restaurants) are exempt from compliance with the:

(1) Build-to-zone regulations of Table 20-2;

(2) Ground floor transparency regulations of Table 20-3; and

(3) Building entrance requirements of Table 20-3.

e. Planned unit developments (PUDs) and CO-zoned properties or portions of PUDs and CO-zoned properties that have received site plan approval prior to August 1, 2016 are exempt from compliance with all RDO regulations of this section (Section 20.050). Approved PUDs and CO-zoned properties or portions of PUDs and CO-zoned properties that have not

received site plan approval prior to August 1, 2016 are subject to compliance with all applicable RDO regulations of this section (Section 20.050).

f. Minor revisions of previously approved site plans do not trigger a requirement that the site plan be brought into compliance with the RDO regulations of this section. Major and minor amendments to approved development plans do trigger a requirement that the entire development plan be brought into compliance with all applicable RDO regulations of this section (Section 20.050).

g. MPD-zoned properties with a contiguous area of 20 acres or more are exempt from compliance with all of the RDO regulations of this section (Section 20.050), provided that MPD development plans and site plans for such properties must be consistent with the purpose and intent of the RDO district, as stated in Section 20.050-A.1.

5. Nonconformities

a. General

Nonconformities that exist within an RDO district are governed by the regulations of Chapter 80, except as expressly stated in this subsection.

b. Restoration, Replacement, Alteration and Expansion of Nonconforming Uses and Structures (other than signs)

(1) Structures and uses that are nonconforming with regard to the RDO regulations of this section (Section 20.050) may be restored, replaced, altered or expanded, and additional structures that are nonconforming with regard to the regulations of this section (Section 20.050) may be constructed, provided that the restoration, replacement, alteration, expansion, or additional construction does not increase by more than 50% of the total floor area or lot coverage of a nonconforming use or increase by more than 50% of the total lot coverage of nonconforming structures. Restoration, replacement, alterations, expansions, and additions allowed under this paragraph are not required to comply with the site and building design regulations of §20.050-C. For purposes of this Section 20.050-A5, "structure" does not mean "sign". For purposes of this Section 20.050-A5, the increase in percentage of total floor area or total lot coverage is calculated using the total floor area or total lot coverage in existence on the date the structure or use became nonconforming.

(2) An existing structure and all replacements, restorations, expansions, alterations and additions must be brought into compliance with the site and building design regulations of §20.050-C under the following circumstances:

(a) More than 50% of a nonconforming structure is proposed to be replaced or restored; or

(b) A nonconforming structure is proposed to be altered or expanded by more than 50%; or

(c) Additional structure(s) are proposed to be constructed resulting in a more than 50% increase in the floor area or lot coverage, as described in §20.050-A5.b(1).

(3) For purposes of administering these restoration, replacement, alteration and expansion regulations, increases in floor area and lot coverage are calculated separately; they are not added together to determine whether the 50% threshold has been met. A complete building permit application for any restoration or replacement must be submitted within five years of the date a nonconforming building was damaged, destroyed or removed.

6. Conflicting Regulations

All applicable regulations of the underlying base zoning district apply to property in the RDO district unless otherwise expressly stated in the RDO regulations. For properties with PUD or CO zoning, the approved development plan or development standards governing the subject PUD or CO district apply unless otherwise expressly stated in the RDO regulations. If the regulations of the RDO district conflict with the regulations of the subject property's underlying zoning, approved development plan or development standards or any other overlay zoning district that applies to the property, the RDO regulations of Section 20.050 govern, unless otherwise expressly stated.

7. Modifications to RDO Regulations

a. The land use administrator may grant administrative adjustments to provisions in this Section 20.050 in accordance with Section 70.100.

b. The board of adjustment may modify the build-to-zone regulations in Table 20-2, the transparency regulations in Table 20-3 and the parking regulations in §20.050-D2.b(3) through the special exception process provided that the board of adjustment finds the special exception will be in harmony with the spirit and intent of the zoning code, including the spirit and intent of this Section 20.050 and will not be injurious to the neighborhood or otherwise detrimental to the public welfare.

c. The regulations of an RDO district may not be varied or modified through approval of or amendment of a Planned Unit Development (PUD) district or Corridor (CO) district.

d. The regulations of an RDO district may not be varied or modified through approval of or amendment of a Master Planned Development (MPD) district that applies to property with a contiguous area of less than 20 acres. MPD-zoned properties with a contiguous area of 20 acres of more are exempt from the RDO regulations of this section (Section 20.050), as stated in Section 20.050-A.4.g.

8. Administration

No building permit for a proposed use or development in an RDO district may be approved until a site plan for such use or development has been submitted and reviewed by the land use administrator and found to be in compliance with all applicable RDO regulations.

20.050-B Uses

1. Intent

The RDO regulations are intended to allow for a mix of uses to promote a pedestrian environment, while prohibiting uses that will hinder the long-term viability of an attractive, vibrant, and active riverfront area.

2. Regulations

a. Allowed Uses

Except as expressly identified in Table 20-1, principal uses are allowed in RDO districts in accordance with the use regulations of the underlying (base) zoning district or, in the case of PUD or CO zoning, in accordance with the approved development plan or development standards governing the subject PUD or CO district. Uses identified with a "□" symbol are allowed in the respective RDO district: (1) if allowed by the subject property's underlying (base) zoning district or (2) if the subject property has PUD or CO zoning, if the use is allowed by the approved development plan or development standards governing the subject PUD or CO district.

b. Prohibited Uses

Uses identified with an "X" in Table 20-1 are expressly prohibited in the respective RDO district.

Table 20-1: RDO District Use Regulations

USE CATEGORY **Subcategory** Specific use Building Types	RDO-1	RDO-2	RDO-3
X = expressly prohibited use | □ and unlisted uses = underlying zoning governs			
RESIDENTIAL			
Household Living (if in building type allowed in underlying zoning and not prohibited in Table 20-1.5)			
PUBLIC, CIVIC AND INSTITUTIONAL			
Cemetery	X	X	X
Utilities and Public Service Facility			
Major	X	X	□ [2]
Wireless Communication Facility			
Freestanding tower	X	X	X
COMMERCIAL			
Assembly and Entertainment			
Indoor gun club	X	X	X
Outdoor gun club	X	X	X
Commercial Service			
Building service	X	X	X
Business support service	X	X	X
Consumer maintenance/repair service	X	X	X

USE CATEGORY **Subcategory** Specific use Building Types	RDO-1	RDO-2	RDO-3
Research service	X	X [1]	□
Financial Services (except as below)	X	X [1]	□
Personal credit establishment	X	X	X
Funeral or Mortuary Service	X	X	X
Office			
Business or professional office	X	X [1]	□
Medical, dental or health practitioner office	X	X [1]	□
Plasma center	X	X	X
Retail Sales			
Building supplies and equipment	X	X	X
Medical Marijuana Dispensary	X	X[1]	□
Self-service Storage Facility	X	X	X
Sexually Oriented Business Establishment	X	X	X
Vehicle Sales and Service			
Commercial vehicle repair/maintenance	X	X	X
Commercial vehicle sales and rentals	X	X	X
Fueling station	X	X	X
Personal vehicle repair and maintenance	X	X	X
Personal vehicle sales and rentals	X	X	X
Vehicle part and supply sales	X	X	X
Vehicle body and paint finishing shop	X	X	X
WHOLESALE, DISTRIBUTION AND STORAGE			
Equipment and Materials Storage, Outdoor	X	X	X
Trucking and Transportation Terminal	X	X	X
Warehouse	X	X	X
Wholesale Sales and Distribution	X	X	X
INDUSTRIAL			
Moderate-impact Manufacturing & Industry	X	X	X
High-impact Manufacturing & Industry	X	X	X
Mining or Mineral Processing	X	X	X
Junk or Salvage Yard	X	X	X
RECYCLING			
Construction or Demolition Debris	X	X	X
Consumer Material Drop-off Station	X	X	X
Consumer Material Processing	X	X	X
AGRICULTURAL			
Animal Husbandry	X	X	X
Horticulture Nursery	X	X	X
OTHER			
Drive-in or Drive-through Facility (as a component of an allowed use)	X	X	X
Off-premise Outdoor Advertising Sign	X	X	X

[1] Use allowed above the ground-floor level only.
[2] Use limited to water and wastewater treatment facilities (special exception required).

20.050-C Residential Building Types

Residential uses allowed in RDO districts must be located in residential buildings as allowed in the underlying zoning district, except as prohibited by Table 20-1.5.

Descriptions of the residential building types and references to applicable regulations are found in Section 35.010.

Table 20-1.5: RDO Building Type Regulations for Household Living

USE CATEGORY **Subcategory** Specific use Building Type	RDO-1	RDO-2	RDO-3
X = expressly prohibited use | □ and unlisted uses = underlying zoning governs			
RESIDENTIAL			
Household Living			
Single household			
Detached house	X	X [1]	□
Manufactured housing unit	X	X	X
Manufactured housing subdivision	X	X	X
Mobile home	X	X	X
Two households on single lot			
Duplex	X	X [1]	□
Three or more households on single lot			
Mobile home park	X	X	X
Cottage house development	X	X	□

[1] Detached houses and duplexes are allowed when part of a planned unit development that was approved before January 1, 2016.

20.050-D Site and Building Design

1. Building Placement, Building Design and Site Features

a. Intent

The building placement, building design and site design regulations of this section are intended to:

(1) Ensure that buildings are oriented to face pedestrian areas along the river and abutting streets;

(2) Create and frame usable outdoor spaces;

(3) Encourage pedestrian activity by creating compact and well-connected development;

(4) Ensure that new development is constructed of durable, long-lasting materials;

(5) Enhance pedestrian interaction with the natural and built environment by providing building articulation and transparency of building façades at pedestrian levels; and

(6) Promote incorporation of design features that encourage outdoor activity and emphasize the presence of the river and park land.

b. Siting of Buildings, Parking and Service Areas

Buildings, parking, and service/equipment areas are subject to the regulations of Table 20-2.

Table 20-2: RDO Building, Parking and Service Area Siting [1]

	RDO-1	RDO-2	RDO-3
Build-to-Zones (BTZ) (minimum/maximum setback in feet)			
River BTZ (See Figure 20-1)			
From dual river trail [2]	10/25[3]	10/25[3]	NA
From top of river bank [4]	50/75[5]	50/75[5]	NA
Street BTZ (See Figure 20-2)			
From major street	10/25	10/25[6]	10/25
Building Façade in BTZ [9]			
River BTZ (See Figure 20-3)	At least 60% of river-facing façade must be located in BTZ	River-facing façade must occupy at least 70% of the BTZ length [6][7]	NA
Street BTZ (See Figure 20-4)	At least 60% of street-facing façade must be located in BTZ	Street-facing façade must occupy at least 50% of the BTZ length [6][7]	Street-facing façade must occupy at least 50% of the BTZ length [8]
Minimum Side Setback	None required		
Minimum Rear Setback	Per underlying zoning		
Minimum Parking Area Setback (feet)			
From dual river trail [10]	20	20	NA
From top of river bank [4][10]	70	70	NA
From any street	30	30	30
Minimum Service Area/Equipment Setback (feet) (service areas, mechanical equipment, refuse collection areas, storage areas and loading docks)			
From Dual River Trail	50	50	NA
From Top of River Bank [4]	70	70	NA
From any Street	50	50	50

[1] General rules for measuring compliance and exceptions to these regulations and can be found in Chapter 90.

[2] "Dual river trail" refers to the split or divided public trail that runs generally parallel to the river and that provides separate hard-surfaced areas for cyclists and pedestrians. [Note: Not all portions of the dual river trail are designed as separate/divided trails]. BTZ measurements are taken from the edge of the dual river trail surface located furthest from the river.

[3] Maximum may be increased to 150 feet if occupied by a pedestrian activity area or outdoor dining/entertainment venue.

[4] Top of river bank BTZ and setback requirements apply only if dual river trail is not in place. Buildings that project beyond the top of the river bank are exempt from BTZ requirements. The geographic "river bank" refers generally to the land alongside the bed of the river. The top of the river bank must be dimensionally defined on the site plan that is submitted to and approved by the land use administrator during the development/permit review process. The top of bank will generally be interpreted as the highest point where the steepest slope of the bank intersects with the flattest surface further away from the river. The 100-year flood elevation is typically below the top of the bank.

[5] Maximum may be increased to 200 feet if occupied by a pedestrian activity area or outdoor dining/entertainment venue.

[6] Buildings are not required to meet both river and major street BTZ requirements. Buildings must first comply with river BTZ requirements.

[7] In RDO-2, Pedestrian activity areas and outdoor dining/entertainment venues may be counted to meet up to 30% of the river BTZ requirement, provided that if multiple buildings on a lot are located within the river BTZ, the cumulative total of all pedestrian activity and outdoor dining/entertainment areas may not exceed

30% for the purpose of determining the river BTZ. Once buildings occupy at least 70% of the length of the river BTZ, additional buildings may be constructed in the major street BTZ. Once 70% of the length of the river BTZ and 50% of the length of the major street BTZ of a lot is occupied by building(s), any additional building(s) on that lot is not required to be located within a BTZ.

[8] In RDO-3, buildings must first comply with major street BTZ requirements. Once 50% of the length of the major street BTZ of a lot is occupied by building(s), any additional building(s) on that lot is not required to be located in a BTZ.

[9] For purposes administering and interpreting these regulations, a "façade" is an exterior wall of a building.

[10]Drive aisles that are parallel or generally parallel to the river must be lined by a parking aisle on the river side of the property.

c. Facades

Facades are subject to the regulations of Table 20-3.

Table 20-3: RDO Facade Regulations

	RDO-1	RDO-2	RDO-3
Minimum Ground Floor Transparency (%)[1]			
Building facade facing the river	40	40	—
Building facade facing a major street	40	40	40
Building facade facing parking or common open space area	20	20	—
Required Building Entrances			
Building facade facing the river	At least one building entrance required with direct connection to dual river trail [2]		—
Building facade facing a major street	At least one building entrance required with direct connection to public sidewalk		
Building facade facing parking or common open space area	At least one building entrance required with direct connection to parking or open space		—

[1] Residential buildings are exempt from ground-floor transparency requirements.

[2] Buildings entrance requirements do not apply to river-facing façades if the building projects beyond the top of the river bank. The land use administrator is authorized to waive the trail direct connection requirement when the subject portion of the trail is in different ownership and access rights cannot be obtained.

Figure 20-1: River BTZ, Setback and Facade Regulations

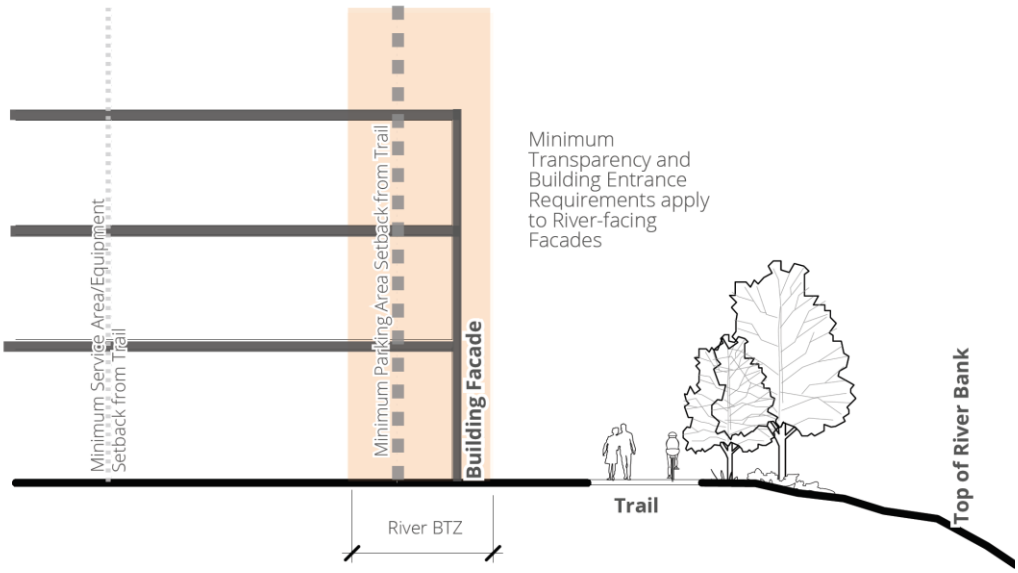


Figure 20-2 Street BTZ, Setback and Façade Regulations

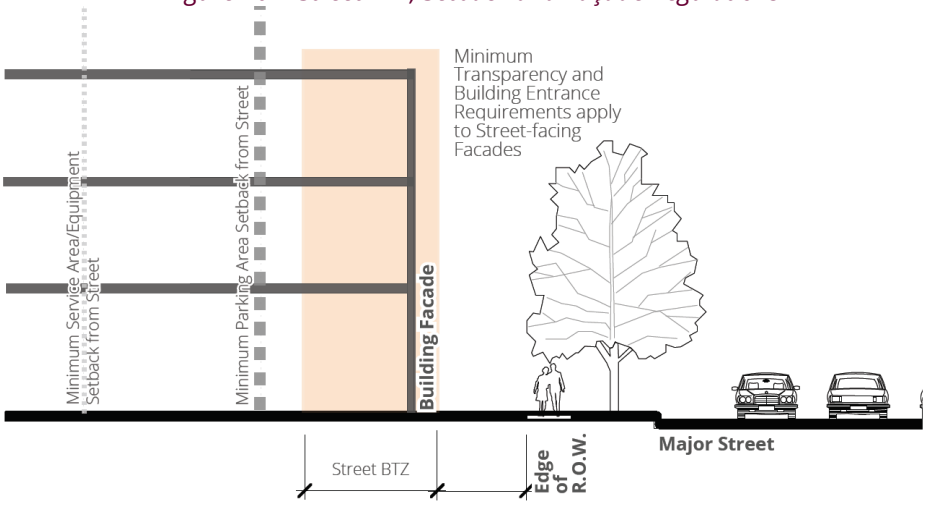


Figure 20-3: Building and Parking Placement (1)

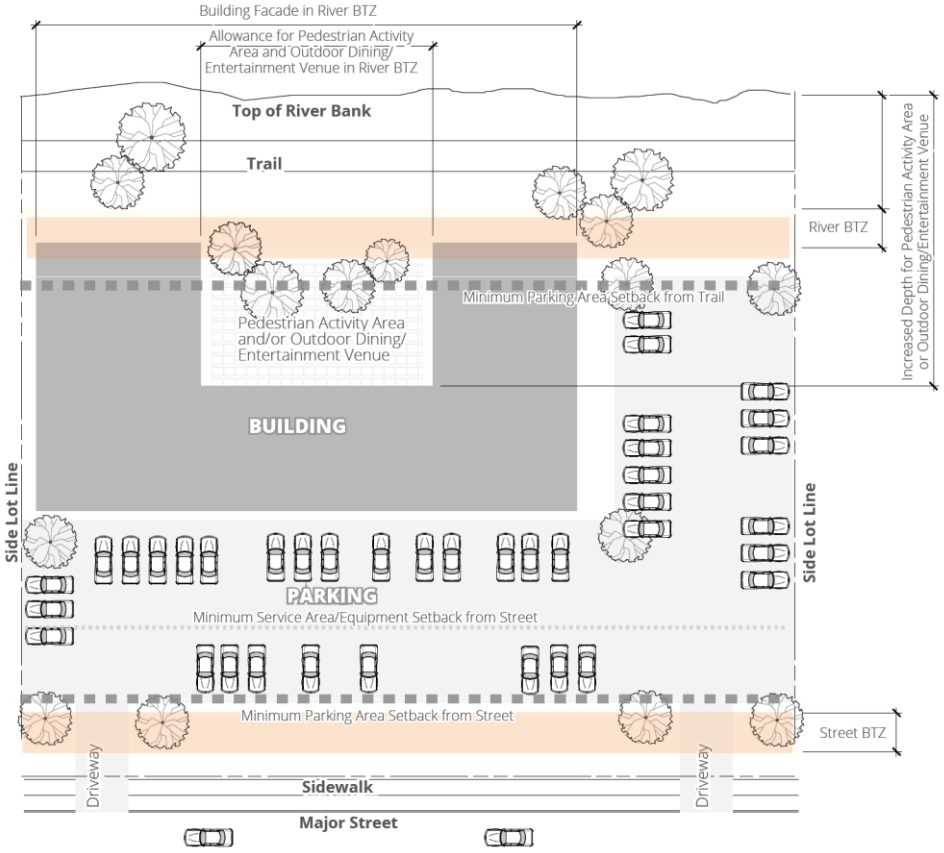
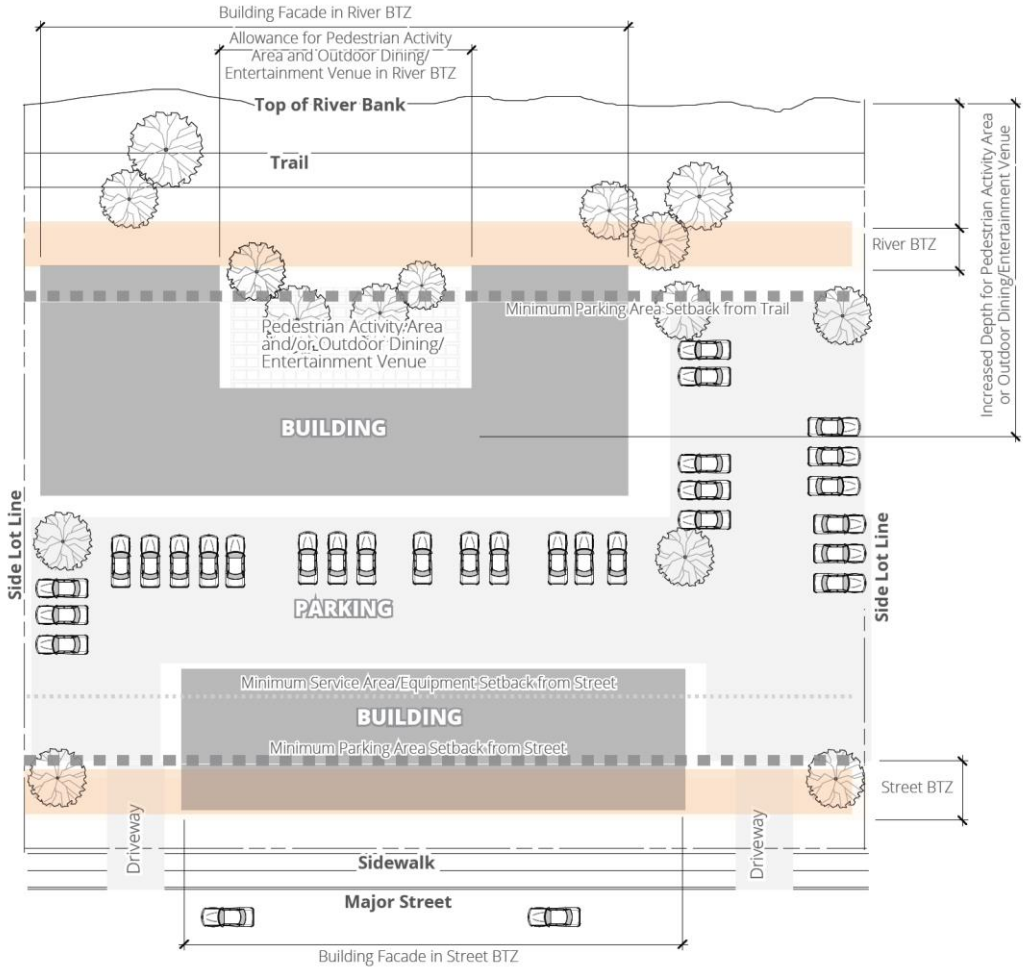


Figure 20-4: Building and Parking Placement (2)



d. Building Design

(1) Exterior insulation and finish systems (EIFS) or simulated stucco may not be used on more than 15% of any building façade and may not be used on the ground-floor level façade.

(2) Vinyl siding and aluminum siding are prohibited building materials.

(3) Blank walls without architectural detailing/articulation may not exceed 35 feet in height or width. Articulation must be provided as a means of breaking the building face into separate visually distinct but attached or adjoining pieces by using different building materials, transparency, openings or by recesses or projections in facades.

e. Parking Structures

(1) Parking structures must be designed to visually conceal ground-floor level parking through the use of architectural detailing or liner buildings.

(2) Ramped and sloping interior floors must be concealed from view of the public street and the river.

(3) Stairwells must be built and located on the exterior corners of parking garages and constructed so that at least one wall of the stairwell be visually open to the outdoors. Additional interior stairs may be allowed adjacent to elevators, but one side must remain visually open.

(4) Screening walls to conceal ramps, slopes and vehicles absent architectural detailing/articulation at expanses greater than 35 feet are prohibited.

f. Site Features

(1) All new utility services, such as telephone, electrical and cable services, must be installed underground.

(2) Utility components required to be above ground, such as transformers and meters, must either be screened by landscaping or decorative wall or concealed from view of the public street and the river.

2. Parking

a. Intent

The parking-related provisions of this subsection are intended:

(1) To minimize the visual prominence of parking, promoting increased pedestrian activity and enhancing the overall appearance of development; and

(2) To support more urban development intensities through reduced parking minimums and other flexible parking regulations.

b. Regulations

(1) The minimum parking ratios established in Table 55-1 are reduced by 50% for uses in the RDO district.

(2) Bicycle parking must be provided at a rate of at least 150% of the ratios established in Table 55-3.

(3) Surface parking lots must be organized as a series of smaller parking areas, each not exceeding 50 spaces. These parking areas must be separated by landscaped areas with a minimum width of 12 feet. Pedestrian walkways may be integrated into these areas but may not be counted toward satisfying the required minimum landscaped area width of 12 feet.

(4) Off-street surface parking lots must be screened in accordance with the RDO district landscaping and screening regulations of 20.050-C3.

3. Landscaping and Screening

a. Intent

To establish a distinctive landscape character along the river corridor through preservation of existing trees/vegetation, enhanced landscape standards and promotion of native, drought-tolerant and non-invasive landscaping.

b. Regulations

(1) The applicant must submit a landscape plan illustrating plant size within a 3-year growing cycle.

(2) The total landscaped area must equal at least 20% of the lot. Areas beyond the top of the river bank (river side) and existing dual river trails (including the paved trail or trail bed and a 5-foot buffer on each side) may not be counted toward satisfying the minimum 20% landscaped area requirement.

(3) Dumpsters must be screened by masonry walls with a minimum height of 6 feet and a metal frame gate that is at least 80% opaque.

(4) Fences and walls that prohibit physical or visual access to the river and those exceeding 3 feet in height are prohibited. The maximum fence and wall height limitation does not apply to screening of service areas, mechanical equipment, refuse collection areas, storage areas and loading docks.

(5) The perimeter of parking lots must be screened from public streets and the dual river trail by one of the following methods:

(a) A berm with a minimum height of 3 feet and a maximum slope of one vertical foot for every 4 horizontal feet. The berm must be planted with coniferous and deciduous trees at a rate of at least one tree per 20 linear feet of berm; or

(b) A masonry wall with a minimum height of 2 feet and maximum height of 3 feet, with a minimum 5-foot landscaped buffer containing at least one tree per 20 linear feet located on the outside of the wall.

(6) Lots adjacent to the dual river trail must provide at least one tree for every 20 feet of trail or river frontage, as follows:

(a) All trees required by this provision must be placed within 20 feet of the edge of the trail, trail easement, reserve area or trail right-of-way, as measured from the outer edge of the tree's trunk; and

(b) Trees placed within 20 feet of the river trail may not be counted towards meeting the requirements of any other minimum landscape or tree planting requirement of Chapter 65.

(7) Trees provided to meet the landscaping and screening requirements of this subsection may be regularly spaced or grouped. When grouped, the distance between required trees may not exceed 60 feet.

4. Lighting

a. Intent

The lighting provisions of this subsection are intended to:

(1) Ensure lighting is of pedestrian scale;

(2) Minimize the negative effects of lighting on adjacent uses; and

(3) Ensure unified lighting standards along the dual river trail and in parks.

b. Regulations

(1) Floodlights are prohibited.

(2) Building-mounted neon lighting is only allowed when recessed or contained in a cap or architectural reveal.

5. Signs

a. Intent

The sign regulations of this subsection are intended to:

(1) Ensure that signs contribute to the visual continuity and quality of development in the river corridor;

(2) Minimize visual clutter; and

(3) Ensure that signs are primarily of pedestrian scale.

b. Regulations

(1) Off-premise outdoor advertising signs, dynamic display signs and internally illuminated signs enclosed in frames or cabinets (aka "cabinet signs" or "box signs") are prohibited.

(2) All new or replacement freestanding signs must be monument-style signs with a maximum height of 6 feet.

(3) Freestanding signs must be consistent with the architectural character of the buildings on the site, incorporating a minimum of one of the primary materials, colors or design elements of the associated structures.

(4) The sign area of a monument sign may not exceed 50 square feet.

(5) Wall signs may not exceed an aggregate sign area of 1.5 square feet per linear foot of building wall to which they are attached.

(6) Projecting signs may not project more than 3 feet from the face of the building. The sign area of a projecting sign may not exceed 24 square feet if located within a street build-to-zone or 12 square feet in any other location.

6. Circulation and Access

a. Intent

The circulation and access provisions of this subsection are intended to:

(1) Establish a safe and efficient network of vehicular and pedestrian linkages throughout the river corridor;

(2) Integrate access management design features;

(3) Accommodate multiple modes of transportation (motor vehicles, transit, bicycles, pedestrians, etc.); and

(4) Provide connectivity to the parks within and adjacent to the river corridor, dual river trail and the river.

b. Regulations

(1) No more than one driveway is allowed per 300 linear feet of public right-of-way in RDO-1 and RDO-2 districts.

(2) All access points to a public street must be shared by multiple tenants and park users.

(3) All parcels must provide vehicular and pedestrian connectivity (cross-access) with adjacent parcels.

(4) Internal pedestrian circulation systems must coordinate and connect with public spaces, sidewalks, dual river trail, transit stops and other transportation systems.

(5) All new dual river trails and re-positioned existing dual river trails must be located to avoid vehicular crossings.

(6) Public sidewalks with a minimum width of 5 feet must be installed along the entire street frontage on any lot abutting a major street.

Section 20.060 HNO, Healthy Neighborhoods Overlay

1. Purpose and Intent

The regulations of this section are established for properties located within the boundaries of the healthy neighborhoods overlay (HNO) district. The purpose of the healthy neighborhoods overlay (HNO) is to modify and supplement regulations in a specified area where there is a desire for greater diversity in retail options and convenient access to fresh meats, fruits and vegetables. These regulations are intended to:

a. Avoid and reduce over-concentration of small box discount stores in the area.

b. Encourage and streamline grassroots access to fresh meats, fruits and vegetables

c. Encourage a greater diversity of retail activity and purchasing options within the area.

d. Allow for a more community-based approach to distributing and purchasing fresh meats, fruits and vegetables in a specified area.

e. Promote investment and development in a community where change is desired.

20.060-A Applicability

Except as otherwise expressly stated, the regulations of this section apply within the boundaries of the HNO district to all new uses and structures and all building alterations and site modifications that require a building permit.

20.060-B Exemptions

a. Uses that contain a prescription pharmacy or offer for sale gasoline or diesel fuel are exempt from the dispersal standards established in Section 20.060-C.

b. Uses that dedicate a minimum floor area of 500 square feet to the sale of fresh meat, fruits or vegetables are exempt from the dispersal standards established in Section 20.060-C.

c. Grocery Stores are exempt from the dispersal standards established in Section 20.060-C..

20.060-C Dispersal Standards for Small Box Discount Stores

To avoid over-concentration, a small box discount store, as defined in 35.050-L4, within the overlay area must be separated from another small box discount store within or outside the overlay area by a minimum distance of 5,280 feet. The required separation distance must be measured in a straight line from the nearest point on the lot line of the property occupied by a small box discount store to the nearest point on a lot line of the other property occupied by a small box discount store. The separation distance requirements of this section may be reduced if approved through the special exception approval process.

20.060-D Community Gardens

Community gardens within the boundaries of the HNO district are governed by the regulations of Section 40.090, unless expressly stated by this section. On-site sale of community garden products is permitted by right in all zoning districts within the boundaries of the HNO district.

20.060-E Grocery Store

The minimum parking ratios established in Section 55.020, Table 55-1 for a Grocery Store use are reduced by 50% in the HNO district.

20.060-F Nonconformities

Nonconformities that exist within the HNO district are governed by the regulations of Chapter 80.

Section 20.070 RT66, Route 66 Overlay

20.070-A General

1. Purpose and Intent

The Route 66 overlay district establishes zoning regulations and incentives intended to ensure the enhancement, development, and revitalization of the authentic Route 66 through the promotion of historic and historically inspired signage, especially neon, and roadside attractions along and adjacent to the two alignments of Route 66 in Tulsa. The regulations are generally intended to guide the character of both public and private development as it occurs along Route 66.

2. Applicability

Except as otherwise expressly stated, the Route 66 overlay district regulations of this section shall apply within the boundaries of the Route 66 overlay district to the following:

a. All new signage that requires a sign permit and includes at least 25% exposed neon as measured by total sign face area. Dynamic Displays as defined in Section 60.100 are not permitted to utilize the provisions of the overlay.

b. Roadside attractions as defined in Section 20.070-C.

3. Conflicting Regulations

All applicable regulations of the underlying base zoning district apply to property in the Route 66 overlay district unless otherwise expressly stated in the Route 66 overlay district regulations. For properties with approved development plans (PUD, CO, MPD, Optional Development Plan), the approved development plan and development standards apply unless otherwise expressly stated in the Route 66 overlay district regulations.

20.070-B Signage Guidelines

Signs are regulated by underlying zoning districts and development plans, where applicable, except where modified by these regulations. Signs located within the Route 66 overlay that include at least 25% exposed neon as measured by total sign area of the sign shall comply with the regulations of Chapter 60 except as modified by the following provisions and exemptions.

1. Location

a. A freestanding sign may overhang up to four feet into the public right-of-way and a wall sign may protrude up to 15 inches into the public right-of-way, provided it is a minimum of 12 feet above the right-of-way at grade and does not interfere with utility poles, lines, and/or easements.

b. A projecting sign may project horizontally up to four feet into the public right-of-way, provided it is a minimum of 12 feet above the right-of-way at grade and does not interfere with utility poles, lines, and/or easements.

c. No sign, or portion of a sign, shall be located within 10 feet of any high voltage overhead conductor. (See Section 3107.16.2 of IBC, as amended by Title 51, Section 101 of Tulsa Revised Ordinances)

d. Signs shall not project beyond a vertical plane that is 2 feet inside the curb line. (See Section 3107.12.2.1.1 of IBC, as amended by Title 51, Section 101 of Tulsa Revised Ordinances)

e. Signage utilizing the standards of the Route 66 overlay must be oriented to a major street.

2. Maximum Area

a. Sign area for freestanding or projecting signs may be up to 50% greater than the sign area allowed by the underlying zoning district sign budget, provided that sign area shall not exceed 250 square feet.

b. Sign area for wall signs may be up to 25% greater than the sign area allowed by the underlying zoning district, provided that sign area shall not exceed 20% of the building wall to which the sign is attached.

3. Height

a. Freestanding signs shall not exceed the height of the principal structure on the property by more than 25% or a maximum height of 25 feet, whichever is greater.

b. Projecting signs shall not exceed the height of the parapet or building wall to which it is attached by more than 25% or a maximum of 20 feet, whichever is greater.

c. Wall signs shall not extend higher than 5 feet above the height of the parapet or building wall to which it is mounted or shall not be mounted any higher than 30 feet, whichever is less.

4. Illumination

Change of illumination may produce apparent motion of the visual image on signs. Such motion shall be the result of changes in luminance in a sequential or radial manner to produce what appears to be movement of an element of the animated sign. Sequential or radial changes in luminance shall not include search lights, strobe lights, rotating beacon lights, or flashing.

5. Roof Signs

Roof signs are regulated by the provisions of §60.080-B5.

20.070-C Roadside Attractions

Roadside attractions are permitted in the Route 66 overlay district. Roadside attractions are features or structures intended to promote tourism and enhance the Route 66 experience.

1. General Regulations

a. Roadside attractions are subject to review and approval by the Tulsa Route 66 Commission.

b. Business name and/or logos will be considered signage and are required to comply with sign regulations.

c. Roadside attractions are required to obtain all necessary permits prior to construction.

2. In reviewing roadside attractions, the Route 66 Commission must determine that the proposal:

a. Reflects the historic significance of Route 66 in Tulsa by identifying elements that contribute to its legacy and character; and

b. Promotes tourism along Route 66; and

c. Implements recommendations adopted in Plan 66.

Section 20.080 NIO, Neighborhood Infill Overlay

20.080-A General

1. Purpose and Intent

The Neighborhood Infill Overlay (NIO) establishes zoning regulations that are intended to promote the development of alternative infill housing in established neighborhoods. The overlay allows for a variety of residential housing types in a manner that is compatible, in mass and scale, with the character of surrounding properties. The regulations are also intended to promote housing types that accommodate households of varying sizes and income levels and provide for a more efficient use of residential land.

2. Applicability

Except as otherwise expressly stated, the Neighborhood Infill Overlay regulations of this section apply to RS-3, RS-4, RS-5, RD, RT, RM-0, RM-1, RM-2, and RM-3 zoning districts only within the boundaries of the Neighborhood Infill Overlay districts to all new permitted uses and structures and all building alterations and site modifications that require a building permit.

3. Nonconformities

Nonconformities that exist within the overlay district are governed by the regulations of Chapter 80 except in residential zoning districts, a single detached house, duplex, or multi-unit house, where the particular residential building type is allowed by right or is allowed by special exception and a special exception has been granted, may be erected on a nonconforming lot without complying with the minimum lot area, minimum lot area per unit, minimum lot width, minimum street frontage or minimum open space per unit requirements of the subject zoning district, provided that at least 50% of the lot area remains as open space. All other lot and building regulations apply, except that detached houses, duplexes, or multi-unit houses may be erected on corner lots that are nonconforming with regard to lot width, subject to a reduced minimum street side building setback of 5 feet. Garages that are accessed through a side yard abutting a street must be set back at least 20 feet.

4. Conflicting Regulations

All applicable regulations of the underlying base zoning district apply to property in the Neighborhood Infill Overlay unless otherwise expressly stated in the Neighborhood Infill Overlay regulations. For properties with approved development plans (PUD, CO, MPD, Optional Development Plan), the approved development plan and development standards apply.

20.080-B Use Regulations – Residential, Household Living

Residential, household living principal uses are allowed in the Neighborhood Infill Overlay district in accordance with Table 20-4.

1. Permitted Uses

Residential, household living uses identified with a "P" symbol are allowed by right in the Neighborhood Infill Overlay district within the particular base zoning district, subject to compliance with any supplemental regulations identified in Chapter 40 and all other applicable regulations of this zoning code.

2. Special Exception Uses

Uses identified with an "S" may be allowed and if reviewed and approved in accordance with the special exception procedures of Section 70.120.

3. Prohibited Uses

Uses identified with an "–" are expressly prohibited. Uses that are not listed in the table and that cannot be reasonably interpreted (as stated in §35.020-E) to fall within any defined use category are also prohibited.

Table 20-4: Neighborhood Infill Overlay District Use Regulations for Household Living

USE CATEGORY	Base Zoning Districts:								
	RS-			RD	RT	RM-			
Subcategory Specific use	3	4	5			0	1	2	3
RESIDENTIAL									
Household Living (if in building type allowed in Table 20-4.5)									
Single household	P	P	P	P	P	P	P	P	P
Two households on single lot	P	P	P	P	P	P	P	P	P
Three or more households on single lot	P	P	P	P	P	P	P	P	P

20.080-C Residential Building Types for Household Living

In the Neighborhood Infill Overlay district, within the particular base zoning district, household living uses must be located in the residential building types identified in Table 20-4.5. Descriptions of the residential building types and references to applicable regulations are found in Section 35.010.

Table 20-4.5: Neighborhood Infill Overlay District Building Type Regulations for Household Living

USE CATEGORY	Base Zoning Districts: RS-					RM-			
Subcategory Specific use Building Types	**3**	**4**	**5**	**RD**	**RT**	**0**	**1**	**2**	**3**
RESIDENTIAL									
Household Living									
Single household									
Detached house	P	P	P	P	P	P	P	P	P
Patio House	P	P	P	P	P	P	P	P	P
Townhouse									
2-unit townhouse	P	P	P	P	P	P	P	P	P
3+-unit townhouse	P	P	P	P	P	P	P	P	P
Manufactured housing unit	S	S	S	S	S	S	S	S	S
Manufactured housing subdivision	-	-	-	-	-	-	-	-	-
Mobile home	-	-	-	-	-	-	-	-	-
Mixed-use building	-	-	-	-	-	-	S	S	S
Vertical mixed-use building	-	-	-	-	-	-	S	S	S
Two households on single lot									
Duplex	P	P	P	P	P	P	P	P	P
Mixed-use building	-	-	-	-	-	-	P	P	P
Vertical mixed-use building	-	-	-	-	-	-	P	P	P
Three or more households on single lot									
Cottage house development	P	P	P	P	P	P	P	P	P
Multi-unit house	P	P	P	P	P	P	P	P	P
Apartment/Condo	P [1]	P [1]	P [1]	P [1]	P [1]	P	P	P	P
Mobile home park	-	-	-	-	-	-	-	-	-
Mixed-use building	-	-	-	-	-	-	P	P	P
Vertical mixed-use building	-	-	-	-	-	-	P	P	P

1. Table 20-4.5 Notes

The following notes refer to the bracketed numbers (e.g.," [1]") in Table 20-4.5:

[1] Apartment/Condo is limited to no more than 6 dwelling units on a single lot.

20.080-D Lot and Building Regulations

In the Neighborhood Infill Overlay district, the lot and building regulations of Table 20-5 apply in the RS-3, RS-4, RS-5, RD, RT, RM-0, RM-1, RM-2, RM-3 base zoning districts to Duplex, Townhouse, Cottage House Development, Multi-unit House and Apartment/Condo building types. General exceptions to these regulations and rules for measuring compliance can be found in Chapter 90. Regulations governing accessory uses and structures can be found in Chapter 45.

Table 20-5: Neighborhood Infill Overlay District Lot and Building Regulations

Minimum Lot Area (sq. ft.)	
Townhouse	1,600
Duplex, Cottage House Development, Multi-Unit House, Apartment/Condo	4,000
Minimum Lot Area per Unit (sq. ft.)	N/A
Minimum Lot Width	
Townhouse	20
Duplex, Cottage House Development, Multi-Unit House, Apartment/Condo	40
Minimum Street Frontage (feet)	20 [1]
Minimum Open Space per Unit (sq. ft.)	100
Minimum Building Setbacks (feet)	
Street	10 [2]
Side	3 [3]
Rear	10
Maximum Building Height (feet)	35

Table 20-5 Notes

The following notes refer to the bracketed numbers (e.g.," [1]") in Table 20-5:

[1] Minimum street frontage requirements apply to townhouse developments, not to individual townhouse units. Cottage house developments require minimum street frontage of 50 feet.

[2] Minimum setback for street-facing garage doors is 20 feet.

[3] No side setback is required for interior units in townhouse developments. Side setback applies to end units.

20.080-E Parking Regulations

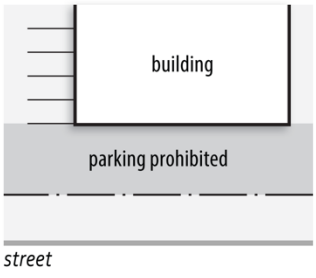
1. Minimum Parking Ratios

The minimum parking ratios established in Section 55.020, Table 55-1 for a Household Living use are reduced by 50% in the Neighborhood Infill Overlay district.

2. Location

Parking spaces, not including drive aisles, are prohibited between building and street right-of-way (see Figure 20-5) on lots occupied by a 3+ Unit Townhouse, Cottage House Development, Multi-unit House and Apartment/Condo.

Figure 20-5: Parking Prohibited between Building and Street Right-of-Way



20.080-F Accessory Dwelling Units

Accessory dwelling units (ADUs), as defined in Section 45.031, are permitted by right.

Section 20.090 NCO, Neighborhood Character Overlay

20.090-A General

1. Purpose and Intent

The Neighborhood Character Overlay (NCO) district establishes zoning regulations that are intended to promote compatibility of infill housing in established neighborhoods.

2. Applicability

a. The regulations of this section apply to newly permitted detached houses, duplexes, and accessory buildings and any building alterations and site modifications for detached houses, duplexes, or accessory buildings that require a building permit within the boundaries of the NCO district. Any building, development, or structure for which a building permit was issued, or a complete building application has been accepted for processing prior to the effective date of the NCO district may be completed in conformance with the issued building permit and other applicable permits and conditions, even if such building, development, or structure does not comply with the provisions of the NCO district. If the building, development, or structure is not commenced and completed within the time allowed under the original building permit and any authorized permit extension, the building, development, or structure may be constructed, completed, and occupied only if it complies with the regulations of the NCO district.

b. Complete applications for development plans, special exceptions, variances, or other zoning-related approvals that are pending approval on the date a property is supplementally zoned NCO must be reviewed wholly under the zoning regulations applicable to the property immediately preceding the date the property was supplementally zoned NCO. Building permits for construction and development approved under such zoning approvals may be issued in accordance with Section 20.090-C and Section 20.090-B.

c. The development administrator is authorized to issue building permits for construction or development approved before the date a property was supplementally zoned NCO and for developments pending approval under Section 20.090-A.2.b even if such building, development, or structure does not fully comply with the NCO district regulations. If building is not commenced and completed within the time allowed under the building permit and any authorized permit extension, then the building, development, or structure may be constructed, completed, and occupied only if it complies with the NCO district regulations.

3. Conflicting Regulations

All applicable regulations of the underlying base zoning district apply to property in the NCO district unless otherwise expressly stated in the NCO district regulations. For properties with approved development plans (PUD, CO, MPD, Optional Development Plan), the approved development plan and development standards apply.

4. Nonconformities

Nonconformities that exist within the NCO district are governed by the regulations of Chapter 80.

20.090-B Lot and Building Regulations

In the Neighborhood Character Overlay district, the supplemental regulations of this section apply to detached houses and duplexes, and lots being used for detached houses and duplexes. General exceptions to these regulations and rules for measuring compliance can be found in Chapter 90.

1. Maximum Building Height

The maximum allowable building height is 30 feet.

2. Maximum Building Width

The maximum allowable building width is 40 feet. For the purposes of the Neighborhood Character Overlay district, building width shall be measured from the exterior wall closest to the side setback to the exterior wall closest to the opposite side setback, parallel to the street setback. For corner lots, building width is measured parallel to the street setback not designated as the side street setback.

3. Maximum Driveway Width

Driveways serving detached houses or duplexes may not exceed 18 feet in width within the right-of-way and within the street setback. Maximum width is applied to the composite of all driveways if multiple curb cuts are provided.

4. Garage Setbacks

Street-facing garage doors must be set back at least 36 feet and may not be located closer to the street than the front façade of the principal residential building. On corner lots, the side street setback may be reduced to 20 feet.

20.090-C Accessory Building Regulations

In the Neighborhood Character Overlay, the supplemental regulations of this section apply to all detached accessory buildings.

1. Accessory Dwelling Units

Accessory Dwelling Units (ADUs), as defined in Section 45.031, are permitted by right.

2. Maximum Height of Accessory Buildings

The maximum allowable height for accessory buildings is 25 feet with a maximum of two stories.

3. **Accessory Building Size**
   The total aggregate floor area of all accessory buildings may not exceed 750 square feet or 40% of the floor area of the principal residential structure, whichever is greater.

4. **Accessory Building Coverage of Rear Setback**
   The maximum allowable coverage of the rear setback by accessory buildings is 50%.

Section 20.100 NIO-2, Neighborhood Infill Overlay – 2

20.100-A General

1. Purpose and Intent

The Neighborhood Infill Overlay – 2 (NIO-2) establishes zoning regulations that are intended to promote the development of alternative infill housing in established neighborhoods. The overlay allows for a variety of residential housing types in a manner that is compatible, in mass and scale, with the character of surrounding properties. The regulations are also intended to promote housing types that accommodate households of varying sizes and income levels and provide for a more efficient use of land for residential purposes.

2. Applicability

Except as otherwise expressly stated, the Neighborhood Infill Overlay regulations of this section apply to RS-3, RS-4, RS-5, RD, RT, RM-0, RM-1, RM-2, RM-3, RMH, OL, OM, OMH, OH, CS, CG, CH, IL, IM, and IH zoning districts only within the boundaries of the Neighborhood Infill Overlay – 2 districts to all new permitted uses and structures and all building alterations and site modifications that require a building permit.

3. Nonconformities

Nonconformities that exist within the NIO-2 district are governed by the regulations of Chapter 80 except in residential zoning districts, a single detached house, duplex, or multi-unit house, where the particular residential building type is allowed by right or is allowed by special exception and a special exception has been granted, may be erected on a nonconforming lot without complying with the minimum lot area, minimum lot area per unit, minimum lot width, minimum street frontage or minimum open space per unit requirements of the subject zoning district, provided that at least 50% of the lot area remains as open space. All other lot and building regulations apply, except that detached houses, duplexes, or multi-unit houses may be erected on corner lots that are nonconforming with regard to lot width, subject to a reduced minimum street side building setback of 5 feet. Garages that are accessed through a side yard abutting a street must be set back at least 20 feet.

4. Conflicting Regulations

All applicable regulations of the underlying base zoning district apply to property in the NIO-2 district unless otherwise expressly stated in the NIO-2 regulations. For properties with approved development plans (PUD, CO, MPD, Optional Development Plan), the approved development plan and development standards apply.

20.100-B Use Regulations – Residential, Household Living

Residential, household living principal uses are allowed in the NIO-2 district in accordance with Table 20-6.

1. Permitted Uses

Residential, household living uses identified with a "P" symbol are allowed by right in the NIO-2 district within the particular base zoning district, subject to compliance with any supplemental regulations identified in Chapter 40 and all other applicable regulations of this zoning code.

2. Special Exception Uses

Uses identified with an "S" may be allowed if reviewed and approved in accordance with the special exception procedures of Section 70.120.

3. Prohibited Uses

Uses identified with an "–" are expressly prohibited. Uses that are not listed in the table and that cannot be reasonably interpreted (as stated in §35.020-E) to fall within any defined use category are also prohibited.

Table 20-6: NIO-2 District Use Regulations for Household Living

USE CATEGORY	Base Zoning Districts:										
	RS-			RD	RT	RM-				RMH	O, C, and I
Subcategory Specific use	3	4	5			0	1	2	3		All
RESIDENTIAL											
Household Living (if in building type allowed in Table 20-7)											
Single household	P	P	P	P	P	P	P	P	P	P	P
Two households on single lot	P	P	P	P	P	P	P	P	P	P	P
Three or more households on single lot	P	P	P	P	P	P	P	P	P	P	P

20.100-C Residential Building Types for Household Living

In the NIO-2 district, within the particular base zoning district, household living uses must be located in the residential building types identified in Table 20-7. Descriptions of the residential building types and references to applicable regulations are found in Section 35.010.

Table 20-7: NIO-2 District Building Type Regulations for Household Living

USE CATEGORY	Base Zoning Districts:										
	RS-			RD	RT	RM-				RMH	O, C, and I
Subcategory Specific use Building Types	**3**	**4**	**5**			**0**	**1**	**2**	**3**		**All**
RESIDENTIAL											
Household Living											
Single household											
Detached house	P	P	P	P	P	P	P	P	P	P	P
Patio House	P	P	P	P	P	P	P	P	P	P	P
Townhouse											
2-unit townhouse	P	P	P	P	P	P	P	P	P	P	P
3+-unit townhouse	P	P	P	P	P	P	P	P	P	P	P
Manufactured housing unit [2]	P/S	P/S	P/S	P/S	P/S	P/S	P/S	P/S	P/S	P	P/S
Manufactured housing subdivision	-	-	-	-	-	-	-	-	-	P	P
Mobile home	-	-	-	-	-	-	-	-	-	P	-
Mixed-use building	-	-	-	-	-	-	S	S	S	P	P
Vertical mixed-use building	-	-	-	-	-	-	S	S	S	P	P
Two households on single lot											
Duplex	P	P	P	P	P	P	P	P	P	P	P
Mixed-use building	-	-	-	-	-	-	P	P	P	P	P
Vertical mixed-use building	-	-	-	-	-	-	P	P	P	P	P
Three or more households on single lot											
Cottage house development	P	P	P	P	P	P	P	P	P	P	P
Multi-unit house	P	P	P	P	P	P	P	P	P	P	P
Apartment/condo	P[1]	P[1]	P[1]	P[1]	P[1]	P	P	P	P	P	P
Mobile home park	-	-	-	-	-	-	-	-	-	P	-
Mixed-use building	-	-	-	-	-	-	P	P	P	P	P
Vertical mixed-use building	-	-	-	-	-	-	P	P	P	P	P

1. Table 20-7 Notes

The following notes refer to the bracketed numbers (e.g.," [1]") in (Table 20-7):

[1] Apartment/condo is limited to no more than 4 dwelling units on a single lot.

[2] Manufactured housing units manufactured in 2016 or later are permitted by right if they are skirted with masonry, have a street-facing entrance, and are attached to a permanent foundation. All other manufactured housing units require a special exception approved in accordance with the procedures of Section 70.120.

20.100-D Lot and Building Regulations

In the NIO-2 district, the lot and building regulations of Table 20-8 apply in the RS-3, RS-4, RS-5, RD, RT, RM-0, RM-1, RM-2, RM-3, RHM, OL, OM, OMH, OH, CS, CG, CH, IL, IM, and IH base zoning districts to Detached House, Manufactured Housing Unit, Duplex, Townhouse, Cottage House Development, Multi-unit House and Apartment/Condo building types. General exceptions to these regulations and rules for measuring compliance can be found in Chapter 90. Regulations governing accessory uses and structures can be found in Chapter 45.

Table 20-8: NIO-2 District Lot and Building Regulations

Minimum Lot Area (sq. ft.)	
Townhouse	1,600
Detached House, Manufactured Housing Unit, Duplex, Cottage House Development, Multi-Unit House, Apartment/Condo	4,000
Minimum Lot Area per Unit (sq. ft.)	N/A
Minimum Lot Width	
Townhouse	20
Detached House, Manufactured Housing Unit, Duplex, Cottage House Development, Multi-Unit House, Apartment/Condo	40
Minimum Street Frontage (feet)	20 [1]
Minimum Open Space per Unit (sq. ft.)	100
Minimum Building Setbacks (feet)	
Street	10 [2]
Side	3 [3]
Rear	10
Maximum Building Height (feet)	35

1. Table 20-8 Notes

The following notes refer to the bracketed numbers (e.g.," [1]") in (Table 20-8):

[1] Minimum street frontage requirements apply to townhouse developments, not to individual townhouse units. Cottage house developments require minimum street frontage of 50 feet.

[2] Minimum setback for street-facing garage doors is 20 feet.

[3] No side setback is required for interior units in townhouse developments. Side setback applies to end units.

20.100-E Home Occupations

In the NIO-2 district, both Type 1 and Type 2 home occupations are permitted as a matter of right.

20.100-F Modification to Lot and building regulations for the IL Zoning Districts

In the NIO-2 district, the building setback from AG, AG-R and R districts is reduced from 75-feet to 10-feet in the IL base zoning district for all non-residential uses.

20.100-G Accessory Dwelling Units

Accessory dwelling units (ADUs), as defined in Section 45.031, are permitted by right.

Section 20.110 NCO-2, Neighborhood Character Overlay 2

20.110-A General

1. Purpose and Intent

The Neighborhood Character Overlay 2 (NCO-2) district establishes regulations that are intended to promote the compatibility of infill housing in established neighborhoods.

2. Applicability

The regulations of this section apply to newly permitted residential buildings and additions that require a building permit within the boundaries of the NCO-2 district. Any building, development, or structure for which a building permit was issued, or a complete building application has been accepted for processing prior to the effective date of the NCO-2 district may be completed in conformance with the issued building permit and other applicable permits and conditions, even if such building, development, or structure does not comply with the provisions of the NCO-2 district. If the building, development, or structure is not commenced and completed within the time allowed under the original building permit and any authorized permit extension, the building, development, or structure may be constructed, completed, and occupied only if it complies with the regulations of the NCO-2 district.

3. Conflicting Regulations

All applicable regulations of the underlying base zoning district apply to property in the NCO-2 district unless otherwise expressly stated in the NCO-2 district regulations. For properties with approved development plans, the approved development plan and development standards apply.

4. Nonconformities

Nonconformities that exist within the NCO-2 district are governed by the regulations of Chapter 80.

20.110-B Lot and Building Regulations

General exceptions to these regulations and rules for measuring compliance may be found in Chapter 90.

1. Maximum Building Height

The maximum allowable building height is limited to 30 feet and no more than two stories.

2. Maximum Building Width

The maximum allowable building width is 40 feet. For the purposes of this section, building width shall be measured from the exterior wall closest to the side setback to the exterior wall closest to the opposite side setback, parallel to the street setback. For corner lots, building width is measured parallel to the street setback not designated as the side street setback.

3. Maximum Driveway Width

Driveways serving residential buildings may not exceed 12 feet in width within the right-of-way and within the street setback, including the combined width of all driveways.

4. **Garage Setbacks**
   Street-facing garage doors must be set back at least 18 feet behind the front façade of the principal residential building. On corner lots, the side street setback is reduced to 20 feet.

5. **Minimum Roof Pitch**
   Buildings, excluding porches, must have a minimum roof pitch of 12 inches of vertical lift per every 12 inches of horizontal distance, unless a lower pitch is approved in accordance with the special exception procedures of Section 70.120.

6. **Front Porch or Stoop Requirement**
   Principal buildings in the NCO-2 district must have a porch or stoop located on the front street-facing side of the building. For the purposes of this section, a front porch is defined as a covered structure that extends from a building's entrance a minimum of 5 feet, and a stoop is defined as a raised, flat landing in front of a house door, with steps leading up to it.

7. **Required Building Orientation**
   The primary building entrances must be entered through the required porch or stoop. In the case of principal buildings on corner lots, the primary entrance must be located on the street for which they have the least amount of frontage.

8. **Building Setbacks**
   At least 50% of the front street-facing building façade must be located within 35 feet of the front property line. No part of the building may be located closer than 25 feet from the front property line.

20.110-C Accessory Building Regulations

In the Neighborhood Character Overlay 2, the supplemental regulations of this section apply to all detached accessory buildings, including accessory dwelling units (ADUs) established in conjunction with household living uses.

1. **Accessory Dwelling Units**
   Accessory Dwelling Units (ADUs), as defined in Section 45.031, are permitted by right.

2. **Accessory Building Coverage of Rear Setback**
   The maximum allowable coverage of the rear setback by accessory buildings is 50%.

Chapter 25 | Special Districts

Section 25.010 General 25-1
Section 25.020 AG, Agricultural District and AG-R, Agricultural-Residential District 25-1
Section 25.030 PK, Parking District 25-4
Section 25.040 CO, Corridor District 25-6
Section 25.050 SR, Scientific Research District 25-10
Section 25.060 IMX, Institutional Mixed-Use 25-12
Section 25.070 MPD, Master Planned Development District 25-21

Section 25.010 General

25.010-A Purpose

Like overlay zoning districts, special purpose zoning districts are tools for dealing with unique neighborhoods or settings or accomplishing special planning and zoning goals. Unlike overlay districts, however, special districts are base zoning classifications; they do not "over-lay" other base zoning districts.

25.010-B Establishment

Except as otherwise expressly stated, special districts may be established, amended, or removed only in accordance with the zoning map amendment procedures of Section 70.030.

Section 25.020 AG, Agricultural District and AG-R, Agricultural-Residential District

25.020-A Purposes

1. The AG, Agricultural district is primarily intended to accommodate agricultural, mining or mineral processing uses in rural areas. The district also allows very low-density residential and other uses and serves as a holding zone pending an orderly transition to more urban development that can be efficiently served by public facilities and services.
2. The AG-R, Agricultural-Residential district is primarily intended for areas of the city that are generally located on the outer edge of urbanized development. The district is designed to acknowledge the desire for lower-density residential development with larger lot sizes. While land use regulations and lot and building standards are primarily geared towards residential uses, some agricultural uses could also be permitted.

25.020-B Use Regulations

1. Uses are allowed in AG and AG-R districts in accordance with Table 25-1. These uses are described in Chapter 35. Uses identified with a "P" are permitted as-of-right. Uses identified with an "S" may be allowed only if reviewed and approved in accordance with the special exception procedures of Section 70.120. All allowed uses are subject to compliance with all other applicable regulations of this zoning code.

2. Uses identified with an "–" are expressly prohibited. Uses that are not listed in the table and that cannot be reasonably interpreted (as stated in 35.020-E) to fall within any defined use category are also prohibited.

Table 25-1: AG District Use Regulations

USE CATEGORY **Subcategory** (Section 35.020) Specific use	AG	AG-R	Supplemental Regulations
RESIDENTIAL			
Household Living (if in allowed Building type indicated in Table 25-1.5)			
Single household	P	P	
Group Living			Section 40.160
Community group home	S	S	Section 40.100
Convent/monastery/novitiate	S	S	
PUBLIC, CIVIC AND INSTITUTIONAL			
Airport	S	S	
Cemetery	S	S	Section 40.150
College	S	S	Section 40.070
Day Care			
Family Child Care Home established on or before Nov. 15, 2023 [3]	P	P	Section 40.120
Family Child Care Home established after Nov. 15, 2023	S	S	Section 40.120
Child Care Center	S	S	Section 40.120
Detention and Correctional Facility	S	S	Section 40.130
Fraternal Organization	S	S	Section 40.140
Governmental Service or Similar Functions	S	S	
Hospital	S	S	Section 40.070
Library or Cultural Exhibit	S	S	Section 40.200
Natural Resource Preservation	P	P	
Parks and Recreation	S	S	
Postal Service	S	S	
Religious Assembly	S	S	Section 40.320
School			
Established on or before Jan. 1, 1998	P	P	Section 40.350
Others	S	S	Section 40.350
Utilities and Public Service Facility			
Minor	P	P	
Major	S	S	
Wireless Communication Facility			
Freestanding tower	S	S	Section 40.420
Building or tower-mounted antenna	P	P	Section 40.420
COMMERCIAL			
Assembly and Entertainment			Section 40.040
Indoor gun club	S	-	
Outdoor gun club	S	-	
Stable or riding academy	P	-	
Other indoor assembly and entertainment	S	-	
Other outdoor assembly and entertainment	S	-	

USE CATEGORY **Subcategory** (Section 35.020) Specific use	AG	AG-R	Supplemental Regulations
Farmers Market	S	S	Section 40.430
Funeral and Mortuary Service			Section 40.150
Crematory	S	-	
Lodging			
Bed & breakfast	S	S	Section 40.060
Rural retreat	S	-	
Short-term rental	P	P	Section 40.375
Marina	S	-	
INDUSTRIAL			Section 40.180
Mining or Mineral Processing	S	-	Section 40.230
AGRICULTURAL			
Animal Husbandry [1]	P	-	
Community Garden	P	P	Section 40.090
Farm, Market- or Community-supported [2]	P	S	Section 40.090
Horticulture Nursery	P	-	Section 40.225
OTHER			
Oil or Gas Well	S	S	Section 40.270

3. Table Notes

[1] See Title 2, Chapter 2 of the Tulsa Revised Ordinances

[2] A Farm, Market- or Community-supported, may only be allowed in an AG-R district where the land area of a single parcel is greater than 2 acres.

[3] Only family child care homes that were operating as a principal-use family child care home under a valid license issued from the State of Oklahoma on or before November 15, 2023, and have been issued a certificate of occupancy for a family child care home by December 31, 2025, may be considered established for the purposes of this provision. Said license may be for a Family Child Care Home or Large Family Child Care Home as permitted by the State of Oklahoma, provided that the child care home has a licensed capacity of no greater than 12 children. At the time the license expires, is revoked by the State of Oklahoma, is transferred to another entity, or the child care home ceases operation for longer than 6 months, the property will lose its status as established and the family child care home will require a Special Exception.

25.020-C Residential Building Types

Residential uses allowed in AG and AG-R districts must be located in residential buildings. Descriptions of the residential building types and references to applicable regulations are found in Section 35.010. The following residential building types are allowed in AG and AG-R districts.

Table 25-1.5: AG District Building Type Regulations for Household Living

USE CATEGORY Subcategory (Section 35.020) Specific use Building Type	AG	AG-R	Supplemental Use Regulations
RESIDENTIAL			
Household Living			
Single household			
Detached house	P	P	
Manufactured housing unit	S	S	Section 40.210

P= Permitted; S=Special Exception Approval Required; – = Prohibited

25.020-D Lot and Building Regulations

The lot and building regulations of Table 25-2 apply to all principal uses and structures in AG and AG-R districts, except as otherwise expressly stated in this zoning code. General exceptions to lot and building regulations and rules for measuring compliance can be found in Chapter 90. Additional regulations governing accessory uses and structures can be found in Chapter 45.

Table 25-2: AG District Lot and Building Regulations

Regulations	AG	AG-R
Min. Lot Area	2 acres	1 acre
Min. Lot Area per Unit	2 acres	1 acre
Minimum Lot Width (feet)	200	150
Min. Street Frontage (feet)	30	30
Min. Building Setbacks (feet)		
Street	25	25
Side (one side/other side)	10/5	15
Rear	40	25
Max. Building Height (feet)	–	35

Section 25.030 PK, Parking District

25.030-A Purpose

The PK, Parking district is primarily intended to accommodate off-street parking areas bordering nonresidential zoning districts, while protecting nearby residential areas from adverse impacts associated with spillover parking into residential neighborhoods.

25.030-B Use Regulations

Parking lots, including parking structures, are the only uses permitted in the PK district. Such parking lots may be used for off-site accessory parking or for non-accessory parking.

25.030-C Lot and Building Regulations

1. Table of Regulations

The lot and building regulations of Table 25-3 apply to all principal uses and structures in PK districts, except as otherwise expressly stated in this zoning code. General exceptions to lot and building regulations and rules for measuring compliance can be found in Chapter 90. Additional regulations governing accessory uses and structures can be found in Chapter 45.

Table 25-3: PK District Lot and Building Regulations

Regulations	PK
Minimum Street Frontage (feet)	20
Min. Building Setbacks (feet)	
Street	10[1]
From abutting RE, RS, RD, AG-R district	10[2]
Max. Lot Coverage by Buildings and Parking Surface Area (%)	90
Maximum Building Height (feet)	35[3]

2. Table Notes

The following notes refer to the bracketed numbers (e.g.," [1]") in Table 25-3:

[1] No part of any parking space, drive aisle or fence or wall that is over 4 feet in height may be located closer to a minor street right-of-way line than any residential building occupying an abutting lot with frontage on the same minor street as the parking lot (see Figure 25-1 and Figure 25-2).

Figure 25-1: Parking Setback from Street on Lots Abutting Residential Buildings

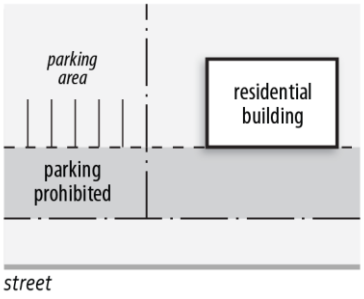
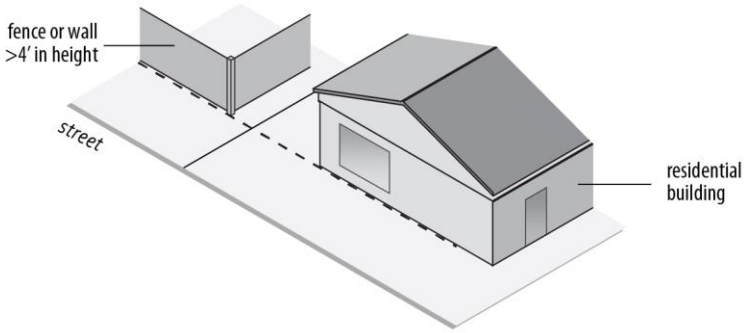


Figure 25-2: Fence Setback from Street Abutting Residential Building



[2] When a PK district abuts an R or AG-R district, a masonry screening wall must be provided along the common lot line in accordance with the F1 screening fence or wall standards of §65.070-C.

[3] Buildings in the PK district may not exceed 35 feet in height, unless reviewed and approved in accordance with the special exception procedures of Section 70.120.

Section 25.040 CO, Corridor District

25.040-A Purpose

The CO, Corridor district is established to allow and encourage high-intensity, multi-use development, in compliance with an approved development plan, in order to:

1. Accommodate intensive uses and development near high-capacity thoroughfares;
2. Allow for a wide range of lifestyles and housing types close to employment, recreational, shopping, and cultural facilities;
3. Maximize the interrelationship between land use and transportation and in particular encourage development patterns compatible with the evolution of transit;
4. Provide direct, safe and convenient non-motorized travel routes within the boundaries of the development site, as well as connections to abutting properties;
5. Maximize use of higher capacity segments within the city's overall transportation network;
6. Accommodate a more productive use of land consistent with the public objectives and standards of accessibility and land use compatibility; and
7. Maintain the traffic carrying capacity of the city's transportation network by encouraging access from internal streets or private drives.

25.040-B Use Regulations

1. Uses identified with a "P*" in Table 25-4 may be approved in CO districts at the time of development plan approval. Only uses approved through the development plan approval process of Section 70.040 are allowed. Allowed uses are subject to compliance with all other applicable regulations of this zoning code.
2. Uses identified with an "–" are expressly prohibited. Uses that are not listed in the table and that cannot be reasonably interpreted (as stated in 35.020-E) to fall within any defined use category are also prohibited.

Table 25-4: CO District Use Regulations

USE CATEGORY **Subcategory (Section 35.020)** Specific use	CO	Supplemental Regulations
RESIDENTIAL		
Household Living (if in allowed building type indicated in 25-4.5)		
Single household	P*	
Two households on single lot	P*	
Three or more households on single lot	P*	
Group Living	P*	Section 40.160
PUBLIC, CIVIC, AND INSTITUTIONAL		
Airport	P*	
Cemetery	P*	Section 40.150

USE CATEGORY **Subcategory** (Section 35.020) Specific use	CO	Supplemental Regulations
College or University	P*	Section 40.070
Day Care		Section 40.120
Family Child Care Home	P*	Section 40.120
Child Care Center	P*	Section 40.120
Detention and Correctional Facility	P*	Section 40.130
Fraternal Organization	P*	
Governmental Service or Similar Functions	P*	
Hospital	P*	Section 40.070
Library or Cultural Exhibit	P*	
Natural Resource Preservation	P*	
Parks and Recreation	P*	
Postal Services	P*	
Religious Assembly	P*	Section 40.320
Safety Service	P*	
School	P*	
Utilities and Public Service Facility (Major or Minor)	P*	
Wireless Communication Facility	P*	
COMMERCIAL		
Animal service	P*	Section 40.020
Assembly and Entertainment	P*	Section 40.040
Broadcast or Recording Studio	P*	
Commercial Service	P*	Section 40.080
Research Service	P*	Section 40.225
Farmers Market	P*	Section 40.430
Financial Services	P*	
Funeral or Mortuary Service	P*	
Lodging	P*	Section 40.170
Marina	P*	
Office	P*	Section 40.260
Parking, Non-accessory	P*	
Restaurants and Bars	P*	
Restaurant	P*	Section 40.330
Bar	P*	Section 40.050
Retail Sales	P*	Section 40.340
Medical Marijuana Dispensary	P*	Section 40.225
Self-service Storage Facility	P*	Section 40.360
Sexually Oriented Business Establishment	P*	Section 40.370
Studio, Artist or Instructional Service	P*	Section 40.380
Trade School	P*	
Vehicle Sales and Service	P*	Section 40.400
WHOLESALE, DISTRIB. & STORAGE		**Section 40.410**
Equip. & Materials Storage, Outdoor	P*	
Trucking and Transportation Terminal	P*	
Warehouse	P*	
Wholesale Sales and Distribution	P*	
INDUSTRIAL		**Section 40.180**
Low-impact Manufacturing & Industry	P*	
Mining or Mineral Processing	–	
RECYCLING		**Section 40.310**
Consumer Material Drop-off Station	P*	

USE CATEGORY **Subcategory (Section 35.020)** Specific use	CO	Supplemental Regulations
AGRICULTURAL		
Community Garden	P*	Section 40.090
Farm, Market- or Community-supported	P*	
OTHER		
Drive-in or Drive-through Facility (as a component of an allowed use)	P*	
Oil or Gas Well	P*/S	Section 40.270
Off-Premise Outdoor Advertising Sign [1]	P*	

[1] Allowed only when located within freeway sign corridors. See Chapter 60 for other supplemental regulations that apply to off-premise outdoor advertising signs.

25.040-C Residential Building Types

Residential uses allowed in CO districts must be located in residential buildings. Descriptions of the residential building types and references to applicable regulations are found in Section 35.010. The following residential building types are allowed in CO districts.

Table 25-4.5: CO District Building Type Regulations for Household Living

USE CATEGORY **Subcategory (Section 35.020)** Specific use	CO	Supplemental Regulations
RESIDENTIAL		
Household Living		
Single household	P*	
Detached house	P*	
Patio House	P*	
Townhouse	P*	
2-unit townhouse	P*	
3+-unit townhouse	P*	
Manufactured housing unit	P*	
Manufactured housing subdivision	P*	
Mobile home	P*	
Mixed-use building	P*	
Vertical mixed-use building	P*	
Two households on single lot	P*	
Duplex	P*	
Mixed-use building	P*	
Vertical mixed-use building	P*	
Three or more households on single lot	P*	
Cottage house development	P*	
Multi-unit house	P*	
Apartment/Condo	P*	
Mobile home park	P*	
Mixed-use building	P*	
Vertical mixed-use building	P*	

*P= if allowed in approved development plan

25.040-D Lot and Building Regulations

The lot and building regulations that apply within a CO zoning district must be established at the time of development plan approval by the city council.

25.040-E Special Procedures Applicable to Corridor (CO) District Rezonings and Developments

1. Overview of Required Approval Process

a. A property owner request for rezoning to the CO zoning district requires review and approval of a zoning map amendment (see Section 70.030) and a development plan (see Section 70.040) for the subject property.

b. The planning commission is authorized to recommend and the city council is authorized to approve modifications and adjustments to otherwise applicable parking, sign, landscaping, screening and outdoor lighting regulations concurrently with development plan approval.

c. After approval of the zoning map amendment and development plan, site plan review and approval is required in accordance with the procedures of Section 70.050.

d. No building permit may be issued and no building or development may occur in a CO zoning district until a zoning clearance permit has been issued in accordance with Section 70.080.

2. Supplemental Review and Approval Criteria

In making recommendations and decisions on CO district zoning map amendments and development plans, review and decision-making bodies must consider the zoning map amendment criteria of 70.030-H and the following factors:

a. Whether the proposed corridor development will be compatible with the existing and expected development of surrounding areas;

b. Whether the proposed corridor development is a unified treatment of the development possibilities of the project site;

c. Whether provision has been made for proper access, circulation, and functional relationships of uses; and

d. Whether the proposed corridor development is consistent with the stated purposes of this zoning code.

3. Restrictive Covenants

No building permit may be issued, and no building or development may occur in a CO zoning district until covenants necessary to reasonably ensure continued compliance with the approved development plan are recorded in the county clerk's office. Such covenants may be established in a subdivision plat or in a separately recorded legal instrument. In order that the public interest may be protected, the City of Tulsa must be made beneficiary of the covenants pertaining to such matters as location of uses, height of structures, setbacks, screening, and access. Such covenants must provide that the City of Tulsa may enforce compliance of the covenants, and further provide that

amendment of the covenants requires planning commission approval and the filing of record of a written amendment to covenants, endorsed by the planning commission.

4. **Issuance of Building Permits**
Building permits may be issued only after a zoning clearance permit has been issued in accordance with Section 70.080 and covenants have been recorded in accordance with 25.040-E3. Any permits issued must be in accordance with the approved development plan.

5. **Amendments**
The planning commission is authorized to approve minor amendments to an approved development plan as long as substantial compliance is maintained with the approved development plan. Major amendments must be processed as new development plans. See 70.040-I.

6. **Abandonment of Approved Plans**
Abandonment of an approved development plan requires review and recommendation by the planning commission and approval by the city council. Upon final action by the city council authorizing abandonment of the development plan, no building permits may be issued until a subsequent development plan has been approved and a zoning clearance permit has been issued or until the property has been rezoned to another zoning district and permits sought in accordance with the regulations applicable to the subject district.

Section 25.050 SR, Scientific Research District

25.050-A Purpose

The SR, Scientific Research district is intended to accommodate and promote modern, scientific research facilities and institutions.

25.050-B Use Regulations

1. Principal uses are allowed in SR districts in accordance with Table 25-5. These uses are described in Chapter 35. Uses identified with a "P" are permitted as-of-right. Uses identified with an "S" may be allowed if reviewed and approved in accordance with the special exception procedures of Section 70.120. All allowed uses are subject to compliance with all other applicable regulations of this zoning code.

2. Uses identified with an "–" are expressly prohibited. Uses that are not listed in the table and that cannot be reasonably interpreted (as stated in 35.020-E) to fall within any defined use category are also prohibited.

Table 25-5: SR District Use Regulations

USE CATEGORY **Subcategory (Section 35.020)** Specific use	SR	Supplemental Regulations
RESIDENTIAL		
Group Living		Section 40.160
Homeless center	S	Section 40.130

USE CATEGORY **Subcategory (Section 35.020)** Specific use	SR	Supplemental Regulations
Life care retirement center	S	
Re-entry facility	S	
Residential treatment center	S	Section 40.130
Shelter, emergency and protective	S	Section 40.130
Transitional living center	S	Section 40.130
PUBLIC, CIVIC AND INSTITUTIONAL		
Airport	S	
Cemetery	S	Section 40.150
College or University	S	Section 40.070
Day Care	S	Section 40.120
Family Child Care Home	S	Section 40.120
Child Care Center	S	Section 40.120
Detention and Correctional Facility	S	Section 40.130
Fraternal Organization	S	
Governmental Service or Similar Functions	S	
Hospital	S	Section 40.070
Library or Cultural Exhibit	S	
Natural Resource Preservation	P	
Parks and Recreation	S	
Postal Services	S	
Religious Assembly	S	
Safety Service	P	
School		Section 40.350
Established on or before Jan. 1, 1998	P	
Others	S	Section 40.350
Utilities and Public Service Facility		
Minor	P	
Major	S	
Wireless Communication Facility		Section 40.420
Freestanding tower	P	
Building or tower-mounted antenna	P	
COMMERCIAL		
Assembly and Entertainment		Section 40.040
Indoor gun club	S	
Other indoor	–	
Outdoor gun club	S	
Other outdoor	–	
Broadcast or Recording Studio	P	
Commercial Service		Section 40.080
Research service	P	Section 40.225
Farmers Market	P	Section 40.430
Financial Services (except as below)	P	
Personal credit establishment	–	Section 40.300
Funeral or Mortuary Service	P	Section 40.150
Lodging		
Bed & breakfast	S	Section 40.060
Campgrounds and RV parks	–	
Hotel/motel	–	Section 40.170
Marina	S	
Office		Section 40.260

USE CATEGORY **Subcategory (Section 35.020)** Specific use	SR	Supplemental Regulations
Business or professional office	P	
Medical, dental or health practitioner office	P	Section 40.260
Plasma center	–	Section 40.300
Parking, Non-accessory	P	
AGRICULTURAL		
Community Garden	P	Section 40.090
OTHER		
Drive-in or Drive-through Facility (as a component of an allowed use)	–	
Oil or Gas Well	S	Section 40.270

25.050-C Lot and Building Regulations

The lot and building regulations of Table 25-6 apply to all principal uses and structures in SR districts, except as otherwise expressly stated in this zoning code. General exceptions to lot and building regulations and rules for measuring compliance can be found in Chapter 90. Additional regulations governing accessory uses and structures can be found in Chapter 45.

Table 25-6: SR District Lot and Building Regulations

Regulations	SR
Minimum Lot Area (sq. ft.)	–
Minimum Street Frontage (feet)	200
Maximum Floor Area Ratio (FAR)	0.50
Minimum Lot Area per Unit (sq. ft.)	–
Minimum Building Setbacks (feet)	
Street	50
From AG, AG-R or R district	50[1][2]
From O district	50[1][2]

[1] When abutting RE- or RS-zoned lot, 2 feet of additional building setback required for each one foot of building height above 35 feet.

[2] Minimum building setback abutting freeway right-of-way that is zoned AG, AG-R, R or O is 10 feet.

25.050-D Supplemental Regulations

In the SR district, all research service uses must be conducted within a completely enclosed building.

Section 25.060 IMX, Institutional Mixed-Use

25.060-A General

1. Purposes

The Institutional Mixed-Use (IMX) district is designed to:

a. Achieve the economic objectives of the comprehensive plan by encouraging sustainable growth of regional job centers anchored by institutions.

b. Meet the need for medical and educational services in the metropolitan area and trade area.

c. Provide an environment conducive to the development and conservation of medical and educational institutions.

d. Permit the establishment of uses which are customarily located in proximity to such institutions.

e. Accommodate a mix of uses and encourage a compatible relationship with adjoining land uses and thoroughfares by:

(1) Establishing lot and building regulations, including transitional height regulations, which help to ensure compatibility among areas with different uses and development intensities;

(2) Requiring off-street parking and loading facilities to mitigate vehicular impacts in surrounding residential areas;

(3) Controlling the number, size, height, sign area, location and types of signs; and

(4) Preserving, enhancing and creating open space.

2. Zoning Criteria

a. Properties proposed for IMX zoning must include one or more hospitals, colleges, or universities.

b. The minimum contiguous land area required for an IMX district is 5 acres, provided that properties of less than 5 acres in area that are contiguous with existing IMX-zoned areas or that are separated from existing IMX-zoned areas only by a non-arterial street, alley, or railroad right-of-way, may be approved for IMX zoning.

25.060-B Use Regulations

1. Principal uses are allowed in IMX districts in accordance with Table 25-7. These uses are described in Chapter 35. Uses identified with a "P" are permitted as-of-right. Uses identified with an "S" may be allowed only if reviewed and approved in accordance with the special exception procedures of Section 70.120. All allowed uses are subject to compliance with all other applicable regulations of this zoning code.

2. Uses identified with an "–" are expressly prohibited. Uses that are not listed in the table and that cannot be reasonably interpreted (as stated in 35.020-E) to fall within any defined use category are also prohibited.

Table 25-7: IMX District Use Regulations

USE CATEGORY **Subcategory** (Section 35.020) Specific use	IMX	Supplemental Regulations
RESIDENTIAL		
Household Living (if in allowed building type indicated in Table 25.7-5)		
Single household	P	
Two households on single lot	P	
Three or more households on single lot	P	
Group Living		Section 40.160

USE CATEGORY **Subcategory** (Section 35.020) Specific use	IMX	Supplemental Regulations
Assisted living facility	P	
Community group home	P	Section 40.100
Convent/monastery/novitiate	P	
Elderly/retirement center	P	
Fraternity/Sorority	P	
Homeless center	S	Section 40.130
Life care retirement center	P	
Re-entry facility	S	
Residential treatment center	S	Section 40.130
Rooming/boarding house	P	
Shelter, emergency and protective	S	Section 40.130
Transitional living center	S	Section 40.130
PUBLIC, CIVIC AND INSTITUTIONAL		
Airport	S	
Cemetery	S	Section 40.150
College or University	P	Section 40.070
Day Care		
Family Child Care Center	P	Section 40.120
Child Care Center	P	Section 40.120
Detention and Correctional Facility	S	Section 40.130
Fraternal Organization	S	
Governmental Service or Similar Functions	S	
Hospital	P	Section 40.070
Library or Cultural Exhibit	P	
Natural Resource Preservation	P	
Parks and Recreation	P	
Postal Services	S	
Religious Assembly	P	
Safety Service	P	
School	P	Section 40.350
Utilities and Public Service Facility		
Minor	P	
Major	S	
Wireless Communication Facility		
Freestanding tower	P	Section 40.420
Building or tower-mounted antenna	P	Section 40.420
COMMERCIAL		
Animal service		Section 40.020
Grooming	P	
Veterinary	P	
Assembly and Entertainment		Section 40.040
Indoor	P[1]	
Broadcast or Recording Studio	P	
Commercial Service		Section 40.080
Building service	S[2]	
Business support service	P	Section 40.300
Consumer maintenance/repair service	P	
Personal improvement service	P	
Research service	P	Section 40.225
Farmers Market	P	Section 40.430
Financial Services (except as below)	P	

USE CATEGORY **Subcategory** (Section 35.020) Specific use	IMX	Supplemental Regulations
Personal credit establishment	S[2]	Section 40.300
Funeral or Mortuary Service	P	Section 40.150
Lodging		
Bed & breakfast	S	Section 40.060
Hotel/motel	S[2]	Section 40.170
Marina	S	
Office		Section 40.260
Business or professional office	P	
Medical, dental or health practitioner office	P	
Plasma center	P	Section 40.300
Parking, Non-accessory	P[3]	
Restaurants and Bars		
Restaurant	P	Section 40.330
Bar (except as below)	P[1]	Section 40.050
Brewpub	S	Section 40.050
Retail Sales		Section 40.340
Building supplies and equipment	S[2]	
Consumer shopping goods	P[4]	
Convenience goods	P	Section 40.300
Grocery Store	p	
Small Box Discount Store	P[5]	
Medical Marijuana Dispensary	P	Section 40.225
Studio, Artist or Instructional Service	P	Section 40.380
Trade School	S[2]	
Vehicle Sales and Service		
Fueling station	P	
Vehicle part and supply sales	P	
AGRICULTURAL		
Community Garden	P	Section 40.090
OTHER		
Oil or Gas Well	S	Section 40.270

3. Table Notes

The following notes refer to the bracketed numbers (e.g.," [1]") in Table 25-7.

[1] Requires special exception approval if alcoholic beverages are sold or served and the subject lot is located within 150 feet of any residential zoning district other than R-zoned street right-of-way.

[2] Vehicular and pedestrian circulation must be reviewed and approved by traffic engineering, including the location of ingress and egress points.

[3] No surface parking lot, whether a principal use or accessory use, is permitted within 100 feet of any HP district.

[4] Package stores require special exception approval, and vehicular and pedestrian circulation must be reviewed and approved by traffic engineering, including the location of ingress and egress points.

[5] When located in the Healthy Neighborhoods Overlay (HNO) district, the use is regulated as stated in Section 20.060-C.

4. Accessory Uses

a. Accessory uses are not regulated by Table 25-7. Customary accessory uses are allowed in conjunction with principal uses permitted by right or by special exception, subject to compliance with all applicable accessory use regulations of Chapter 45. The following are expressly allowed as accessory uses in the IMX district:

(1) Heliport

(2) Loading Dock and Storage Facilities

(3) Repair and Service Facilities, including Vehicle Repair

(4) Laundry Facilities

(5) Parking, provided that no surface parking is permitted within 100 feet of HP district.

(6) Physical Plant

(7) Disaster Shelters

(8) Antennas and Supporting Structures

(9) Signs, in accordance with Chapter 60.

b. All accessory buildings must comply with minimum building setback requirements.

c. An accessory building erected as an integral part of the principal building must be made structurally a part of the principal building, have a common wall with the principal building, and comply with the requirements applicable to the principal building.

25.060-C Residential Building Types

Residential uses allowed in IMX districts must be located in residential buildings. Descriptions of the residential building types and references to applicable regulations are found in Section 35.010. The following residential building types are allowed in IMX districts.

Table 25-7.5: IMX District Building Type Regulations for Household Living

USE CATEGORY **Subcategory** (Section 35.020) Specific use Building Type	**IMX**	**Supplemental Regulations**
RESIDENTIAL		
Household Living		
Single household		
Detached house	P	
Townhouse	P	Section 40.390
Two households on single lot		
Duplex	P	
Three or more households on single lot		
Multi-unit house	P	Section 40.250
Apartment/Condo	P	Section 40.030

USE CATEGORY **Subcategory** (Section 35.020) Specific use Building Type	IMX	Supplemental Regulations

P= Permitted; S=Special Exception Approval Required; – = Prohibited

25.060-D Lot and Building Regulations

1. Table of Regulations

The lot and building regulations of Table 25-8 apply to all new construction and building additions in IMX districts. General exceptions to lot and building regulations and rules for measuring compliance can be found in Chapter 90. Existing buildings are exempt from compliance with build-to-zone (BTZ) and transparency regulations.

Table 25-8: IMX District Lot and Building Regulations

Regulation	IMX
Minimum District Area (acres)	5 acres (see 25.060-A2.b)
Minimum Lot Area (sq. ft.)	
Detached house	5,500
Duplex	6,900
Townhouse	1,600
Multi-unit house	7,500
Apartment/Condo	7,500
Other allowed uses/buildings	3,500
Minimum Street Frontage (feet)	
Arterial or freeway service road	50
All other streets	20
Minimum Building Setbacks (feet)	
Street	See "Build-to-Zone" Requirements
Side	–[1]
Rear	5[2]
Build-to-Zone (BTZ) (min./max. in feet) [4] (See also 25.060-H2)	
Arterial or freeway service road	10/20
All other streets	20/30
Minimum Percentage of Build-To Zone Occupied	
Arterial or freeway service road	70
All other streets	50
Minimum Parking Setback (feet)	30[3]
Street-facing Building Entrance Required	Yes[5]
Minimum Ground Floor Transparency (%)[6]	
Arterial or freeway service road	50
All other streets	40
Maximum Building Height (feet)	See 25.060-E

2. Table Notes

The following notes refer to the bracketed numbers (e.g.," [1]") in Table 25-8.

[1] A minimum side setback of 10 feet is required on lots abutting an R district, an HP district, or a lot occupied by a detached house, duplex or townhouse without an intervening right-of-way. Required side setbacks may not be used for parking, paving, loading, servicing or any other activity, and must comply with the L1 landscape yard requirements of 25.060-H1.

[2] A minimum rear setback of 20 feet is required on lots abutting an R district, an HP district, or a lot occupied by a detached house, duplex or townhouse without an intervening right-of-way. Required rear setbacks may not be used for parking, paving, loading, servicing or any other activity, and must comply with the L1 landscape yard requirements of 25.060-H1.

[3] A minimum 10-foot deep buffer yard that complies with the L1 landscape yard requirements of 25.060-H1 must be provided to separate parking from the sidewalk, except no buffer yard is required where the ground-floor level of a parking garage or structure is masked by a liner building.

[4] In all cases, a minimum setback distance of 12 feet is required between the edge of curb and the face of the building.

[5] A functional building entrance door is required on each street-facing façade, and each dwelling unit on the ground-floor level shall have a functional building entrance facing the street. The length of street-facing facade without an intervening entrance may not exceed 150 feet. An angled or curved entrance may be provided at either corner of a building along the street to meet the street-facing entrance requirements along both streets. On corner lots, the street-facing entrance requirement does not apply along the side street.

[6] In the IMX district, the transparency of a ground floor facade is measured between 3 and 8 feet above the adjacent curb.

25.060-E Height Regulations

No maximum height limits apply in the IMX district except in the following cases:

1. When an IMX district abuts an HP district with an intervening right-of-way that is not an alley, a maximum height limit of 35 feet applies within 100 feet of the right-of-way centerline.
2. When an IMX district abuts an R or AG-R district with an intervening right-of-way that is not an alley, a maximum height limit of 48 feet applies within 100 feet of the right-of-way centerline.
3. When an IMX district abuts an R, AG-R, or an HP district with an intervening alley, a maximum height limit of 24 feet applies within 40 feet of the alley centerline and a maximum height limit of 48 feet applies at a distance between 40 feet and 90 feet of the alley centerline.
4. When an IMX district abuts an R, AG-R, or an HP district without an intervening right-of-way, a maximum height limit of 24 feet applies within 50 feet of the lot boundary and a maximum height limit of 48 feet applies at a distance between 50 and 100 feet of the lot boundary
5. A maximum height limit of 96 feet applies for a distance of 100 feet from the 48-foot feet maximum height limit zone where the IMX district abuts an HP district.

25.060-F Structured Parking Facilities

Parking structures must be designed to visually conceal parking at ground-floor level and the second floor level through the use of architectural detailing or liner buildings.

25.060-G Loading Areas and Dumpsters

1. Loading dock entrances must be screened from public view at ground level by masonry walls.
2. Dumpsters are subject to the regulations of Section 45.050, provided that dumpsters in the IMX district must be screened from public view at ground level by masonry walls.

25.060-H Landscaping and Screening

Landscaping and screening in the IMX district must meet or exceed the minimum regulations of this subsection and the minimum regulations of Section 65.050, Section 65.090 and Section 65.100. The other landscaping and screening regulations of Chapter 65 do not apply in the IMX district.

1. L1 Landscape Transition Yards

a. When Required

L1 landscape transition yards with a minimum depth of 10 feet are required in all of the following cases:

(1) When development occurs on a lot abutting an R, AG-R, or HP district, or a lot occupied by a detached house, duplex or townhouse without an intervening right-of-way;

(2) When off-street parking lots or structures are located adjacent to sidewalks or public rights-of-way, except that L1 landscape yards are not required when the ground-floor level of a parking garage or structure is masked by a liner building.

b. Trees

Trees must be provided in L1 landscape transition yards as follows:

(3) At least one medium or large tree must be provided per 25 linear feet of landscape transition yard.

(4) If medium or large trees are not appropriate due to overhead utilities or other obstructions one small tree must be provided per 20 linear feet of landscape yard.

(5) Trees must generally be evenly spaced.

(6) Medium and large trees must be a minimum of 2.5 inches in caliper size and at least 12 feet in height at time of planting. Small trees must be a minimum of 2 inches in caliper size and at least 8 feet in height at time of planting.

c. Understory plantings meeting the following requirements must be provided in all L1 landscape transition yards:

(1) Ground covers or shrubs must be provided at a size and density in order to protect tree roots and to prevent erosion within a 3-year growth cycle.

(2) Sod is not permitted in required L1 landscape transition yards.

(3) Where used to meet the landscape requirement, shrubs must be maintained at a minimum height of 3 feet and a maximum height of 8 feet with no more than 50% opacity.

d. Screening must be provided within L1 landscape transition yards as follows:

(1) Opaque walls or fences a minimum height of 6 feet must be provided if the L1 landscape transition yard is in a side or rear setback and must be maintained in good condition. Screening is not required if the subject lot is occupied by a detached house, duplex or townhouse.

(2) Opaque walls with a minimum height of 36 inches must be provided within 10 feet of a surface parking lot edge where surface parking is located within 100 feet of any IMX district boundary except when a building is located between the IMX district boundary and the surface parking lot. Walls must be maintained in good condition.

2. L2 Street Tree Yards

a. When required

L2 street tree yards with a minimum depth of 10 feet are required between the planned right-of-way and the closest edge of the build-to-zone within the lot, extending the full width of the lot.

b. Trees

Trees must be provided in L2 street tree yards as follows:

(1) At least one medium or large tree must be provided per 25 linear feet of street frontage.

(2) If medium or large trees are not appropriate due to overhead utilities or other obstructions one small tree must be provided per 20 linear feet of street frontage.

(3) Trees must generally be evenly spaced.

(4) Medium and large trees must be a minimum of 2.5 inches in caliper size and at least 12 feet in height at time of planting. Small trees must be a minimum of 2 inches in caliper size and at least 8 feet in height at time of planting.

25.060-I Walls and Fences

Except as otherwise provided in this zoning code, fences or walls within a street tree yard may not exceed 36 inches in height. Fences or walls in other locations may not exceed 8 feet in height.

25.060-J Mechanical Equipment

1. Mechanical equipment is not permitted between the building and the street.

2. An opaque wall or fence exceeding the height of the equipment is required if the equipment is visible from a public street or from adjacent properties at the level where such equipment is located.
3. Rain barrels, cisterns, and similar equipment designed as part of the building do not require screening.
4. Chiller plants and similar utility structures must be screened from public rights-of-way and abutting R- or AG-R-zoned lots, HP districts, and lots occupied by a detached houses, duplexes or townhouses. Required screening must consist of a masonry wall that is at least 6 feet in height. Trees must also be provided as required in L1 landscape transition yards (see b).

Section 25.070 MPD, Master Planned Development District

25.070-A Purpose and Intent

The MPD, Master Planned Development district is established to accommodate development that would be difficult or impossible to carry out under otherwise applicable zoning regulations. Different types of MPDs will promote different planning goals. In general, however, all MPDs are intended to result in development that is consistent with the city's adopted plans and that provides greater public benefits than could be achieved using conventional zoning regulations. MPDs are also generally intended to promote one or more of the following:

1. Variety in housing types and sizes to accommodate households of all ages, sizes, incomes and lifestyle choices;
2. Compact, mixed-use development patterns where residential, commercial, employment, civic, and open space areas are located in close proximity to one another;
3. A transportation network designed to accommodate safe and efficient motorized and non-motorized travel;
4. Direct, safe and convenient non-motorized travel routes within the boundaries of the development site, as well as connections to abutting properties;
5. Buildings and other improvements that by their arrangement, massing, design, character and site design elements establish a quality, livable environment;
6. Sustainable development practices;
7. Incorporation of open space amenities and natural resource features into the development design;
8. Low-impact development (LID) and best management practices for managing stormwater; and
9. Flexibility and creativity in responding to changing social, economic and market conditions.

25.070-B Initiation of Amendment

Applications to establish an MPD district or expand the boundaries of an existing MPD district may be initiated only by the owner of the subject property.

25.070-C Statement of Intent

Each MPD application must include a written explanation describing how the proposed development meets the purpose and intent described in 25.070-A and the supplemental review and approval criteria of 25.070-D2.

25.070-D MPD Approval Procedures

1. Overview of Required Approval Process

a. A property owner request for rezoning to the MPD zoning district requires review and approval of a zoning map amendment (see Section 70.030), which is processed concurrently with a development plan (see Section 70.040).

b. After approval of the zoning map amendment and development plan, site plan review and approval is required in accordance with the procedures of Section 70.050.

c. No building permit may be issued and no building or development may occur in a MPD zoning district until a zoning clearance permit has been issued in accordance with Section 70.080.

2. Supplemental Review and Approval Criteria

In making recommendations and decisions on MPD district zoning map amendments, review and decision-making bodies must consider the zoning map amendment criteria of 70.030-H and the following factors:

a. Whether the proposed master planned development is consistent with the comprehensive plan and any other adopted plans for the subject area;

b. Whether the development plan complies with the MPD district provisions of Section 25.070;

c. Whether the development will result in public benefits that are equal to or greater than those that would have resulted from development under conventional zoning (non-MPD) regulations; and

d. Whether appropriate terms and conditions have been imposed on the approval to protect the interests of surrounding property owners and residents, existing and future residents of the MPD and the general public.

3. Restrictive Covenants

No building permit may be issued, and no building or development may occur in an MPD district until covenants necessary to reasonably ensure continued compliance with the approved development plan are recorded in the county clerk's office. Such covenants may be established in a subdivision plat or in a separately recorded legal instrument. In order that the public interest may be protected, the City of Tulsa must be made beneficiary of the covenants pertaining to such matters as location of uses, height of structure, setbacks, screening, and access. Such covenants must provide that the City of Tulsa may enforce compliance of the covenants, and further provide that amendment of

the covenants requires planning commission approval and the filing of record of a written amendment to covenants, endorsed by the planning commission.

4. Issuance of Building Permits

Building permits may be issued only after a zoning clearance permit has been issued in accordance with Section 70.080 and covenants have been recorded in accordance with §25.070-D.3. Any permits issued must be in accordance with the approved development plan.

25.070-E Abandonment

Abandonment of an approved MPD requires that the property be rezoned to another zoning district in accordance with the zoning map amendment procedures of Section 70.030 or that a new MPD be approved following the procedures of 25.070-D.

25.070-F Use Regulations and Lot and Building Standards

The use regulations and lot and building standards that apply within an MPD zoning district must be established at the time of development plan approval by the city council.

25.070-G Other Development Standards

Unless otherwise expressly provided in the approved development plan, properties within the MPD district are subject to all other applicable provisions of this zoning code and the subdivision and development regulations. The MPD district is expressly intended to accommodate the use of alternative standards for streets and other public improvements based on the approved development plans. The development plan must specify the deviations proposed from otherwise applicable public improvement standards if deviations from otherwise applicable standards are proposed.

Chapter 30 | Legacy Districts

Section 30.010 PUD, Planned Unit Development (Legacy) District 30-1
Section 30.020 CDP, Community Development Projects 30-8

Section 30.010 PUD, Planned Unit Development (Legacy) District

30.010-A Legacy District Status

1. Land classified in a PUD overlay zoning district on the effective date specified in Section 1.030 will continue to be classified in the PUD overlay district.
2. No applications to establish new PUD zoning districts or to expand the boundaries of existing PUD zoning districts may be accepted for processing after the effective date specified in Section 1.030, except that PUD rezoning applications that were in process on the effective date specified in Section 1.030 may continue to be processed and may be approved (see the transitional provisions of Section 1.110). Amendments to existing PUDs may be processed in accordance with the PUD amendment procedures of 30.010-I.
3. The PUD zoning district regulations of this section and all applicable conditions of approval of an approved PUD govern the use and development of PUD-zoned areas unless and until the subject PUD is abandoned.

30.010-B General

1. Except as may be expressly approved as part of a PUD overlay district, the regulations of the underlying base zoning district effective at the time any new permit application is submitted shall apply within a planned unit development.
2. The city council in approving a major amendment to a PUD and the planning commission in approving a minor amendment, may impose restrictions as conditions of approval in addition to those imposed by the underlying base zoning and the PUD regulations.
3. No building permit may be issued, and no building or development may occur in a PUD zoning district until a zoning clearance permit has been issued in accordance with Section 70.080.

30.010-C Purposes

The purposes of the PUD overlay district are to:

1. Permit and encourage innovative land development while maintaining appropriate limitation on the character and intensity of use and assuring compatibility with adjoining and proximate properties;
2. Permit greater flexibility within the development to best utilize the unique physical features of the particular site;
3. Permit creative land use design;
4. Provide and preserve meaningful open space; and

5. Achieve a continuity of function and design within the development.

30.010-D Allowed Uses

1. Principal Uses

The development may consist of one or more of the uses permitted as of right or by special exception within the underlying base zoning districts, provided:

a. That if any part of the PUD is located within a residential district, the permitted building types may include:

(1) Detached house;

(2) Townhouse;

(3) Duplex; and

(4) Apartment/Condo;

b. That manufactured housing units are a permitted use only within PUDs that are located in whole or in part in an RMH district;

c. That the permitted uses, whether principal or accessory uses, may be reallocated within the development irrespective of the base zoning district boundaries; and

2. Accessory Uses

General

Accessory uses customarily incidental to principal uses allowed within the PUD are permitted.

Accessory Commercial

In addition to accessory uses customarily incidental to a permitted principal residential use, residential support services are allowed as an accessory use to a principal group living use and in apartment/condo buildings in accordance with Section 45.150. Office support services are allowed as an accessory use to a principal office use in accordance with Section 45.110.

3. Signs

Except for regulations governing dynamic displays, which must comply with all applicable provisions of Chapter 60, signs in a PUD, including outdoor advertising signs, must comply with all provisions of the PUD or if not provided for within the PUD, with all applicable provisions of the zoning code in effect at the time any new sign permit application is submitted.

30.010-E Bulk and Area Regulations

1. Intensity of Use

Intensity may be reallocated irrespective of the base zoning district boundaries.

Residential Intensity

(1) The residential intensity may not exceed a maximum number of dwelling units calculated as follows:

Maximum Number of Dwelling Units Allowed =
Gross area of property located within a residential district divided by (/) minimum land area per dwelling unit permitted in the underlying zoning district.

(2) The minimum land area per dwelling unit, for the purpose of the above described residential intensity calculation, must be based on the least restrictive minimum land area per dwelling unit permitted in the underlying zoning district. Each 600 square feet of a quasi-dwelling, such as a care home, constitutes a dwelling unit. If the PUD is located in 2 or more residential districts, the permitted density is the sum of the permitted dwelling units computed separately for the gross area within each district. For a PUD located entirely within a residential district, the gross area for the purposes of the above-described residential intensity calculation must be reduced by the area or areas designated for any principal use other than dwellings, quasi dwellings, residential open space and recreation areas.

(3) For the purpose of residential intensity calculations, "gross area" means the lot area plus 50% of the right-of-way width of any abutting street to which the lot has access.

Nonresidential Intensity

(4) Nonresidential intensity may not exceed a maximum permitted floor area calculated as follows:

Maximum Permitted Floor Area =
Gross area of property located within a nonresidential district multiplied (X) by the maximum floor area ratio permitted by right or by special exception within the underlying zoning district, except where a floor area ratio is not specified, a maximum floor area ratio of 0.75 applies.

(5) The intensity of use of a PUD located within 2 or more zoning districts of the following differing classifications must be separately calculated and allocated within the PUD by the respective classification:

(a) Residential;
(b) Office;
(c) Commercial; and
(d) Industrial.

(6) For the purpose of nonresidential intensity calculations, gross area means the lot area plus 50% of the right-of-way width of any abutting street to which the lot has access.

2. Lot Width, Frontage and Area

Minimum requirements for lot width, frontage and area must be prescribed.

3. Open Space

Open space for a residential development area must be provided in an aggregate amount of not less than the amount of open space required by the underlying base zoning district for conventional development of a comparable number of dwelling units. Required open space must be provided on the lot containing the dwelling unit or units on which computed, or in common areas. Common open space must be designed and located so as to be accessible to the dwelling units it is intended to serve. Provisions for the ownership and maintenance of common open space as will ensure its continuity, conservation and maintenance must be incorporated in the subdivision plat or in covenants recorded in the county clerk's office.

4. Building Height and Setbacks

The building height limitations and building setback requirements must be prescribed and incorporated within the subdivision plat or in a separately recorded legal instrument. Every structure must be set back from the centerline of an abutting public street designated on the major street and highway plan a horizontal distance of not less than 50% of the right-of-way width designated on the major street and highway plan.

5. Landscaped Area

Minimum landscaped open space is required for each type of nonresidential development area as follows:

a. Office use: 15% of lot area

b. Commercial use: 10% of lot area

c. Industrial use: 5% of lot area

30.010-F Perimeter Requirements

Perimeter requirements for screening, landscaping, and setbacks, as are necessary to ensure compatibility with adjoining and proximate properties, must be prescribed and be incorporated within the subdivision plat or in a separately recorded legal instrument.

30.010-G Off-Street Parking and Loading

No modification of applicable off-street parking and loading requirements is permitted unless a subdivision plat incorporating the provisions and requirements is submitted to and approved by the planning commission and the city council recorded in the county clerk's office or restrictive covenants are established in a separately recorded legal instrument, except that 55.070-B and 55.080-C do not apply. Required spaces may be provided on the lot containing the uses for which it is intended to serve or in common areas. Common parking areas must be designed and located so as to be accessible to the uses it is intended to serve. Provisions for the ownership and maintenance of common parking space must be incorporated in the subdivision plat or in a separately recorded legal instrument.

30.010-H Administration and Procedures

No applications to establish new PUD zoning districts or to expand the boundaries of existing PUD zoning districts may be accepted for processing after the effective date specified in Section 1.030, except that PUD rezoning applications that were in process on the effective date specified in Section 1.030 may continue to be processed and may be approved in accordance with the PUD procedures in effect immediately prior to the effective date specified in Section 1.030. Amendments to existing PUDs may processed in accordance with the PUD amendment procedures of 30.010-I.

30.010-I Amendments to Approved Plans

1. Major Amendments

Any change or amendment that represents a significant departure from an approved PUD development plan requires review and approval of a PUD zoning district map amendment and development plan, including all requirements for fees, notices and hearings.

2. Minor Amendments

a. The planning commission is authorized to approve minor changes and amendments to an approved PUD development plan as long as a substantial compliance is maintained with the approved PUD development plan.

b. In instances where the city council has expressly imposed a PUD condition more restrictive than originally recommended by the planning commission, any minor amendment of that specific condition must be approved by the city council.

c. The following may be processed as minor amendments:

(1) Adjustment of internal development area boundaries, provided the allocation of land to particular uses and the relationship of uses within the project are not substantially altered;

(2) Limitation or elimination of previously approved uses, provided the character of the development is not substantially altered;

(3) Increases in the number dwelling units, provided the approved number of dwelling units is permitted by the underlying zoning and the density of a development area is not increased more than 15%;

(4) Increases in permitted nonresidential floor area, provided the increased floor area is permitted by the underlying zoning and the floor area of a development area is not increased more than 15%;

(5) Modification of the internal circulation system, provided the system is not substantially altered in design, configuration or location;

(6) Changes in points of access, provided the traffic design and capacity are not substantially altered;

(7) Addition of customary accessory buildings and uses within the delineated common open space of a residential PUD, including swimming pools, cabanas, security buildings, clubhouses and tennis courts;

(8) Location of customary residential accessory buildings and uses on an adjoining single-family residential lot within the PUD, including swimming pools, cabanas, garages, and tennis courts, provided an agreement has been recorded by the owner prohibiting the conveyance of the lot containing the accessory use separate from the conveyance of the lot containing the principal use;

(9) Changes in structure heights, building setbacks, yards, driveway coverage measured by width, square footage or percentage of the yard, open spaces, building coverage and lot widths or frontages, provided the approved PUD development plan, the approved PUD standards and the character of the development are not substantially altered;

(10) Lot splits that have been reviewed and approved in accordance with, the subdivision and development regulations;

(11) Home occupations that comply with the regulations of Section 45.090;

(12) Modifications to approved signage, provided the size, location, number and character (type) of signs is not substantially altered;

(13) Modification to approved screening and landscaping plans, provided the modification is not a substantial deviation from the original approved plan;

(14) Changes reducing the number of permitted dwelling units; and

(15) Changes in an approved use to another use may be permitted, provided the underlying zoning on the particular site within the PUD would otherwise permit such use as of right and the proposed use will not result in any increase of incompatibility with the present and future use of nearby properties.

d. Notice of the planning commission's required public hearing on a minor PUD amendment request must be provided as follows:

(1) Notice must be mailed to all owners of property within 300 feet of the subject property at least 10 days before the scheduled public hearing.

(2) The provisions of 70.010-F apply to the required mailed notices.

e. If the planning commission determines that the proposed amendment, if approved, will result in a significant departure from the approved PUD development plan or otherwise change the character of the PUD significantly or that the cumulative effect of a number of minor

amendments substantially alters the approved PUD development plan, then the amendment must be deemed a major amendment to the PUD development plan.

3. Appeal of Minor Amendment

An appeal from any minor PUD amendment decision by the planning commission may be taken by any person aggrieved, or any taxpayer or any officer, department, board or bureau of the city. Appeals are made to the city council by filing notice of appeal with the city clerk and with the recording secretary of the planning commission within 10 days of the date of the decision being appealed. The appeal must specify the grounds of the appeal. No bond or deposit for costs are required for an appeal. Upon filing of the notice of appeal, the planning commission must transmit to the city council, the original or certified copies of all the papers constituting the record in the case, together with the decision of the planning commission. The city council must notify the applicant and all interested parties, as recorded in the minutes of planning commission, of the appeal hearing location, date and time.

30.010-J Restrictive Covenants

No building permit may be issued, and no building or development may occur in a PUD zoning district until covenants necessary to reasonably ensure continued compliance with the approved development plan are recorded in the county clerk's office. Such covenants may be established in a subdivision plat or in a separately recorded legal instrument. In order that the public interest may be protected, the City of Tulsa must be made beneficiary of the covenants pertaining to such matters as location of uses, height of structures, building setbacks, screening, and access. Such covenants must provide that the City of Tulsa may enforce compliance of the covenants, and further provide that amendment of the covenants requires planning commission approval and the filing of record of a written amendment to covenants, endorsed by the planning commission.

30.010-K Issuance of Building Permits

Building permits may be issued only after a zoning clearance permit has been issued in accordance with Section 70.080 and covenants have been recorded in accordance with 30.010-J. Any permits issued must be in accordance with the approved PUD development plan.

30.010-L Abandonment of Approved PUDs

Abandonment of an approved PUD requires review and recommendation by the planning commission and approval by the city council. The city council is authorized to amend the underlying zoning upon abandonment of the PUD. Upon final action by the city council authorizing abandonment of the PUD, no building permit may be issued except in accordance with the restrictions and limitations of the base zoning district.

Section 30.020 CDP, Community Development Projects

30.020-A General

CDP was the predecessor of PUD zoning. Before adoption of the city's 1970 zoning code, which created the PUD district, the board of adjustment had authority to approve site-specific CDPs.

30.020-B Expiration and Lapse of Approval

Pursuant to Section 204 of the 1970 zoning code, all CDPs approved by the board of adjustment before 1970 effectively expired on June 30, 1975 except those extended by the board of adjustment or for which building permits had been issued or construction had commenced in accordance with the terms and conditions approved by the board of adjustment. The following CDPs have expired pursuant to this provision and are now governed by the zoning district regulations that apply to the subject property: CDP01, CDP02, CDP03, CDP04, CDP05, CDP06, CDP07, CDP08, CDP09, CDP10, CDP11, CDP12, CDP13, CDP14, CDP15, CDP16, CDP17, CDP18, CDP19, CDP23, CDP24, CDP25, CDP26, CDP27, CDP28, CDP30, CDP31, CDP32, CDP34, CDP35, CDP36, CDP37, CDP38, CDP39, CDP40, CDP41, CDP42, CDP43, CDP44, CDP45, CDP46, CDP47, CDP48, CDP49, CDP50, CDP51, CDP52, CDP55, CDP56, CDP57, CDP58, CDP59, CDP60, CDP61, CDP62, CDP64, CDP65, CDP66, CDP67, CDP68, CDP69, CDP70, CDP71, CDP72, CDP73, CDP74, CDP75, CDP76, CDP77, CDP78, CDP79, CDP81, CDP82, CDP83, CDP84, CDP85, CDP86, and CDP87

30.020-C Active CDPs

The following CDPs remain active and are governed by the terms of the CDP approval granted by the board of adjustment: CDP20, CDP21, CDP22, CDP29, CDP33, CDP53, CDP54, CDP63, and CDP80. Proposed changes and amendments to active CDPs require a public hearing and approval by the board of adjustment.

Chapter 35 | Building Types and Use Categories

Section 35.010 Building Types 35-1
Section 35.020 Use Categories Generally 35-6
Section 35.030 Residential Use Category 35-8
Section 35.040 Public, Civic and Institutional Use Category 35-9
Section 35.050 Commercial Use Category 35-12
Section 35.060 Wholesale, Distribution & Storage Use Category 35-22
Section 35.070 Industrial Use Category 35-22
Section 35.080 Recycling Use Category 35-24
Section 35.090 Agricultural Use Category 35-25
Section 35.100 Other Use Category 35-25

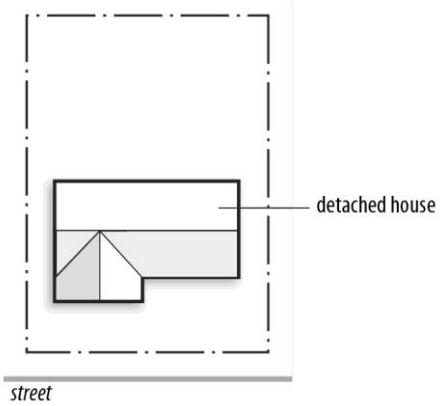
Section 35.010 Building Types

This section establishes and describes the building types regulated by this zoning code.

35.010-A Detached House

A detached house is a principal residential building, other than a manufactured housing unit or mobile home, that contains only one dwelling unit and that is located on a single lot that is not occupied by other principal residential buildings. Detached houses are not attached to and do not abut other dwelling units. Detached houses include conventional ("stick-built") construction and construction involving modular or system-built components as long as such construction complies with city building codes. (An Accessory Dwelling Unit, as defined by §45.031-A, is not considered a detached house.)

Figure 35-1: Detached House

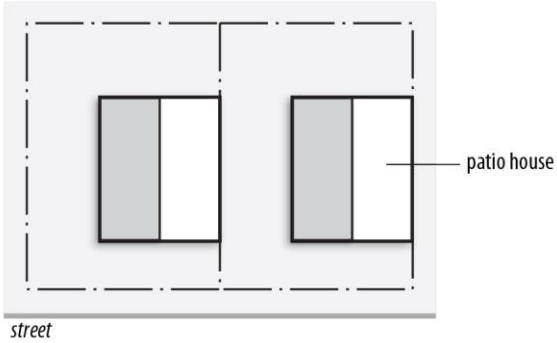


35.010-B Patio House

A patio house is a principal residential building occupied by one dwelling unit and that is located on a single lot that is not occupied by other principal residential buildings. Patio houses are not attached to and do not abut other dwelling units. The building is shifted to one side of the lot so that there is a more usable side yard on one side of the house and very little or no private yard on the other side. Patio houses are subject to the same lot and building regulations that apply to

detached houses except as modified by the supplemental patio house regulations of Section 40.290.

Figure 35-2: Patio House

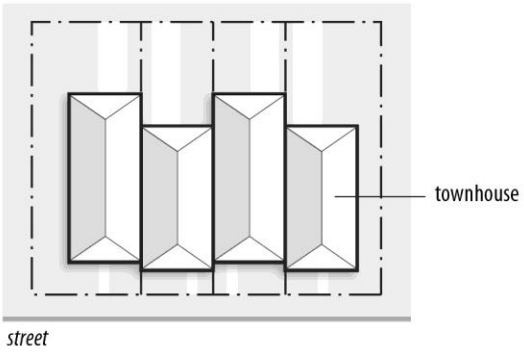


35.010-C Townhouse

A townhouse building is a principal residential building that is occupied by multiple dwelling units, each located on its own lot with a common or abutting wall along the dwelling units' shared lot lines. Each dwelling unit has its own external entrance. There are two types of townhouses: 2-unit townhouses and 3+-unit townhouses.

1. A two-unit townhouse is a townhouse building occupied by only 2 dwelling units.
2. A 3+-unit townhouse is a townhouse building occupied by 3 or more dwelling units.

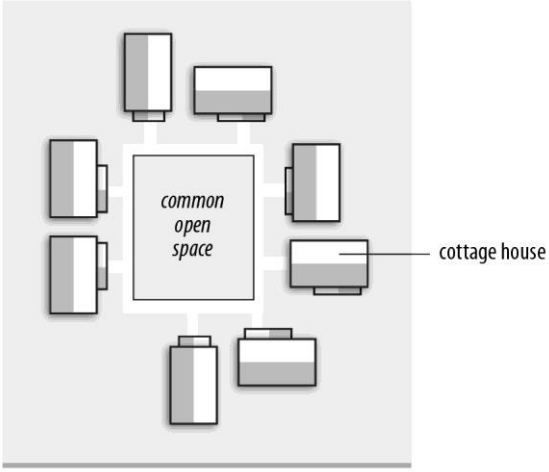
Figure 35-3: Townhouse



35.010-D Cottage House Development

A cottage house development is a grouping of small detached houses around a common open space or shared courtyard. Cottage house developments are subject to lot and building regulations of the subject zoning district and the supplemental cottage house development regulations of Section 40.110.

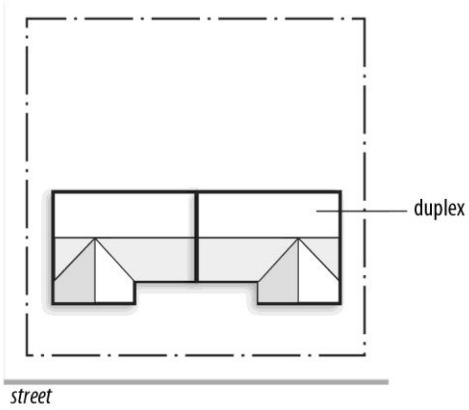
Figure 35-4: Cottage House Development



35.010-E Duplex

A duplex is a principal residential building occupied by 2 dwelling units, both of which are located on a single lot that is not occupied by other principal residential buildings. The 2 dwelling units are attached and may be located on separate floors or side-by-side.

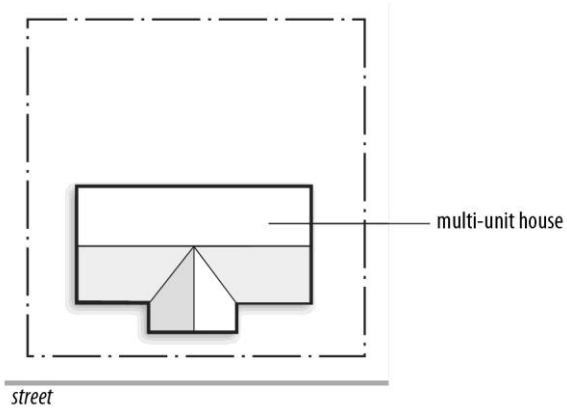
Figure 35-5: Duplex



35.010-F Multi-unit House

A multi-unit house is a principal residential building that contains 3 or 4 dwelling units that share common walls and/or common floors/ceilings. The building is located on a single lot that is not occupied by other principal residential buildings. Multi-unit houses have the appearance of large detached houses and have only one entrance visible from the street.

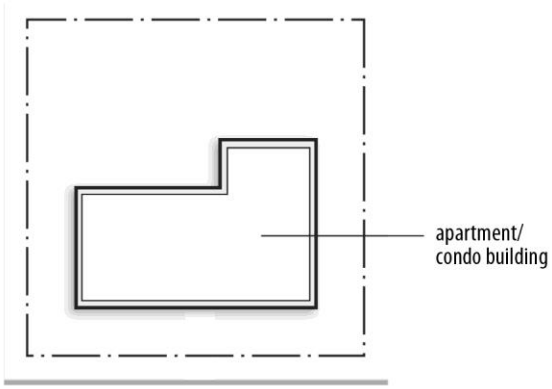
Figure 35-6: Multi-unit House



35.010-G Apartment/Condo

An apartment/condo building is a principal residential building on a single lot that is occupied by 3 or more dwelling units (other than a multi-unit house) that share common walls and/or common floors/ceilings.

Figure 35-7: Apartment/Condo



35.010-H Manufactured Housing Unit

A manufactured housing unit is a principal residential building that complies with the *National Manufactured Housing Construction and Safety Standards Act of 1974* (42 U.S.C. §5401, et seq.). Manufactured housing units are subject to the same regulations that apply to detached houses, except as modified by supplemental regulations of Section 40.210.

35.010-I Manufactured Housing Subdivision

A manufactured housing subdivision is a residential subdivision primarily comprising home sites for manufactured housing units on individual lots. Manufactured housing subdivisions are subject to the supplemental regulations of Section 40.220.

35.010-J Mobile Home

A mobile home is a principal residential building that is built on a permanent chassis and that complies with *Standard for Mobile Homes, National Fire Protection Association* (NFPA) 501, American National Standards Institute (ANSI) 119.1, in

effect at the time that the unit was manufactured. Mobile homes are allowed only within mobile home parks, which are subject to the regulations of Section 40.240.

35.010-K Mobile Home Park

A mobile home park is a lot or multiple lots upon which mobile homes or manufactured housing units are available for lease or upon which spaces for mobile homes or manufactured housing units are available for lease.

35.010-L Mixed-use Building, Vertical

A vertical mixed-use building is a principal building occupied by one or more commercial uses on the ground floor and one or more residential dwelling units on upper floors.

Figure 35-8: Vertical Mixed-use Building



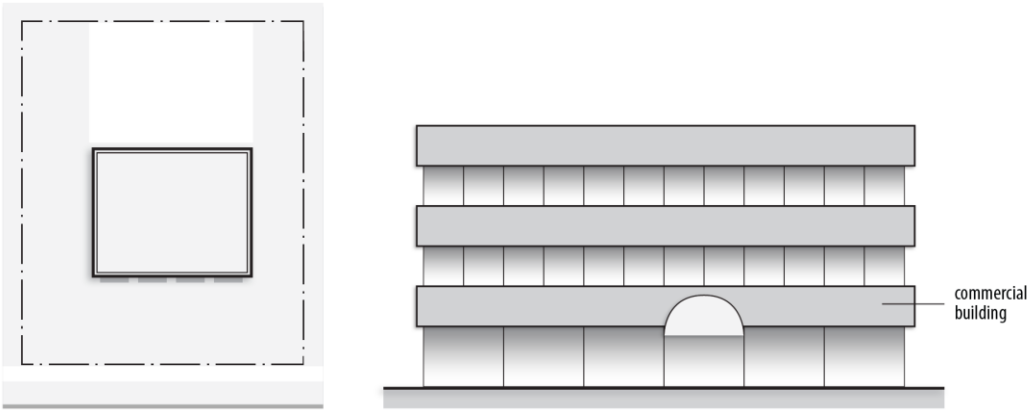
35.010-M Mixed-Use Building

A mixed-use building is a principal building occupied by one or more commercial uses and one or more residential dwelling units.

35.010-N Commercial Building

A commercial building is a principal building occupied primarily by non-residential uses.

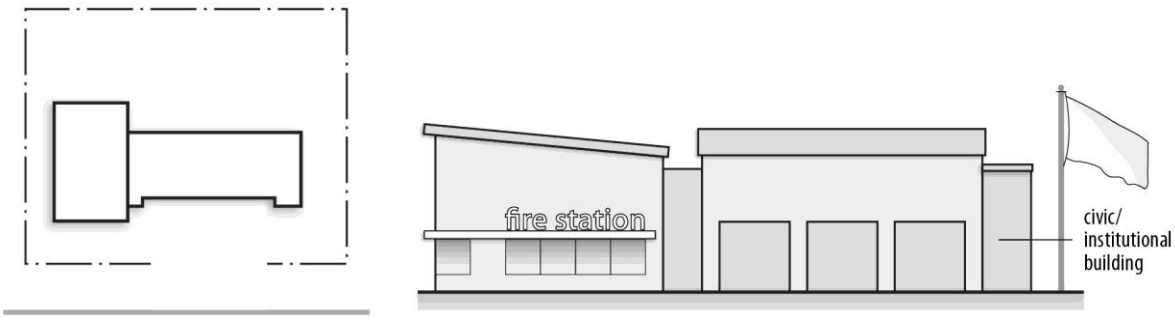
Figure 35-9: Commercial Building



35.010-O Civic/Institutional Building

A civic/institutional building is a principal building occupied primarily by public, civic or institutional uses.

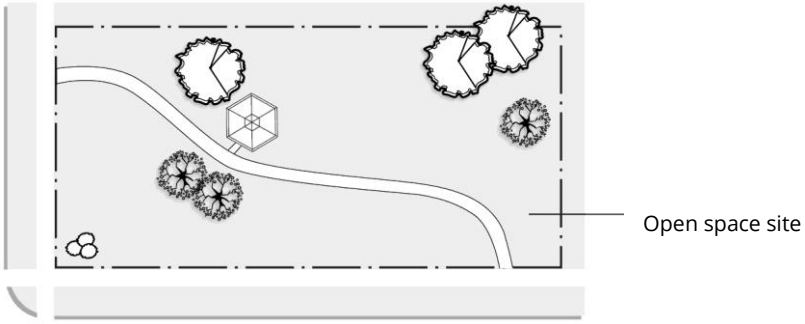
Figure 35-10: Civic/Institutional Building



35.010-P Open Space Site

Open space sites are parcels occupied primarily by parks, open spaces, natural areas and similar large outdoor open spaces.

Figure 35-11: Open Space Site



Section 35.020 Use Categories Generally

This section establishes and describes the use categorization system used to classify principal uses in this zoning code.

35.020-A Use Categories

This zoning code classifies principal land uses into 8 major groupings (described in Section 35.030 through Section 35.100). These major groupings are referred to as "use categories." The use categories are as follows:

1. Residential. See Section 35.030.
2. Public, Civic and Institutional. See Section 35.040.
3. Commercial. See Section 35.050.
4. Wholesale, Distribution and Storage. See Section 35.060.
5. Industrial. See Section 35.070.
6. Recycling. See Section 35.080.
7. Agricultural. See Section 35.090.
8. Other. See Section 35.100.

35.020-B Use Subcategories

Each use category is further divided into more specific "subcategories." Use subcategories classify principal land uses and activities based on common functional, product or physical characteristics, such as the type and amount of activity, the type of customers or residents, and how goods or services are sold or delivered and site conditions.

35.020-C Specific Use Types

Some use subcategories are further broken down to identify specific types of uses that are regulated differently than the subcategory as a whole.

35.020-D Use Tables

Use tables are used in this zoning code to identify the land uses allowed within the respective zoning districts. The structure of the use tables reflects the hierarchical nature of the use categorization system described in this section.

Table 35-1: Sample Use Table Format

	District	District	District	District	District	District	Supplemental Regulations
P = use permitted as of right | **S** = Special exception approval required | **–** = Not allowed							
Uses not listed are also prohibited except as stated in 35.020-E | Bracketed numbers refer to notes following the table							
USE CATEGORY							
Use Subcategory							cross-reference to any applicable regulations
Specific Use	P[1]	P[1]	P	P	P	P	
Specific Use	–	–	–	S	S	S	
Specific Use	–	–	–	–	P	P	

[1] Table notes

35.020-E Determination of Use Categories and Subcategories

1. The development administrator or land use administrator has the authority to classify uses on the basis of the use category, subcategory and specific use type descriptions of this chapter.
2. When a use cannot be reasonably classified into a use category, subcategory or specific use type, or appears to fit into multiple categories, subcategories or specific use types, the development administrator is authorized to determine the most similar and thus most appropriate use category, subcategory or specific use type based on the actual or projected characteristics of the principal use or activity in relationship to the use category, subcategory and specific use type descriptions provided in this chapter. In making such determinations, the development administrator must consider:
   a. The types of activities that will occur in conjunction with the use;
   b. The types of equipment and processes to be used;
   c. The existence, number and frequency of residents, customers or employees;
   d. Parking demands associated with the use; and
   e. Other factors deemed relevant to a use determination.

3. If a use can reasonably be classified in multiple categories, subcategories or specific use types, the development administrator is authorized to categorize each use in the category, subcategory or specific use type that provides the most exact, narrowest and appropriate "fit."

Section 35.030 Residential Use Category

This category includes uses that provide living accommodations for one or more persons. The residential use subcategories are as follows.

35.030-A Household Living

Residential occupancy of a dwelling unit by a household. When dwelling units are rented, tenancy is arranged on a month-to-month or longer basis. Uses where tenancy may be arranged for a shorter period are not considered residential; they are considered a form of lodging.

35.030-B Group Living

Residential occupancy of a building or any portion of a building by a group other than a household. Group living uses typically provide communal kitchen/dining facilities. Group living use types include convents, monasteries, novitiates, fraternity and sorority houses, homeless centers and the following:

1. Assisted Living Center

A residential facility designed to meet housing and care needs of older persons and individuals with disabilities in a residential rather than institutional environment, while maximizing independence, choice and privacy. Assisted living programs provide personal care for persons with needs for assistance in the activities of daily living and can respond to unscheduled needs for assistance. Services typically provided include meals, housekeeping, laundry and linen service, medication monitoring, transportation and activities. Assisted living settings also typically provide features that enhance resident autonomy, such as lockable doors, full bathrooms, temperature control and single occupancy, and may provide limited cooking facilities in individual units.

2. Community Group Home

A community-based group living use for elderly persons or persons with disabilities that allows independent living and that provides communal room and board, personal care, and habilitation services in a household-like environment. Community group homes for 8 or fewer persons are considered household living uses.

3. Elderly/Retirement Center

A residential facility designed for and principally occupied by elderly persons. Such facilities sometimes include congregate meals in a common dining area, but do not include medical or skilled nursing care, as distinguished from life care retirement centers.

4. Emergency and Protective Shelter

A residential use that provides room and board for a continuous period of no more than 30 consecutive days for adults or children who have been abused, displaced or are transient. Such uses provide protection services and typically provide counseling and pre-placement screening services as well.

5. **Life Care Retirement Center**
   A residential facility designed for and principally occupied by elderly persons in a planned retirement community that includes a residential complex, an activity or community center and a medical or skilled nursing care facility licensed by the State of Oklahoma as an Intermediate Care Facility or a Skilled Nursing Center.

6. **Re-Entry Facility**
   A facility operated by the city, the state, the federal government or a private party under contract with the city, the state or the federal government and used for rehabilitation and overnight accommodation of individuals, including staff, who are (a) under the jurisdiction of a court, but not under confinement, or (b) individuals recently released from the jurisdiction of a court. Re-entry facilities are operated for the purpose of providing treatment or rehabilitation intended to assist such individuals with their re-entry into the community.

7. **Residential Treatment Center**
   A community-based residential facility that provides diagnostic or therapeutic services, counseling, or treatment and long-term room and board in a highly structured environment for persons receiving active treatment for alcoholism, drug abuse or behavioral disorders.

8. **Rooming and Boarding House**
   A residential use that provides congregate meals and lodging and that is not otherwise classified as another form of group living use or lodging use.

9. **Transitional Living Center**
   A community-based residential facility that provides room and board, a supervised living environment, counseling and rehabilitation services.

Section 35.040 Public, Civic and Institutional Use Category

This category includes public, quasi-public and private uses that provide unique services that are of benefit to the public at-large. The public, civic and institutional subcategories are as follows.

35.040-A Airport or Ground Transportation Terminal

Facilities from which FAA-certified aircraft take off, land and operate, including customary accessory uses and structures. Also includes passenger ticketing, loading and unloading facilities for buses (local or intercity) and trains.

35.040-B Cemetery

Land or structures used for burial or permanent storage of the dead or their cremated remains. Typical uses include cemeteries and mausoleums. Also includes pet cemeteries.

35.040-C College or University

Institutions of higher learning that offer courses of general or specialized study and are authorized to grant academic degrees. The college or university use subcategory includes classrooms and instructional spaces, as well as on-campus residence halls, fraternity and sorority houses, administrative buildings, auditoriums and other on-campus uses and facilities that provide customary accessory and support functions for college or university uses.

35.040-D Day Care

1. **Child Care Center**
   Uses providing care and supervision for children or adults for a fee on a regular basis away from their primary residence for less than 24 hours per day. Uses providing care and supervision for children or adults for 24 hours per day or longer are classified as group living uses. Child care centers in residential districts are subject to the same lot and building regulations that apply to detached houses, except as modified by supplemental regulations of Section 40.120-A.

2. **Family Child Care Home**
   A day care that provides care and supervision for 12 or fewer children for less than 24 hours per day. Family child care homes may be a principal use or accessory to an allowed household living use. Family child care homes are subject to the same lot and building regulations that apply to detached houses, except as modified by the supplemental regulations of Section 40.120-B.

35.040-E Detention and Correctional Facility

An institution operated by the city, the state, the federal government or a private party under contract with the city, the state or the federal government for the confinement and punishment and treatment or rehabilitation of offenders under the jurisdiction of a court.

35.040-F Fraternal Organization

The use of a building or lot by a not-for-profit organization that restricts access to its facility to bona fide, annual dues-paying members and their occasional guests and where the primary activity is a service not carried on as a business enterprise.

35.040-G Governmental Service or Similar Functions

Local, state, or federal government services or similar functions, that are not otherwise classified. Typical uses include health departments, courthouses, soup/food kitchens, and food pantries.

35.040-H Hospital

Uses providing medical or surgical care to patients and offering inpatient (overnight) care.

35.040-I Library or Cultural Exhibit

Museum-like preservation and exhibition of objects in one or more of the arts and sciences, gallery exhibition of works of art or library collections of books, manuscripts and similar materials for study and reading. Includes aquariums and planetariums.

35.040-J Natural Resource Preservation

Undeveloped land left in a natural state for specific use as visual open space or environmental purposes. Typical uses include wildlife or nature preserves, arboretums, flood management projects and reservoirs.

35.040-K Parks and Recreation

Recreational, social or multi-purpose uses associated with public parks and open spaces, including playgrounds, playfields, play courts, community centers and

other facilities typically associated with public parks and open space areas. Also includes public and private golf courses and tennis clubs.

35.040-L Postal Service

Facilities operated by the U.S. Postal Service, including post offices and mail sorting and distribution facilities.

35.040-M Religious Assembly

Religious services involving public assembly that customarily occur in churches, synagogues, temples, mosques and other facilities used for religious worship.

35.040-N Safety Service

Establishments that provide fire, police or life protection, together with the incidental storage and maintenance of necessary vehicles. Typical uses include fire stations, police stations, ambulance services and storm or civil defense shelters.

35.040-O School

Public and private schools at the primary, elementary, middle school or high school level that provide basic, compulsory education.

35.040-P Utilities and Public Service Facility, Minor

Infrastructure services that need to be located in or close to the area where the service is provided. Minor utilities and public service facilities generally do not have regular employees at the site and typically have few if any impacts on surrounding areas. Typical uses include water and sewer pump stations; gas regulating stations; underground electric distribution substations; electric transformers; water conveyance systems; stormwater facilities and conveyance systems; telephone switching equipment and emergency communication warning/broadcast facilities.

1. The production, collection or distribution of renewable energy, water, organic waste, or other similar resources at a neighborhood, district or campus scale are classified as minor utilities and public service facilities. This includes distributed energy facilities that produce or distribute energy from renewable sources; neighborhood composting areas and neighborhood stormwater facilities.
2. District-, neighborhood or campus-scale systems that produce or distribute energy from the biological breakdown of organic matter produced within the subject neighborhood or campus are also considered minor utilities and public service facilities.
3. Energy production systems that generate energy from the byproducts of the principal use are considered accessory uses, including net metered installations and installations that generate power to sell at wholesale to the power grid.

35.040-Q Utilities and Public Service Facility, Major

Infrastructure services that typically have substantial visual or operational impacts on nearby areas. Typical uses include but are not limited to water and wastewater treatment facilities, high-voltage electric substations, utility-scale power generation facilities (including wind, solar and other renewable and nonrenewable energy

sources), sanitary landfills and utility-scale water storage facilities, such as water towers and reservoirs.

35.040-R Wireless Communication Facility

Towers, antennas, equipment, equipment buildings and other facilities used in the provision of wireless communication services. The following are wireless communication facility specific use types:

1. **Freestanding Towers**
   A structure intended to support equipment that is used to transmit and/or receive telecommunications signals, including monopoles and guyed and lattice construction steel structures.

2. **Building or Tower-Mounted Antennas**
   The physical device that is attached to a freestanding tower, building or other structure, through which electromagnetic, wireless telecommunications signals authorized by the Federal Communications Commission are transmitted or received.

Section 35.050 Commercial Use Category

The commercial use category includes uses that provide a business service or involve the selling, leasing or renting of merchandise to the general public. The commercial use subcategories are as follows.

35.050-A Animal Service

Uses that provide goods and services for care of animals, including the following specific use types:

1. **Grooming**
   Grooming of dogs, cats and similar small animals, including dog bathing and clipping salons and pet grooming shops.

2. **Boarding or Shelter**
   Animal shelters, care services and kennel services for dogs, cats and small animals, including boarding kennels, pet resorts/hotels, pet adoption centers, dog training centers, animal rescue shelters and zoos and animal sanctuaries.

3. **Veterinary**
   Animal hospitals and veterinary clinics.

35.050-B Assembly and Entertainment

Uses that provide gathering places for participant or spectator recreation, entertainment or other assembly activities. Assembly and entertainment uses may provide incidental food or beverage service. Typical uses include gun clubs, shooting ranges, health clubs, gymnasiums, riding stables and academies, banquet halls, entertainment centers, event centers, billiard centers, bowling centers, cinemas, go-cart tracks, laser tag, paintball, miniature golf courses, stadiums, arenas, video arcades, race tracks, fairgrounds, rodeo grounds, water parks, amusement parks, food truck courts, and live theaters. Outdoor seating and dining areas that exceed 50% of the indoor floor area of the subject principal use (e.g., bar, restaurant or indoor assembly and entertainment use) are regulated as an outdoor assembly and entertainment use.

35.050-C Broadcast or Recording Studio

Uses that provide for audio or video production, recording or broadcasting.

35.050-D Commercial Service

Uses that provide for consumer or business services and for the repair and maintenance of a wide variety of products. Specific commercial service use types include the following:

1. **Building Service**
   Uses that provide maintenance and repair services for all structural and mechanical elements of structures, as well as the exterior spaces of premises. Typical uses include janitorial, landscape maintenance, carpet cleaning, chimney sweeps, extermination, plumbing, electrical, HVAC, roofing, window cleaning and similar services.

2. **Business Support Service**
   Uses that provide personnel services, printing, copying, package (delivery) drop-off, photographic services or communication services to businesses or consumers. Typical uses include employment agencies, day labor hiring services, armored car services, copy and print shops, delivery/courier service drop-off location for consumers, caterers, telephone answering services and photo developing labs.

3. **Consumer Maintenance and Repair Service**
   Uses that provide maintenance, cleaning and repair services for consumer goods on a site other than that of the customer (i.e., customers bring goods to the site of the repair/maintenance business). Typical uses include laundry and dry cleaning pick-up shops, tailors, taxidermists, dressmakers, shoe repair, picture framing shops, gunsmiths, locksmiths, vacuum repair shops, electronics repair shops and similar establishments. Business that offer repair and maintenance service for large equipment or technicians who visit customers' homes or places of business are classified as a "building service."

4. **Personal Improvement Service**
   Uses that provide personal grooming, cosmetic or health and well-being-related services. Typical uses include barbers, hair and nail salons, tanning salons, day spas, and body art services.

5. **Research Service**
   Uses engaged in scientific research and testing services leading to the development of new products and processes. Such uses resemble office buildings or campuses and do not involve the mass production, distribution or sale of products. Research services do not produce odors, dust, noise, vibration or other external impacts that are detectable beyond the property lines of the subject property. Includes medical marijuana testing laboratories, and medical marijuana research facilities, as licensed by the Oklahoma Medical Marijuana Authority, in accordance with the terms of such license.

35.050-E Financial Service

Uses related to the exchange, lending, borrowing and safe-keeping of money. Automatic teller machines, kiosks and similar facilities that do not have on-site

employees or amplified sound are not classified as financial service uses if they meet the criteria for classification as an accessory use (see 45.010-B). Specific financial service use types are banks, credit unions, and the following types of personal credit establishments:

1. **Check Cashing**
   An establishment that:
   - **a.** Is not a bank or financial lending institution subject to federal or state regulation;
   - **b.** Charges a fee to cash a check or have a check processed; and
   - **c.** Provides such services to the public.
2. **Pawnshop**
   An establishment that is engaged to any extent in any of the following business or activities:
   - **a.** The lending of money on the deposit or pledge of personal property, other than choses in action, securities or written evidence of indebtedness;
   - **b.** The purchase of personal property either from an individual, another pawn business or any other business with an expressed or implied agreement or understanding to offer the property for sale to the public, and if that sale is unsuccessful, then to sell it back to the previous owner at a subsequent time at a stipulated price or negotiated price;
   - **c.** The purchase of precious metals with the intent to melt down, provided that such activity is not clearly incidental to the principal use of the establishment; or
   - **d.** The lending of money upon personal property, goods, wares, or merchandise pledged, stored or deposited as collateral security.
3. **Payday Lender**
   An establishment that is substantially in the business of negotiating, arranging, aiding, or assisting a consumer in procuring payday loans.
4. **Bail Bond**
   A use that provides surety and pledged money or property as bail for the appearance of persons accused in court.

35.050-F Funeral and Mortuary Service

Uses that provide services related to the death of a human or domestic, household pet, including funeral homes and mortuaries. Funeral and mortuary services may include crematoriums as an accessory use. Other crematoriums and animal rendering uses are classified as moderate-impact manufacturing and industry.

35.050-G Lodging

Uses that provide temporary lodging for less than 30 days where rents are charged by the day or by the week. Lodging uses sometimes provide food or

entertainment, primarily to registered guests. Examples of specific lodging use types include:

1. **Bed and Breakfast**
   An establishment in which the owner/operator offers overnight accommodations to guests for compensation. A bed and breakfast may serve meals to guests subject to the supplemental use regulations; a bed and breakfast may be rented for on-site events.

2. **Hotel/Motel**
   An establishment, other than a bed and breakfast, short-term rental or rural retreat, in which temporary lodging is offered for compensation. A hotel/motel use may include an accessory bar.

3. **Recreational Vehicle Park/Campground**
   An establishment that provides temporary overnight accommodations for camping in recreational vehicles or tents.

4. **Rural Retreat**
   An establishment that is part of a working farm or ranch that provides temporary overnight accommodations for individuals or groups engaged in supervised training or personal improvement activities. Examples include corporate retreat facilities, educational retreat facilities, and dude ranches or working farm learning centers.

5. **Short-Term Rental**
   A dwelling unit, which is not the primary residence of a household, or a portion thereof, in which temporary lodging is offered for compensation. A short-term rental is limited to a maximum occupancy of 8 persons at any one time. Short-Term Rentals can be principal or accessory uses. Accessory use short-term rentals are defined in Section 45.185.

35.050-H Marina

Facilities that provide moorage, launching, storage, fueling, supplies and services (other than repair) commonly associated with storing, maintaining and operating recreational and commercial watercraft.

35.050-I Office

Uses in an enclosed building, customarily performed in an office, that focus on providing executive, management, administrative, professional or medical services. Specific office use types include the following:

1. **Business and Professional Office**
   Office uses that are not Medical, Dental, Health Practitioner Offices or Plasma Centers. Examples include corporate office, law offices, architectural firms, insurance companies and other executive, management or administrative offices for businesses and corporations. Also included are union halls that offer only office and meeting space and insurance claims adjusters/estimators with no more than one vehicle inspection bay and no on-site repair facilities.

2. Medical, Dental and Health Practitioner Office

Office uses related to diagnosis and treatment of human patients' illnesses, injuries and physical maladies that can be performed in an office setting with no overnight care. Typical uses include offices of physicians, dentists, psychiatrists, psychologists, chiropractors and practitioners of massage therapy. Surgical, rehabilitation and other medical centers that do not involve overnight patient stays are included in this use subcategory, as are medical and dental laboratories, unless otherwise expressly indicated. Ancillary sales of medications and medical products are allowed in association with a medical, dental or health practitioner office.

3. Plasma Center

An establishment primarily involved in the collection of human blood plasma from plasma donors.

35.050-J Parking, Non-Accessory

Parking that is not provided to comply with minimum off-street parking requirements or that is not provided exclusively to serve occupants of or visitors to a particular use, but rather is available to the public at-large. A parking facility that provides both accessory and non-accessory parking will be classified as non-accessory parking if it leases 25% or more of its spaces to non-occupants of or persons other than visitors to a particular use. Specific non-accessory parking use types include the following:

1. Surface Parking, Non-Accessory

A non-accessory parking lot.

2. Structured Parking, Non-Accessory

A non-accessory parking garage.

35.050-K Restaurants and Bars

1. Bar

Uses that cater primarily to adults, 21 years of age and older and that sell and serve alcoholic beverages as their principal business. Specific bar use types include bars, taverns, beer bars, brewpubs, nightclubs, pool halls, dance halls, hookah lounges, and similar establishments. See also the definition of accessory use bar in Section 95.040.

Hookah Lounge

An establishment whose business operation, whether as a principal use or as an accessory use, includes the smoking of tobacco or other substances through one or more hookah pipes (also commonly referred to as a hookah, waterpipe, shisha or narghile), including but not limited to establishments known variously as hookah bars, hookah parlors or hookah cafés.

Brewpub

An establishment where beer and malt beverages are made on the premises in conjunction with a restaurant and/or bar and where (1) less than 5,000 barrels (155,000 gallons) of beer and malt beverages are produced per calendar year and (2) at least 33% of the beer and malt

beverages produced on site are sold on site. Where allowed by law, brewpubs may sell beer and malt beverages "to go" and /or distribute to off-site accounts.

2. Restaurant

An establishment that serves food or beverages for on- or off-premise consumption as its principal business. The preparation and processing of food or beverages to be served or sold on-site directly to consumers is permitted as an accessory use to a restaurant, including on-site coffee roasting with a maximum roasting capacity of 45 kilograms per batch. Typical examples of restaurant uses include principal use restaurants, cafés, cafeterias, ice cream/yogurt shops, donut shops and coffee shops.

Principal Use Restaurant

A restaurant that employs at least one full-time cook, has a menu, a fully equipped kitchen for cooking and preparation of meals and in which dining, kitchen and non-service areas occupy at least 75% of the floor area of the business. A principal use restaurant may include an accessory use bar, but any bar area that does not meet the definition of an accessory use bar (Section 95.040) is classified and regulated as a bar.

3. Outdoor Seating and Dining Areas

Outdoor seating and dining areas that exceed 50% of the indoor floor area of the subject bar or restaurant are regulated as an outdoor assembly and entertainment use.

35.050-L Retail Sales

Uses involving the sale, lease or rental of new or used goods to the ultimate consumer. Specific retail use types include the following:

1. Convenience Goods

Retail sales uses that sell or otherwise provide (1) sundry goods; (2) products for personal grooming and for the day-to-day maintenance of personal health or (3) food or beverages for off-premise consumption, retail bakeries and similar uses that provide incidental and accessory food and beverage service as part of their primary retail sales business. Typical uses include convenience stores, drug stores, specialty food stores, package stores, gift shops, newsstands, florists and tobacco stores. Does not include small box discount stores or grocery stores.

2. Consumer Shopping Goods

Retail sales uses that sell or otherwise provide wearing apparel, fashion accessories, furniture, household appliances and similar consumer goods, large and small, functional and decorative, for use, entertainment, comfort or aesthetics. Typical uses include clothing stores, department stores, appliance stores, TV and electronics stores, bike shops, book stores, costume rental stores, stationery stores, art galleries, hobby shops, furniture stores, pet stores and pet supply stores, shoe stores, antique shops, secondhand stores, record stores, toy stores, sporting goods stores, variety stores, video stores, musical instrument stores, medical supplies, office supplies and office furnishing stores

and wig shops. Does not include small box discount stores, grocery stores or medical marijuana dispensaries.

3. **Building Supplies and Equipment**
Retail sales uses that sell or otherwise provide goods to repair, maintain or visually enhance a structure or premises. Typical uses include hardware stores, home improvement stores, paint and wallpaper supply stores and garden supply stores.

4. **Small Box Discount Store**
Retail sales uses with floor area less than 12,000 square feet that offer for sale a combination and variety of convenience shopping goods and consumer shopping goods; and continuously offer a majority of the items in their inventory for sale at a price less than $10.00 per item. Does not include medical marijuana dispensaries.

5. **Grocery Store**
Retail sales uses that sell or otherwise provide assorted goods; products for personal grooming and for the day-to-day maintenance of personal health; and that sell food and beverages for off-premise consumption; and that have a minimum floor area of 500 square feet dedicated to the sale of fresh meat, fruits and vegetables. A principal use Grocery Store may include an accessory use restaurant or dining area for on-premise consumption of food and beverage items. Does not include medical marijuana dispensaries.

6. **Medical Marijuana Dispensary**
Retail sales uses that sell or otherwise provide medical marijuana or medical marijuana products by the holder of a medical marijuana dispensary license issued by the Oklahoma Medical Marijuana Authority, in accordance with the terms of such license, which may be sold or provided only to the holder of a medical marijuana patient or caregiver license.

35.050-M Self-service Storage Facility

An enclosed use that provides separate, small-scale, self-service storage facilities leased or rented to individuals or small businesses. Facilities are designed and used to accommodate only interior access to storage lockers or drive-up access only from regular size passenger vehicles and two-axle non-commercial vehicles.

35.050-N Sexually Oriented Business Establishment

Sexually oriented business establishments include all of the following:

1. **Adult Amusement or Entertainment**
Amusement or entertainment that is distinguished or characterized by an emphasis on acts or material depicting, describing or relating to sexual conduct or specified anatomical areas, including but not limited to topless or bottomless dancers, exotic dancers, strippers, male or female impersonators or similar entertainment.

2. **Adult Bookstore**
An establishment wherein 10% or more of its display area consists of books, films, videos, magazines, periodicals, games, novelties or other materials that are distinguished or characterized by an emphasis on depicting or describing

sexual conduct or specified anatomical areas (referred to in this section as "sexually oriented materials"). As used in this definition of “adult bookstore,” “display area” is measured as follows:

a. For bookshelves, magazine racks and similar display devices, display area is calculated by multiplying the length times the width of such devices. If sexually oriented materials are mixed with non-sexually oriented materials in or on such devices, the entire device is considered as consisting of sexually oriented materials.

b. For table tops, counters, display cases and similar display devices, display area is calculated by multiplying the length times the width of each surface on which merchandise is displayed. If sexually oriented materials are mixed with non-sexually oriented materials on such surfaces, the entire surface is considered as consisting of sexually oriented materials.

c. For walls, display area is the area of the wall enclosed by the smallest imaginary rectangle that contains each item.

d. The display area of merchandise hanging or suspended from the ceiling is calculated by multiplying the item's length or width, whichever is longer, times the item's height.

3. **Adult Mini Motion Picture Theater**
An enclosed building with a capacity of fewer than 50 persons used for presenting material distinguished or characterized by an emphasis on depicting or describing sexual conduct or specified anatomical areas.

4. **Adult Motel**
A motel in which material is presented, as part of the motel services, via closed circuit TV or otherwise, that is distinguished or characterized by an emphasis on depicting or describing sexual conduct or specified anatomical areas.

5. **Adult Motion Picture Arcade**
Any place to which the public is permitted or invited wherein coin or slug operated or electronically, electrically or mechanically controlled, still or motion picture machines, projectors, or other image producing devices are maintained to show images to 5 or fewer persons per machine at any one time, and where the images so displayed are distinguished or characterized by an emphasis on depicting or describing sexual conduct or specified anatomical areas.

6. **Adult Motion Picture Theater**
An enclosed building with a capacity of 50 or more persons used for presenting material distinguished or characterized by an emphasis on depicting or describing sexual conduct or specified anatomical areas.

7. **Massage Parlor**
Any place where for any form of consideration or gratuity, massage, alcohol rub, administration of fomentations, electric or magnetic treatments, or any other treatment or manipulation of the human body occurs as part of or in connection with sexual conduct or where any person providing such

treatment, manipulation or service related thereto exposes specified anatomical areas.

8. **Model Studio**
   Any place other than public park, museum or university or college art classes where, for any form of consideration or gratuity, figure models who display specified anatomical areas are provided to be observed, sketched, drawn, painted, sculptured, photographed, or similarly depicted by persons paying such consideration or gratuity.

9. **Sexual Encounter Center**
   Any building or structure that contains, or is used for commercial entertainment where the patron directly or indirectly is charged a fee to engage in personal contact with or to allow personal contact by, employees, devices or equipment or by personnel provided by the establishment that appeals to the prurient interest of the patron, to include, but not to be limited to bath houses, massage parlors, and related or similar activities.

35.050-O Studio, Artist or Instructional Service

Uses in an enclosed building that focus on providing individual or small group instruction or training in fine arts, music, dance, drama, fitness, language or similar activities. Also includes dance studios, ballet academies, yoga studios, martial arts instruction, tutoring, artist studios and photography studios.

35.050-P Trade School

Uses in an enclosed building that focus on teaching the skills needed to perform a particular job. Examples include schools of cosmetology, modeling academies, computer training facilities, vocational schools, administrative business training facilities and similar uses. Licensed medical marijuana education facilities are expressly included. Truck driving schools are classified as “trucking and transportation terminals” (wholesale, distribution and storage use category).

35.050-Q Vehicle Sales and Service

Uses that provide for the sale, rental, maintenance or repair of new or used vehicles and vehicular equipment. The vehicle sales and service subcategory includes the following specific use types:

1. **Commercial Vehicle Repair and Maintenance**
   Uses, excluding vehicle paint finishing shops, that repair, install or maintain the mechanical components or the bodies of large trucks, mass transit vehicles, large construction or agricultural equipment, aircraft or similar large vehicles and vehicular equipment. Includes truck stops and fleet vehicle fueling facilities, which may dispense conventional vehicle fuels and/or alternative vehicle fuels.

2. **Commercial Vehicle Sales and Rentals**
   Uses that provide for the sale or rental of large trucks, moving equipment (e.g., U-haul and Ryder) construction or agricultural equipment, aircraft, or similar large vehicles and vehicular equipment.

3. **Fueling Station (for Personal, Consumer Vehicles)**
   Uses engaged in retail sales of vehicle fuels for personal vehicles, other than fleet fueling facilities and truck stops. (Note: Fleet vehicle fueling facilities and truck stops are part of the "Commercial Vehicle Repair and Maintenance" specific use type). Fueling stations may dispense conventional vehicle fuels and/or alternative vehicle fuels.

4. **Personal Vehicle Repair and Maintenance**
   Uses that repair, install or maintain the mechanical components of automobiles, small trucks or vans, motorcycles, motor homes or recreational vehicles including recreational boats. Uses that wash, clean or otherwise protect the exterior or interior surfaces of these vehicles are also included.

5. **Personal Vehicle Sales and Rentals**
   Uses that provide for the sale or rental of new or used autos, small trucks or vans, trailers, motorcycles, motor homes or recreational vehicles including recreational watercraft. Typical examples include automobile dealers, auto malls, car rental agencies. Car-share vehicles that are parked or stored when not being used by members of a car-share program are not regulated as personal vehicle sales and rental uses, but are instead considered accessory parking.

6. **Vehicle Equipment and Supplies Sales and Rentals**
   Uses related to the sale, lease or rental of new or used parts, tools or supplies for the purpose of repairing or maintaining motor vehicles.

7. **Vehicle Body and Paint Finishing Shop**
   Uses that primarily conduct motor vehicle body work and repairs or that apply paint to the exterior or interior surfaces of motor vehicles by spraying, dipping, flow-coating or other similar means.

35.050-R Farmers Market

A designated area in which farmers, growers or producers gather on a regularly scheduled basis to sell at retail non-hazardous farm food products to the public. Farm food products are grown or raised on a farm, including but not limited to, vegetables, mushrooms, herbs, nuts, shell eggs, honey or other bee products, flowers, nursery stock, livestock food products and fish. A portion of the raw food ingredients used by the individual vendor to produce a product must have been grown or raised by the vendor. Farmers markets must have written operational guidelines and a minimum of six (6) vendors along with a designated market manager or advisory board who will be responsible for distribution of a copy of the guidelines to the vendors. Farmers markets must be registered with the Oklahoma Department of Agriculture, Food and Forestry. This definition does not include individual farmers who grow and sell unprocessed fruit and/or vegetables from the farm, roadside or truck. Farmers markets may be located inside a building or outdoors using permanent shelters or tents that can be placed and removed on the subject site when the market is not operating.

Section 35.060 Wholesale, Distribution & Storage Use Category

This category includes uses that provide and distribute goods in large quantities, principally to retail sales, commercial services or industrial establishments. Long-term and short-term storage of supplies, equipment, commercial goods and personal items is included. The wholesale, distribution & storage subcategories are as follows.

35.060-A Equipment and Materials Storage, Outdoor

Uses related to outdoor storage of equipment, products or materials, whether or not stored in containers.

35.060-B Trucking and Transportation Terminals

Uses engaged in the dispatching and long-term or short-term storage of trucks, buses and other vehicles, including parcel service delivery vehicles, taxis and limousines. Minor repair and maintenance of vehicles stored on the premises is also included. Includes uses engaged in the moving of household or office furniture, appliances and equipment from one location to another, including the temporary on-site storage of those items.

35.060-C Warehouse

Uses conducted within a completely enclosed building that are engaged in long-term and short-term storage of goods and that do not meet the definition of a "self-service storage facility" or a "trucking and transportation terminal."

35.060-D Wholesale Sales and Distribution

Uses engaged in the wholesale sales, bulk storage and distribution of goods. Such uses may also include incidental retail sales and wholesale showrooms. Expressly includes the following uses: bottled gas and fuel oil sales, flea markets, ice distribution centers, monument sales, portable storage building sales, vending machine sales, auctioneers, and frozen food lockers. Includes uses engaged in the transportation and distribution of medical marijuana products to and from the licensed premises of commercial medical marijuana licensees.

Section 35.070 Industrial Use Category

This category includes uses that produce goods from extracted and raw materials or from recyclable or previously prepared materials, including the design, storage and handling of these products and the materials from which they are produced. The industrial subcategories are:

35.070-A Low-impact Manufacturing and Industry

Manufacturing and industrial uses that do not, as part of their normal operations, generate noticeable off-site impacts in terms of noise, smoke, particulate matter, odors, or vibration. Typical examples of low-impact manufacturing and industrial uses include: commercial laundries and linen supply services, apparel manufacturing, bakery products manufacturing, production of medical marijuana products, such as edibles and pre-rolls, using medical marijuana components processed elsewhere, bottling plants, ice manufacturing, mattress manufacturing and assembly, microbreweries, micro distilleries, data centers, coffee roasting with a maximum roasting capacity of 45 kilograms per batch, musical instrument and parts manufacturing, newspaper printing and binderies.

1. **Microbrewery**
   An establishment in which beer or malt beverages are made on the premises and then sold or distributed, and which produces less than 15,000 barrels (465,000 gallons) of beer and malt beverages per calendar year. Where allowed by law, microbreweries may include tasting rooms and direct sales to consumers in addition to other methods of distribution.

2. **Micro Distillery**
   A distillery producing distilled spirits in total quantity of no more than 40,000 proof gallons per calendar year. Where allowed by law, micro distilleries may include tasting rooms and direct sales to consumers in addition to other methods of distribution.

3. **Low-impact Medical Marijuana Processor**
   A medical marijuana processor issued a nonhazardous processor license by the Oklahoma Medical Marijuana Authority.

4. **Data Center**
   A facility or facilities used to house, and in which are operated, maintained and replaced from time to time, computer systems and associated components, including but not limited to telecommunications and storage systems, cooling systems, power supplies and systems for managing electrical and mechanical performance, and equipment used for the transformation, transmission, distribution and management of electricity for on-site uses, internet-related equipment, data communications connections, private communication towers, environmental controls and security devices.

35.070-B Moderate-impact Manufacturing and Industry

Manufacturing and industrial uses that, as part of their normal operations, generate noticeable off-site impacts in terms of noise, smoke, particulate matter, odors, or vibration. Typical examples of moderate-impact manufacturing and industrial uses include: large breweries, distilleries and alcohol manufacturing (other than micro distilleries), coffee roasting with a roasting capacity of more than 45 kilograms per batch, medical marijuana waste disposal facilities, dairy products manufacturing, foundries, chrome plating, crematoriums and animal rendering plants, electroplating, fiberglass manufacturing, flour mills and paper products manufacturing.

1. **Large Brewery**
   An establishment where beer or malt beverages are made on the premises at an annual production rate of over 15,000 barrels (465,000 gallons). Large breweries may include tasting rooms.

2. **Medical Marijuana Waste Disposal Facility**
   A facility issued a medical marijuana waste disposal facility license by the Oklahoma Medical Marijuana Authority.

35.070-C High-impact Manufacturing and Industry

Manufacturing and industrial uses that regularly use hazardous chemicals or procedures or that produce hazardous byproducts or explosive hazards. Typical examples of high-impact manufacturing and industrial uses include: the

manufacture of acetylene, cement, lime, gypsum or plaster-of-Paris, chlorine, corrosive acid or fertilizer, insecticides, disinfectants, poisons, explosives, paint, lacquer, varnish, petroleum products, coal products, plastic and synthetic resins and radioactive materials. This subcategory also includes petrochemical tank farms, gasification plants, smelting, animal slaughtering, oil refining, asphalt and concrete (batch) plants and tanneries.

1. **High-impact Medical Marijuana Processing Facility**
   An establishment in which the preparation, manufacture, processing or packaging of medical marijuana products by the holder of a hazardous medical marijuana processor license issued by the Oklahoma Medical Marijuana Authority is conducted, in accordance with the terms of such license, and in which extraction processes include the use of flammable substances such as butane, propane, ethanol and alcohol.

35.070-D Junk or Salvage Yard

An open area where waste, scrap, used or second-hand materials are bought, sold, exchanged, stored, baled, packed, disassembled, crushed, processed, or handled for reclamation, disposal or other similar purposes, including but not limited to scrap iron and other metals, paper, rags, rubber tires and bottles.

35.070-E Mining or Mineral Processing

The extraction or quarrying of coal, ores, stone, minerals, top soil or aggregate resources from the ground. Examples include quarrying or dredging for sand, gravel or other aggregate materials; mining and top soil extraction. Also includes crushing, washing and grading coal, ore, stone, sand, gravel, minerals, top soil or aggregate resources and manufacture of Portland cement.

Section 35.080 Recycling Use Category

This category includes uses that collect, store or process recyclable material for the purpose of marketing or reusing the material in the manufacturing of new, reused or reconstituted products. The recycling use subcategories are as follows:

35.080-A Construction or Demolition Debris

Establishments that receive and process general construction or demolition debris for recycling.

35.080-B Consumer Material Drop-off Station

An establishment that (1) accepts consumer recyclable commodities directly from the consuming party; (2) is staffed by personnel on site for a minimum of 20 hours per week; and (3) stores materials temporarily before transferring them to recyclable material processing facilities. Establishments that process recyclable material are classified as "consumer material processing" establishments. (Note: accessory use dumpsters and recyclable material bins/donation bins are subject to the regulations of Section 45.050 and Section 45.051.)

35.080-C Consumer Material Processing

Establishments that receive and process consumer recyclable commodities for subsequent use in the secondary market.

Section 35.090 Agricultural Use Category

This category includes uses such as gardens, farms and orchards that involve the raising and harvesting of food and non-food crops and the raising of farm animals. The agricultural subcategories are:

35.090-A Animal Husbandry

Uses that involve the feeding, housing and care of farm animals for private or commercial purposes.

35.090-B Community Garden

An area less than one acre in area that is managed and maintained by an individual, group or business entity to grow and harvest food crops or non-food crops (e.g., flowers). A community garden area may be divided into separate garden plots or orchard areas for cultivation by one or more individuals or may be farmed collectively by members of the group. Community gardens may be principal or accessory uses.

35.090-C Farm, Market or Community-Supported

An area managed and maintained by an individual, group or business entity to grow and harvest food crops or non-food crops (e.g., flowers) for sale or distribution. Farms may be principal or accessory uses and may be located on a roof or within a building.

35.090-D Horticulture Nursery

A use involving propagation and growth of trees or plants in containers or in the ground for wholesale or retail sales and distribution. Does not include on-site retail sales unless such sales are otherwise allowed in the subject zoning district.

1. Medical Marijuana Grower Operation

Uses involving the growing, harvesting and packaging of medical marijuana by the holder of a medical marijuana grower license issued by the Oklahoma Medical Marijuana Authority, in accordance with the terms of such license. Does not include retail sales.

Section 35.100 Other Use Category

This category includes uses that do not fit the other use categories.

35.100-A Drive-in or Drive-through Facility

Any use with drive-through windows or drive-through lanes or that otherwise offer service to the occupants of motor vehicles. Typical uses include drive-through restaurants, drive-through pharmacies, drive-in restaurants and drive-in cinemas. Automatic teller machine kiosks and similar drop-off or pick-up facilities that do not have on-site employees or amplified sound are not classified as drive-in or drive-through facilities if they meet the criteria for classification as an accessory use (see 45.010-B).

35.100-B Off-premise Outdoor Advertising Sign

A sign that directs attention to a business, commodity, service, or activity that is conducted, sold or offered elsewhere than upon the lot where the subject sign is located.

35.100-C Oil or Gas Well

Any hole or bore, of any depth, for the purpose of producing and recovering oil, gas, or other hydrocarbon substances or for the injection or disposal of any oil, gas, or other hydrocarbon substances. See also Title 42A of the Tulsa Revised Ordinances.

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Section 40.010 General

This chapter includes supplemental regulations that apply to some uses and building types. These regulations supplement the applicable zoning district regulations. The applicability of these supplemental use regulations is indicated in the individual sections of this chapter and in the use regulations of the respective zoning district.

Section 40.020 Animal Services

Whenever an animal services use is located on a lot abutting an R- or AG-R-zoned lot, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of §65.070-C.

Section 40.030 Apartments/Condos

Whenever an apartment/condo building is located on a lot abutting an RE, RS, or AG-R district, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of §65.070-C.

Section 40.040 Assembly and Entertainment

Whenever an assembly and entertainment use is located on a lot abutting an R or AG-R-zoned lot, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of §65.070-C.

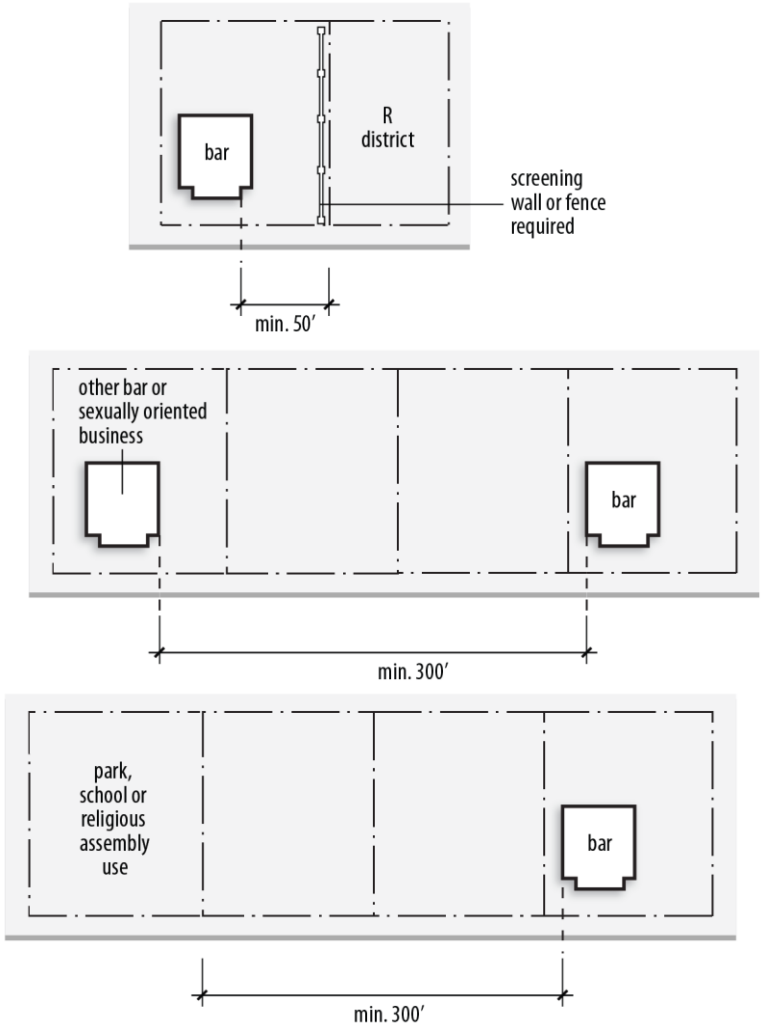
Section 40.050 Bars

The supplemental use regulations of this section apply to all bars, except accessory use bars.

40.050-A Bars are subject to all of the following separation distance requirements:

1. Public entrance doors of bars may not be located within 50 feet of any R-zoned lot, as measured in a straight line from the nearest point on the R-zoned lot (not including R-zoned expressway right-of-way) to the nearest public entrance door of the bar or the nearest portion of any outdoor seating/dining area, whichever results in a greater setback.
2. Bars may not be located within 300 feet of a public park, school or religious assembly use. The separation distance required by this paragraph must be measured from the nearest property line of such public park, school or religious assembly use to the nearest perimeter wall of the bar.
3. Bars may not be located within 300 feet of any other bar or sexually oriented business establishment, except in the CBD district. The required separation distance must be measured in a straight line between the nearest perimeter walls of the portions of the buildings occupied by the bar or sexually oriented business establishment.

Figure 40-1: Separation Distance Requirements for Bars



4. Religious assembly uses include all contiguous property owned or leased by the religious organization upon which the principal religious assembly building is located, regardless of any interior lot lines.

5. Schools include all contiguous property owned or leased by the school upon which the principal school building is located, regardless of any interior lot lines.

40.050-B Bars must be located within completely enclosed buildings, except that outdoor customer seating/dining areas, including rooftop seating, are allowed subject to the following regulations:

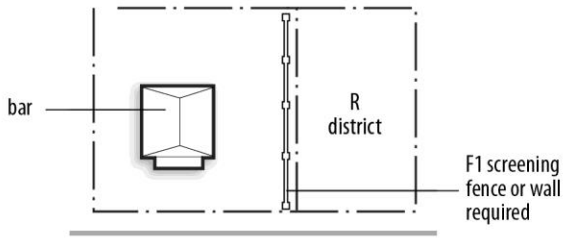
1. Outdoor customer seating/dining areas are subject to all applicable building setback requirements and must abut the building wall or roof area of the principal building;

2. Outdoor customer seating/dining areas may not occupy required parking spaces or parking area access aisles; and

3. When a bar is located on a lot abutting an R-zoned lot, noise emanating from any on-site equipment or activity, including outdoor customer seating/dining areas may not exceed 65 db(A), as measured along the common lot line at the top of the required screening wall or fence.

40.050-C When a bar is located on a lot abutting an R-zoned lot, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of §65.070-C.

Figure 40-2: Screening of Bar Abutting R District



Section 40.060 Bed and Breakfasts

The supplemental use regulations of this section apply to all bed and breakfast uses.

40.060-A Bed and breakfast are limited to a maximum of 12 guest rooms unless a lower limit is established by the board of adjustment as a condition of an approved special exception.

40.060-B The maximum length of stay for any guest is limited to 30 consecutive days.

40.060-C The owner/operator must maintain a register of bed and breakfast guests and on-site events for each calendar year and make the register available to city code enforcement upon request.

40.060-D Cooking facilities are prohibited in guest rooms.

40.060-E Signs are allowed in accordance with the sign regulations of the subject zoning district unless the board of adjustment establishes stricter conditions at the time of special exception approval.

40.060-F Public restaurants are prohibited. Meals may be served only to overnight guests and for on-site events expressly authorized by the board of adjustment at the time of special exception approval. The board of adjustment may authorize bed and breakfasts to be rented for events, such as weddings, receptions, anniversaries, private dinner parties, business seminars, etc. The use of bed and breakfasts for on-site events requires express authorization of the board of adjustment, in accordance with the special exception procedures of Section 70.120. As part of approval of the special exception, the board of adjustment is authorized to establish the maximum number of on-site events per year and the maximum number of guests per any single event, based on the availability of off-street parking and the facility's likely impacts on the area.

Section 40.070 Colleges, Universities and Hospitals

Colleges, universities and hospitals are all subject to a minimum site area requirement of one acre.

Section 40.080 Commercial Services

Whenever a commercial services use is located on a lot abutting an R- or AG-R-zoned lot, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of §65.070-C.

Section 40.090 Community Garden and Farm, Market or Community Supported

The supplemental use regulations of this section apply to all community garden uses, and to all farms, market or community supported, as may be allowed in a residentially zones district.

40.090-A Unless permitted by the underlying zoning district or approved as a special exception, on-site sale of products is prohibited.

40.090-B Lawn and garden equipment of the type customarily used by consumers for household lawn and garden care is the only type of motorized equipment allowed. The use of motorized equipment is restricted to hours beginning at 8:00 a.m. and ending at 8:00 p.m.

40.090-C The site must be designed and maintained to prevent any chemical pesticide, fertilizer or other garden waste from draining on to adjacent properties.

40.090-D An on-site trash storage container must be provided and located as close as practicable to the rear lot line. Compost bins or piles must also be located as close as practicable to the rear lot line. Trash must be removed from the site at least once a week. Dumpster style trash containers are prohibited.

40.090-E Only individuals and organizations authorized by the property owner may participate in the community garden.

40.090-F A sign must be posted on the property identifying the name and phone number of the property owner or the owner's agent name. The sign must be at least 4 and no more than 8 square feet in area and be posted so that it is legible from the public right-of-way.

40.090-G The owner of any lot used for a community garden or a lot used for a farm, market or community supported, must give each abutting property owner and occupant written notice of the intent to establish a community garden or a farm, market or community supported, and the applicable use regulations of this zoning code at least 30 days before the start of the operation.

40.090-H Measures must be taken to prevent cultivated areas from encroaching onto adjacent properties.

40.090-I The property must be maintained free of tall weeds and debris. Dead garden plants must be regularly removed and, in any instance, no later than October 31 of each year.

40.090-J Within an AG-R or residential zoning district, operating hours for community garden or farm, market or community supported, activities are restricted to between 5:00 a.m. and 11:00 p.m. daily.

40.090-K Any use regulation of this section may be modified by special exception approval.

Section 40.100 Community Group Homes

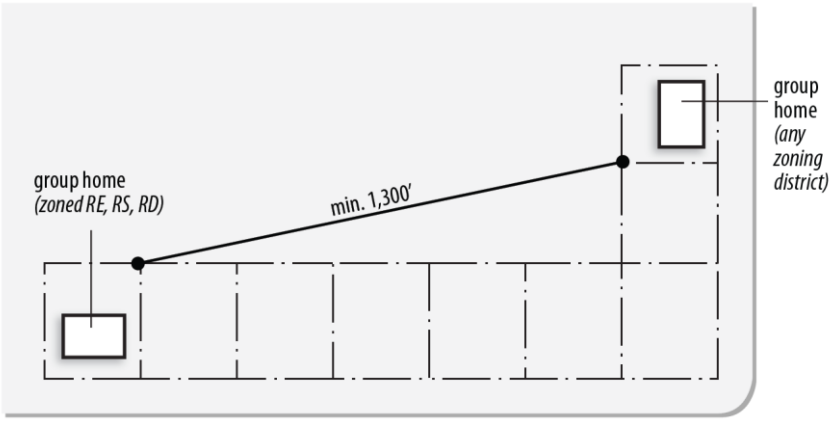
The supplemental use regulations of this section apply to all community group homes.

40.100-A The occupancy of a community group home may not exceed 15 inhabitants. Consideration of special exception approval must, at least in part, be based upon a showing that, but for the economic need associated with the number of inhabitants requested to be permitted in the proposed group home, (1) the dwelling would otherwise be available to the applicant and (2) the requested number of inhabitants is reasonably calculated to offset the increased economic costs associated with the group home use.

40.100-B Community group homes must have all licenses required by the state. A special exception granted for a community group home use will immediately become void upon final revocation of any required state license.

40.100-C To avoid over-concentration, community group homes in RE, RS or RD zoning districts may not be located within 1,300 feet of any other community group home. This separation requirement is established, not on the basis of any disability status, but on the basis of the non-family status of the groups. The required separation distance must be measured in a straight line from the nearest lot lines of the lots occupied by the community group home uses.

Figure 40-3: Required Separation of Comunity Group Homes



40.100-D In order to allow for special accommodations for inhabitants of community group homes, the board of adjustment is authorized, by special exception, to reduce or eliminate the separation distance requirement upon a finding that the federal *Fair Housing Amendments Act*, as amended, requires it, or that the grant of the special exception will not be injurious to the neighborhood or detrimental to the public welfare and will be in harmony with the spirit and intent of this zoning code. In consideration of granting this special exception, the board of adjustment must specifically consider the following factors:

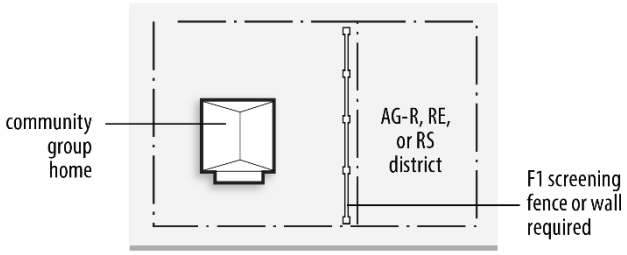
1. Traffic and parking congestion given the capacity of nearby streets;
2. The likelihood that any other applicable group home use will impact traffic and parking congestion;
3. Traffic hazards;
4. Availability of off-street parking;
5. Availability of public transit and the likelihood of its use;

6. Feasibility of traffic mitigation measures; and

7. Impacts on public utilities, including water and sanitary sewer capacities.

40.100-E When a community group home is located on a lot abutting an RE-, RS-, or AG-R-zoned lot, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of §65.070-C.

Figure 40-4: Screening of Community Group Home Abutting RE, RS, or AG-R Districts



Section 40.110 Cottage House Developments

Cottage house developments are subject to the lot and building regulations in Table 5-3, except as expressly modified by the regulations of this section.

40.110-A Purpose

The cottage house development regulations of this zoning code are intended to provide opportunities for individual ownership of small houses oriented around a courtyard or common open area.

40.110-B Development Size

On lots with one or more cottage house grouping(s), each grouping must contain at least 3 and no more than 10 houses arranged around at least 2 sides of a courtyard or common open space.

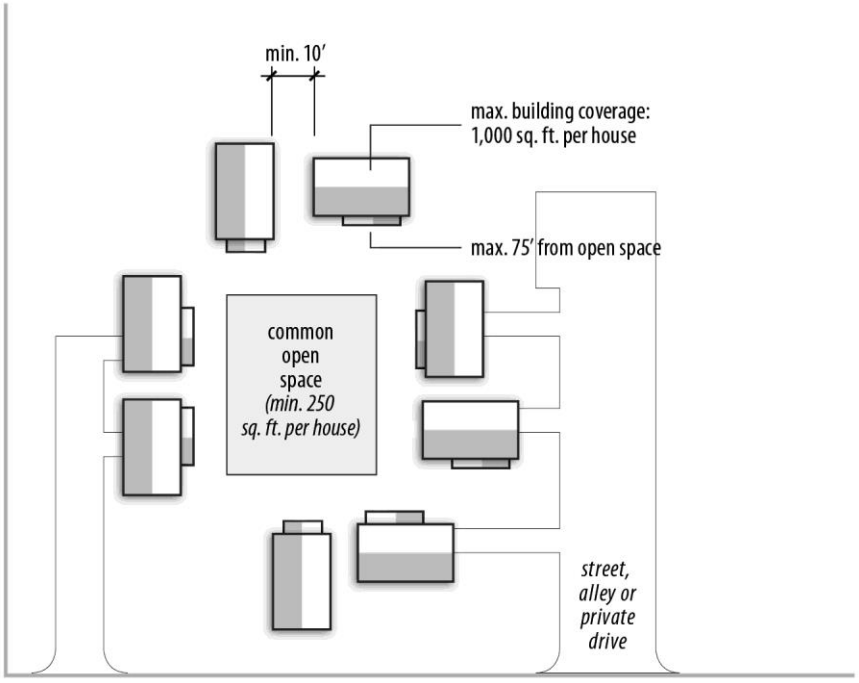
40.110-C Orientation of Cottage Houses

1. Cottage houses must be oriented to, and have a main entry onto a courtyard or common open space area that is accessible by all residents in the cottage house development, provided that cottage houses on lots abutting minor streets must have their front building elevation facing the street, including a building entrance, with a second entrance facing a courtyard or common open space area.

2. Required courtyards and common open space areas must have cottage houses abutting on at least 2 sides.

3. All cottage houses must be located within 75 feet walking distance of a required courtyard or common open space area.

Figure 40-5: Cottage House Developments



40.110-D Open Space

A unified, contiguous courtyard or common open space must be provided as the focal point of the cottage house development. The courtyard or common open space area must contain at least 250 square feet of common open space per cottage house.

40.110-E Building Setbacks and Separation

All buildings within a cottage house development must comply with the minimum building setbacks that apply to detached houses in the subject zoning district, except that no building setback is required from an alley. Buildings within a cottage house development must be separated by a minimum distance of 10 feet.

40.110-F Building Coverage

Individual cottage houses are subject to a maximum first floor area of 1,000 square feet. Attached garages are counted in the calculation of first floor area, but covered porches and detached accessory buildings are not counted.

40.110-G Vehicular Access and Parking

1. Vehicular access to parking areas serving cottage houses within the development may come from the street, an alley or a private drive.
2. Required parking may be provided on each cottage house lot or in a shared parking area located within commonly owned space or in a combination of the two. Common parking areas containing 4 or more spaces must be screened from view of abutting R- or AG-R-zoned lots in accordance with the F1 screening fence or wall standards of §65.070-C. Parking may not be located in street yards or in the required courtyard or common open space area.

40.110-H Restrictive Covenants

A cottage house development is permitted only if a subdivision plat or other recorded legal instrument incorporating the provisions and requirements of this section (Section 40.110) is recorded in the county clerk's office.

Section 40.120 Day Cares

40.120-A Child Care Centers

When a child care center is located inside an R or AG-R zoning district, outdoor child play equipment may not be located or stored in the street yard. See also the family child care home regulations of Section 40.120-B.

40.120-B Family Child Care Homes

1. When a family child care home is located inside an R or AG-R zoning district, outdoor child play equipment may not be located or stored in the street yard.
2. Family child care homes must be licensed by the State of Oklahoma.
3. Applicants for family child care homes must obtain a zoning clearance permit and a certificate of occupancy before commencing operation.
4. Family child care homes may provide care and supervision for the number of children authorized under the state license, up to a maximum of 12 children.
5. When a family child care home is located in an AG, AG-R or R zoning district, signs advertising a Family Child Care home are prohibited.
6. When a family child care home is located in an AG, AG-R or R zoning district, no exterior building alterations or site modifications may be made that would change the residential character of the premises.

Section 40.130 Dispersal Standards for Specified Land Uses

40.130-A The supplemental use regulations of this section apply to all detention and correctional facilities, emergency and protective shelters, homeless centers, residential treatment centers and transitional living center uses.

40.130-B To avoid over-concentration, all detention and correctional facilities, emergency and protective shelters, homeless centers, residential treatment centers and transitional living center uses must be separated from one another by a minimum distance of 2,640 feet, as measured in a straight line from the nearest point on the lot line of the property occupied by one of these uses to the nearest point on a lot line of the other property occupied by one of the subject uses (see Figure 40-6). The separation distance requirements of this subsection may be reduced if approved through the special exception approval process.

Figure 40-6: Dispersal Standards Measurement



Section 40.140 Fraternal Organizations

Fraternal organizations require a minimum lot area of one acre in AG, RE and RS zoning districts.

Section 40.150 Funeral Homes

Funeral homes may be approved as a special exception in any cemetery with a land area of 10 acres or more, provided that special exception approval is not required for a funeral home use if the use is permitted as of right in the subject zoning district.

Section 40.160 Group Living Uses

Whenever any group living use is located on a lot abutting an RE-, RS-, or AG-R- zoned lot, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of §65.070-C.

Section 40.170 Hotel or Motel

Whenever a hotel or motel use is located on a lot abutting an R- or AG-R-zoned lot, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of §65.070-C.

Section 40.180 Industrial Uses

40.180-A Whenever any industrial use, other than a junk or salvage yard, is located on a lot abutting an R- or AG-R- zoned lot, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of §65.070-C. Junk and salvage yards are subject to the regulations of Section 40.190.

40.180-B Industrial uses located within 300 feet of an abutting R- or AG-R- zoned lot must be conducted within a completely enclosed building, except for storage, loading and off-loading areas.

Section 40.190 Junk or Salvage Yards

The supplemental use regulations of this section apply to all junk or salvage yards.

40.190-A Junk or salvage yards must be screened from view of abutting streets and all AG, AG-R, R, PK, O, C, CBD, SR, IL and CO zoning districts by the erection and maintenance of a screening wall or fence that is:

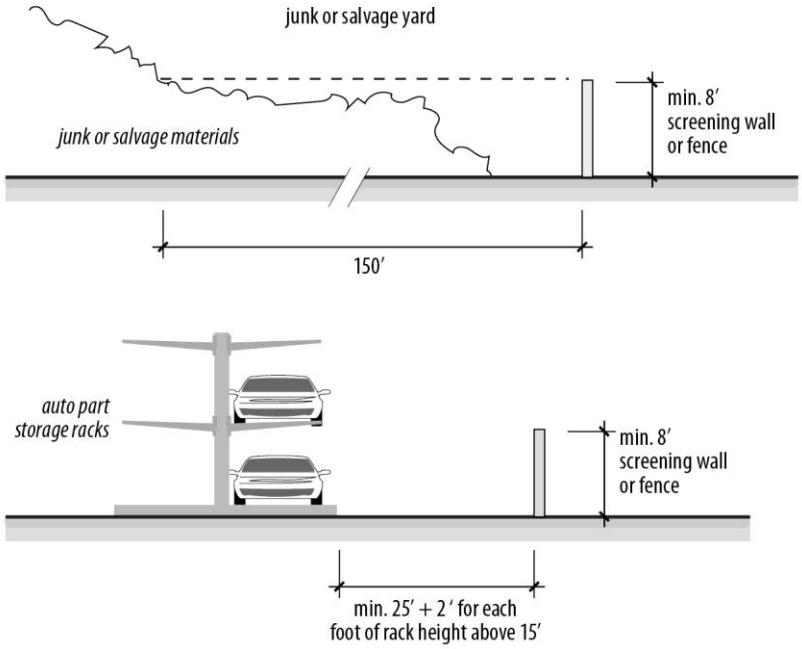
1. At least 8 feet in height;

2. Made of wood, metal, or masonry construction;
3. Designed and arranged to provide opaque visual screening;
4. Uniform in height, except in response to significant changes in topography;
5. Constructed with all braces and supports on the interior of the fence or wall; and
6. Erected before occupancy of the building or initiation of the junk or salvage yard use.

40.190-B Required screening walls and fences must be maintained by the owner of the lot containing the use requiring the screening.

40.190-C The piling of junk or salvage materials may not exceed the height of the required screening wall or fence within 150 feet of the boundary required to be screened, except that storage racks designed for the stacking of automotive front-ends, hoods, doors, quarter panels, and similar parts that exceed the height of the screening wall or fence, must be set back at least 25 feet from abutting R- or AG-R-zoned lot and street rights-of-way, plus 2 additional feet of setback for every foot of rack height above 15 feet.

Figure 40-7: Screening and Setback Requirements for Junk and Salvage Material



40.190-D The board of adjustment is authorized as a special exception to:

1. Modify or eliminate the screening wall or fence requirements where existing physical features, such as trees and other plant materials, buildings, earthen berms or hills, provide equivalent visual screening;
2. Modify the screening wall or fence requirements when alternative screening will provide equivalent visual screening, such as:
   a. Dense landscaping, or

b. A 6-foot privacy wall or fence;

3. Grant an extension of time to erect a screening wall or fence when properties, other than streets, are undeveloped and no immediate plans for development are known or anticipated; or

4. Eliminate the screening wall or fence requirements when the purpose of the screening requirement cannot be achieved, such as when a street is elevated, or when the required screening wall or fence is prohibited by other regulations, such as in floodplains.

Section 40.200 Library or Cultural Exhibit

Museums, planetariums, aquariums and other cultural exhibit uses require a minimum lot area of one acre in AG, AG-R, RE and RS zoning districts.

Section 40.210 Manufactured Housing Units

The supplemental regulations of this section apply only to manufactured housing units approved as special exception uses in R or AG-R zoning districts.

40.210-A No more than one manufactured housing unit may be located on a lot.

40.210-B Manufactured housing units are required to comply with the same lot and building regulations that apply to detached houses in the subject zoning district.

Section 40.220 Manufactured Housing Subdivisions

The supplemental use regulations of this section apply to all manufactured housing subdivisions.

40.220-A Manufactured housing subdivisions require a minimum contiguous land area of 10 acres.

40.220-B All manufactured housing units in manufactured housing subdivisions must be attached to a permanent foundation and comply with the same lot and building regulations that apply to detached houses in the subject zoning district.

Section 40.225 Medical Marijuana Uses

The supplemental use regulations of this section apply to medical marijuana uses.

40.225-A A medical marijuana grower operation must be located inside an enclosed building.

40.225-B A medical marijuana processing facility, whether low-impact or high-impact, must be located inside an enclosed building.

40.225-C A medical marijuana dispensary must be located inside an enclosed building.

40.225-D A medical marijuana dispensary may not be located within 1,000 feet of another medical marijuana dispensary.

40.225-E Drive-through windows and drive-through lanes are prohibited for medical marijuana grower operations, processing facilities, and research facilities.

40.225-F Medical marijuana grower operations, processing facilities, waste disposal facilities, and dispensaries must provide the following:

1. A ventilation/air filtration system that prevents odor from being detectible at the boundaries of the lot within which the building housing the medical marijuana grower operation, processing facility or dispensary is located, except that if such use is located in a multiple-tenant building, the ventilation/air filtration system must prevent odor from being detectible outside the tenant space housing the use.
2. An electronic security system and surveillance camera.

40.225-G Medical marijuana grower operations, processing facilities, dispensaries, transportation facilities, education facilities, waste disposal facilities, testing laboratories, and research facilities must be conducted and maintained in compliance with the licenses issued by the Oklahoma Medical Marijuana Authority and in compliance with Oklahoma law, including but not limited to all applicable statutes, rules and regulations.

40.225-H No medical marijuana grower operation, processing facility, dispensary, transportation facility, education facility, waste disposal facility, testing laboratory, or research facility shall be permitted or maintained unless there exists a valid license, issued by the Oklahoma Medical Marijuana Authority for the particular use at the particular location.

40.225-I The separation distance required under Section 40.225-D must be measured in a straight line between the nearest perimeter walls of the buildings (or portion of the building, in the case of a multiple-tenant building) occupied by the dispensaries. The separation required under Section 40.225-D shall not be applied to limit the location of a medical marijuana dispensary for which a license was issued by the Oklahoma State Department of Health prior to December 1, 2018 for the particular location.

40.225-J A medical marijuana waste disposal facility must be located inside an enclosed building.

Section 40.230 Mining or Mineral Processing

As part of the special exception review and approval process for any mining or mineral processing use, the board of adjustment must consider potential environmental impacts, such as noise, dust and vibration, and is authorized to establish conditions of approval (e.g., setbacks, screening, and methods of operation) to help control and mitigate any adverse land use or environmental impacts on surrounding areas.

Section 40.240 Mobile Home Parks

The supplemental regulations of this section apply to all mobile home parks.

40.240-A All mobile homes and manufactured housing units must be completely skirted.

40.240-B All mobile homes and manufactured housing units must be anchored in accordance with city regulations.

40.240-C All housing units must be certified and display applicable federal certifications.

40.240-D The lot and building regulations of Table 40-1 apply to the overall mobile home park site:

Table 40-1: Mobile Home Park Lot and Building Regulations

Regulations	
Minimum Area (acres)	5
Minimum Width (feet)	200
Minimum Lot Area per Unit (sq. ft.)	5,000
Minimum Building Setbacks (feet)	
Street (Arterial/Freeway)	35
Street (Non-Arterial/Freeway)	20
Side (interior)	10
Rear	10
Maximum Building Height (feet)	15

40.240-E The lot and building regulations of Table 40-2 apply to individual mobile home and manufactured housing unit spaces within a mobile home park:

Table 40-2: Mobile Home and Manufactured Housing Unit Space Regulations

Regulations	
Minimum Area (sq. ft.)	4,000
Minimum Width (feet)	40
Minimum Building Setbacks (feet)	
Street	10
Side (interior)	5/10[1]
Rear	10
Minimum Separation Between Units (feet)	15
Maximum Under-Roof Area [2] (% of space)	45
Minimum Outdoor Living Area [3] (sq. ft.)	100

Table 40-2 apply to individual mobile home and manufactured housing unit spaces within a mobile home park:

Table 40-2 Notes

[1] Minimum 5 feet on one side, 10 feet on the other.

[2] Includes dwellings, carports and all other accessory buildings.

[3] May be covered by roof or awning. May be paved but may not include parking or driveway areas. Must have average dimensions of 10 feet per side.

40.240-F Accessory buildings must be set back at least 10 feet from manufactured housing units.

40.240-G Streets within the mobile home park must have a minimum paved width of 24 feet.

40.240-H Common park/recreational open space and facilities (which may include trails, playgrounds, community buildings and tot-lots) must be provided for all mobile home parks equal to at least 6% of the total gross area of the mobile home park, exclusive of outdoor living area provided on individual mobile home/manufactured unit spaces.

Section 40.250 Multi-unit Houses

Multi-unit houses are subject to the lot and building regulations of the subject zoning district, except as expressly modified by the supplemental regulations of this section.

40.250-A The street-facing façade of a multi-unit house may have only one building entrance that is visible from the street. If the building is located on a corner lot, one building entrance may be visible from each street.

40.250-B Patio-style doors, such as sliding glass doors, may not be used for entrance doors on building façades that face a street.

40.250-C The front façade of new multi-unit houses established after the effective date established in Section 1.030 may not exceed 60 feet in width.

40.250-D Outdoor (surface) parking areas may not be located between the principal building and the street or within any required side building setback.

Section 40.260 Offices

The supplemental use regulations of this section apply to office uses in the districts indicated.

40.260-A Office uses in the RM-1 district must comply with the lot and building regulations of the OL district.

40.260-B Office uses in the RM-2 district must comply with the lot and building regulations of the OM district, except that no building occupied by office uses may exceed 35 feet in height.

40.260-C Office uses in the RM-3 district must comply with the lot and building regulations of the OMH district.

40.260-D Whenever an office use is located on a lot abutting an R- or AG-R- zoned lot, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of §65.070-C.

Section 40.270 Oil or Gas Wells

Oil and gas wells and oil and gas well drilling operations are subject to the regulations of Title 42A of the Tulsa Revised Ordinances.

Section 40.280 Parking Structures

The supplemental use regulations of this section apply only to parking structures located in MX districts.

40.280-A The ground floor of parking structures must be screened from view of abutting public sidewalks by a liner building. The floor space within the liner building may be occupied by any principal use allowed in the district, except for parking.

40.280-B The street-facing facade of parking structures must be oriented horizontally (maintain a horizontal line) on all street-facing facades, so that the sloping nature of parking floors is not repeated on the exterior facade. This requirement does not apply to helix-shaped ramps leading to and from parking floors and may be waived or modified in accordance with the administrative adjustment provisions of Section 70.100 when compliance would result in a reduction in the number of parking spaces or necessitate mechanical ventilation of the garage.

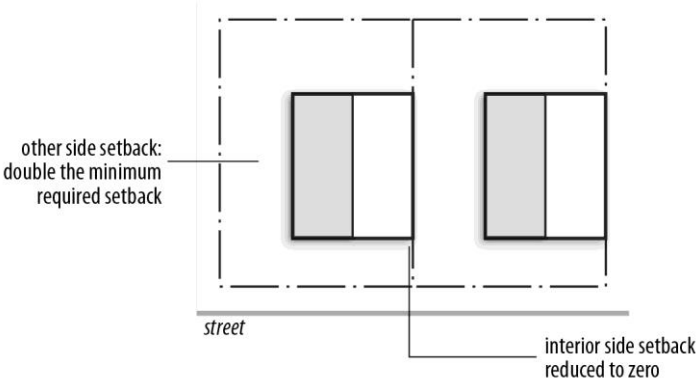
Section 40.290 Patio Houses

Patio houses are subject to the lot and building regulations of the subject zoning district, except as expressly modified by the supplemental patio house regulations of this section.

40.290-A A patio house development must consist of at least 3 contiguous lots with frontage on the same street.

40.290-B The interior side building setback on one side of the lot containing a patio house may be reduced to as little as zero. The zero- or reduced setback side of a patio house may not abut a street and may not abut a lot that is not part of the patio house development. On the "non-zero" side, a side building setback must be provided equal to at least twice the minimum side building setback requirement of the subject zoning district.

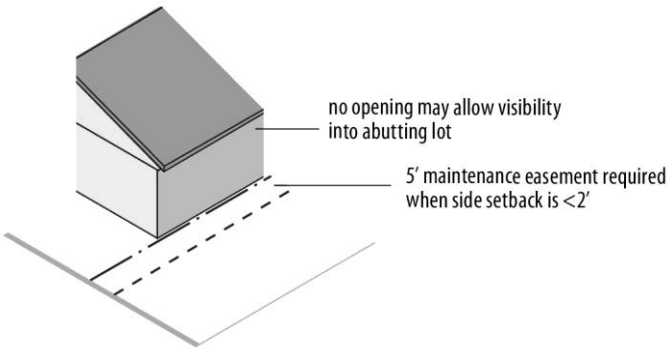
Figure 40-8: Minimum Side Building Setbacks for Patio Houses



40.290-C When the patio house's exterior wall or eaves are within 2 feet of the abutting property line, a perpetual maintenance easement at least 5 feet in width must be provided on the lot abutting the zero patio property line, which, with the exception of walls and/or fences, must be kept clear of structures. The easement must be depicted on and established in a recorded plat or a separate legal instrument recorded in the county clerk's office. This provision is intended to ensure the ability to conduct maintenance on the patio house. Eaves on the side of a patio house with a zero or reduced setback may project over the side property line only if shown on the easement required under this paragraph.

40.290-D Windows, doors and other openings that allow for visibility into the side yard of the lot abutting the reduced or zero setback side of the patio house are prohibited. Windows that do not allow visibility into the side yard of the lot abutting the zero or reduced setback side, such as clerestory windows or translucent windows, are allowed, subject to compliance with the building code.

Figure 40-9: Patio House Maintenance Easements and "Privacy" Requirements



40.290-E A patio house development is permitted only if a subdivision plat or other recorded legal instrument incorporating the provisions and requirements of this section (Section 40.290) is recorded in the county clerk's office.

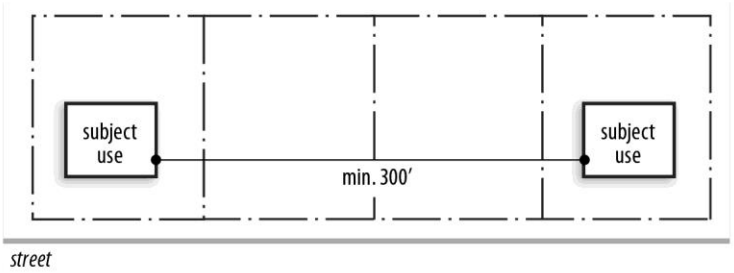
Section 40.300 Plasma Centers, Day Labor, Package Stores, Bail Bonds, Pawn Shops

The supplemental use regulations of this section apply to all plasma centers, day labor hiring centers, package stores, bail bond offices and pawn shops.

40.300-A Plasma centers, day labor hiring centers, package stores, bail bond offices and pawn shops must be separated by a minimum distance of 300 feet, provided that bail bond offices located within the CBD district are not subject to this separation requirement.

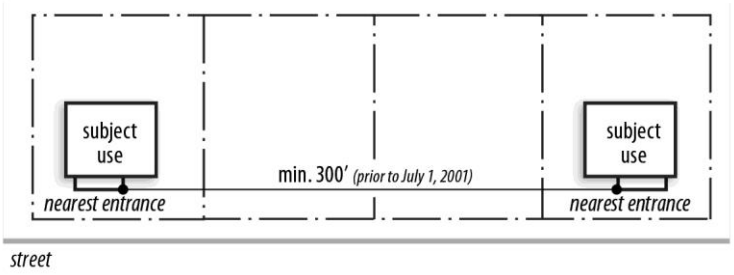
40.300-B For uses established after July 1, 2001, the separation distance requirement of 40.300-A must be measured in a straight line from the nearest perimeter wall of the portion of the building occupied by one of the subject uses to the nearest perimeter wall of the portion of the building of any other subject use.

Figure 40-8: Measurement of Required Use Separation (Permits Issued after 7/1/2001)



40.300-C For uses that were in operation or had been issued a building permit on or before July 1, 2001, the separation distance requirement of 40.300-A must be measured in a straight line from the nearest public entrance door of one of the subject uses to the nearest public entrance door of any other subject use.

Figure 40-9: Measurement of Required Separation (Uses Established/Permits Issued on or before 7/1/2001)



Section 40.310 Recycling Uses

40.310-A Whenever any recycling use is located on a lot abutting an R- or AG-R- zoned lot, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of §65.070-C.

40.310-B Recycling uses located within 300 feet of an abutting R- or AG-R- zoned lot must be conducted within a completely enclosed building, except for storage, loading and off-loading areas.

Section 40.320 Religious Assembly

The supplemental use regulations of this section apply to religious assembly uses in AG and R districts.

40.320-A In AG and R zoning districts, religious assembly uses must be located on lots with a minimum lot area of one acre and a minimum lot width of 100 feet.

40.320-B In AG and R zoning districts, off-street parking on the site of a religious assembly use is prohibited in street building setbacks.

Section 40.330 Restaurants

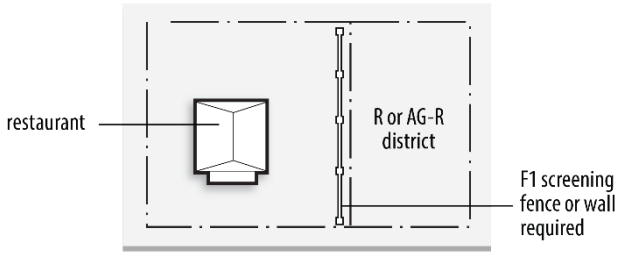
The supplemental use regulations of this section apply to all restaurant uses.

40.330-A Restaurants must occupy completely enclosed buildings, except outdoor customer seating/dining, including rooftop seating, is permitted subject to the following regulations:

1. Outdoor customer seating/dining areas are subject to all applicable building setback requirements and must abut the building wall or roof area of the principal building;
2. Outdoor customer seating/dining areas may not occupy required parking spaces or drive aisles or be located within 50 feet of R- or AG-R- zoned lots;
3. When a restaurant is located on a lot abutting an R- or AG-R- zoned lot, noise emanating from any onsite equipment or activity, including outdoor customer seating/dining areas may not exceed 65 db(A), as measured along the common lot line at the top of the required screening wall or fence.

40.330-B Whenever a restaurant is located on a lot abutting an R- or AG-R- zoned lot, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of §65.070-C.

Figure 40-10: Screening of Restaurant Abutting R or AG-R Districts



Section 40.340 Retail Sales

40.340-A Whenever a retail sales use is located on a lot abutting an R- or AG-R- zoned lot, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of §65.070-C.

40.340-B Retail sales uses must take place within a completely enclosed building, except that accessory outdoor display of merchandise and accessory outdoor customer seating/dining areas are permitted, subject to the following supplemental regulations:

1. Outdoor display areas must comply with the minimum street setback requirements of the subject zoning district;
2. Outdoor display areas may not occupy or use required parking spaces or drive aisles;
3. Outdoor display areas are considered floor area for the purposes of determining off-street parking requirements; and
4. Outdoor customer seating/dining areas are subject to the same requirements that apply to restaurants, per 40.330-A.

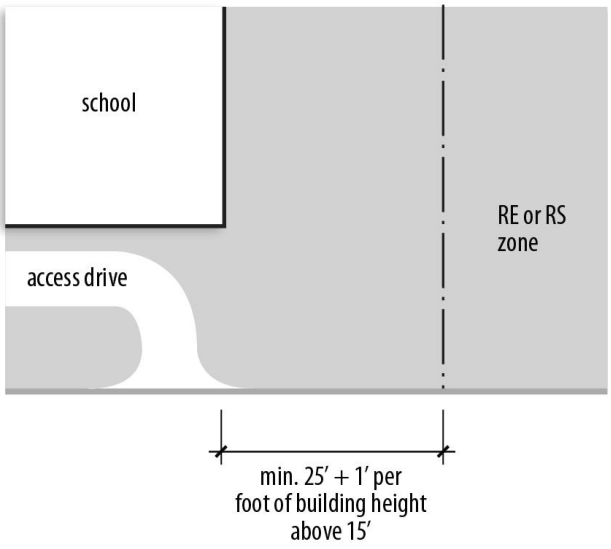
Section 40.350 Schools

40.350-A Schools Established Before January 1, 1998

Schools established before January 1, 1998 are subject to a maximum floor area ratio of 0.5 and to the following supplemental use regulations:

1. Day care uses and community centers may be allowed as accessory uses to a school. Outdoor stadiums, lighted athletic fields, unlighted athletic fields that have bleachers for non-student spectators and buildings and structures accessory to these types of stadiums or fields may not be approved as accessory uses to a school.
2. Buildings, parking areas and access drives must be set back at least 25 feet from abutting RE- and RS-zoned properties, plus one foot of additional building setback for each one foot of building height above 15 feet. These setback and height requirements do not apply if the RE- or RS-zoned land is freeway or expressway right-of-way.

Figure 40-11: Required Building Setbacks from RE and RS Zoning Districts (Schools)



40.350-B Schools Established on or After January 1, 1998

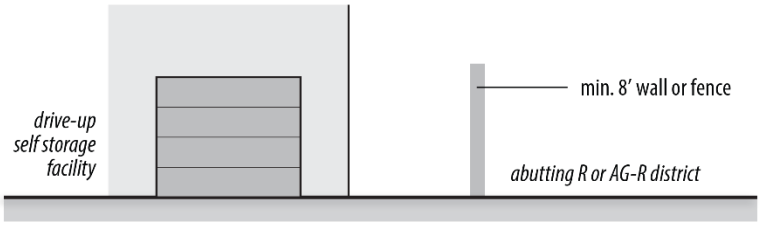
Schools established on or after January 1, 1998 require a minimum lot area of one acre, and lots to be occupied by senior high schools must have frontage on an arterial street.

Section 40.360 Self-Service Storage Facilities

40.360-A General

1. The general provisions of this section apply to all self-service storage facilities.
2. A screening fence or masonry wall is required along all lot lines that abut R- or AG-R- zoned lots. Required screening fences and walls must be at least 8 feet in height. If buildings are masonry, the building wall can serve as the screening wall, provided that any open spaces between perimeter buildings are screened with a masonry screening wall at least 8 feet in height. The screening fence/wall requirements of this section do not apply to climate-controlled self-storage buildings in which self-storage spaces are accessed only from within the building.

Figure 40-12: Screening of Drive-up Style Self-Storage Facilities from Abutting R or AG-R Districts



3. A single dwelling unit may be integrated into the self storage facility.
4. No activities other than storage and pick-up and deposit of stored materials are allowed within the storage units.

40.360-B RM and O Districts

Self-service storage facilities located in RM or O zoning districts are subject to the following additional requirements:

1. Exterior building walls visible from streets and abutting lots must be of masonry construction, using brick, stone, stucco or concrete tilt-up panels. Corrugated steel or standard (smooth) concrete block exterior walls are not permitted on these walls.
2. The floor area ratio (FAR) may not exceed 0.5.
3. Access doors to drive-up style storage units may not be visible at ground-level from abutting O-, R-, or AG-R- zoned lots or from abutting street rights-of-way.
4. The storage of flammable liquids, highly combustible, explosive materials or hazardous chemicals is prohibited.
5. In RM-1 and OL districts storage may only occur within completely enclosed buildings. All storage in RM-2, RM-3, OM, OMH or OH districts must also occur in completely enclosed buildings, except that outdoor (open-air) storage is

allowed on the interior of the lot if the storage is not visible at ground level from abutting R, O, or AG-R districts or from any street rights-of-way.

40.360-C CS District

In the CS district, no outdoor (open-air) storage of any kind is allowed that is visible at ground level from abutting R, O, or AG-R districts or from any street rights-of-way.

Section 40.370 Sexually Oriented Business Establishments

The supplemental use regulations of this section apply to all sexually oriented business establishments.

40.370-A Sexually oriented business establishments are allowed only in those districts and under those approval procedures expressly stated in this zoning code. In addition, no person may exercise supervisory control, manage, operate, cause the establishment or permit the establishment of any sexually oriented business establishment within 1,000 feet (the "minimum separation distance") of any of the following:

1. Another sexually oriented business. The minimum separation distance must be measured in a straight line from the nearest point of the wall of the portion of the building occupied by a sexually oriented business establishment to the nearest point of the wall of the portion of the building occupied by another sexually oriented business establishment.
2. A religious assembly use, including all contiguous property owned or leased by the religious organization upon which the principal religious assembly building is located, regardless of any interior lot lines. The minimum separation distance must be measured in a straight line from the nearest point of the wall of the portion of the building occupied by a sexually oriented business establishment to the nearest point of the building in which religious assembly activities occur.
3. A school, including all contiguous property owned or leased by the school upon which the principal school building is located, regardless of any interior lot lines. The minimum separation distance must be measured in a straight line from the nearest point of the wall of the portion of the building occupied by a sexually oriented business establishment to the nearest point of the school.
4. A public or private park. The minimum separation distance must be measured in a straight line from the nearest point of the wall of the portion of the building occupied by a sexually oriented business establishment to the nearest point on the property of the park.
5. Residential zoning or a habitable dwelling unit in an AG or AG-R zoning district. The minimum separation distance must be measured in a straight line from the nearest point of the wall of the portion of the building occupied by a sexually oriented business establishment, to the nearest point on an R district boundary line (not including R-zoned expressway right-of-way) or to the nearest point of the exterior wall of a habitable dwelling located in an AG or AG-R zoning district.

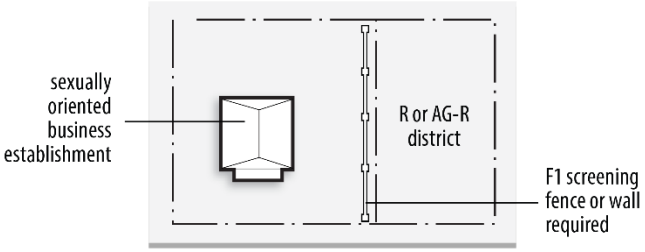
6. Any group living use or public, civic or institutional use that cares for or is typically frequented by persons under 18 years of age, including child day cares, children's preschools, children's nurseries, children's day camps, juvenile delinquency centers, children's campgrounds, children's group homes, libraries and cultural exhibits. The minimum separation distance must be measured in a straight line from the nearest point of the wall of the portion of the building occupied by a sexually oriented business establishment to the nearest point on the property occupied by the use that cares for or is typically frequented by persons under 18 years of age.

40.370-B The separation distance requirements of this section apply to new sexually oriented business establishments, the relocation of sexually oriented business establishments, the enlargement of sexually oriented business establishments in scope or area or the conversion of an existing business location to any sexually oriented business establishment.

40.370-C If a new religious assembly use, school, park or protected group living use or public, civic or institutional use is established within 1,000 feet of an existing lawful sexually oriented business establishment, the distance separation requirements from religious assembly uses, schools, parks or protected group living uses or public, civic or institutional uses do not apply.

40.370-D When a sexually oriented business establishment is located on a lot abutting an R- or AG-R- zoned lot, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of §65.070-C.

Figure 40-13: Screening of Sexually Oriented Business Establishments



Section 40.375 Short-Term Rental

The supplemental use regulations of this section apply to all principal use short-term rentals.

40.375-A A short-term rental must comply with all licensing requirements of the City of Tulsa and an approved license number must be included with any material advertising the short-term rental.

40.375-B Events are not permitted in conjunction with a short-term rental use. Examples of events include, but are not limited to, weddings, receptions, anniversaries, private parties, banquets, and business seminars.

40.375-C A register of short-term rental guests must be maintained and made available to city code enforcement upon request.

40.375-D External structural alterations or site improvements that change the residential character of the lot upon which a short-term rental is located are prohibited. Examples of such prohibited alterations include, but are not limited to, the construction of a parking lot, the addition of commercial-like exterior lighting, and signage.

40.375-E No recreational vehicle, bus, or trailer shall be parked on a residential street in conjunction with a short-term rental use. A recreational vehicle, bus or trailer may be parked on the property if not visible from the street.

Section 40.380 Studios, Artist or Instructional Services

Whenever an artist studio or an instructional services studio is located on a lot abutting an R- or AG-R- zoned lot, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of §65.070-C.

Section 40.390 Townhouses

40.390-A Applicability

Townhouses are subject to all applicable regulations of this zoning code and other city codes and ordinances except as modified or supplemented by the townhouse development and building regulations of this section.

40.390-B Side Setbacks

No side building setback is required for common or abutting walls. Otherwise, the minimum side setback requirements of the subject zoning district apply.

40.390-C Design

Townhouses must be affixed to a permanent foundation.

40.390-D Open Space

Required open space per dwelling unit for a townhouse project may be provided either on each townhouse lot or in common areas within the overall townhouse project, as designated on a recorded subdivision plat or in a separately recorded legal instrument.

Section 40.400 Vehicle Sales and Service

40.400-A Whenever a vehicle sales and service use is located on a lot abutting an R- or AG-R- zoned lot, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of §65.070-C.

40.400-B Whenever commercial or personal vehicle sales or rentals are within 300 feet of an R- or AG-R- zoned lot, off-street parking and vehicle display areas must comply with the parking area design standards of Section 55.090.

Section 40.410 Wholesale, Distribution & Storage Uses

Whenever any wholesale, distribution & storage use is located on a lot abutting an R- or AG-R- zoned lot, a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of §65.070-C.

Section 40.420 Wireless Communication Facilities

40.420-A Purpose

The wireless communication facility regulations of this section establish supplemental regulations governing wireless communications towers and antennas. These regulations are established to promote the following goals:

1. Protecting residential areas and land uses from potentially adverse impacts of towers and antennas;
2. Encouraging the location of towers in nonresidential areas;
3. Minimizing the total number of towers;
4. Encouraging co-location rather than the construction of additional single-use towers;
5. Encouraging users of towers and antennas to locate them, to the extent possible, in areas where the adverse impact on the community is minimal;
6. Encouraging users of towers and antennas to configure them in a way that minimizes the adverse visual impact of the towers and antennas through careful design, siting, landscape screening and innovative camouflaging techniques; and
7. Helping to ensure the ability of telecommunications services providers to offer such services to the community quickly, effectively and efficiently.

40.420-B Exemptions

The following are exempt from these regulations:

1. Amateur (Ham) radio antennas;
2. Microwave reflectors and parabolic antennas;
3. Antennas and equipment located completely inside of buildings; and
4. Minor modifications of existing wireless communications facilities and attached wireless communications facilities, whether emergency or routine, provided there is little or no change in the visual appearance. Minor modifications are those modifications, including the addition of antennas, to conforming wireless and attached wireless communications facilities that comply with all applicable regulations of this section.

40.420-C Federal Law

The wireless communication facility regulations of this section must be applied within the constraints of the *Telecommunications Act of 1996* and Section 6409 of the *Middle Class Tax Relief and Job Creation Act of 2012*.

40.420-D Special Definitions

The following definitions are established solely for administering and interpreting the wireless communication facility regulations of this section.

1. "Antenna" means any exterior transmitting or receiving device used in communications to radiate or capture electromagnetic waves, digital signals,

analog signals, radio frequencies, wireless telecommunications signals or other communication signals.

2. "FAA" means the Federal Aviation Administration.
3. "FCC" means the Federal Communications Commission.
4. "Height," when referring to a tower or wireless communication facility, means the distance from finished grade at the base of the tower or facility, including any base pad, to the highest point of the structure.
5. "Monopole" means a single, freestanding pole structure without guy wires or external supporting braces.
6. "Tower" means any structure more than 20 feet tall that is designed and constructed primarily for the purpose of supporting one or more antennas for telephone, radio and similar communication purposes, including self-supporting lattice towers, guyed towers or monopole towers. The term includes radio and television transmission towers, microwave towers, common-carrier towers, cellular telephone towers and the like. The term includes the tower structure and any tower supports.

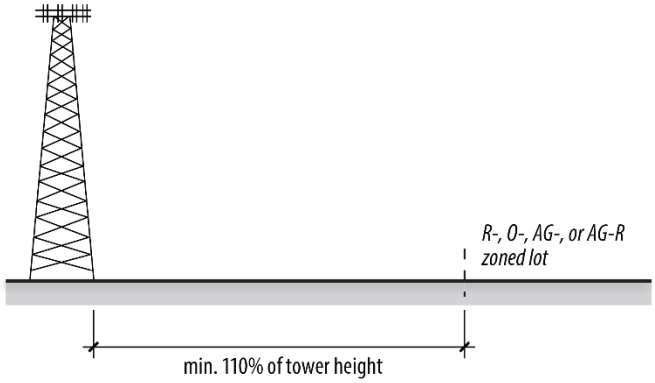
40.420-E General Requirements

All towers and antennas are subject to the general requirements of this subsection unless otherwise expressly stated.

1. Towers may be considered either principal or accessory uses. Another principal or accessory use on the same lot does not preclude the installation of a tower on that lot.
2. Towers and antennas are subject to all of the following requirements:
   a. Towers and antennas must be designed to blend into the surrounding environment through the use of color, galvanizing, or camouflaging architectural treatment, except in instances where the color is dictated by federal or state authorities, such as the Federal Aviation Administration.
   b. Except in IL, IM and IH zoning districts, communication towers must be of a monopole design unless the board of adjustment approves, by special exception, an alternative design that they determine would better blend into the surrounding environment or that the required antennas cannot be supported by a monopole.
   c. Towers that are accessory to a data center use shall not exceed 100 feet in height and shall not be located within 200 feet of the property boundary, unless the board of adjustment approves, by special exception, such additional height and/or location.
   d. If an antenna is installed on a structure other than a tower, the antenna and supporting electrical and mechanical equipment must be of a color that closely matches or complements the color of the supporting structure, so as to make the antenna and related equipment as visually unobtrusive as possible.

3. Towers may not be illuminated by artificial means and may not display strobe lights unless such lighting is expressly required by the Federal Aviation Administration or other federal or state authorities. When incorporated into the approved design of the tower, light fixtures used to illuminate ball fields, parking lots or similar areas may be attached to the tower.
4. The use of any portion of a tower for advertising or signs other than warning or equipment information signs is expressly prohibited.
5. All utility buildings and structures accessory to a tower must comply with all applicable requirements of the underlying zoning district. Exterior ground-mounted equipment occupying more than 50 square feet, if visible from ground level, must be screened from view of abutting property used or zoned for residential purposes by a screening wall or fence in accordance with the F1 screening fence or wall standards of §65.070-C.
6. The following setback requirements apply to all towers unless otherwise expressly approved by the board of adjustment as part of the special exception approval:
   a. Towers must be set back a distance equal to at least 110% of the height of the tower from any adjoining lot line of an R-, O-, AG-, or AG-R- zoned lot, excluding R-zoned expressway rights-of-way.
   b. Accessory buildings are subject to applicable zoning district building setback requirements.

Figure 40-14: Tower Setback from R, O, AG, or AG-R districts



7. Towers must be enclosed by security fencing that is at least 6 feet in height or be equipped with an appropriate anti-climbing device.

40.420-F Antennas and Towers Requiring Special Exception Approval

1. Applicability

The regulations of this subsection (40.420-F) apply to all antennas and towers that require special exception approval.

2. Factors to be Considered

a. In addition to any other applicable requirements, the following factors must be considered in a decision to approve or deny special exception approval for a tower:

(1) Height of the proposed tower;

(2) Proximity of the tower to residential structures, residential district boundaries and existing towers;

(3) Nature of uses on adjacent and nearby properties;

(4) Surrounding topography;

(5) Surrounding tree coverage and foliage;

(6) Design of the tower, with particular reference to design characteristics that have the effect of reducing or eliminating visual obtrusiveness;

(7) The total number and size of antennas proposed and the ability of the proposed tower to accommodate co-location;

(8) Architectural design of utility buildings and accessory structures to blend with the surrounding environment;

(9) Proposed ingress and egress;

(10) The need for a tower within the immediate geographic area to provide an acceptable level of communications service to the area;

(11) The size of the tract and the most likely future development as indicated by the comprehensive plan, planned infrastructure, topography and other physical considerations.

Findings

The findings of the board of adjustment as to each of these factors must be made on the record and included in the written minutes of the meeting.

3. Co-location

Co-location of facilities is encouraged wherever practical by allowing reasonable extra height or tower diameter necessary to support multiple antennas.

4. Landscaping

The following requirements govern landscaping surrounding towers that require special exception approval; provided that the board of adjustment may modify or waive such requirements by special exception.

a. Tower facilities must be landscaped with a continuously maintained buffer of plant materials that effectively screens the view of the tower compound from property within 300 feet used or zoned for residential purposes. The standard buffer requirement consists of a landscaped strip with a minimum width of 4 feet outside the perimeter of the compound.

b. Existing mature tree growth and natural land forms on the site must be preserved to the maximum extent possible. In some cases, such as

towers sited on large, wooded lots, natural growth around the property perimeter may provide sufficient buffer.

40.420-G Antennas and Towers Permitted as-of-Right

1. Applicability

The regulations of this subsection (40.420-G) apply to all antennas and towers that are permitted as-of-right.

2. Permits

A permit must be obtained from the city before installation or construction of any antenna or tower.

3. Standards

Antennas and towers that are permitted as-of-right are subject to the following supplemental regulations:

a. Antennas attached to the roof or wall of buildings in commercial or industrial zoning districts, or to office or apartment/condo buildings, or to public, civic or institutional buildings (e.g., schools, places of worship, or hospitals) are subject to all of the following regulations:

(1) An antenna may not extend more than 20 feet above the highest point of the building, or, if located on an architectural feature such as a steeple or bell tower, may not protrude above that structure; provided, however, that the board of adjustment may modify such requirements by special exception; and

(2) The antenna must comply with all applicable FCC and FAA regulations;

(3) The antenna must comply with all applicable building codes.

b. Antennas may be attached to existing towers and to city-owned buildings and structures. When an existing tower must be modified to accommodate the collocation of antennas, the tower must be of the same type as the existing tower or reconstructed as a monopole and the modification or reconstruction may not result in a height increase of more than 30 feet above the height of the existing tower. Other modifications may be approved by special exception.

40.420-H Removal of Abandoned Antenna and Towers

Any antenna or tower that is not operated for a continuous period of 12 months will be considered abandoned, and the owner of the antenna or tower must remove it within 90 days of receiving notice from the city. Failure to remove the abandoned antenna or tower within 90 days constitutes grounds for the city to remove the antenna or tower at the owner's expense. Abandoned towers are subject to the nuisance abatement procedures set forth in Title 24 Tulsa Revised Ordinances, Chapter 2.

40.420-I Preexisting Towers and Antennas

Any tower or antenna that lawfully existed on or before April 19, 1997 including a tower or antenna for which a permit was issued on or before that date which was constructed within the time frame allowed under the permit, is allowed to remain

in use. Routine maintenance, including antenna replacement, is permitted. All new construction, other than routine maintenance, requires compliance with all applicable regulations of this section.

Section 40.430 Farmers Markets

The supplemental use regulations of this section apply to all farmers markets.

40.430-A All temporary tents, seating, equipment, materials and merchandise must be stored in a permanent building or off site when the farmers market is not operation.

40.430-B All tents placed on a temporary basis for the farmers market must follow all tent regulations within City of Tulsa ordinances and must be placed in a manner that complies with the building setback lines of the subject zoning district.

40.430-C All farmers markets and their vendors must comply with federal state and local laws and regulations relating to the operation and use of the market premises, including but not limited to any requirements to obtain health permits and licenses.

Chapter 45 | Accessory Uses and Structures

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Section 45.010 Generally Applicable Regulations

45.010-A Accessory Uses Allowed

Accessory uses and structures are allowed only in connection with lawfully established principal uses.

45.010-B Allowed Uses and Structures

Allowed accessory uses and structures are limited to those expressly regulated in this chapter as well as those that, in the determination of the development administrator, satisfy all of the following criteria:

1. They are customarily found in conjunction with the subject principal use or principal structure;
2. They are subordinate and clearly incidental to the principal use of the property; and
3. They serve a necessary function for or contribute to the comfort, safety or convenience of occupants of the principal use.

45.010-C Time of Construction and Establishment

1. Accessory uses may be established only after the principal use of the property is in place.

2. Accessory buildings may be established in conjunction with or after the principal building or use. They may not be established before the principal building or use is in place.

45.010-D Location

Accessory uses and structures must be located on the same lot as the principal use to which they are accessory, unless otherwise expressly stated.

45.010-E Compliance with Lot and Building Regulations

Unless otherwise expressly stated, accessory uses and structures are subject to the same lot and building regulations as apply to principal uses and buildings. See also the provisions governing allowed yard obstructions (90.090-C) and exceptions to height limits (90.160-B)

Section 45.020 Accessory Antennas

45.020-A AG, AG-R, R and PK Districts

1. In AG, AG-R, R and PK districts, accessory antennas and their support structures are allowed to be mounted on a principal building or accessory building, provided that:
   a. The overall mounted height of the antenna does not exceed 65 feet, measured from the average ground elevation at the base of the building to the highest point of the antenna; and
   b. The aggregate surface area of all mounted antennas may not exceed 10 square feet, based on the area of side with the largest surface area.
2. In AG, AG-R, R and PK districts, structures other than principal or accessory buildings that are used to support accessory antennas (including guy lines) must comply with all of the following regulations.
   a. Only one such antenna support structure is allowed on a lot.
   b. The antenna support structure may be located only in the rear yard, not in a street yard or side yard.
   c. The overall height of the antenna may not exceed 65 feet, measured from the average ground elevation at the base of the structure to the highest point of the antenna.
   d. The antenna support structure may not encroach upon the land or airspace of any abutting property.
   e. The antenna support structure may not exceed 24 inches in width above 25 feet in height, exclusive of guy lines.

45.020-B Other Districts

In all districts other than AG, AG-R, R or PK districts, antenna support structures that are accessory to principal uses must be set back from any R district a distance equal to at least 110% of the height of the antenna, measured from the average ground elevation at the base of the structure to the highest point of the antenna. The setback distance must be measured from the nearest point of the antenna

supporting structure (excluding any guy lines) to the nearest point on the residential zoning district boundary line, excluding R-zoned freeways.

Section 45.030 Accessory Buildings and Carports in R Districts

45.030-A Accessory Building Size

1. RE and RS-1 Districts

In RE and RS-1 districts, the total aggregate floor area of all detached accessory buildings not erected as an integral part of the principal residential building may not exceed 750 square feet or 40% of the floor area of the principal residential structure, whichever is greater. [1] [2]

2. RS-2, RS-3, RS-4, RS-5, RD, RT, and RM Districts

In RS-2, RS-3, RS-4, RS-5, RD, RT, and RM districts, the total aggregate floor area of all detached accessory buildings not erected as an integral part of the principal residential building may not exceed 500 square feet or 40% of the floor area of the principal residential structure, whichever is greater. [1] [2]

[1] For detached accessory buildings located within rear setbacks, see Section 90.090-C.

[2] See Section 45.031-D.6 for exceptions to these floor area limits for accessory buildings containing an Accessory Dwelling Unit.

45.030-B Carports

Carports are allowed in R zoning districts. Any carport that occupies all or a portion of the street setback or street yard area must be approved in accordance with the special exception procedures of Section 70.120 and comply with the regulations of §90.090-C1.

Section 45.031 ADU, Accessory Dwelling Units

45.031-A Definition

A dwelling unit that is located in an accessory building on the same lot as a household living use to which it is accessory and subordinate.

Examples of ADUs include carriage houses, garage apartments, and mother-in-law flats.

45.031-B Purpose

1. The purpose of allowing accessory dwelling units is to:

   a. accommodate new housing units while preserving the character of existing neighborhoods;

   b. allow efficient use of the city's existing housing stock and infrastructure;

   c. provide housing options and choices that respond to varying income levels, changing household sizes and lifestyle needs; and

   d. provide a means for residents—particularly seniors, single parents, and empty-nesters—to remain in their homes and neighborhoods, and obtain extra income, security, companionship and assistance.

2. The ADU supplemental regulations are also intended to help ensure that that new buildings and modifications to existing buildings are designed with sensitivity to their context in terms of building placement, proportions, building materials, and similar design features.

45.031-C Applicability

These regulations apply to all accessory dwelling units, as defined by Section 45.031-A.

45.031-D Regulations

1. Where Allowed

Accessory dwelling units are allowed by special exception in RE, RS, AG, and AG-R districts. Accessory dwelling units are allowed by right in all other districts when accessory to a household living use.

2. Number

No more than one accessory dwelling unit is allowed per lot.

3. Methods of Creation

An accessory dwelling unit may be created only through the following methods:

a. Constructing an accessory dwelling unit on a lot with a new or existing principal building; or

b. Converting or increasing existing floor area within an accessory building on a lot with an existing principal building.

4. Density (Minimum Lot Area and Lot Area per Unit)

No additional lot area or lot area per unit is required for the accessory dwelling unit.

5. Open space (Minimum open space per unit)

No additional open space is required for the accessory dwelling unit.

6. Accessory Dwelling Unit Size

The size limitations in Section 45.030 apply, provided that the maximum allowed square footage of an accessory building containing an Accessory Dwelling Unit is increased by 500 square feet. The maximum allowable floor area for accessory buildings containing an Accessory Dwelling Unit may be increased in accordance with the special exception procedures of Section 70.120.

7. Building and Fire Codes

All accessory dwelling units are subject to applicable building and fire codes.

8. Additional Regulations for Accessory Dwelling Units

a. Entrances
Building entrances to accessory dwelling units may not face the nearest side or rear property line unless there is an alley or street abutting that property line.

b. Setbacks
An accessory dwelling unit must be located at least 10 feet behind the principal building. This required 10-foot separation distance must be open from the ground to the sky except that it may include walkways, patios, decks and similar structures that do not exceed 30 inches in height above finished grade.

c. Exterior Finish Materials
The exterior finish material of any new accessory dwelling unit must be the same or visually match in type, size and placement, the exterior finish material of the principal building.

d. Roof Pitch
The roof pitch of any new accessory dwelling unit must be the same as the predominant roof pitch of the principal building.

e. Second Story Windows
Any second-story window less than 10 feet from and oriented toward a lot line not abutting a right of way shall either use permanently translucent glazing or have a minimum sill height of 6 feet above the finished floor.

Section 45.040 Compressed Natural Gas (CNG) Refueling Appliances

Private (restricted access), consumer-oriented (home), CNG refueling appliances are permitted as an accessory use to lawfully established household living uses in all zoning districts.

Section 45.050 Dumpsters

45.050-A Regulations

Dumpsters established or placed on or after the effective date specified in Section 1.030 are subject to the following regulations:

1. Dumpsters may only be placed with the written permission of the owner of the subject property.
2. Dumpsters must be located on a dustless, all-weather surface.
3. Dumpsters may not:
   a. Obstruct motorized or non-motorized traffic;
   b. Reduce any sidewalk or walkway designed for the passage of pedestrians to less than 5 feet in width;
   c. Be located within 10 feet of a fire hydrant or fire suppression connection;
   d. Be located in a required parking space or required landscape area; or
   e. Be located in a street setback or side setback.

4. The site surrounding the dumpster must be maintained free of litter, debris, and other materials.
5. Dumpsters must be screened from view of all street rights-of-way, R-zoned property, and AG-R zoned property by a principal structure or an F1 screening fence or wall in accordance with §65.070-B2, provided that no trees are required as part of the required screening. Screening of dumpsters located in alley rights-of-way is not required. No signs are allowed on the exterior of a required screening fence or wall.
6. Where the use of a dumpster is proposed, the location and intended screening demonstrating compliance with the standards of this section must be included with the submittal of a site plan for a zoning clearance, building, or certificate of occupancy permit.

Section 45.051 Recyclable Material Bins/Donation Bins

45.051-A Regulations

Recyclable material bins/donation bins established or placed on or after February 1, 2020 are subject to the following regulations, and recyclable material bins/donation bins established before February 1, 2020 must be removed or brought into compliance with the following regulations no later than July 1, 2020:

1. Recyclable material bins/donation bins may only be placed with the written permission of the owner of subject property.
2. Recyclable material bins/donation bins must be located on a dustless, all-weather surface.
3. Recyclable material bins/donation bins may not:

   Obstruct motorized or non-motorized traffic;

   Reduce any sidewalk or walkway designed for the passage of pedestrians to less than 5 feet in width;

   Be located within 10 feet of a fire hydrant or fire suppression connection;

   Be located in a required parking space or required landscape area;

   Be located in a street setback or side setback; or

   Exceed 7 feet in height, 6 feet in width, and 6 feet in depth.
4. All goods must be screened from view within the recyclable material bin or donation bin.
5. The site surrounding the bin must be maintained free of litter, debris, and other materials.
6. Recyclable material bins/donation bins must be maintained in good condition with no structural damage, holes, visible rust, or graffiti.
7. The exterior front face of a recycle material bin or donation bin must clearly display the name, phone number, and website (if any) of the person or entity operating the bin and of any charitable or for-profit entity that benefits from the collected items. The information must be printed in bold letters, each at least one inch tall and one inch wide. See also Oklahoma Statutes, Title 78, Section 56.

Section 45.060 Electric Vehicle Charging Stations

45.060-A General

1. Private (restricted-access) electric-vehicle (EV) charging stations are permitted as accessory uses to lawfully established principal uses in all zoning districts.
2. Public EV charging stations are permitted as accessory uses to lawfully established principal nonresidential uses in all zoning districts.

45.060-B Parking

1. Electric vehicle charging stations may be counted toward satisfying minimum off-street parking space requirements.
2. Public electric vehicle charging stations must be reserved for parking and charging electric vehicles.

45.060-C Equipment

Vehicle charging equipment must be designed and located so as to not impede pedestrian, bicycle or wheelchair movement or create safety hazards on sidewalks.

45.060-D Signage

Public electric vehicle charging stations must be posted with signage indicating that the space is reserved for electric vehicle charging purposes only. For purposes of this provision, "charging" means that an electric vehicle is parked at an electric vehicle charging station and is connected to the battery charging station equipment.

Figure 45-1: Electric Vehicle Parking Signs (typical)



Section 45.070 Fences and Walls

45.070-A Fences and walls within required building setbacks may not exceed 8 feet in height, except that in required street setbacks fences and walls may not exceed 4 feet in height. However, in R-zoned districts, fences up to 8 feet in height are permitted in side street setbacks of detached houses or duplexes located on corner lots and in street setbacks abutting the rear lot line of houses or duplexes located on double frontage lots. The board of adjustment is authorized to modify these fence and wall regulations in accordance with the special exception procedures of Section 70.120. See Section 90.170-A for fence and wall measurements. See also Title 24, Section 103 of the Tulsa Revised Ordinances for sight-distance triangle requirements.

45.070-B Electrical fence charger systems are prohibited, except for the following:

1. Electrical fence charger systems are allowed on parcels of land with an area of 10 acres or more, provided the system is not readily accessible to the public; and
2. Electrical fence charger systems are allowed on parcels of land with an area of less than 10 acres, provided that the conductors are located at least 8 feet above grade and are not readily accessible to the public.

45.070-C Barbed-wire and razor-wire fencing is permitted as of right in AG, IL, IM, and IH districts, except as limited by Title 24, Section 103 of the Tulsa Revised Ordinances. Barbed-wire and razor-wire fencing is prohibited in all other districts unless approved in accordance with the special exception procedures of Section 70.120, subject to the limitations of Title 24, Section 103 of the Tulsa Revised Ordinances.

Section 45.080 Geothermal Heat Exchange Systems

45.080-A General

Geothermal heat exchange systems are permitted as an accessory use in all zoning districts.

45.080-B Location

1. Above-ground equipment is subject to compliance with the minimum building setback regulations of the subject zoning district, including the setback obstruction provisions of 90.090-C.
2. Underground equipment, piping and devices may not be located in any public easement or right-of-way.

Section 45.090 Home Occupations

45.090-A Description

Home occupations are jobs or professions conducted wholly or partly from a residential dwelling.

45.090-B Purpose

The home occupation regulations of this section are intended to allow Tulsa residents to engage in customary home-based work activities, while also helping to ensure that neighbors are not subjected to adverse operational and land use impacts (e.g., excessive noise or traffic or public safety hazards) that are not typical of residential neighborhoods.

45.090-C Types of Home Occupations

Two types of home occupations are defined and regulated under this section: type 1 and type 2.

1. Type 1 Home Occupations

Type 1 home occupations are those in which household residents use their home as a place of work, with no employees, customers or clients coming to the site. Typical examples include telecommuting office workers, writers, consultants, artists and crafts people.

2. Type 2 Home Occupations

Type 2 home occupations are those in which household residents use their home as a place of work and either employees or customers come to the site. Typical examples include tutors, teachers, photographers, counselors, hair cutting/styling and real estate agents.

45.090-D Exemptions

Nonresidential uses that are expressly allowed in conjunction with residential uses (e.g., bed and breakfast uses and family child care homes) are not subject to home occupation regulations.

45.090-E Allowed Uses

The home occupation regulations of this section establish performance standards for all home occupations rather than listing specific home occupation uses that are allowed. Uses that comply with the standards of this section are allowed as of right unless otherwise expressly stated.

45.090-F Prohibited Uses

The following uses are expressly prohibited as home occupations:

1. Any type of assembly, cleaning, maintenance, painting or repair of vehicles or equipment with internal combustion engines or of large appliances (such as washing machines, clothes dryers or refrigerators);
2. Dispatch centers or other businesses where employees come to the site and are dispatched to other locations;
3. Equipment or supply rental businesses;
4. Taxi, limo, van or bus services;
5. Tow truck services;
6. Taxidermists;
7. Restaurants;
8. Funeral or interment services;
9. Animal care, grooming or boarding businesses; and
10. Any use involving the use or storage of vehicles, products, parts, machinery or similar materials or equipment outside of a completely enclosed building; and
11. Any use that does not comply with regulations of this section.

45.090-G Where Allowed

1. Type 1 Home Occupations

Type 1 home occupations are permitted as of right as an accessory use to a principal use in the household living use category. Type 1 home occupations are subject to the general regulations of 45.090-H and the supplemental regulations of 45.090-I.

2. Type 2 Home Occupations

Type 2 home occupations may be approved as an accessory use to a principal use in the household living use category through the special exception procedures of Section 70.120. Type 2 home occupations are subject to the general regulations of 45.090-H and the supplemental regulations of 45.090-J.

Type 2 home occupations may be approved as an accessory use to a principal use in the household living use category through mandatory development plan provisions defined in 70.040-B1. Type 2 home occupations are subject to the general regulations of 45.090-H and the supplemental regulations of 45.090-J or as may be further regulated in a mandatory development plan.

45.090-H General Regulations

All type 1 and type 2 home occupations are subject to the following regulations.

1. Home occupations must be accessory and subordinate to the principal residential use of the property.
2. Home occupations that change the character of the residential building they occupy or that adversely affect the character of the surrounding neighborhood are prohibited. Home occupations may not, for example, produce light, noise, vibration, odor, parking demand, or traffic impacts that are not typical of a residential neighborhood in Tulsa. Home occupations must be operated so as not to create or cause a nuisance.
3. Any tools or equipment used as part of a home occupation must be operated in a manner or sound-proofed so as not to be audible beyond the lot lines of the subject property.
4. External structural alterations or site improvements that change the residential character of the lot upon which a home occupation is located are prohibited. Examples of such prohibited alterations include construction of parking lots, the addition of commercial-like exterior lighting, the addition of a separate building entrance that is visible from abutting streets or the exterior display of an illuminated nameplate sign (See §60.030-C).
5. No display of any material or merchandise is allowed.
6. The use or storage of hazardous substances is prohibited, except at the "consumer commodity" level, as that term is defined in 49 C.F.R. Sec. 171.8.
7. Home occupations are subject to the commercial truck parking prohibition of Section 45.120.

45.090-I Supplemental Regulations for Type 1 Home Occupations

1. Only residents of the dwelling unit in which the home occupation is located may be engaged in a type 1 home occupation. No nonresident owners, employees or contractors may be present on the subject property.

2. No clients, customers, patients, or students are allowed in conjunction with a type 1 home occupation.
3. Type 1 home occupations and all related activities, including storage (other than the lawful parking of passenger vehicles), must be conducted entirely within the principal residential building or an allowed accessory building.
4. More than one Type 1 home occupation is allowed as an accessory use, but the general regulations of 45.090-H and the supplemental regulations of 45.090-I apply to the combined home occupation uses.

45.090-J Supplemental Regulations for Type 2 Home Occupations

1. Only uses approved in accordance with the special exception procedures of Section 70.120 or through a mandatory development plan are allowed as type 2 home occupations.
2. At least one individual engaged in the home occupation must reside in the dwelling unit in which the home occupation is located as their primary place of residence.
3. No more than 3 clients or customers may be present at any one time on the site of a type 2 home occupation. Family members of the client or customer are not counted towards the 3-person limit.
4. A maximum of one nonresident employee is allowed with a type 2 home occupation if no customers or clients come to the site at any time. Home occupations that have clients, customers or students coming to the site may not have nonresident employees and vice-versa. For the purpose of this provision, the term "nonresident employee" includes an employee, contractor, business partner, co-owner or any other person affiliated with the home occupation, who does not live at the site, but who visits the site as part of the home occupation.
5. Type 2 home occupations and all related activities, including storage (other than the lawful parking of passenger vehicles), must be conducted entirely within the principal residential building or an allowed accessory building.

Section 45.100 Alcoholic Beverage Sales and Service

The development administrator is authorized to allow accessory sales or service of alcoholic beverages if the development administrator determines that all of the following criteria are met:

45.100-A The proposal complies with the accessory use criteria of 45.010-B; and

45.100-B The use is located in a zoning district in which bars are permitted as of right or the use is temporary in nature and located on city-owned property.

Section 45.110 Office Support Service

45.110-A Retail sales of convenience goods and retail sales of shopping goods (office support services) are allowed as an accessory use to a principal office use in the OH district and in any O district with a PUD overlay.

45.110-B Office support services must be located in the same building as the principal office use, and occupy, in aggregate, no more than 15% of the floor area of the subject building.

45.110-C Office support services must have internal access from the subject office building. External entrances are also allowed.

Section 45.120 Parking and Storage of Commercial Vehicles

45.120-A Description

A commercial vehicle, for the purpose of determining compliance with Section 45.130, is any vehicle, including but not limited to a car, van, truck, bus, semi-truck, or tow truck, that includes any of the following characteristics:

1. More than two (2) axles;
2. A cab height greater than eighty-four (84) inches;
3. Any part or attachment to the vehicle capable of exceeding the height of ninety (90) inches;
4. A gross vehicle weight rating greater than twelve thousand (12,000) pounds;
5. An overall length of more than twenty-five (25) feet;
6. A commercial sign or message exceeding four (4) square feet per side; or
7. A tow sling or other device specifically designed to tow another vehicle.

45.120-B Where Prohibited

No commercial vehicle as defined in in §45.130-A may be parked or stored outdoors within a residential zoning district. This provision is not intended to prohibit the following:

1. Vehicles accessory to a permitted non-residential use and parked on the lot containing the use;
2. Deliveries and pickups by common carrier delivery vehicles or service vehicles being actively used, loaded, or unloaded (e.g., postal service, UPS, FedEx, et al.) of the type typically used in residential neighborhoods;
3. Recreational vehicles (See Section 45.150);
4. Vehicles registered to a governmental body or utility provider and used for law enforcement, emergency response, or repair of public infrastructure; or
5. Vehicles accessory to a construction project or an active building or construction permit

Section 45.130 Parking and Storage of Inoperable or Unlicensed Motor Vehicles

In R or AG-R districts, parking or storage of inoperable or unlicensed motor vehicles is prohibited within street yards.

Section 45.140 Parking and Storage of Recreational Vehicles

45.140-A Other than for purposes of loading and unloading, which must take place within a 48-hour period, recreational vehicles located in an AG, AG-R, R or MX district may be parked or stored only in the following locations:

1. Within a garage;
2. Within a rear building setback, provided it is set back at least 3 feet from all lot lines;
3. Within a side yard but not within a required side building setback;
4. Within a side building setback if the recreational vehicle is no more than 6 feet in height, excluding the height of any outboard motor or windshield, and the recreational vehicle is screened along the lot line nearest to the vehicle and extending for the vehicle's the full length by an F1 screening fence or wall in accordance with §65.070-C; or
5. Within the street yard, provided that the development administrator determines that all of the following conditions exist:
   a. Space is not available or there is no reasonable access to either the side yard or rear yard;
   b. Parking inside the garage is not possible due to the height or width of the recreational vehicle;
   c. The recreational vehicle is parked perpendicular to the street lot line;
   d. The body of the recreational vehicle is at least 12 feet from the face of the curb or travel lanes of the street and does not extend over a sidewalk; and
   e. No more than one recreational vehicle is parked or stored in the street yard.
6. For purposes of these provisions:
   a. A corner lot is always deemed to have reasonable access to the rear yard;
   b. A fence does not necessarily prevent reasonable access to a yard; and
   c. A boat loaded on a boat trailer is considered one recreational vehicle.

45.140-B The parking and storage of recreational vehicles in an R or AG-R district is permitted in accordance with 45.140-A, provided that:

1. The vehicle is not used for dwelling purposes;
2. The vehicle is not permanently connected to sewer lines, water lines, or electricity; and
3. The vehicle is not used for storage of goods, materials, or equipment other than those items considered to be a part of the recreational vehicle or essential for its use as a recreational vehicle.

45.140-C If the regulations of 45.140-A cannot be met, parking or storage of recreational vehicles in the street yard requires approval in accordance with the special exception procedures of Section 70.120.

Section 45.150 Residential Support Service

45.150-A Residential support services include restaurants and retail sales of convenience goods provided primarily to serve the needs of residents of residential buildings.

45.150-B Residential support services are allowed in the RM-3 district and all MX districts as an accessory use to any principal group living use and in apartment/condo buildings.

45.150-C Residential support services must be located in the same building as the principal residential use, and occupy, in aggregate, floor area of no more than 4,000 square feet or 10% of the floor area of the principal residential use, whichever is less.

45.150-D Residential support services must have internal access from the principal residential building. External entrances are also allowed.

Section 45.160 Rooming Units

Rooming units that are accessory to household living uses are allowed, provided that the total number of unrelated persons residing on the property does not exceed the number permitted in the household.

Section 45.170 Satellite Dish Antennas

45.170-A Where Allowed

1. Satellite dish antennas up to 40 inches in diameter are permitted as of right as an accessory use to all lawfully established principal uses in all zoning districts. They are subject to all applicable accessory structure setback regulations.
2. Satellite dish antennas over 40 inches in diameter, up to 120 inches in diameter, are permitted as of right as an accessory use to all lawfully established principal uses in mixed-use and nonresidential zoning districts. They are subject to all applicable accessory structure setback regulations.

45.170-B Location

1. In RM and MX districts, satellite dish antennas may be located anywhere in the buildable area of the lot (outside of required building setbacks) or on an allowed principal or accessory building on the lot.
2. In RS, RD and RT districts, satellite antennas may be located only to the rear of any principal structure. If usable communication signals cannot be obtained from a rear location, the satellite antenna may be located in the side yard. If usable satellite communication signals cannot be received by locating the antenna in the rear or to the side of the principal structure, the antenna may be placed in the street yard outside of the required building setback or on the roof in a location that is visible from the street, provided that the diameter of the satellite dish antenna does not exceed 18 inches.

3. Ground-mounted satellite dish antennae must be visually screened to reduce visual impact from surrounding properties at street level and from public streets.

Section 45.185 Short-Term Rental – Accessory

45.185-A Description

The rental of all or a portion of a dwelling unit, which is the primary residence of a household, for temporary lodging for a period of less than 30 consecutive days. An accessory short-term rental is limited to a maximum occupancy of 8 persons—including the dwelling's residents—at any one time.

45.185-B General

The supplemental use regulations of this section apply to all accessory use short-term rentals.

1. An accessory short-term rental must comply with all licensing requirements of the City of Tulsa and an approved license number must be included with any material advertising the short-term rental.
2. A register of short-term rental guests must be maintained and made available to city code enforcement upon request.
3. On-site events are not permitted in conjunction with an accessory short-term rental. Examples of on-site events include but are not limited to weddings, receptions, anniversaries, private parties, banquets, and business seminars.
4. External structural alterations or site improvements that change the residential character of the lot upon which an accessory short-term rental is located are prohibited. Examples of such prohibited alterations include the construction of a parking lot, the addition of commercial-like exterior lighting, and signage.
5. No recreational vehicle, bus, or trailer shall be parked on a residential street in conjunction with a short-term rental use. A recreational vehicle, bus or trailer may be parked on the property if not visible from the street.

Section 45.180 Solar Energy Systems

45.180-A General

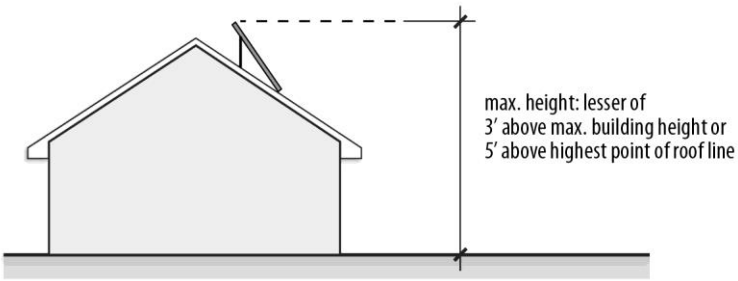
1. Solar energy systems are permitted as of right as an accessory use to all lawfully established principal uses in all zoning districts.
2. Accessory solar energy systems must comply with all applicable building and electrical code requirements.

45.180-B Building-Mounted Solar Energy Systems

1. Building-mounted solar energy systems may be mounted on principal and accessory structures.

2. Building-mounted solar energy systems may not encroach into required street setbacks. Systems mounted on principal structures may encroach into interior side and rear building setbacks in accordance with 90.090-C.
3. Only building-integrated or flush-mounted solar energy systems may be installed on street-facing building elevations.
4. Solar energy systems may not extend more than 3 feet above the applicable maximum building height limit for the subject building type or more than 5 feet above the highest point of the roof line, whichever is less.

Figure 45-2: Roof-Mounted Solar Energy Systems



45.180-C Ground-Mounted Solar Energy Systems

1. In residential zoning districts, ground-mounted solar energy systems may not be located in a required street setback or street yard area.
2. Ground-mounted solar energy systems may be located within required interior side and rear setbacks.
3. Ground-mounted solar energy systems are subject to applicable accessory structure height and lot coverage regulations.

Section 45.190 Small Wind Energy Conversion Systems

45.190-A General

1. The regulations of this section apply to all small wind energy conversion systems.
2. Small wind energy conversion systems are also subject to building code requirements.

45.190-B Where Allowed

1. One small wind energy conversion system is permitted per lot as an accessory use to a lawfully established principal use in all zoning districts, provided that such systems comply with all applicable requirements of this section.
2. Up to 3 small wind energy conversion systems may be allowed on a single lot if the lot is at least one acre in area and the systems are approved in accordance with the special exception procedures of Section 70.120.

45.190-C Height

1. The maximum allowed height of a small wind energy conversion system, measured as the distance from ground level at the base of the structure to the highest point of the structure, varies based on the size of the lot on which it is located, as indicated in Table 45-1.

Table 45-1: Maximum Height of Small Wind Energy Conversion System

Lot Area (acres)	**Maximum Height** (feet)
0–0.99	30
1–1.99	65
2–4.99	85
5 or more	100

2. The lowest point of any moving elements, such as blades or vanes, must be at least 25 feet above grade immediately beneath the moving element.

45.190-D Siting

Small wind energy conversion systems may not be located in required building setbacks or within easements. In addition, systems must be set back from all property lines by a distance at least equal to 110% of the overall height of the system, measured from grade at the base of the structure to the highest point of the system structure, which includes the tip of the top blade when the blade is in its highest position.

45.190-E Design and Operation

1. All small wind energy conversion systems must be equipped with manual and automatic over-speed controls to limit the blade rotation speed to within the design limits of the system.
2. The rotating turbine may not produce vibrations that are perceptible to humans standing at ground level outside the property lines of the subject lot.
3. Operational noise of a small wind energy system may not exceed 60 db(A) at the nearest property line except during short-term high wind speed events such as storms.
4. Lattice-type towers and towers using guy wires are prohibited.
5. All power transmission and telemetry lines from a ground-mounted small wind energy conversion system to any building or other structure must be placed underground.
6. Towers, rotors and turbines may not be illuminated unless required by a state or federal agency, such as the FAA.
7. All structures and equipment must maintain factory colors or be finished in a non-reflective, matte finished, neutral color.
8. No commercial messages may be placed or painted on the tower, rotor, turbine, generator or tail vane that is legible from off-site. This provision is not intended to prohibit warning signs or manufacturer's logos.

9. All climbing pegs, ladders and similar apparatus on ground-mounted small wind energy conversion systems must be located at least 12 feet above the ground at the base of the structure.

45.190-F Permits

The following information must be submitted with a zoning clearance permit application for a small wind energy conversion system:

1. A description of the system, including its maximum power-rated output capacity.
2. The make, model, an illustrative photograph or brochure, manufacturer's specifications including noise data (decibels) for the proposed wind energy conversion system, the support structure, and method of attachment to the ground and/or structure.
3. Elevation drawing of the wind energy conversion system showing total height, turbine dimensions, tower and turbine colors, distance between ground and lowest point of any blade, and if proposed, the location of climbing apparatus.
4. If the wind energy conversion system is not certified as meeting the IEEE 1547 standards (Institute of Electrical and Electronic Engineers), then an assessment must be provided from an electrical engineer indicating that protection equivalent to the IEEE standard will be provided.

45.190-G Abandonment

Any small wind energy conversion system that is not operated for a continuous period of 12 months or more or that is in an obvious state of disrepair or a threat to public safety will be considered abandoned and must be dismantled and removed from the property at the expense of the property owner.

Section 45.200 Farmers Markets

45.200-A Accessory use farmers markets are subject to compliance with all supplemental regulations for farmers markets in Section 40.430.

45.200-B Farmers markets may operate as an accessory use in all districts where they are allowed by right.

45.200-C In districts where farmers markets are not allowed by right, farmers markets may operate as an accessory use to the following principal uses for up to two days per calendar week, regardless of the zoning district:

1. Religious Assembly,
2. College or University,
3. Governmental Service or Similar Functions,
4. Library or Cultural Exhibit,
5. School,
6. Fraternal Organization,
7. Parks and Recreation, and

8. Apartment/Condo.

Chapter 50 | Temporary Uses

Section 50.010 Description and Purpose 50-1
Section 50.020 Authority to Approve 50-1
Section 50.030 Authorized Uses 50-1
Section 50.040 General Procedure 50-4
Section 50.050 Exemptions 50-4

Section 50.010 Description and Purpose

50.010-A A temporary use is the use of private property that does not require a building permit and that may or may not comply with the use and lot and building regulations of the zoning district in which the temporary use is located.

50.010-B The temporary use regulations of this chapter are intended to permit such occasional, temporary uses and activities when consistent with the purposes and regulations of this zoning code.

Section 50.020 Authority to Approve

50.020-A Except as expressly stated in Section 50.050, all temporary uses require city approval.

50.020-B The development administrator is authorized to establish administrative procedures governing the processing, review and approval of temporary uses.

50.020-C The development administrator is authorized to approve a zoning clearance permit for temporary uses that comply with the provisions of this chapter and to impose conditions on the operation of temporary uses to help ensure that they do not create significant adverse impacts on surrounding uses and that they operate safely and without causing nuisances, consistent with the general purposes of this zoning code.

50.020-D Temporary uses that do not comply with all applicable regulations and all conditions of approval may be approved as special exceptions in accordance with Section 70.120. The development administrator is authorized to refer any temporary use to the board of adjustment for consideration in accordance with special exception procedures of Section 70.120.

50.020-E Special events require city council review and approval.

Section 50.030 Authorized Uses

The development administrator is authorized to approve a zoning clearance permit for temporary uses upon determining that the proposed use is a customary temporary use in the subject location and will generally be compatible with surrounding uses and not be a detriment to public safety. The following is a non-exhaustive list of the types of temporary uses and activities for which a zoning clearance permit may be approved by the development administrator:

50.030-A Parking lot and seasonal sales for a maximum of 180 days per lot per year;

50.030-B Tents accessory to an allowed principal or temporary use;

50.030-C Outdoor carnivals, concerts, festivals, revivals and public gatherings for a maximum of 30 days per lot per year and no more than 10 consecutive days per occurrence;

50.030-D Construction staging areas, construction offices and storage of materials related to ongoing construction for the period in which construction is ongoing and all required permits remain valid;

50.030-E Temporary residential sales and leasing offices and model homes, when located on the same lot or in the same subdivision as the residential units actively being offered for lease or sales; and

50.030-F Temporary mobile storage units, subject to the following supplemental regulations:

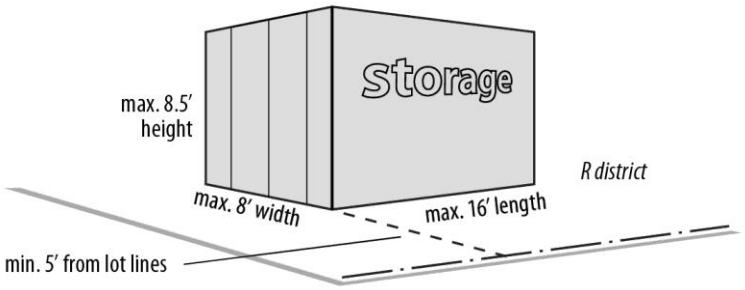
1. Temporary mobile storage units are allowed in R zoning districts, subject to compliance with all of the following regulations:

   a. Temporary mobile storage units are permitted for a period not to exceed a total of 90 days within any calendar year unless a valid building or construction permit is in place for the subject property, in which case the temporary mobile storage unit may remain in place for a maximum of 120 days or until the permit expires, whichever occurs first. If a dwelling unit on the subject lot has been damaged by natural disaster act of God, the development administrator is authorized to grant time extensions of otherwise applicable temporary mobile storage unit time limits.

   b. No more than one temporary mobile storage unit may be located on any lot.

   c. Temporary mobile storage units may not exceed 16 feet in length, 8 feet in width, and 8.5 feet in height. Figure 50-1.

Figure 50-1: Maximum Mobile Storage Unit Size in Residential Districts



   d. Temporary mobile storage units must be set back at least 5 feet from all property lines.

   e. Temporary mobile storage units must be placed on an improved all-weather surface, generally asphalt, brick pavers, or concrete. Units are prohibited within landscape areas, open spaces, stormwater basins, or any other location that may cause hazardous conditions, constitute a threat to public safety, or create a condition detrimental to surrounding land uses and development.

f. No materials may be stacked or stored on the exterior of the mobile storage unit and no running gear or transport trailer may be stored on site outside of a completely enclosed building.

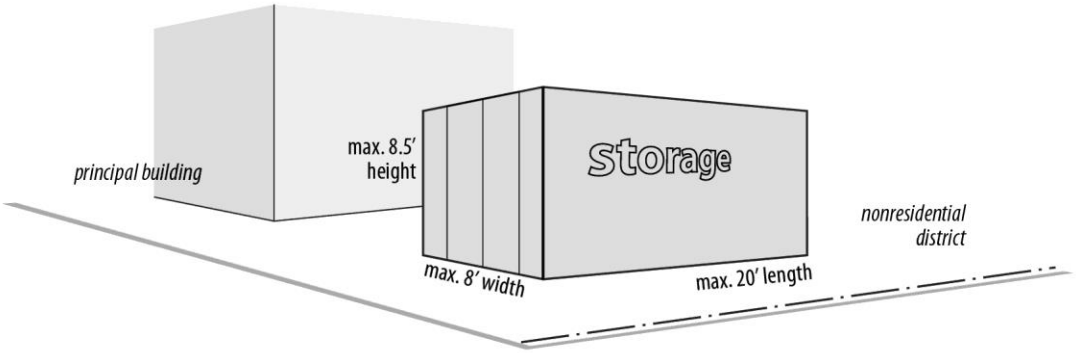
2. Temporary mobile storage units are allowed in nonresidential zoning districts, subject to compliance with all the following regulations:

a. Temporary mobile storage units are permitted for a period not to exceed a total of 90 days within any calendar year unless a valid building or construction permit is in place for the subject property, in which case the temporary mobile storage unit may remain in place for a maximum of 180 days or until the permit expires, whichever occurs first. If the principal building on the subject lot has been damaged by natural disaster act of God, the development administrator is authorized to grant time extensions of otherwise applicable temporary mobile storage unit time limits.

b. No more than 3 temporary mobile storage units may be located on any lot.

c. Temporary mobile storage units may not exceed 20 feet in length, 8 feet in width, and 8.5 feet in height. See Figure 50-2.

Figure 50-2: Maximum Mobile Storage Unit Size in Nonresidential Districts



d. Temporary mobile storage units must comply with all building setback requirements of the subject zoning district.

e. Temporary mobile storage units may not be placed or located on a required parking space, circulation aisle/lane, or fire access lane.

f. Vertical stacking of storage units and stacking of any other materials or merchandise on top of any mobile storage unit is prohibited. No running gear or transport trailer may be left underneath any mobile storage unit.

g. Temporary mobile storage units are prohibited within landscape areas, required open spaces, stormwater basins, or any other location that may cause hazardous conditions, constitute a threat to public safety, or create a condition detrimental to surrounding land uses and development.

Section 50.040 General Procedure

Upon receipt of a complete application for a zoning clearance permit for a temporary use, the development administrator must review the proposed use for its likely effects and surrounding properties and its compliance with the general provisions of this chapter. The development administrator may impose such conditions of approval on the zoning clearance permit as the development administrator determines necessary to mitigate potential adverse impacts. Such conditions may include the following:

50.040-A Requirements for vehicle access and parking;

50.040-B Restrictions on hours of operation;

50.040-C Limitations on signs and outdoor lighting;

50.040-D Requirements for financial guarantees covering the costs of cleanup and/or removal of structures or equipment; and

50.040-E Other conditions necessary to carry out the stated purposes of this zoning code and this chapter.

Section 50.050 Exemptions

The following temporary uses are permitted as of right, without obtaining a zoning clearance permit from the development administrator:

50.050-A Garage sales conducted in R districts or on lots occupied by residential dwelling units no more than 2 times in any calendar year and for no more than 4 consecutive days per occurrence. These limits apply on a per-lot basis, regardless of the person conducting the garage sale. No person conducting a garage sale may sell merchandise at the garage sale acquired solely for resale purposes. Garage sales are sometimes referred to as "yard sales," "estate sale," "moving sales," "occasional sales" and other similar names. All such sales, by whatever name, are classified and regulated as "garage sales." Authorization to conduct more than 2 garage sales in any calendar year requires review and approval in accordance with the special exception procedures of Section 70.120.

50.050-B

1. Temporary dumpsters are allowed on lots with ongoing construction, subject to compliance with all the following regulations:

   a. Temporary dumpsters related to ongoing construction are permitted for a period in which construction is ongoing and all required permits remain valid.

   b. Temporary dumpsters may not exceed 22 feet in length, 8 feet in width, and 8.5 feet in height.

   c. Temporary dumpsters must be wholly contained within the lot and cannot be located within the right-of-way unless a right-of-way occupancy permit has been issued by the city.

   d. Temporary dumpsters are prohibited within storm water basins, or any other location that may cause hazardous conditions, constitute a threat to

public safety, or create a condition detrimental to surrounding land uses and development.

e. In single-family residential zoning districts and development areas, no more than 1 temporary dumpster may be located on any lot.

2. Temporary dumpsters are allowed on lots for a period of 60 days following a natural disaster (act of God) occurring in the immediate area of the lot, to be used for the disposal of debris resulting from the natural disaster (act of God). The development administrator is authorized to grant extensions of the 60-day time limit.

Chapter 55 | Parking

Section 55.010 General 55-1
Section 55.020 Minimum Parking Ratios 55-2
Section 55.030 Maximum Parking Ratio for Large Retail Uses 55-7
Section 55.040 Calculation of Required Parking 55-7
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Section 55.090 Parking Area Design 55-16
Section 55.100 Stacking Spaces for Drive-through Facilities 55-21
Section 55.110 Accessible Parking for People with Disabilities 55-22
Section 55.120 Loading 55-22
Section 55.130 Pedestrian Circulation 55-22

Section 55.010 General

55.010-A Purpose

1. The regulations of this chapter establish off-street motor vehicle and bicycle parking requirements that attempt to balance the city's goal of encouraging transit and non-motorized modes of transportation with the goal of providing off-street parking facilities to meet the typical day-to-day needs of shoppers, employees, visitors and residents. The regulations are also intended to help avoid the negative impacts that can result from requiring excessive supplies of off-street parking (e.g., impervious surfaces, stormwater runoff, heat island affect, visual environment, parking encroachment into stable neighborhoods).
2. The provisions of this chapter are also intended to help protect the public health, safety and general welfare by:
    a. Promoting economically viable and beneficial use of land; and
    b. Providing flexible methods of responding to the transportation and access demands of various land uses in different areas of the city.

55.010-B Applicability

1. General

Off-street parking must be provided and maintained in accordance with the provisions of this chapter. Unless otherwise expressly stated, the regulations apply to all zoning districts and uses.

2. New Uses and Development

The parking regulations of this chapter apply to all new buildings constructed and all new uses established in all zoning districts.

3. Change of Use

If a new residential use of a building or structure requires more off-street parking than the nonresidential use that most recently occupied the building or structure, no additional off-street parking is required. If a new

nonresidential use of a building or structure requires more off-street parking than the use that most recently occupied the building or structure, additional off-street parking is required in an amount equal to the difference between the parking required for the new use and the parking that would have been required for the previous use if current parking requirements had been applicable, provided that the total number of required spaces for the change of use need not exceed the number that would be required for establishment of a new use.

4. Enlargements and Expansions

a. The parking regulations of this chapter apply whenever an existing building or use is enlarged or expanded to include additional dwelling units, floor area, seating capacity or other units of measurement used for establishing off-street parking requirements.

b. In the case of enlargements or expansions that trigger requirements for additional parking, additional spaces are required only to serve the enlarged or expanded area, not the entire building or use. There is no requirement to address parking space deficits associated with existing, lawfully established buildings or uses.

Section 55.020 Minimum Parking Ratios

Off-street motor vehicle parking spaces must be provided in accordance with the minimum ratios established in Table 55-1. See Section 55.050 for an explanation of exemptions and allowed reductions of minimum motor vehicle parking requirements. See Section 55.060 for additional information about bicycle parking requirements.

Table 55-1: Minimum Motor Vehicle Parking Ratios

USE CATEGORY Subcategory Specific use	Measurement (spaces per)	CBD	All Other Districts and PI Overlay [1] See Section 20.040 for information on PI Overlay	Additional requirements / notes for All Other Districts
RESIDENTIAL				
Household Living	dwelling unit	0.00	1.00	
Group Living				
Assisted living facility	dwelling unit	0.00	0.33	
Community group home	1,000 sq. ft.	0.00	0.65	
Convent / monastery / novitiate	1,000 sq. ft.	0.00	0.65	
Elderly/retirement center	dwelling unit	0.00	0.50	
Fraternity / Sorority	bed	0.00	0.33	
Homeless Center	established as part of special exception			
Life care retirement center	dwelling unit	0.00	0.50	plus 0.20 per nursing center bed
Re-entry facility	1,000 sq. ft.	0.00	0.65	
Residential treatment center	1,000 sq. ft.	0.00	0.65	
Rooming/boarding house	bed	0.00	0.33	
Shelter, emergency and protective	1,000 sq. ft.	0.00	0.65	
Transitional living center	1,000 sq. ft.	0.00	0.65	
PUBLIC, CIVIC & INSTITUTIONAL				
Airport		0.00	established as part of special exception / development plan	
Cemetery		0.00	established as part of special exception	
College or University	1,000 sq. ft. (classroom)	0.00	1.10	
Community Center	1,000 sq. ft.	0.00	1.30	
Day Care	1,000 sq. ft.	0.00	1.30	
Detention and Correctional Facility		0.00	established as part of special exception	
Fraternal Organization	1,000 sq. ft. (assembly room)	0.00	16.25	or 3.33 per 1,000 sq. ft. of floor area, whichever is greater
Governmental Service or Similar Functions		0.00	established as part of special exception	
Hospital	bed	0.00	0.65	plus 3.00 per 1,000 sq. ft. emergency / outpatient care area
Library or Cultural Exhibit				
Library	1,000 sq. ft.	0.00	1.30	
Museum/cultural exhibit	1,000 sq. ft.	0.00	0.80	
Natural Resource Preservation		0.00	0.00	
Parks and Recreation	seat (stadium)	0.00	0.15	plus 2 per 1,000 sq. ft. in community center or recreation building plus 3.33 per 1,000 sq. ft. in swimming pool area
Golf course	hole	0.00	3.25	plus 2.50 per 1,000 sq. ft. in club house
Tennis court	court	0.00	1.30	
Postal Service		0.00	established as part of special exception	

USE CATEGORY Subcategory Specific use	Measurement (spaces per)	CBD	All Other Districts and PI Overlay [1] See Section 20.040 for information on PI Overlay	Additional requirements / notes for All Other Districts
Religious Assembly	1,000 sq. ft. (sanctuary)	0.00	18.5	or 1 per 3 seats, whichever is greater
Safety Service				
Police station	1,000 sq. ft.	0.00	3.00	
Fire station/ambulance service	emergency vehicle bay	0.00	3.00	
School				
Elementary or Middle	1,000 sq. ft.	0.00	0.50	
Senior High	1,000 sq. ft.	0.00	0.50	or 0.055 per seat in the largest stadium/auditorium, whichever is greater
Utilities and Public Service Facility				
Minor		0.00	0.00	
Major		0.00	established as part of special exception	
Wireless Communication Facility				
Freestanding tower		0.00	0.00	
Building or tower-mounted antenna		0.00	0.00	
COMMERCIAL				
Animal service				
Boarding or shelter	1,000 sq. ft.	0.00	1.00	
Grooming	1,000 sq. ft.	0.00	2.80	None for first 5,000 sq. ft.
Veterinary	1,000 sq. ft.	0.00	2.80	None for first 5,000 sq. ft.
Assembly and Entertainment				
Cinema, Theater, Auditorium, Stadium, Gymnasium	seat	0.00	0.15	
Driving range	tee	0.00	0.65	
Gun Club (indoor or outdoor)		0.00	established as part of special exception	
Health club	1,000 sq. ft.	0.00	4.25	
Video arcade, bingo, billiards	1,000 sq. ft.	0.00	6.50	
Other assembly and entertainment (indoor)	1,000 sq. ft.	0.00	2.80	
Other assembly and entertainment (outdoor)	1,000 sq. ft.	0.00	0.80	
Broadcast or Recording Studio	1,000 sq. ft.	0.00	2.15	
Commercial Service				
Building service	1,000 sq. ft.	0.00	1.60	
Business support service	1,000 sq. ft.	0.00	1.60	None for first 5,000 sq. ft.
Consumer maintenance / repair service	1,000 sq. ft.	0.00	2.80	None for first 5,000 sq. ft.
Personal improvement service	1,000 sq. ft.	0.00	2.80	None for first 5,000 sq. ft.
Tanning salon	1,000 sq. ft.	0.00	4.25	
Research service	1,000 sq. ft.	0.00	0.80	
Farmers Market	1,000 sq. ft. (Permanent outdoor shelters and indoor market space)	0.00	0.85	

USE CATEGORY **Subcategory** Specific use	**Measurement** (spaces per)	**CBD**	**All Other Districts and PI Overlay** [1] See Section 20.040 for information on PI Overlay	**Additional requirements / notes for All Other Districts**
Financial Services (except as below)	1,000 sq. ft.	0.00	2.50	
Personal credit establishment	1,000 sq. ft.	0.00	2.80	
Funeral or Mortuary Service	1,000 sq. ft. (assembly room)	0.00	16.25	plus 3.30 spaces per 1,000 sq. ft. in non-assembly area
Lodging				
Bed & breakfast	guest room	0.00	0.65	plus spaces required for assembly space
Campgrounds and RV parks	camping space	0.00	0.65	
Hotel/motel	guest room	0.00	0.65	plus spaces required for restaurants/bars and assembly/meeting space
Rural retreat	guest room	0.00	0.65	
Marina		0.00	established as part of special exception	
Office				
Business or professional office	1,000 sq. ft.	0.00	2.20	None for first 5,000 sq. ft.
Medical, dental or health practitioner office	1,000 sq. ft.	0.00	2.60	
Plasma center	1,000 sq. ft.	0.00	2.60	
Parking, Non-accessory		0.00	0.00	
Restaurants and Bars				
Restaurant	1,000 sq. ft.	0.00	6.50	None for first 5,000 sq. ft.
Restaurant, carry-out only	1,000 sq. ft.	0.00	2.50	
Bar	1,000 sq. ft.	0.00	8.50	None for first 5,000 sq. ft.
Retail Sales				
Antique dealer or furniture store	1,000 sq. ft.	0.00	1.65	
Building supplies and equipment	1,000 sq. ft.	0.00	1.65	
Consumer shopping goods	1,000 sq. ft.	0.00	2.50	None for first 5,000 sq. ft.
Convenience goods	1,000 sq. ft.	0.00	2.50	None for first 5,000 sq. ft.
Convenience goods: Lawn, garden and building materials	1,000 sq. ft. (Outdoor display and storage area)	0.00	1.10	
Convenience goods: Other materials	1,000 sq. ft. (Outdoor display and storage area)	0.00	2.50	None for first 5,000 sq. ft.
Grocery Store	1,000 sq. ft.	0.00	2.50	None for first 5,000 sq. ft.
Small Box Discount Store	1,000 sq. ft.	0.00	2.50	None for first 5,000 sq. ft.
Medical Marijuana Dispensary	1,000 sq. ft.	0.00	2.50	
Self-service Storage Facility	1,000 sq. ft.	0.00	0.10	
Sexually Oriented Business Establishment (except as below)	1,000 sq. ft.	0.00	2.85	
Adult amusement or entertainment	1,000 sq. ft.	0.00	8.75	
Adult motel	room	0.00	0.65	
Adult theater	seat	0.00	0.19	plus 1 per booth
Studio, Artist or Instructional Service	1,000 sq. ft.	0.00	2.80	None for first 5,000 sq. ft.
Trade School	1,000 sq. ft. (Classroom)	0.00	1.10	
Vehicle Sales and Service				
Car wash	See the vehicle stacking space requirements of Section 55.100			

USE CATEGORY Subcategory Specific use	Measurement (spaces per)	CBD	All Other Districts and PI Overlay [1] See Section 20.040 for information on PI Overlay	Additional requirements / notes for All Other Districts
Fueling station	1,000 sq. ft.	0.00	1.50	
Vehicle parts and supply sales	1,000 sq. ft.	0.00	3.33	
Vehicle repair and maintenance (all types of vehicles/repairs)	1,000 sq. ft.	0.00	1.50	minimum 5 spaces
Vehicle rentals	1,000 sq. ft.	0.00	1.25	
Vehicle sales (all types)	1,000 sq. ft.	0.00	1.25	plus 0.67 per 1,000 sq. ft. of open air display or storage area up to 4,500 sq. ft. plus 0.20 per each additional 1,000 sq. ft. of open display or storage area
WHOLESALE, DISTRIBUTION & STORAGE				
All Wholesale, Distribution and Storage Subcategories	1,000 sq. ft.	0.00	0.15	
INDUSTRIAL				
Low-impact, Moderate-impact and High-impact Manufacturing & Industry	1,000 sq. ft.	0.00	0.85	
Mining/Extraction	1,000 sq. ft.	0.00	0.65	
Junk or Salvage Yard	1,000 sq. ft.	0.00	0.65	
RECYCLING				
Construction or Demolition Debris	1,000 sq. ft.	0.00	1.00	
Consumer Material Drop-off Station	1,000 sq. ft.	0.00	1.00	minimum 2 spaces
Consumer Material Processing	1,000 sq. ft.	0.00	1.00	
AGRICULTURAL				
Animal Husbandry		0.00	0.00	
Community Garden		0.00	0.00	
Farm, Market- or Community-supported		0.00	0.00	
Horticulture Nursery	1,000 sq. ft.	0.00	0.20	
OTHER				
Drive-in or Drive-through Facility	See the vehicle stacking space requirements of Section 55.100			

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Section 55.030 Maximum Parking Ratio for Large Retail Uses

Retail uses requiring more than 225 parking spaces may not provide more than 4 outdoor parking spaces per 1,000 square feet of floor area, except as approved through the alternative compliance landscaping provisions of 65.100-D2. The alternative compliance landscaping plan must include a description of any low-impact development practices and landscaping that will help mitigate the additional paved area.

Section 55.040 Calculation of Required Parking

In determining the number of parking spaces required, the following calculation rules apply:

55.040-A Multiple Uses

Lots containing more than one use or tenant must provide parking in an amount equal to the total aggregate number of spaces required for each use or tenant on the lot except when a shared parking arrangement is approved in accordance with 55.050-J.

55.040-B Calculations

In calculating the number of parking spaces required for uses subject to a minimum parking ratio of "x" spaces per 1,000 square feet, first divide the floor area of the subject use by 1,000 and then multiply the result by "x." If, for example, a minimum parking ratio of 3.33 spaces per 1,000 square feet is applied to a use occupying 500 square feet of floor area, the minimum parking requirement for that use would be calculated as follows: (500 sq. ft. ÷ 1,000) × 3.33 = 0.5 × 3.33 = 1.665, which is rounded up to 2 spaces (see Section 90.010).

55.040-C Floor Area Exemptions

When minimum off-street parking ratios exempt the first increment of floor area, such exemption is credited to each individual use in a multi-tenant development.

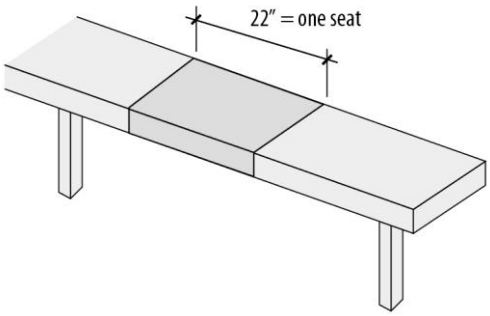
55.040-D Occupancy- or Capacity-based Standards

For the purpose of computing parking requirements based on employees, students, members, residents or occupants, calculations must be based on the average number of persons working on any single shift, the average enrollment or membership or the building code-rated capacity, whichever is applicable.

55.040-E Bench Seating

For the purpose of calculating parking requirements based on seating, each 22 linear inches of bench or pew length is equivalent to one seat.

Figure 55-1: Bench Seating



55.040-F Outdoor Customer Seating/Dining Areas

Any outdoor customer seating/dining area exceeding 10% of a bar, restaurant or other use's indoor floor area must be counted as floor area for purposes of determining off-street parking requirements.

55.040-G Unlisted Uses

Upon receiving a development application for a use not specifically listed in an off-street parking schedule, the development administrator is authorized to apply the off-street parking ratio specified for the listed use that is deemed most similar to the proposed use or establish a minimum off-street parking requirement for the proposed use in accordance with 55.040-H.

55.040-H Establishment of Other Parking Ratios

The development administrator is authorized to establish required minimum parking ratios for unlisted uses and in those instances where authority to establish a requirement is expressly granted. Such ratios must be established on the basis of (1) a similar use/parking determination (as described in 55.040-G), (2) on parking data provided by the applicant or (3) other information available to the development administrator. Parking data and studies must include estimates of parking demand based on reliable data collected from comparable local uses or on external data from credible research organizations, such as the Urban Land Institute (ULI) and the Institute of Transportation Engineers (ITE). Comparability will be determined by density, scale, bulk, area, type of activity and location. Parking studies must document the source of all data used to develop recommended requirements.

Section 55.050 Parking Exemptions and Credits

55.050-A Central Business District

Uses within the CBD zoning district are exempt from compliance with all regulations of this chapter, except for the parking area design requirements of 55.090-B through 55.090-G, which do apply in the CBD district.

55.050-B HP-zoned Property

Buildings within HP (Historic Preservation) overlay districts are exempt from the minimum off-street parking ratios of Table 55-1.

55.050-C National Register of Historic Places

Buildings listed in the National Register of Historic Places and contributing buildings within National Register districts are exempt from the minimum off-street parking ratios of Table 55-1.

55.050-D Accessory Buildings

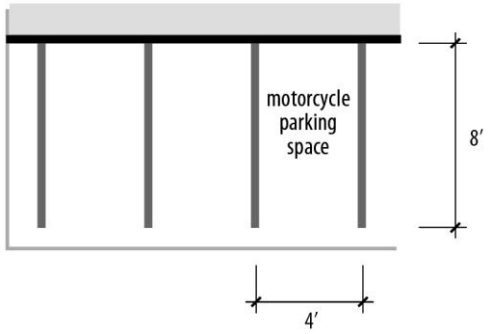
Accessory buildings are exempt from the minimum off-street parking ratios of Table 55-1.

55.050-E Motorcycle and Scooter Parking

In parking lots containing more than 10 parking spaces, the provision of motorcycle or scooter parking spaces may be credited toward satisfying the minimum off-street parking ratios of Table 55-1 at the rate of one motor vehicle parking space for each 2 motorcycle or scooter parking spaces. The maximum

credit allowed under this provision is 2 spaces or 10% of the total minimum motor vehicle parking requirement for the subject property, whichever is greater. To receive credit, each motorcycle and scooter space must have a concrete surface and minimum dimensions of 4 feet by 8 feet. This provision applies to existing and proposed parking lots.

Figure 55-2: Motorcycle Parking Space Dimensions



55.050-F Car-Share and Bike-Share Service

The following parking credits apply to nonresidential uses that are required to provide 10 or more motor vehicle parking spaces and to residential or mixed-use projects that are required to provide 25 or more motor vehicle parking spaces.

1. The number of required motor vehicle parking spaces is reduced by 4 spaces for each parking space that is leased by a city-approved car-share program for use by a car-share vehicle.
2. The number of required motor vehicle parking spaces is reduced by 2 spaces for uses that provide space for a city-approved bike-share program facility with a minimum of 10 bicycle parking docks.

55.050-G Long-term Bicycle Parking

Each 10 long-term bicycle parking spaces provided in accordance with Section 55.060 is credited as one motor vehicle space.

55.050-H Public Parking

Nonresidential uses may receive credit for parking spaces within a nearby public parking lot or public parking garage, as follows:

1. The nearest pedestrian entrance to the public parking lot or garage must be located within 1,500 feet of the lot on which the subject use is located;
2. The parking facility must be open to the general public from at least 6:00 a.m. to 10 p.m.;
3. Minimum parking requirements may be reduced by one parking space for every 4 parking spaces within the public parking lot or garage, not to exceed a total reduction of more than 25 spaces.

55.050-I On-street Parking

Nonresidential uses may count on-street parking spaces on public street rights-of-way abutting the subject property towards satisfying off-street motor vehicle parking requirements. One on-street parking space credit may be taken for each

20 linear feet of abutting right-of-way where on-street parking is allowed. Only space on the same side of the street as the subject use may be counted, except that the opposite side of the street may be counted if the property on that side of the street does not have the potential for future development. In calculating credit for on-street parking, all fractional spaces are rounded down.

55.050-J Shared Parking

1. General

Shared parking refers to the practice of 2 or more users who have need for parking at different times voluntarily agreeing to make use of the same motor vehicle parking spaces. Shared parking is encouraged as a means of conserving scarce land resources, reducing stormwater runoff, reducing the heat island effect caused by large paved areas and improving community appearance.

2. Approval

The development administrator is authorized to approve shared parking arrangements among property owners who propose shared parking.

3. Eligibility

Shared parking may be approved for nonresidential uses that have different periods of parking demand. Required residential parking and accessible parking spaces (for people with disabilities) may not be shared, provided that this provision is not intended to prohibit shared driveways serving such uses.

4. Calculation

The number of parking spaces required under a shared parking arrangement must be determined in accordance with the following:

a. Multiply the minimum parking required for each individual use, as set forth in Table 55-1 by the percentage identified in Table 55-2 for each of the 6 designated time periods.

b. Add the resulting sums for each of the 6 columns in Table 55-2.

c. Select the time period with the highest total parking requirement and use that total as the shared parking requirement.

Table 55-2: Shared Parking Calculations

Land Use	Time					
	Weekday			Weekend		
	Midnight – 7:00 a.m.	7:00 a.m. – 6:00 p.m.	6 p.m. – Midnight	Midnight – 7:00 a.m.	7:00 a.m. – 6:00 p.m.	6 p.m. – Midnight
Office and Industrial	5%	100%	10%	0%	60%	5%
Lodging	100%	60%	90%	100%	65%	80%
Restaurants and Bars	50%	70%	100%	45%	70%	100%
Religious Assembly	0%	10%	30%	0%	100%	30%
Assembly & Entertain.	10%	50%	100%	5%	80%	100%
Retail Sales & Comm. Service	5%	70%	90%	0%	100%	60%

5. Other uses

If one or more of the land uses proposing to make use of a shared parking arrangement do not conform to the land use classifications in Table 55-2, as

determined by development administrator, then the applicant must submit sufficient data to indicate the principal operating hours of the uses. Based upon this information, the development administrator is authorized to determine the appropriate shared parking requirement, if any, for such uses.

6. Location

Shared parking may be located on-site or off-site. Off-site parking is subject to the regulations of 55.080-D.

7. Agreement

Before final approval of a shared parking arrangement, a shared parking agreement must be provided guaranteeing the long-term availability of the shared parking, commensurate with the uses served. The agreement must be filed of record in the county clerk's office of the county in which the property is located. Shared parking privileges will continue in effect only as long as the agreement, binding on all parties, remains in force. If a shared parking agreement lapses or is no longer valid, then parking must be provided as otherwise required by this chapter.

55.050-K Alternative Compliance

The motor vehicle parking ratios of this chapter are not intended to prevent development and redevelopment or to make development and redevelopment economically impractical. In order to allow for flexibility in addressing the actual expected parking demand of specific uses, alternative compliance parking ratios may be approved through the special exception procedures of Section 70.120 only if:

1. The board of adjustment determines that the other allowed parking reduction alternatives of Section 55.050 are infeasible or do not apply; and
2. The board of adjustment determines that the reduced parking ratios proposed are not likely to cause material adverse impacts on traffic circulation and safety or on the general welfare of property owners and residents in the surrounding area.

55.050-L Conflicts with Interior Parking Lot Landscape Regulations

If compliance with the minimum interior parking lot landscaping regulation of §65.050-D.1 would result in the loss of required parking spaces, the amount of parking required is automatically reduced by the amount needed to accommodate the required interior parking lot landscape area.

55.050-M Data Centers

Minimum parking for data centers shall be provided as follows:

1. Office area: 1 space per 1,000 square feet; and
2. Warehouse/storage/technology equipment area: 0.15 space per 1,000 square feet.

Section 55.060 Bicycle Parking

55.060-A Purposes

1. Short-term Bicycle Parking

Short-term bicycle parking is generally intended to serve the needs of cyclists who park their bicycles for short time periods, including customers, clients, students and other short-term visitors.

2. Long-term Bicycle Parking

Long-term bicycle parking is generally intended to serve the needs of cyclists who park their bicycles for long time periods, primarily employees and residents.

55.060-B Spaces Required

1. Short-term Bicycle Parking

Short-term bicycle parking spaces must be provided in accordance with the minimum ratios established in Table 55-3: Minimum Required Bicycle Parking Ratios

Table 55-3: Minimum Required Bicycle Parking Ratios

USE CATEGORY **Subcategory** Specific use	**Bicycle Spaces (% of Required Motor Vehicle Parking Spaces)**
RESIDENTIAL	
Household Living	
Apartment/Condo	10% or 2 spaces, whichever is greater
PUBLIC, CIVIC AND INSTITUIONAL	
College or University	10% or 2 spaces, whichever is greater
Library or Cultural Exhibit	10% or 2 spaces, whichever is greater
Parks and Recreation	5% or 2 spaces, whichever is greater
School	
Elementary or Middle School	10% or 2 spaces, whichever is greater
Senior High	5% or 2 spaces, whichever is greater
COMMERCIAL	
Assembly and Entertainment	5% or 2 spaces, whichever is greater
Commercial Service	
Personal improvement service	5% or 2 spaces, whichever is greater
Financial Services	5% or 2 spaces, whichever is greater
Restaurants and Bars	
Restaurant	5% or 2 spaces, whichever is greater
Bar	5% or 2 spaces, whichever is greater
Retail Sales	
Consumer shopping goods	5% or 2 spaces, whichever is greater
Convenience goods	5% or 2 spaces, whichever is greater
Studio, Artist or Instructional Service	5% or 2 spaces, whichever is greater

55.060-C Long-term Bicycle Parking

Long-term bicycle parking and storage is not required, but as a means of encouraging the provision of long-term bicycle parking spaces for employees and bicycle commuters, motor vehicle parking credit is offered in accordance with 55.050-G.

55.060-D Location and Design

1. Short-Term Bicycle Parking Spaces

Location

Short-term bicycle parking spaces must be located in highly visible areas that do not interfere with pedestrian movements. At least 50% of required short-term bicycle parking spaces must be located within 100 feet of a customer entrance, with the remainder located no more than 300 feet from any entrance. Short-term bicycle parking must be located on the subject lot, unless a license agreement has been approved by the city to allow private bicycle parking facilities to be located in the right-of-way. Public bicycle parking spaces may be credited toward meeting short-term bicycle parking requirements if such bicycle parking spaces comply with the location requirements of this paragraph.

Design

Required short-term bicycle parking spaces must:

(1) Consist of bike racks or lockers that are anchored so that they cannot be easily removed;

(2) Be of solid construction, resistant to rust, corrosion, hammers, and saws;

(3) Allow both the bicycle frame and the wheels to be locked with the bicycle in an upright position using a standard U-lock;

(4) Be designed so as not to cause damage to the bicycle;

(5) Facilitate easy locking without interference from or to adjacent bicycles; and

(6) Have minimum dimensions of 2 feet in width by 6 feet in length, with a minimum overhead vertical clearance of 7 feet.

2. Long-Term Bicycle Parking and Storage Spaces

Location

Long-term bicycle parking spaces provided to receive parking credit in accordance with 55.050-G must be provided in the building or in a weather-protected area. Long-term bicycle parking spaces must be protected from access by unauthorized persons.

Design

Long-term bicycle parking spaces provided to receive parking credit in accordance with 55.050-G must:

(1) Consist of bike racks or lockers anchored so that they cannot be easily removed;

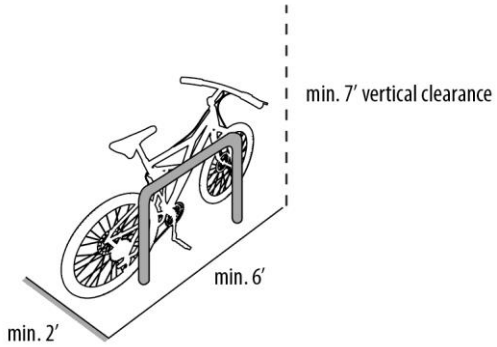
(2) Allow both the bicycle frame and the wheels to be locked with the bicycle in an upright position using a standard U-lock;

(3) Be designed so as not to cause damage to the bicycle;

(4) Facilitate easy locking without interference from or to adjacent bicycles; and

(5) Have minimum dimensions of 2 feet in width by 6 feet in length, with a minimum overhead vertical clearance of 7 feet. Bicycle lockers are exempt from overhead clearance requirements.

Figure 55-3: Bicycle Parking Space Dimensions



55.060-E Special Exceptions

1. The board of adjustment is authorized to approve a special exception reducing the number of short-term bicycle spaces required under this section, in accordance with the special exception procedures of Section 70.120.
2. The board of adjustment is also authorized to approve special exception to modify the bicycle parking design and location requirements of this section in accordance with the special exception procedures of Section 70.120.

Section 55.070 Use of Off-Street Parking Areas

55.070-A Required off-street parking spaces are intended to serve residents, tenants, patrons, employees, or guests of the principal use. Required off-street parking areas may be used solely for the temporary parking of licensed motor vehicles in operating condition.

55.070-B Required off-street parking spaces may not be used for the storage, display or sale of goods equipment or materials. No motor vehicle repair work of any kind is permitted in a required parking space.

55.070-C Required spaces may be used for electric vehicle charging.

Section 55.080 Location of Off-Street Parking

55.080-A General

Except as otherwise expressly stated in this chapter, required off-street parking areas must be located on the same lot as the building or use they are required to serve.

55.080-B Street Yard Parking in RM Districts

Within RM districts no more than 50% of a street yard may be used for motor vehicle parking.

55.080-C Parking Setbacks

1. Unenclosed off-street parking areas must be set back from abutting streets as indicated in Table 55-4:

Table 55-4: Parking Space Setback Requirements

	Minimum Street Setback (feet)	
	1 to 5 Parking Spaces	**6 or More Parking Spaces**
Residential Zoning Districts		
Accessory to a household living use	3	15
Accessory to another use	15	25
Other Zoning Districts		
Within 50 feet of a residential district	15	25

2. All unenclosed, non-accessory off street parking areas must be screened from abutting R- or AG-R zoned lots by an F1 screening fence or wall, in accordance with §65.070-C.

3. All unenclosed, accessory off street parking areas containing 6 or more spaces must be screened from abutting RE-, RS-, or AG-R zoned lots by an F1 screening fence or wall, in accordance with §65.070-C, provided that accessory parking areas located more than 50 feet from abutting RE-, RS-, or AG-R zoned lots are not required to provide such screening.

55.080-D Off-site Parking

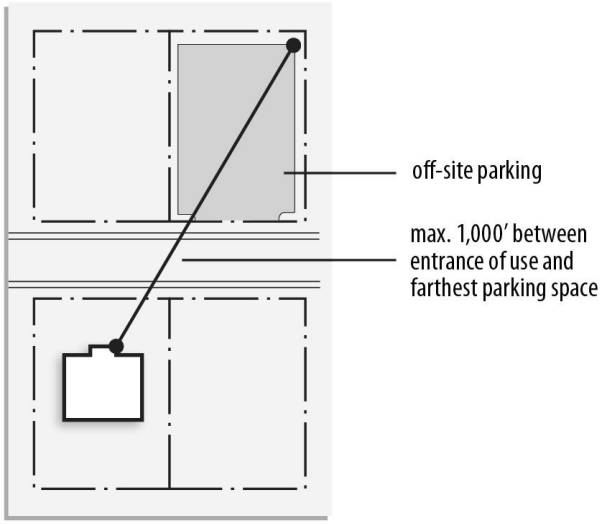
1. When Allowed

All or a portion of required off-street parking for nonresidential uses may be provided off-site, in accordance with the regulations of this section. Required accessible parking spaces (see Section 55.110) and required parking for residential uses may not be located off site.

2. Location

Off-site parking areas must be located within a 1,000-foot radius of the use served by such parking, measured between the nearest public entrance door of the use to be served and the outer perimeter of the furthest parking space within the off-site parking lot. Off-site parking lots are allowed only in zoning districts that permit non-accessory parking or in districts that allow the principal use to be served by the off-site parking spaces.

Figure 55-4: Off-Site Parking Location



3. **Design**
   Off-site parking areas must comply with all applicable parking area design regulations of Section 55.090. Off-site parking proposed to take place on a newly constructed parking area must comply with the PK district lot and building regulations of 25.030-C.

4. **Control of Off-Site Parking Area**
   The property to be occupied by the off-site parking facilities must be under the same ownership as the lot containing the use to be served by the parking. The off-site parking area may be under separate ownership only if an agreement is provided guaranteeing the long-term availability of the parking, commensurate with the use served by the parking. The agreement must be filed of record in the county clerk's office of the county in which the property is located. Off-site parking privileges will continue in effect only as long as the agreement, binding on all parties, remains in force. If an off-site parking agreement lapses or is no longer valid, then parking must be provided as otherwise required by this chapter.

Section 55.090 Parking Area Design

55.090-A Applicability

The parking area design regulations of this section apply to all off-street parking lots for motor vehicles, whether containing required parking spaces or non-required parking spaces.

55.090-B Ingress and Egress

All parking areas must be designed to allow vehicles to enter and exit a street and cross public sidewalks in a forward motion, except that this requirement does not apply to lots with access on a minor street.

55.090-C Stall Size

Parking spaces must be at least 8.5 feet in width and 18 feet in length, exclusive of access drives and aisles. In parking areas where permanent wheel stops have been

installed, 2.5 feet of the parking space length (depth) beyond the wheel stop may be counted as part of the required stall length if that area is unobstructed and not part of another parking stall, drive aisle or sidewalk.

55.090-D Parking Area Layout (Geometrics)

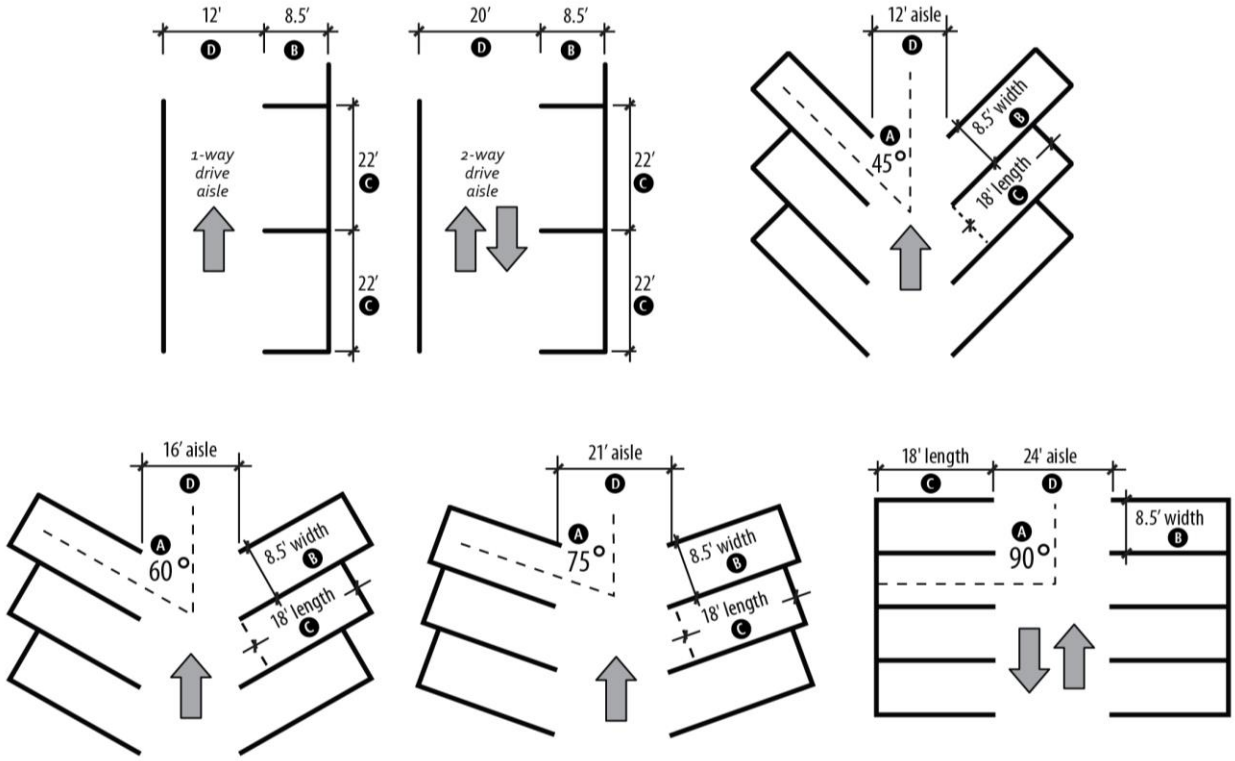
Parking areas must be designed and marked in accordance with the dimensional standards of Table 55-5, which shows minimum dimensions for various parking layouts (angles). Requirements for layouts or angles not shown in Table 55-5 may be interpolated from the layouts shown, as approved by the development administrator.

Table 55-5: Parking Area Geometrics

A	B	C	D
0°	8.5	22.0	12.0 / 20.0
	9.0	22.0	12.0 / 20.0
45°	8.5	18.0	12.0 / 20.0
	9.0	18.0	11.0 / 19.0
60°	8.5	18.0	16.0 / 21.0
	9.0	18.0	15.0 / 20.0
75°	8.5	18.0	21.0 / 22.0
	9.0	18.0	20.0 / 21.0
90°	8.5	18.0	– / 24.0
	9.0	18.0	– / 22.0
	10.0	18.0	– / 20.0

A = Stall Angle, **B** = Stall Width, **C** = Stall Length, **D** = Aisle Width (1-way/2-way)

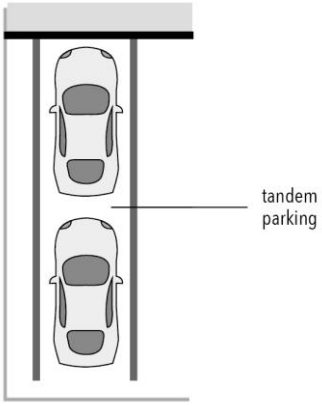
Figure 55-5: Parking Area Geometrics



55.090-E Tandem Parking

Tandem parking spaces may be used to satisfy parking requirements for household living uses when the spaces are assigned to the same dwelling unit. In all other cases parking spaces must be designed to allow each parking space to be accessed without passing through another parking space. Tandem parking arrangements must have a minimum stall of 8.5 feet and a minimum length of 36 feet.

Figure 55-6: Tandem Parking



55.090-F Surfacing

1. All off-street parking areas must be surfaced with a dustless, all-weather surface unless otherwise expressly stated in this zoning code. Pervious pavement or pervious pavement systems are allowed subject to the supplemental regulations of Section 55.090-F.6. Parking area surfacing must be completed prior to initiation of the use to be served by the parking.
2. All motorized vehicles designed for travel upon public streets and all recreational vehicles that are being parked, stored or displayed for sale must be parked, stored or displayed on a dustless, all-weather surface. This surfacing requirement does not apply to junk or salvage yards. The board of adjustment is authorized to grant a special exception permitting the parking, storage or display of motorized vehicles or recreational vehicles on a surface other than one consisting of a dustless, all-weather surface if the location complies with all applicable minimum building setbacks.
3. Driveways, not including parking spaces, that serve residential uses in AG and AG-R zoning districts may be surfaced with gravel in place of a dustless, all-weather surface outside of the street right-of-way.
4. As an alternative to fully paved driveways, ribbon driveways serving residential dwelling units are allowed, subject to the following provisions.
    a. Ribbon driveways consist of at least two wheel strips, at least 2 feet in width each, constructed with concrete.
    b. The wheel strips must be separated by a permeable surface with a maximum width of 4 feet. The space between the wheel strips may be planted with turf, grass, or other ground cover, or filled with landscaping rocks or gravel. Gravel or rocks that have migrated onto adjacent areas must be regularly swept and removed. The permeable space between wheel strips does not count toward satisfying minimum open space per unit requirements.
    c. The overall width of the driveway is measured from the outer edges of the outside wheel strips and includes the aggregate widths of all wheel and permeable strips.

d. Within the right-of-way, driveways must be fully paved across their total width. (Refer to the City of Tulsa Standard Specifications and Details for Residential Driveways #701-704.)

5. In RE, RS, RD, and RT zoning districts, driveways serving residential dwelling units may not exceed 50% of the lot frontage or the following maximum widths, whichever is less, unless a greater width is approved in accordance with the special exception procedures of Section 70.120, or, if in a PUD, in accordance with the amendment procedures of Section 30.010-I.2. (Refer to the City of Tulsa Standard Specifications and Details for Residential Driveways #701-704).

Table 55-6: Maximum Driveway Widths in RE, RS, RD, and RT Zoning Districts

	Maximum Driveway Width				
Street Frontage	**75'+**	**60' – 74'**	**46' – 59'**	**30' – 45'**	**Less than 30' [2]**
Driveway Within Right-of-Way (feet) [1]	27'	26'	22'	20'	12'
Driveway Within Street Setback (feet)	30'	30'	–	–	–

[1] Maximum width is the sum of the width of all driveways.

[2] Provided that for street frontages less than 24 feet, a driveway up to 12 feet in width is permitted.

For approvals granted under the terms of the zoning code in effect prior to January 1, 2016, including (1) variances of maximum driveway coverage measured by width, square footage or percentage of yard and (2) establishment of PUD development standards that increase the maximum permitted driveway coverage measured by any such means, the foregoing maximums do not apply.

6. Pervious pavement or pervious pavement systems, including pervious asphalt, pervious concrete, modular pavers designed to funnel water between blocks, lattice or honeycomb shaped concrete grids with turf grass or gravel filled voids to funnel water, plastic geocells with turf grass or gravel, reinforced turf grass or gravel with overlaid or embedded meshes, resin-bound pervious pavement systems, or similar structured and durable systems are allowed as parking lot surfacing materials. Gravel, turf, or other materials that are not part of a structured system designed to manage stormwater are not considered pervious pavement or a pervious pavement system. Pervious pavement and pervious pavement systems must comply with the following:

a. Materials must be installed and maintained in accordance with all applicable city standards. Damaged areas must be promptly repaired. Gravel that has migrated from a pervious pavement system onto adjacent areas must be regularly swept and removed.

b. Accessible parking spaces and accessible routes from the accessible space to the principal structure or use served must comply with the building code.

c. Pervious pavement or pervious pavement systems are prohibited in areas used for the dispensing of gasoline or other liquid engine fuels or where other hazardous materials are used or stored.

d. Parking areas with pervious pavement or pervious pavement systems must have the parking spaces marked as required by this chapter, except that pervious pavement systems that utilize gravel or turf may use alternative marking to indicate the location of the parking space, including markings at the end of spaces on the drive aisle or curbing, wheel stops, or concrete or paver strips in lieu of painted lines.

55.090-G Vertical Clearance

All parking spaces must have overhead vertical clearance of at least 7 feet.

55.090-H Landscaping and Screening

See Chapter 65.

55.090-I Lighting

See Chapter 67.

Section 55.100 Stacking Spaces for Drive-through Facilities

55.100-A Spaces Required

In addition to the parking required for each use, establishments with drive-through facilities must provide stacking spaces for each drive-through station as indicated in Table 55-7:

Table 55-7: Drive-through Stacking Space Requirements

Use	Minimum Spaces (per lane)
Automated teller machine	2 (measured from ATM)
Bank	3 (measured from teller or service area)
Car wash, automated or customer-operated	2 (measured from vehicle entrance)
Car wash, attendant hand wash	3 (measured from vehicle entrance)
Drug store	2 (measured from pick-up window)
Restaurant drive-through	3 (measured from order board)
Kiosks	2 (measured from service window)
Other	As determined by the development administrator

55.100-B Dimensions

Each lane of stacking spaces must be at least 8 feet in width and at least 18 feet in length. Stacking lanes must be delineated with pavement markings.

55.100-C Location and Design

1. Stacking lanes must be located on the subject property. They may not be located within required driveways or drive aisles, parking spaces or loading areas and may not interfere with access to parking and ingress and egress from the street.
2. Except on corner lots, all areas associated with drive-through facilities, including drive-through signs, stacking lanes, trash receptacles, loudspeakers and service windows must be located to the rear or on the non-street-facing side of the property.
3. All areas associated with drive-through facilities must be screened from the street in accordance with the S2 screening standards of Section 65.070-C and the Street Frontage Buffer requirements of Section 65.060-C. The tree requirements of the S2 screen may be used to satisfy the street tree requirements of Section 65.040-B.

4. Drive-through lanes must be set back at least 10 feet from abutting R- or AG-R-zoned lots, and a screening wall or fence must be provided along the common lot line in accordance with the F1 screening fence or wall standards of Section 65.070-C.

55.100-D Pedestrian Access

The principal pedestrian access to the entrance of the use from a public sidewalk may not cross the drive-through facility stacking lane.

Section 55.110 Accessible Parking for People with Disabilities

Accessible parking facilities must be provided in accordance with the building code.

Section 55.120 Loading

Unenclosed off-street loading areas may not be located within 50 feet of any abutting R- or AG-R-zoned properties unless the loading areas are screened on all sides abutting the R- or AG-R- zoned property in accordance with the F1 screening fence or wall standards of §65.070-C.

Section 55.130 Pedestrian Circulation

55.130-A Applicability

An on-site circulation system for pedestrian and non-motorized travel must be provided in accordance with the requirements of this section for all lots occupied by buildings, except for:

1. Residential buildings containing 4 or fewer dwelling units;
2. Agricultural uses;
3. Industrial or other uses without a resident- or customer-entrance; and
4. Uses, other than parking lots, that do not include a principal building intended for regular human occupancy.

55.130-B Required Connections

The pedestrian circulation system must provide safe, direct and convenient pedestrian access connecting main entrances of buildings and uses with all other such entrances and with available access points including parking, streets, sidewalks and transit stops. In the case of building or site additions, these requirements apply only to the new or expanded areas.

55.130-C Design

Required on-site pedestrian circulation facilities must be designed and constructed in accordance with the following requirements:

1. Pedestrian access must consist of an accessible, easily-discernible walkway or multi-use path with a minimum width of 5 feet.
2. The pedestrian access surface located on private property must be constructed of concrete, asphalt or other fixed, firm and nonslip material, approved by the development administrator.
3. Pedestrian access routes that cross parking lots, drive aisles or other vehicular use areas must be clearly differentiated from the vehicle surface through the use of physical separation or by durable, low-maintenance materials such as pavers,

bricks, scored concrete, pavement textures or painted surfaces to define places of pedestrian movement.

Chapter 60 | Signs

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Section 60.010 General

60.010-A Purpose

The sign regulations of this section are intended to balance the following differing, and at times, competing goals:

1. To support the desired character of the city, as expressed in adopted plans, policies and regulations;
2. To promote an attractive visual environment;
3. To encourage the effective use of signs as a means of communication for businesses, organizations and individuals;
4. To provide a means of way-finding for visitors and residents;
5. To provide for reasonable business identification, advertising and communication;
6. To prohibit signs of such excessive size and number that they obscure one another to the detriment of the economic and social well-being of the city and its residents, property owners and visitors;
7. To protect the safety and welfare of the public by minimizing hazards for motorized and nonmotorized traffic;
8. To minimize the possible adverse effects of signs on nearby public and private property; and
9. To provide broadly for the expression of individual opinions through the use of signs on private property.

60.010-B Scope and Applicability

All signs within the city are subject to the regulations of this chapter and all other applicable provisions of this zoning code.

60.010-C Content Neutrality

Any sign allowed under this chapter may contain, in lieu of any other message or copy, any lawful noncommercial message that does not direct attention to a business operated for profit, or to a product, commodity or service for sale or lease, or to any other commercial interest or activity, as long as the sign complies with all size, height, location and other applicable requirements of this chapter.

60.010-D Off-premise Outdoor Advertising Signs

Off-premise outdoor advertising sign are allowed only in those locations expressly identified in this zoning code and only when such signs comply with all applicable off-premise outdoor advertising sign regulations. Provisions of this zoning code that refer to "signs" being allowed or certain types of signs being allowed (e.g., freestanding, wall, projecting) are not to be construed as references to off-premise outdoor advertising signs being allowed, unless the subject provision expressly refers to "off-premise outdoor advertising signs."

Section 60.020 Prohibited Signs and Sign Characteristics

The following signs and sign characteristics are prohibited except as otherwise expressly stated:

60.020-A Signs for which no permit that is required under Title 51 of the Tulsa Revised Ordinances has been issued;

60.020-B Signs located in such a manner as to constitute a nuisance as provided in Title 24, Chapter 1 of the Tulsa Revised Ordinances;

60.020-C Search lights, strobe lights, rotating beacon lights, flashing lights that are visible from public right-of-way, except as otherwise expressly allowed by this chapter or required by law;

60.020-D Signs located in or obstructing a required parking or loading space, or that otherwise obstruct vehicular or pedestrian access or circulation, or that pose any other hazard to motorized or nonmotorized travel;

60.020-E Signs located in or that project into the right-of-way or planned right-of-way of a public street, unless a special exception has been approved by the board of adjustment in accordance with the procedures of Section 70.120 and a license has been granted by the city in the case of the right-of-way or a removal agreement has been entered into in the case of the planned right-of-way. (Title 11 § 1400 and following of the Tulsa Revised Ordinances grants a license for certain signs located in the "Central Business District" as therein defined).

60.020-F Signs that obstruct any fire escape, required exit, window or door opening used as a means of egress;

60.020-G Signs that interfere with an opening required for ventilation, except that signs may cover transom windows when not in violation of building and fire prevention codes;

60.020-H Signs affixed directly to a tree, utility pole or traffic control device;

60.020-I Signs that obstruct, impair, obscure, interfere with the view of, or that may be confused with, any authorized traffic control sign, signal, or device;

60.020-J Sign displays with a brightness of such intensity or brilliance that they impair the vision or endanger the safety and welfare of any pedestrian, cyclist, or person operating a motor vehicle;

60.020-K Signs that violate the intersection sight distance regulations of Title 24 (§103.A) of the Tulsa Revised Ordinances;

60.020-L Roof signs, except as expressly allowed by 60.080-B5;

60.020-M Signs exceeding an illumination of 70 foot candles measured at a distance of 2 feet.

60.020-N Signs attached to or painted on an inoperable or unlicensed vehicle (motorized or non-motorized) located in view of the right-of-way; and

60.020-O Signs attached to or painted on a licensed motor vehicle if the sign: (1) directs attention to a business, service, commodity, or activity offered or sold on the premises and (2) if the vehicle is parked closer to the street than the nearest building wall (does not apply to vehicles parked for the purpose of immediate loading and unloading).

Section 60.030 Sign Exceptions

The following signs are not counted as signs for purposes of determining the number of signs or amount of signage on a lot.

60.030-A Driveway Signs

1. One driveway sign may be installed at each vehicle entrance and exit to any lot occupied by an allowed nonresidential use or apartment/condo building. Such signs must be located within 10 feet of the intersection of the driveway and the street right-of-way. Driveway signs may be illuminated but may not exceed 4 square feet in area or 5 feet in height.
2. Off-street parking areas with a capacity of more than 4 vehicles, multi-tenant developments and uses on lots exceeding 80,000 square feet in area may display internal site driveway signs. Such signs must be located within 10 feet of an internal site driveway or drive aisle and may not exceed 12 square feet in area or 10 feet in height.

60.030-B Drive-through Signs

Drive-through signs are permitted in conjunction with drive-through uses, in accordance with the following regulations.

1. Location

Drive-through signs must be located within 10 feet of a drive-through lane.

2. Number and Dimensions

One primary drive-through sign not to exceed 36 square feet in area or 8 feet in height is allowed per order station up to a maximum of 2 primary drive-through signs per lot. One secondary drive-through sign not to exceed 15 square feet in area or 6 feet in height is allowed per order station, up to a maximum of 2 secondary drive-through signs per lot.

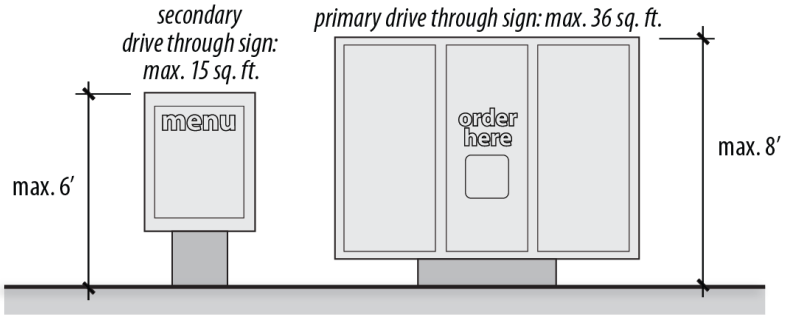
3. Residential Separation

Drive-through signs must be set back at least 50 feet from residential zoning districts.

4. Visibility

Drive-through signs must be oriented to be visible by motorists in allowed drive-through lanes.

Figure 60-1: Drive-through Signs



60.030-C Nameplates

Nameplates are allowed in all zoning districts, provided they do not exceed 2 square feet in area in residential districts or 4 square feet in area in all other districts.

60.030-D Window Signs

Window signs are allowed as sign exceptions for allowed nonresidential uses, provided they do not cover more than 25% of the area of the window to which they are affixed.

60.030-E Temporary Signs

1. Real Estate Signs

One real estate sign is allowed per street frontage, subject to the standards in Table 60-1:

Table 60-1: Real Estate Signs

Regulation	AG, AG-R, R, O and SR Districts	All Other Districts
Maximum Sign Area (sq. ft.)		
Minor street Frontage	8	8
All Other Street Frontages	32	80
Maximum Sign Height (feet)		
Minor street Frontage	8	8
All Other Street Frontages	15	25

2. Construction Signs

One construction sign is allowed per street frontage, subject to the following standards:

a. Construction signs may not exceed 32 square feet in area or 0.50 square feet of sign area per linear foot of street frontage, whichever is greater, but in no case may the sign exceed 400 square feet in area. The

maximum sign area calculation must be based on the street frontage to which the sign is oriented.

b. Construction signs may not exceed 15 feet in height.

c. Construction signs must be removed within 2 weeks of completion of the construction or development.

3. Banners

a. One banner attached to the wall of a building is allowed as a sign exception for allowed nonresidential uses, provided that such banner does not exceed 32 square feet in area.

b. Banners must be removed no later than 90 days after installation or at such time that permanent signs are installed, whichever occurs first.

4. Promotional Signs

Promotional signs are permitted as sign exceptions on lots occupied by allowed nonresidential uses. Such signs are subject to the following standards:

a. No more than 4 promotional sign permits are allowed per business per year.

b. A promotional sign permit may be issued for a maximum 14-day period. Any or all of the 4 allowed promotional sign time periods may run consecutively.

c. The height of a promotional sign may not exceed the maximum allowed height of any freestanding sign allowed in the subject zoning district. In addition, any inflatable promotional signs must be set back from all property lines by a minimum distance of one foot for every one foot of sign height, as measured from ground level at the base of the sign.

d. Promotional signs may not be mounted on the roof, except for inflatable or other non-rigid sign/displays, which may be roof-mounted.

5. Campaign Signs

Campaign signs must be removed no later than 7 days after the voting event. Campaign signs are prohibited on public property and are allowed on private property only with the consent of the owner of the subject property. In R and O zoning districts campaign signs may not exceed 16 square feet in area.

6. Special Event Signs

Special event signs are subject to city council approval. City council-approved special event signs are not subject to the sign regulations of this chapter unless otherwise expressly stated at the time of approval.

60.030-F Other Sign Exceptions

The following additional signs are also allowed as sign exceptions:

1. Signs erected and maintained pursuant to the discharge of governmental functions, or that are required by law, ordinance, or government regulation, or that are required to be posted in order to effectuate a legal right.

2. Flags that do not contain a commercial message.
3. Wall plaques and wall signs that are not illuminated and that do not exceed 4 square feet in area;
4. Signs that are not legible from any public right-of-way or from beyond the boundaries of the lot or parcel;
5. Signs within completely enclosed buildings, provided that such signs are oriented to be primarily visible from inside the subject building; and
6. Labels and notices on equipment or structures, provided the label or notice does not exceeding 15 square inches in area.

Section 60.040 Sign Regulations of General Applicability

60.040-A Applicability

The regulations of this section apply to on-premise wall, projecting and freestanding signs and all off-premise outdoor advertising signs, except as otherwise expressly stated. These regulations are in addition to any other applicable regulations established in this chapter.

60.040-B Required Setbacks, Spacing and Separations

1. All parts of a sign must be set back at least 10 feet of a freeway planned right-of-way.
2. All on-premise projecting signs, roof signs and freestanding signs and all off-premise outdoor advertising signs must be separated from all other roof signs, projecting signs, freestanding signs and off-premise outdoor advertising signs by a minimum distance of 30 feet. Additional spacing requirements apply between off-premise outdoor advertising signs (See 60.080-F5).
3. Signs that are visible from an R or AG-R district (other than street, highway or freeway right-of-way) or from a designated residential development area must be separated from the R or AG-R district or residential development area by a minimum distance of 50 feet.
4. Signs with an area of more than 300 square feet that are visible from an R or AG-R district (other than street, highway or freeway right-of-way) or from a designated residential development area must be separated from the R or AG-R district or residential development area by a minimum distance of 200 feet.

60.040-C Mounting Height of Wall Signs and Projecting Signs

Wall signs and projecting signs must be mounted so that no portion of the sign extends above the top of the parapet or building wall to which they are attached, except in those cases where the height of the parapet or building wall or the presence of architectural features will not accommodate a wall or projecting sign that is at least 3 feet in height. In such cases, the sign may extend above the parapet or building wall for a distance that will permit a sign with a height of up to 3 feet.

60.040-D Dynamic Displays

Unless otherwise expressly stated, all signs that include a dynamic display are subject to the supplemental regulations of Section 60.100.

60.040-E Off-Premise Business Signs

Off-premise business signs may be approved for multi-tenant developments only when such developments are included in a mandatory development plan (See Section 70.040). The authority to approve off-premise business signs is intended to be used only when the location of the identified business or activity precludes placement of a sign that is visible to motorists and pedestrians along the highest (traffic) volume street that provides access to the subject development and when the result of the approval will be in keeping with the stated purposes of this chapter (60.010-A). The intent of this off-premise business sign authorization is to provide flexibility in overcoming the locational and visibility challenges of lots within a mandatory development plan area, not to allow an overall increase in the amount of signage allowed or encourage a proliferation of signs within the area covered by the mandatory development plan. Any waiver, modification, or variance to the regulations of 60.040-E is considered a use variance and is thereby prohibited in accordance with §70.130-B1.

60.040-F Illumination

Except for authorized dynamic displays, the illumination on the face of any sign where illumination is permitted must be by constant light and may not exceed 70 foot candles measured at a distance of 2 feet from the face of the sign.

60.040-G Electronic Message Center Signs

Electronic message center signs shall be permitted in SR, MX, O, C, and I districts, and shall be subject to the regulations that apply to on-premise wall, projecting, and freestanding signs within the applicable zoning district, and the following supplemental regulations.

1. Electronic message center signs may not exceed the maximum sign area allowed for the respective sign type or the following maximum areas, whichever is less:

   a. 32 square feet in SR and O districts; and

   b. 48 square feet in MX, C, and I districts.

   The sign area allowed for electronic message center signs is not in addition to the maximum sign area allowed for a wall, projecting or freestanding sign, but rather is counted as part of the maximum area of the wall, projecting or freestanding sign. The board of adjustment may approve a greater sign area for electronic message center signs in accordance with the special exception procedures of Section 70.120.

2. Display of messages shall remain static, without any animation or special effects, for a period of not less than 5 minutes. The transition from one message to the next shall be direct and immediate, without any animation or special effects.

3. Electronic message center signs with an area exceeding the maximum allowable sign area in §60.040-G.1 may not be located within 50 feet of the driving surface of a signalized intersection, unless expressly approved by the board of adjustment as part of the special exception approval. This separation distance must be measured horizontally in a straight line from the nearest point of the sign structure to the nearest point of the street curb or edge of the traveled roadway marked or understood as such.

4. Electronic message center signs with a sign area exceeding the maximum allowable sign area in §60.040-G.1 may not be located within 200 feet of an R or AG-R district (other than street, highway, or freeway right-of-way) or a residential development area, unless expressly approved by the board of adjustment as part of the special exception approval. This separation distance does not apply if the electronic message center sign is not visible from the referenced district, area or lot. Required separation distances must be measured horizontally in a straight line from the nearest point on a sign structure to the nearest point of an R or AG-R district or residential development area boundary.

5. Electronic message center signs are subject to the illumination standards established in Section 60.040-F.

Section 60.050 Signs in R, AG, and AG-R Zoning Districts

60.050-A Applicability

The regulations of this section apply to signs in R, AG, and AG-R districts. See also the general regulations of Section 60.040.

60.050-B Signs Allowed

The following signs are allowed in R, AG, and AG-R districts in addition to any signs allowed pursuant to Section 60.030. On-premise roof signs, on-premise projecting signs and all off-premise outdoor advertising signs are prohibited in R, AG, and AG-R districts.

1. Apartment/Condo Buildings and Neighborhood and Subdivision Identification Signs

a. Lots occupied by one or more apartment/condo buildings are allowed a maximum of one freestanding sign per street frontage and a maximum of one wall sign per building wall. Wall signs may not exceed 32 square feet in area.

b. Residential neighborhoods and residential subdivisions, including manufactured housing parks, are allowed a single freestanding sign at each street entrance to the neighborhood or subdivision.

c. The freestanding signs allowed by this section may not exceed 32 square feet in area or 0.20 square feet of sign area per linear foot of street frontage, whichever is greater, but in no case may the sign exceed 150 square feet in area. The maximum sign area calculation must be based on the street frontage to which the sign is oriented. Maximum height may not exceed 20 feet.

2. Nonresidential Uses

The following regulations apply to all principal nonresidential uses in R, AG, and AG-R districts.

Wall Signs

Nonresidential uses in R, AG, and AG-R districts are allowed a maximum of one wall sign per public building entrance. No individual wall sign may exceed 32 square feet in area. In buildings with multiple public building entrances, the sign area of all wall signs may not exceed 32 square feet in the aggregate.

Freestanding Signs

Nonresidential uses in R, AG, and AG-R districts are allowed a maximum of one freestanding sign per street frontage. Allowed freestanding signs are subject to a maximum height limit of 20 feet and may not exceed 32 square feet in area or 0.20 square feet of sign area per linear foot of street frontage, whichever is greater, but in no case may the sign exceed 150 square feet in area. The maximum sign area calculation must be based on the street frontage to which the sign is oriented.

Dynamic Displays

Dynamic displays are prohibited in R, AG, and AG-R districts except that on a lot occupied by an allowed public, civic or institutional use, the board of adjustment is authorized to approve a special exception for the allowed wall sign or the allowed freestanding sign to include a dynamic display.

(1) The allowed dynamic display component may not exceed 32 square feet in area, and no more than one (wall or freestanding) dynamic display is allowed per street frontage.

(2) The sign area allowed for a dynamic display is not in addition to the maximum sign area allowed for a wall or freestanding sign, but rather is counted as part of the maximum area of a wall or freestanding sign.

(3) Dynamic displays in R, AG, and AG-R districts may operate only between the hours of 7:00 a.m. and 9:00 p.m. unless otherwise expressly approved through the special exception process.

(4) Dynamic displays are subject to the dynamic display regulations of Section 60.100.

Section 60.060 Signs in Office Zoning Districts

60.060-A Applicability

The regulations of this section apply to signs in all office zoning districts. See also the general regulations of Section 60.040.

60.060-B Signs Allowed

1. In addition to any sign exceptions allowed pursuant to Section 60.030, and any development identification sign allowed pursuant to §60.060-B2, lots in office zoning districts are allowed a maximum of one on-premise sign per street

frontage. The allowed on-premise sign may be a wall sign, a projecting sign or a freestanding sign. Roof signs and off-premise outdoor advertising signs are prohibited in office districts.

2. **Development Identification Signs**
Developments with multiple tenants are allowed a single monument style or freestanding sign with a maximum height of 8 feet at each street entrance to the development. Such signage shall count against the maximum sign area permitted on the lot in which it is located, and may not identify any tenant or tenants within the development.

60.060-C Maximum Area

Signs allowed in the OH district may not exceed 48 square feet in area or 0.50 square feet of sign area per linear foot of street frontage, whichever is greater, but in no case may a sign in an OH district exceed 225 square feet in area. Signs allowed in all other O districts may not exceed 32 square feet in area or 0.30 square feet of sign area per linear foot of street frontage, whichever is greater, but in no case may the sign exceed 150 square feet in area. The maximum sign area calculation must be based on the street frontage to which the sign is oriented.

60.060-D Maximum Height

Freestanding signs in the OH district may not exceed 30 feet in height. Freestanding signs in other O districts may not exceed 20 feet in height or the height of the principal building on the lot, whichever is less.

60.060-E Dynamic Displays

Dynamic displays are prohibited in O districts except that on a lot occupied by an allowed public, civic or institutional use, either the allowed wall sign or the allowed freestanding sign may include a dynamic display.

1. The allowed dynamic display component may not exceed 32 square feet in area, and no more than one (wall or freestanding) dynamic display is allowed per street frontage.
2. The sign area allowed for a dynamic display is not in addition to the maximum sign area allowed for a wall or freestanding sign, but rather is counted as part of the maximum area of a wall or freestanding sign.
3. Dynamic displays in O districts may operate only between the hours of 7:00 a.m. and 9:00 p.m.
4. Dynamic displays are subject to the dynamic display regulations of Section 60.100.

Section 60.070 Signs in SR Zoning Districts

60.070-A Applicability

The regulations of this section apply to signs in all SR zoning districts. See also the general regulations of Section 60.040.

60.070-B Signs Allowed

1. On-premise Wall Signs

On-premise wall signs are allowed in SR zoning districts. Wall signs may not exceed an aggregate area of more than one square foot per linear foot of building wall to which they are attached. Wall signs are not counted against a lot's allowed sign budget, pursuant to 60.070-C.

2. On-premise Projecting Signs and Freestanding Signs

On-premise projecting signs and freestanding signs are allowed in SR zoning districts. Projecting signs and freestanding signs are counted against a lot's allowed sign budget, pursuant to 60.070-C. They are subject to the regulations of 60.070-D.

3. On-premise Roof Signs and Off-Premise Outdoor Advertising Signs Prohibited

On-premise roof signs and off-premise outdoor advertising signs are prohibited in SR zoning districts.

4. Development Identification Signs

Developments with multiple tenants are allowed a single monument style or freestanding sign with a maximum height of 8 feet at each street entrance to the development. Such signage shall count against the maximum sign area permitted on the lot in which it is located, and may not identify any tenant or tenants within the development.

60.070-C Sign Budget

1. Applicability

The sign budget provisions of this subsection govern the maximum aggregate number and combined area of all projecting and freestanding signs on a lot in an SR district, except as otherwise expressly stated.

2. Maximum Number

In addition to any sign exceptions allowed pursuant to Section 60.030, lots in SR zoning districts are allowed a maximum of one projecting sign or freestanding sign per street frontage.

3. Maximum Area

The maximum aggregate sign area of all projecting and freestanding signs allowed in SR zoning districts may not exceed 0.50 square feet of sign area per linear foot of street frontage or 300 square feet, whichever is less.

60.070-D Maximum Height of Projecting Signs and Freestanding Signs

1. Projecting signs in SR districts may not exceed 20 feet in height or the height of the principal building on the lot, whichever is less. In addition, projecting signs may not extend above the top of the parapet or building wall to which they are attached except in those cases where the height of the parapet or building wall, or the presence of architectural features will not accommodate a projecting sign that is at least 3 feet in height, in which case the projecting sign

may extend above the parapet or building wall for a distance that will permit a projecting sign with a height of 3 feet.

2. Freestanding signs in the SR zoning district may not exceed 30 feet in height.

60.070-E Dynamic Displays

Dynamic displays are prohibited in SR districts except that on a lot occupied by an allowed public, civic or institutional use, either the allowed wall sign or the allowed freestanding sign may include a dynamic display. The allowed dynamic display component may not exceed 32 square feet in area, and no more than one (wall or freestanding) dynamic display is allowed per street frontage. The sign area allowed for a dynamic display is not in addition to the maximum sign area allowed for a wall or freestanding sign, but rather is counted as part of the maximum area of a wall or freestanding sign. Dynamic displays are subject to the dynamic display regulations of Section 60.100.

Section 60.080 Signs in Mixed-use, Commercial and Industrial Zoning Districts

60.080-A Applicability

The regulations of this section apply to signs in all mixed-use, commercial and industrial zoning districts. See also the general regulations of Section 60.040.

60.080-B Signs Allowed

In addition to any sign exceptions allowed pursuant to Section 60.030, the following signs are the only signs allowed in all mixed-use, commercial and industrial zoning districts:

1. **On-premise Wall Signs**
   On-premise wall signs are allowed in all mixed-use, commercial and industrial zoning districts. Wall signs may not exceed an aggregate area of more than 3 square feet per linear foot of building wall to which they are attached. Wall signs are not counted against a lot's allowed sign budget, pursuant to 60.080-C.

2. **On-premise Projecting Signs**
   On-premise projecting signs are allowed in all mixed-use, commercial and industrial zoning districts. Projecting signs are counted against a lot's allowed sign budget, pursuant to 60.080-C. They are also subject to the regulations of 60.080-D.

3. **On-premise Freestanding Signs**
   Freestanding signs are allowed in all mixed-use, commercial and industrial zoning districts. Freestanding signs are counted against a lot's allowed sign budget, pursuant to 60.080-C. They are also subject to the regulations of 60.080-D.

4. **Off-Premise Outdoor Advertising Signs**
   Off-premise outdoor advertising signs are subject to the regulations of 60.080-F. Where allowed, off-premise outdoor advertising signs are counted against a lot's allowed sign budget, pursuant to 60.080-C.

5. Roof Signs

a. Roof signs are allowed only in the Central Business District (CBD) and the Route 66 Overlay, subject to the following provisions:

(1) Roof signs may not include any dynamic display; and

(2) Roof signs may not extend more than 25 feet above the point where the sign is attached to the roof, measured in a vertical line from the horizontal plane of the lowest point where the sign is attached to the roof to the horizontal plane of the highest location on the sign's structure.

b. Roof signs are counted against a lot's allowed sign budget, pursuant to 60.080-C.

6. Development Identification Signs

Developments with multiple tenants are allowed a single monument style or freestanding sign with a maximum height of 8 feet at each street entrance to the development. Such signage shall count against the maximum sign area permitted on the lot in which it is located, and may not identify any tenant or tenants within the development.

60.080-C Sign Budget

1. Applicability

The sign budget provisions of this subsection govern the maximum aggregate number and combined area of all projecting, roof, freestanding, and off-premise outdoor advertising signs allowed on a lot in mixed-use, commercial and industrial zoning districts, except as otherwise expressly stated.

2. Maximum Number

Lots with Frontage on Only Minor Streets

Lots with frontage on only minor streets are allowed a maximum of one roof, freestanding, or projecting sign per lot.

Lots with Frontage on Major Streets

The maximum aggregate number of roof, projecting, freestanding, and off-premise outdoor advertising signs allowed on lots with frontage on one or more major streets may not exceed the limits established in Table 60-2.

Table 60-2: Maximum Aggregate Number of Signs

Zoning District	Maximum Aggregate Number of Signs Allowed
CG, CH, and CBD	1 per 100 feet of major street frontage or fraction thereof
CO, CS, MX and IL	1 per 150 feet of major street frontage or fraction thereof
IM and IH	1 per 200 feet of major street frontage or fraction thereof

3. Maximum Area

Lots with Frontage on Only Minor Streets

Signs allowed on lots with frontage on only minor streets may not exceed 32 square feet in area or 0.20 square feet of sign area per linear foot of street frontage, whichever is greater, but in no case may the sign exceed

150 square feet in area. The maximum sign area calculation must be based on the street frontage to which the sign is oriented.

Lots with Frontage on Major Streets

(1) The maximum aggregate sign area of all roof, projecting, freestanding, and off-premise outdoor advertising signs allowed on lots with frontage on one or more major streets may not exceed the limits established in Table 60-3:

Table 60-3: Maximum Aggregate Sign Area

Zoning District	Roof, Projecting, Freestanding, and Off-premise Outdoor Advertising Signs (sq. ft. per linear foot of major street frontage)			
	Not Within Freeway Sign Corridor[1]		Within Freeway Sign Corridor	
	If More than 1 Such Sign	If Only 1 Such Sign	If More than 1 Such Sign	If Only 1 Such Sign
MX, CO and CS	1	2	1	2
CG, CH, CBD, IL, IM and IH	1	2	2	3

[1] Off-premise outdoor advertising signs are prohibited outside of freeway sign corridors and prohibited in MX districts.

(2) In addition to the maximum aggregate sign area limits, individual roof, projecting, and freestanding signs may not exceed 500 square feet in area. Individual off-premise outdoor advertising signs may not exceed 672 square feet in area.

60.080-D Maximum Height of On-premise Projecting and Freestanding Signs

1. Lots with Frontage on Only Minor Streets

On-premise projecting signs and freestanding signs on lots with frontage on only minor streets may not exceed 20 feet in height or the height of the principal building on the lot, whichever is less.

2. Lots with Frontage on Major Streets

On-premise projecting signs and freestanding signs on lots with frontage on major streets may not exceed 25 feet in height, except that a maximum height of 40 feet is allowed if the sign is set back from the planned right-of-way line at least one foot for each foot of sign height in excess of 25 feet. Projecting signs and freestanding signs may not exceed 40 feet in height unless the subject lot abuts a freeway, in which case the maximum allowed height is 50 feet.

60.080-E Dynamic Displays on On-premise Wall, Projecting and Freestanding Signs

A maximum of one of the on-premise wall signs, projecting signs or freestanding signs allowed on a lot in a mixed-use, commercial or industrial zoning district may include a dynamic display. The dynamic display may not exceed the maximum sign area allowed for the respective sign type or 48 square feet, whichever is less. The sign area allowed for a dynamic display is not in addition to the maximum sign area allowed for a wall, projecting or freestanding sign, but rather is counted as part of the maximum area of the wall, projecting or freestanding sign. Only one, contiguous dynamic display is allowed on a wall, projecting or freestanding sign face. Off-premise outdoor advertising signs that incorporate a dynamic display are subject to the dynamic display regulations of Section 60.100.

60.080-F Off-premise Outdoor Advertising Signs

Off-premise outdoor advertising signs are allowed only in compliance with regulations of this subsection (60.080-F).

1. Where Allowed

Off-premise outdoor advertising signs are a use allowed in commercial and industrial zoning districts but only when located in a freeway sign corridor. Off-premise outdoor advertising signs are a use allowed in corridor zoning districts when approved through the development plan approval process of Section 70.040 but may only be so approved when located in a freeway sign corridor. Off-premise outdoor advertising signs are prohibited in mixed-use zoning districts. Any waiver, modification, or variance to the regulations of §60.080-F1 is considered a use variance and is thereby prohibited in accordance with §70.130-B1.

2. Maximum Number and Area

The maximum number and area of allowed off-premise outdoor advertising signs is governed by the sign budget provisions of 60.080-C.

3. Maximum Height

Off-premise outdoor advertising signs may not exceed 50 feet in height, except when the adjacent freeway is elevated 10 feet or more above grade in the location where the sign is to be located, in which case the off-premise outdoor advertising sign may not exceed 60 feet in height or a maximum of 20 feet in height above the centerline of the travel lanes of the freeway, whichever is greater.

4. Orientation

All off-premise outdoor advertising signs must be oriented to be primarily visible from the adjacent freeway.

5. Required Setbacks, Spacing and Separations

a. All off-premise outdoor advertising signs must be separated by a minimum distance of 1,200 feet from any other off-premise outdoor advertising sign except when the subject signs are separated by and on opposite sides of the same freeway.

b. Off-premise outdoor advertising signs must be separated by a minimum distance of 150 feet from any public park.

c. Off-premise outdoor advertising signs that are visible from an R or AG-R district (other than street, highway or freeway right-of-way) or from a designated residential development area must be separated from the R or AG-R district or residential development area by a minimum distance of 150 feet if the sign does not exceed 300 square feet in area and by a distance of at least 200 feet if the sign is greater than 300 square feet in area.

d. See 60.040-B for setback, spacing and separation regulations generally applicable to all signs.

6. Number of Sign Faces

Off-premise outdoor advertising signs may not have more than 2 sign faces. See also 60.130-A3.

7. Cutouts and Extensions

Cutouts or extensions are permitted and do not count in calculating the sign area of an off-premise outdoor advertising sign unless the cutouts or extensions exceed 15% of the sign face, in which case the cutout or extension area in excess of 15% of the sign face area does count.

8. Posts and Columns

Off-premise outdoor advertising signs that are freestanding may not be supported by more than one post or column unless required by site engineering considerations, as certified by a registered professional engineer.

9. Illumination

a. Illumination on the face of any off-premise outdoor advertising sign may not exceed 70 foot-candles.

b. Any illumination must be by constant light unless otherwise expressly stated.

c. No off-premise outdoor advertising sign may contain flashing, blinking or traveling lights or reflective glitter.

10. Conversion

A sign permitted as an off-premise outdoor advertising sign may not be converted to any other type of sign without first obtaining a permit. The reverse is also true.

11. Dynamic Displays

a. Off-premise outdoor advertising signs that incorporate a dynamic display are subject to the dynamic display regulations of Section 60.100.

b. No off-premise outdoor advertising sign with a dynamic display may be modified, extended, or enlarged until a permit has been issued for its installation and use as a dynamic display sign.

c. The conversion of an off-premise outdoor advertising sign into an off-premise outdoor advertising sign with a dynamic display requires a permit as if it were an entirely new sign.

d. A nonconforming off-premise outdoor advertising sign may not be modified, changed or converted into a dynamic display off-premise outdoor advertising sign unless it complies with all requirements of this zoning code, and all setback, spacing and separation requirements have been verified.

Section 60.090 Signs in Special Districts

60.090-A AG and AG-R District

See Section 60.050.

60.090-B PK District

In addition to any sign exceptions allowed pursuant to Section 60.030, a maximum of one on-premise freestanding sign is allowed on a lot in a PK (Parking) zoning district. The freestanding sign may not exceed 32 square feet in area or 0.20 square feet of sign area per linear foot of street frontage, whichever is greater, but in no case may the sign exceed 150 square feet in area. The maximum sign area calculation must be based on the street frontage to which the sign is oriented.

60.090-C CO District

Signs in CO districts are subject to same regulations that apply in commercial and industrial zoning districts (see Section 60.080). They are subject to review as part of development plan approval process (see Section 70.040).

60.090-D IMX District

1. Applicability

The regulations of this section apply to signs in all IMX zoning districts. See also the general regulations of Section 60.040.

2. Signs Allowed

In addition to any sign exceptions allowed pursuant to Section 60.030, the following signs are the only signs allowed in IMX zoning districts:

a. Directional and way-finding signs;

b. On-premise building signature signs;

c. On-premise wall signs;

d. On-premise projecting signs;

e. On-premise canopy signs;

f. On-premise marquee signs; and

g. On-premise, monument-style ground signs.

3. Directional and Way-Finding Signs

Directional and way-finding signs for business establishments located in the IMX district may be permitted by special exception within the lot containing the use. Such signs are subject to conditions (including but not limited to regulation of the location, number, sign area and height of such signs) established by the board of adjustment in approving the special exception.

4. On-Premise Wall signs, Projecting Signs, Canopy Signs, and Marquee Signs

When Allowed

On-premise wall, projecting, canopy and marquee signs are permitted only for business establishments located within the ground- floor level, second-floor level, and third-floor level of a building.

Business Establishments

For purposes of administering interpreting and enforcing the IMX district sign regulations of this section, the term “business establishment” means a

space within a building occupied for a use permitted by right or special exception in the IMX district, except for residential uses.

Maximum Number

(1) A maximum of 3 such signs are permitted for each business establishment located within the ground-floor level of a building and having a façade that faces a street.

(2) A maximum of 2 such signs are permitted for each business establishment located within the second-floor level or third-floor level of a building and having a façade that faces a street.

(3) One additional such sign is permitted for each business establishment located within the ground-floor level, second-floor level or third-floor level of a building and occupying a corner space that faces two streets. Such additional sign must be oriented toward the additional street.

(4) Only one of the allowed signs may be projecting along each street–facing façade of the subject business establishment.

(5) If the subject business establishment is identified on a ground sign that is permitted for the building in which the business establishment is located, the number of wall, projecting, canopy and marquee signs otherwise permitted for the business establishment is reduced by one for each ground sign in which the business establishment is identified

Maximum Area

No individual projecting sign may exceed 12 square feet in area, and no other individual sign may exceed 60 square feet in area, provided that the total area of all on-premise wall, projecting, canopy and marquee signs permitted for a business establishment may not exceed 10% of the area of the street-facing façade of the subject business establishment

Location and Height

Permitted on-premise wall, projecting, canopy and marquee signs must be located directly above the independent entrance to the subject business establishment identified on the sign or directly above or adjacent to windows in the street-facing façade of the business establishment and within the area of the street-facing façade of the building establishment, provided, however

(6) No portion of a sign permitted for a ground-floor level business establishment may be located more than 35 feet above the elevation of the nearest curb.

(7) No portion of a sign permitted for a second-level or third-level business establishment may be located more than 50 feet above the elevation of the nearest curb.

(8) No portion of any sign may extend above the top of a parapet or building wall upon which it is located

5. Ground signs

When Allowed

Ground signs are permitted only for business establishments within a building containing more than 25,000 square feet of floor area.

Maximum Number

If the building for which a ground sign is permitted faces only one street, a maximum of one ground sign is permitted. If the building faces 2 or more streets, a maximum of 2 ground signs is permitted, provided that each sign is oriented toward a different street.

Size and height

Ground signs may not exceed 18 feet in length and 2 feet in depth, measured from the outer edges of the ground sign, and 5 feet in height measured from the lowest point of the elevation of the nearest curb to the highest point of the ground sign.

6. Building Signature Signs

a. A building signature sign is a sign that identifies the owner of the building or a business establishment located in the building that occupies more than 50% of the floor area of the subject building.

b. Building signature signs are permitted only on buildings 4 or more stories in height, provided no part of such sign may extend above the top of the parapet or building wall upon which it is located.

c. Only one building signature sign is permitted per exterior building wall.

d. The sign area of a building signature sign may not exceed 5% of the area of the wall to which it is affixed or 300 square feet, whichever is less.

e. All sides of the building that display a building signature sign must contain the exact copy that is displayed on any other side of the building that displays a building signature sign

7. Prohibited signs:

In addition to the signs prohibited by Section 60.020, the following signs are expressly prohibited in the IMX district:

a. Off-premise outdoor advertising signs;

b. Dynamic displays;

c. Inflatable signs; and

d. Roof signs.

60.090-E MPD District

Except as otherwise expressly allowed as part of an approved MPD development plan:

1. Residential development areas are subject to the sign regulations that apply to R districts; and
2. Nonresidential development areas are subject to the sign regulations that apply to CS districts.

Section 60.100 Dynamic Displays

The supplemental regulations of this section apply to all signs with dynamic displays. Except as otherwise expressly stated, these regulations apply whether incorporated into off-premise outdoor advertising signs or on-premise signs that are allowed to include a dynamic display.

60.100-A The images and messages displayed on a dynamic display must have a minimum dwell time of at least 8 seconds and may not contain any movement, animation, audio, video, pyrotechnics or other special effects.

60.100-B The transition or change from one message to another must occur in one second or less and involve no animation or special effects.

60.100-C The images and messages displayed must be complete in and of themselves within the required dwell time.

60.100-D Dynamic displays may not be located within 50 feet of the driving surface of a signalized intersection, measured horizontally in a straight line from the nearest point of the sign structure to the nearest point of the intersection.

60.100-E Dynamic displays may not be located within or within 20 feet of the driving surface of a street, measured horizontally in a straight line from the nearest point of the sign structure to the nearest point of the street curb or edge of the traveled roadway marked or understood as such.

60.100-F Dynamic displays may not be located within 200 feet of any of the following: (1) an R or AG-R district (other than street, highway or freeway right-of-way); (2) a residential development area. This separation distance does not apply if the dynamic display is not visible from the referenced district, area or lot, and the requirements may be modified in R, AG, and AG-R districts if approved through the special exception process. Required separation distances must be measured horizontally in a straight line from the nearest point on a sign structure to the nearest point of an R or AG-R district or residential development area boundary.

60.100-G Dynamic displays must be equipped with a default mechanism that freezes the display in one position or presents a static or blank display if a malfunction occurs.

60.100-H Dynamic displays must be equipped with a light detector/photocell that automatically adjusts the display's brightness according to natural ambient light conditions.

60.100-I The maximum brightness level of a dynamic display may not exceed 6,500 nits (candelas per square meter) during daylight hours or 500 nits between 30 minutes after sunset and 30 minutes before sunrise, as those times are determined by the National Weather Service (Actual Time). Brightness must be measured from the brightest element of the sign's face.

60.100-J Any off-premise outdoor advertising sign that includes a dynamic display that was lawfully established before January 1, 2010, must be separated by a minimum distance of 1,200 feet from any other off-premise outdoor advertising sign that includes a dynamic display. This spacing limitation does not apply between signs separated by a freeway. The 1,200-foot distance must be measured in a straight line from the center of the subject sign structures, as located on the ground.

60.100-K Except as provided in 60.100-J, any off-premise outdoor advertising sign that includes a dynamic display and that was approved by a permit issued on or after January 1, 2009, must be separated by a minimum distance of 1,200 feet from any other off-premise outdoor advertising sign that includes a dynamic display facing the same traveled way. The 1,200-foot distance must be measured in a straight line from the center of the subject sign structures, as located on the ground.

Section 60.110 Administration

60.110-A Any person proposing to erect any sign requiring a sign permit must submit a sign permit application to the development administrator. Applications for such permit must be accompanied by detailed plans, including scaled drawings of the proposed sign, a detailed site plan and other information deemed necessary by the development administrator to determine compliance with applicable regulations.

60.110-B Sign permit fees must be paid prior to the issuance of a sign permit.

60.110-C If the work associated with a sign permit has not been completed within 180 days of the date of the issuance of the permit, such permit will lapse and become null and void.

Section 60.120 Nonconforming Signs

See Section 80.060.

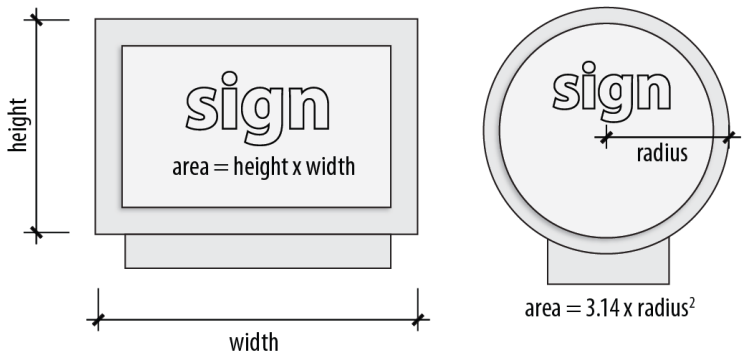
Section 60.130 Rules of Measurement

60.130-A Sign Area

1. Signs Enclosed in Frames or Cabinets

The area of a sign enclosed in a frame or cabinet is determined based on the outer dimensions of the frame or cabinet surrounding the sign face (see Figure 60-2).

Figure 60-2: Sign Area Measurement (Signs in Cabinets or Frames)



2. Channel (individual) Letter Signs

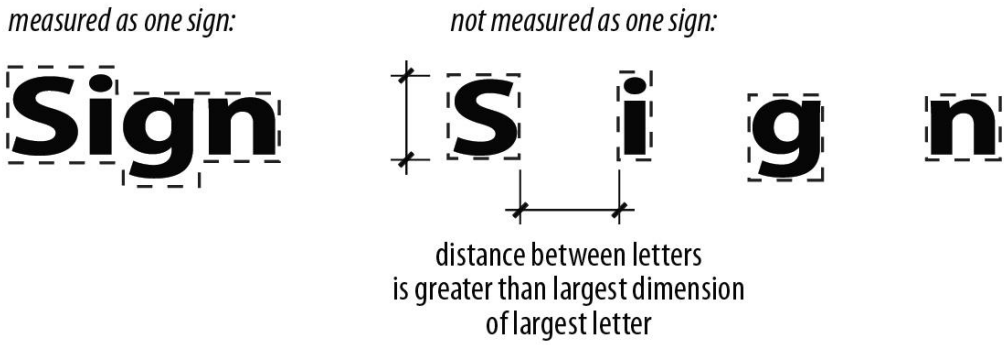
a. The area of a sign comprised of individual letters or elements attached to a building wall is determined by calculating the area of the smallest geometric figure (e.g. square, rectangle, circle, polygon, etc.) that can be drawn around the letters and/or elements (see Figure 60-3).

b. Signs consisting of individual letters and/or elements will be measured as one sign when the distance between the letters and/or elements is less than the largest dimension of the largest sign letter (see Figure 60-4).

Figure 60-3: Sign Area Measurement (Individual Letter Signs)



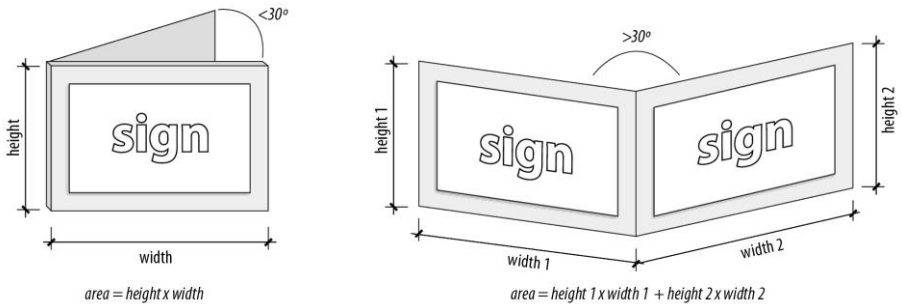
Figure 60-4: Sign Area Measurement (Single vs. Multiple Signs)



3. Multi-Sided Signs

Unless otherwise expressly stated, when the sign faces of a multi-sided sign are parallel or within 30 degrees of parallel, only one side is counted for the purpose of determining the area and number of signs. If the sign faces are not parallel or within 30 degrees of parallel, all sign faces are counted (see Figure 60-5).

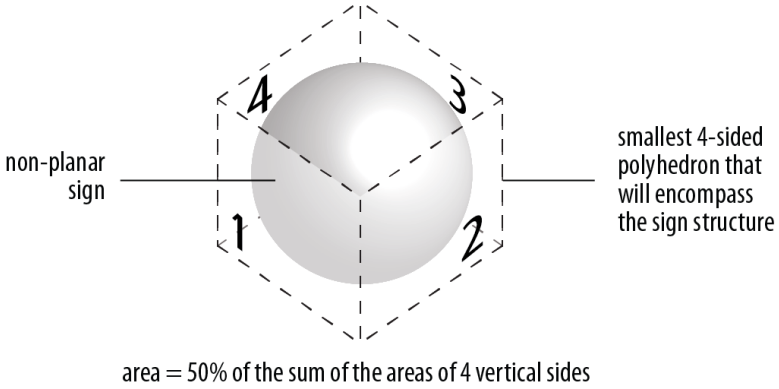
Figure 60-5: Multi-Sided Signs



4. Non-planar Signs

Spherical, free-form, sculptural or other non-planar sign area is measured as 50% of the sum of the areas using only the 4 vertical sides of the smallest 4-sided polyhedron that will encompass the sign structure. Signs with greater than 4 polyhedron faces are prohibited.

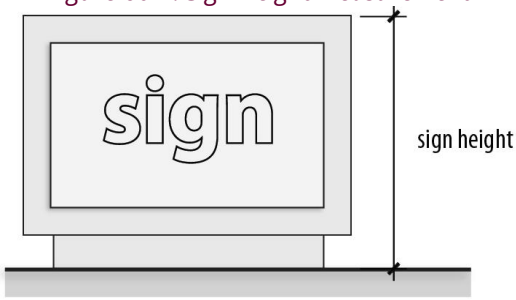
Figure 60-6: Non-Planar Sign Measurement



60.130-B Sign Height

The height of a sign is measured as the vertical distance from curb level to the highest point of the sign.

Figure 60-7: Sign Height Measurement



60.130-C Setback, Spacing and Separation Distances

1. Required setback, spacing and separation distances between signs must be measured in a straight line from the nearest points on the respective sign structures. Required separation distances between signs and zoning districts, area or lots must be measured in a straight line from the nearest point on the sign structure to the nearest point of the subject district, area or lot.
2. The required separation distance between off-premise outdoor advertising signs must be measured in a straight line from the center of the respective off-premise outdoor advertising sign structures, as located on the ground.

60.130-D Illumination and Luminance

1. Foot-Candles

Sign illumination in foot-candles is measured 2 feet from the sign face.

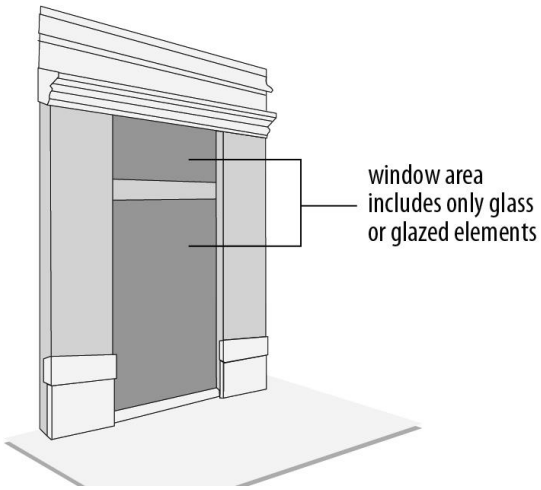
2. Nits

For the purpose of verifying compliance with maximum brightness level limits expressed in "nits," brightness levels must be measured with the dynamic display set to run full white copy with a luminance meter positioned at a location perpendicular to the sign face center. When taking the luminance reading, the sign face must be the only subject visible in the viewfinder.

60.130-E Window Area

The area of a window includes only the glass or glazed elements of the window. Frames, mullions, and similar features are not counted as part of the window area (see Figure 60-8)

Figure 60-8: Measurement of Window Area



Chapter 65 | Landscaping and Screening

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Section 65.010 Purposes

65.010-A Landscaping and Screening

The landscaping and screening regulations of this chapter establish minimum requirements for landscaping and screening. The regulations are intended to advance the general purposes of this zoning code and to help:

1. Maintain and enhance the city's appearance;
2. Mitigate possible adverse impacts of higher intensity land uses abutting lower intensity land uses;
3. Reduce the impacts of noise and glare.
4. Maintain and improve air quality;
5. Protect surface water quality and reduce the negative impacts of stormwater runoff by reducing impervious surface area and providing vegetated areas that filter and retain greater amounts of stormwater on site;
6. Moderate heat by providing shade;
7. Encourage wise use of water resources;
8. Encourage preservation and replacement of existing trees and landscaping; and
9. Encourage greater use of low-impact development practices.

Section 65.020 Principles

The regulations of this chapter will be interpreted, administered and enforced in accordance with the following general principles:

65.020-A Preservation of existing, healthy trees and shrubs is a top priority and is strongly encouraged.

65.020-B Trees, shrubs, groundcover and turf must be the primary sources of landscaping and must be installed and maintained to reduce stormwater runoff and ensure safe visibility at intersections and points of vehicular access.

65.020-C The design of landscape areas to promote low-impact development practices (e.g., bioretention basins, rain gardens, filter strips, and grassed swales) is strongly encouraged and may be used to satisfy the landscaping regulations of this zoning code, subject to compliance with all applicable standards of the *Stormwater Management Criteria Manual.*

65.020-D The alternative compliance provisions of §65.100-D are intended to accommodate creativity in landscape and screening design and address site-specific barriers that prevent strict compliance with the regulations of this chapter.

Section 65.030 Applicability

The landscaping and screening regulations of this chapter apply as set forth in the individual sections of this chapter. The following are expressly exempt from the landscaping and screening regulations of this chapter:

65.030-A Agricultural uses;

65.030-B Public parks and open spaces;

65.030-C Household living uses consisting of a single household on one lot or 2 households on one lot (existing or proposed); and

65.030-D Reconstruction of any building that is damaged or destroyed by tornadoes, straight-line winds, ice storms, accidental fire, floods, hail, lightning, or other forces beyond the reasonable control of the property owner.

Section 65.040 Street Trees

65.040-A Purpose

Street trees help maintain and enhance the appearance of the city, contribute to pedestrian safety and comfort and offer environmental benefits by allowing the infiltration of stormwater, reducing urban heating and improving air quality.

65.040-B Applicability

The street tree planting requirements of this section apply to all the following, except as otherwise expressly stated:

1. Construction of any principal building or non-accessory parking;
2. Any addition to or enlargement of an existing principal building when the addition or enlargement exceeds 20% of the building's existing floor area; and
3. Any increase in impervious coverage on the subject lot that exceeds 20% of the lot's existing impervious coverage.

65.040-C Requirements

1. Number

At least one large tree is required per 30 feet of street frontage. If large trees are not appropriate due to the presence of overhead lines, other obstructions or site visibility considerations, as determined by the land use administrator, at least one small tree is required per 25 feet of street frontage. Street tree requirements may be satisfied by the installation of new trees or by the

preservation of existing trees (see §65.080-B4 to determine available incentives for preservation of existing trees). The tree list prepared by the planning director (see §65.080-A2) identifies and classifies street trees by size.

2. Location

a. Required street trees must be located on the subject property within 20 feet of the planned street right-of-way unless the land use administrator determines that the presence of buildings or obstructions or other factors prevent viable tree planting within this area, in which case required street trees must be installed in the first 7 feet of the planned street right-of-way, as measured from the outer edge of the right-of-way. Street tree planting in the right-of-way must comply with the regulations of Title 35, Chapter 6 of the Tulsa Revised Ordinances.

b. The land use administrator is expressly authorized to approve an alternative compliance landscape plan for installation of street trees in alternative locations when circumstances prevent tree planting within the areas described in §65.040-C2.a or when compliance with §65.040-C2.a would result in a poor growing environment for the tree or damage to public or private improvements.

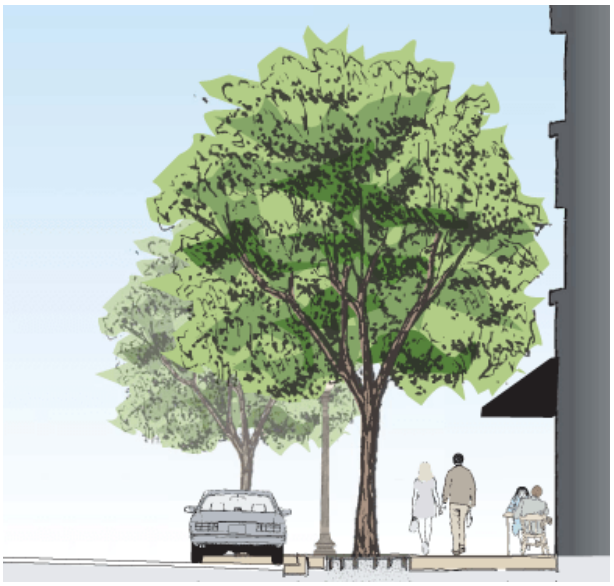
3. Spacing

Street trees are not required to be evenly spaced, but the distance between street trees may not exceed 75 feet.

4. Materials, Installation and Maintenance

See Section 65.080 and Section 65.090.

Figure 65-1: Street Tree



Section 65.050 Interior Parking Lot Landscaping

65.050-A Purpose

The interior parking lot landscaping regulations of this section are intended to help mitigate the visual and stormwater runoff impacts of parking lots and provide shade for parked vehicles and pedestrians.

65.050-B Applicability

Unless otherwise expressly stated, the interior parking lot landscaping regulations of this section apply to all the following:

1. The construction of any new principal building or addition to a principal building that increases the floor area of principal buildings on the subject lot by more than 20%;
2. The construction or installation of any new parking lot containing 10 or more parking spaces; and
3. The expansion of any existing parking lot that increases the number of parking spaces or amount of paved area by more than 33%.

65.050-C Exception

Parking areas used solely for the display of motor vehicles for sale, lease or rental are exempt from the interior parking lot landscaping requirements of this section.

65.050-D Requirements

1. Landscape Area

a. At least 35 square feet of interior parking lot landscape area must be provided for each parking space. If compliance with this regulation would result in the loss of required parking spaces, the amount of parking required is automatically reduced by the amount needed to accommodate the required interior parking lot landscape area.

b. When at least 50% of interior parking lot landscape area consists of depressed bioretention areas used for stormwater management, the minimum interior parking lot landscape area requirement is reduced from 35 square feet per parking space to 28 feet per parking space. To receive this bioretention credit, the stormwater harvesting area must be at least 6 inches and not more than 18 inches in depth and planted with vegetation that can withstand periodic inundation.

2. Trees and Plant Material

Required interior parking lot landscape areas must include at least one large tree per 10 parking spaces. Small trees may be substituted for large trees if the land use administrator determines that the presence of overhead lines or other obstructions make the installation of large trees unsafe or impractical or would result in poor growing conditions. Minimum tree planting requirements may be satisfied by the installation of new trees or by the preservation of existing trees (see §65.080-B4 to determine available incentives for preservation of existing trees).

3. Location and Design

a. Interior parking lot landscaping must be reasonably distributed throughout the parking lot and provided in landscape islands or medians that comply with all the following requirements:

(1) They must be bordered by a paved surface on at least 2 sides;

(2) They must be at least 7 feet wide, as measured from the back of the curb;

(3) They must include at least one tree per island and be covered with ground cover plants or mulch;

(4) They must be protected by curbs or other barriers, which may include breaks or inlets to allow stormwater runoff to enter the landscape island; and

(5) They must be located so that every parking space is within 100 feet of a tree.

b. Parking rows that end abutting a paved driving surface must have a landscape terminal island (end cap) at that end of the parking row. All other parking lot landscape islands must be located to comply with all applicable regulations of this section. The regulations of §65.050-D3.a apply to the landscape terminal island.

c. The land use administrator is expressly authorized to approve landscape plans that do not provide terminal islands at the end of each parking row or that otherwise provide for reduced dispersal of interior parking lot landscape areas when proposed landscape planting areas are combined to form functional bioretention areas or to preserve existing trees and vegetation.

4. Vehicle Overhangs

A portion of a motor vehicle parking space may be landscaped instead of paved to meet interior parking lot landscaping requirements. The landscaped area may be up to 2.5 feet of the front of the space, as measured from a line parallel to the direction of the bumper of the vehicle using the space. Groundcover plants or mulch must be provided in the allowed overhang area.

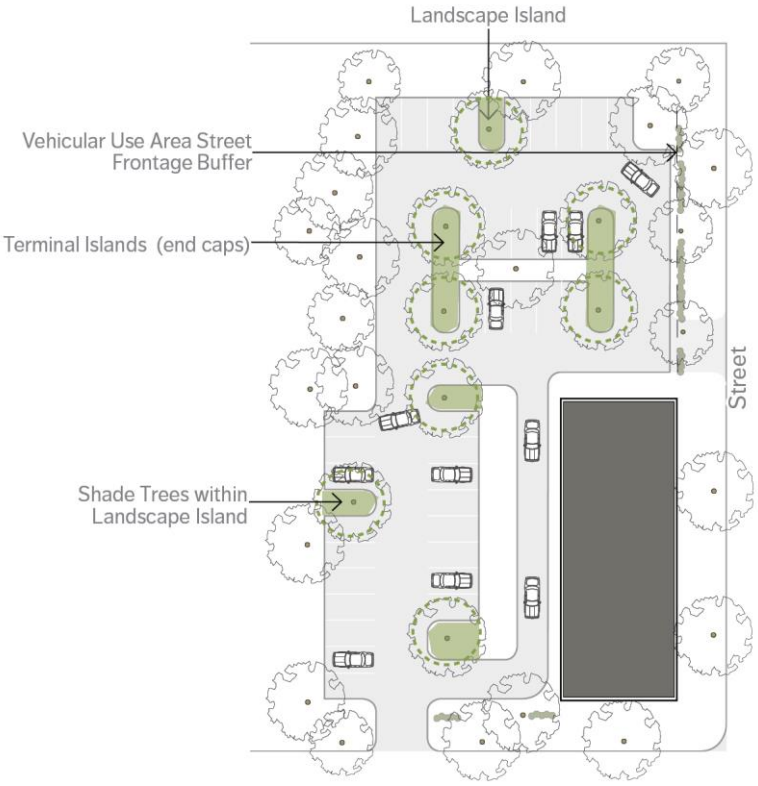
5. Relationship to Vehicular Use Area Buffer Regulations

Landscape areas and plant material provided to satisfy the vehicular use area buffer regulations of Section 65.060 may not be counted toward satisfying the interior parking lot landscaping regulations of this section (Section 65.050).

6. Materials, Installation and Maintenance

See Section 65.080 and Section 65.090.

Figure 65-2: Interior Parking Lot Landscaping



Section 65.060 Vehicular Use Area Buffers

65.060-A Purpose

The vehicular use area buffer regulations of this section are intended to help mitigate the visual and operational impacts of parking lots and other vehicular use areas when such areas are adjacent to streets, highways, residential zoning districts, or agricultural-residential zoning districts.

65.060-B Applicability

A "vehicular use area" is an area on a lot that is not contained within a garage or similar enclosed or partially enclosed structure that is designed and intended for use by motor vehicles, including parking lots, vehicle storage and display areas, loading areas; and driveways and drive-through lanes. Unless otherwise expressly stated, the vehicular use area buffer regulations of this section apply to all the following:

1. The construction or installation of any new vehicular use area with a contiguous paved area of 3,500 square feet or more; and
2. The expansion of any existing vehicular use area that results in the addition of 3,500 square feet of paved area, in which case the vehicular use area perimeter landscaping requirements of this section apply only to the expanded area.

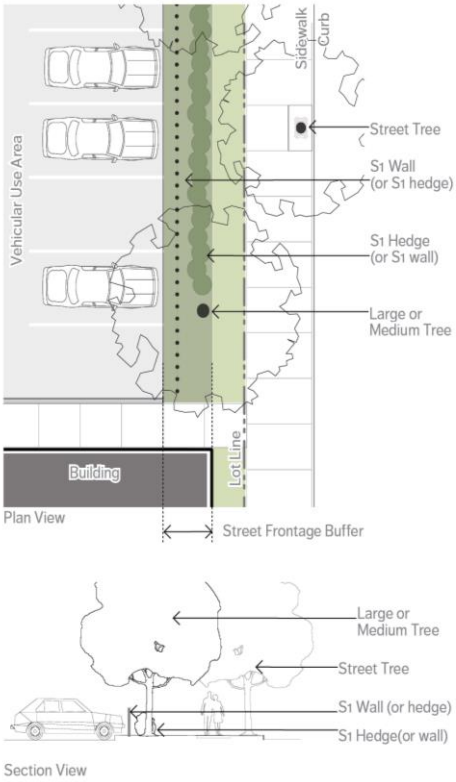
65.060-C Requirements

1. Street Frontage Buffers

a. When a vehicular use area is located adjacent to a street or highway right-of-way, street frontage buffers must be provided in accordance with this subsection to physically and visually buffer the vehicular use area from the right-of-way.

b. Street frontage buffers are required only when the vehicular use area is located within 100 feet of the right-of-way and there are no intervening buildings between the vehicular use area and the right-of-way.

Figure 65-3: Street Frontage Buffer



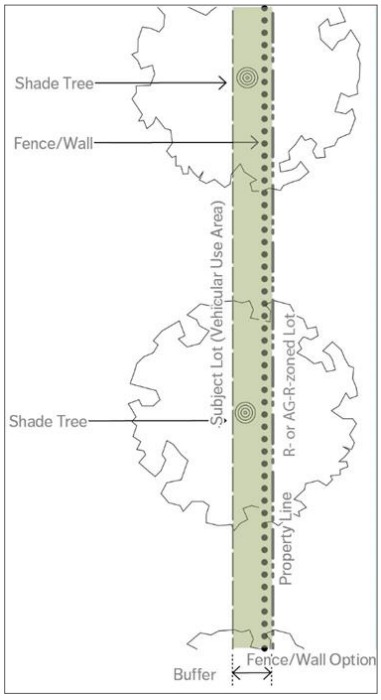
c. Except as expressly stated for vehicular use areas in the CBD zoning district (see §65.060-C1.d), street frontage buffer areas must be at least 7 feet in width and include an S1 screen, in accordance with §65.070-C1.

d. In the CBD zoning district, required street frontage buffers must be at least 3 feet in width and include an S1 screen, in accordance with §65.070-C1.

e. Groundcover plants must be provided in all street frontage buffer areas not covered by fences or walls.

f. The vehicle overhang allowance of §65.050-D4 applies to parking spaces abutting street frontage buffers.

Figure 65-4: R and AG-R District Buffer



2. R or AG-R District Buffers

a. When a vehicular use area is located on a lot abutting an R- or AG-R-zoned lot, an R or AG-R district buffer must be provided in the form of an F1 screen, in accordance with §65.070-C.

b. R or AG-R district buffers are required only when the vehicular use area is located within 100 feet of an abutting R- or AG-R-zoned lot and there are no buildings between the vehicular use area and the abutting R- or AG-R-zoned lot.

c. Groundcover plants must be provided in all R or AG-R district buffer areas that are not covered by fences or walls.

d. The vehicle overhang allowance described in §65.050-D4 applies to parking spaces abutting R or AG-R district buffers.

3. Materials, Installation and Maintenance

See Section 65.080 and Section 65.090.

Section 65.070 Screening

65.070-A Purpose

Screening requirements are intended to partially or completely shield expressly identified uses and site features from view of abutting streets or other abutting lots.

65.070-B Features Required to be Screened

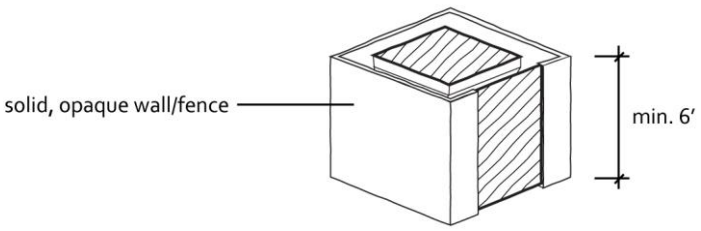
1. General

This subsection establishes screening requirements for several common site features that require visual separation from streets and abutting lots. Other uses, districts, structures and activity areas may also require screening in accordance with other provisions of this zoning code.

2. Dumpsters

All dumpsters must be screened from view of all street rights-of-way and R-zoned property, and AG-R zoned property. Screening of dumpsters located in alley rights-of-way is not required. Dumpsters may be screened from view by a principal structure or by an F1 screening fence or wall in accordance with §65.070-C. When an F1 screening fence or wall encloses a dumpster on four sides, one side of the storage area must be furnished with an opaque, lockable gate kept closed at all times except during waste deposit or collection. The gate must be located and constructed to allow for unobstructed access to each dumpster during collection.

Figure 65-5: Dumpster Screening

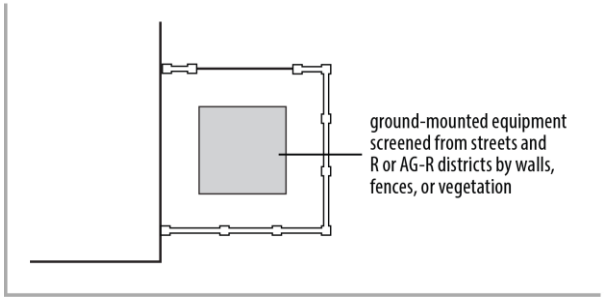


3. Mechanical Equipment

a. Ground-mounted Equipment

Mechanical equipment located at ground level, such as heating or cooling equipment, pumps, or generators must be screened from view of the street and any abutting R or AG-R districts by walls, fences or vegetation. Screening must be at least as tall as the tallest part of the equipment required to be screened.

Figure 65-6: Screening of Ground-mounted Equipment



b. Roof-mounted Equipment

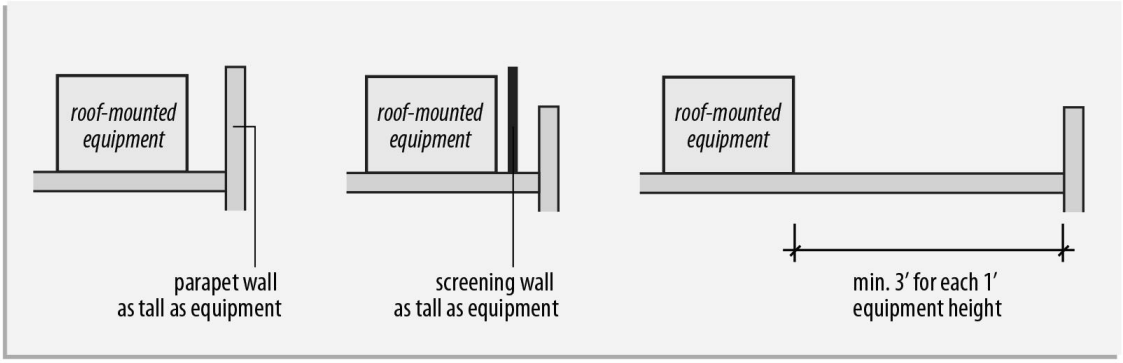
Mechanical equipment placed on roofs must be screened in one of the following ways, if the equipment is within 50 feet of an R or AG-R zoning district:

(1) A parapet along facades facing the R or AG-R district that is as least as tall as the tallest part of the equipment;

(2) A screening fence or wall around the equipment that is as least as tall as the tallest part of the equipment required to be screened; or

(3) An equipment setback from roof edges facing the R or AG-R district by at least 3 feet for each one foot of equipment height.

Figure 65-7: Screening of Roof-mounted Equipment



65.070-C Type of Screens

1. S1, Low-profile Screen

a. Purpose

The S1, low-profile screen is intended to help soften visual impacts of certain site features and provide an "urban edge" along lot borders and other site features, while maintaining some visibility of the areas required to be screened.

b. Design

The S1 screen requires shrubs planted to form a continuous visual barrier (hedge) at least 3 feet in height. A screening wall with a minimum height of 2.5 feet and a maximum height of 3 feet may be substituted for the shrubs. Walls used to satisfy S1 screening requirements must be constructed of brick, stone, cast stone, formed concrete or similar durable, low-maintenance materials.

2. S2, Mid-Profile Screen

a. Purpose

The S2, mid-profile screen is intended to shield vehicles, headlights, and other elements of drive-throughs from view of abutting streets.

b. Design

The S2 screen requires a low wall or berm, plus shrubs and trees between the wall/berm and the lot line.

(1) Enough shrubs must be planted to form a continuous hedge at least 3 feet in height. Shrubs must be at least 24 inches tall at the time of planting. Up to 40% of shrubs may be deciduous.

(2) One large tree, as defined in Section 65.080-B and listed in the Recommended and Prohibited Tree Species List, is required per 25 linear feet of landscaped area. If large trees are not feasible due to the presence of overhead lines or other utility obstructions, as determined by the land use administrator, at least one small tree is required per 15 linear feet of landscaped area.

(3) A screening wall or earthen berm with a minimum height of 3 feet and a maximum height of 4 feet is required along the full length of the interior side of the landscaped area. Walls used to satisfy the S2 screening requirements must be constructed of brick, stone, cast stone, formed concrete or similar durable, low-maintenance materials. Plain concrete blocks are not allowed as a screening wall material unless capped and finished with stucco or another decorative material.

3. F1, Screening Fence or Wall

a. Purpose

An F1 screening fence or wall is required in those instances where a complete visual barrier is needed.

b. Options

F1 screening requirements may be met by either of the following options.

(1) The installation of an opaque fence at least 6 feet in height and at least one tree per 25 linear feet of fence; or

(2) The installation of a masonry wall with a minimum height of 6 feet.

c. Street Setback

When located in the required street setback, required F1 screening fences and walls may not exceed 4 feet in height.

4. Materials, Installation and Maintenance

See Section 65.080 and Section 65.090. Any tree planting requirements associated with F1 screens may be satisfied by the installation of new trees or by the preservation of existing trees (see §65.080-B4 to determine available incentives for preservation of existing trees).

5. Modification of Requirements

a. Applicable screening requirements may be waived or modified through the alternative compliance approval process (see §65.100-D) or through the special exception approval process when:

(1) Existing features provide a visual screen equivalent to the screening requirements of this section;

(2) The screening requirements cannot be achieved; or

(3) The screening is prohibited by other ordinances or regulations.

b. An extension of time to install required screening may be approved through the special exception approval process when the properties benefited by the screening are undeveloped.

6. Screening or Setbacks Triggered by Proximity to Nonresidential Areas/Features

When a screening wall or fence or setback is required by this zoning code because a use abuts one or more R or AG-R districts, such wall, fence, or setback is not required if the actual use of the abutting R or AG-R district is a freeway, expressway, turnpike, nonresidential use; or a nonresidential development area. This exemption from screening does not apply to junk or salvage yards.

Section 65.080 Landscape and Screening Material

65.080-A General

1. Applicability

The regulations of this section apply to all trees, plant materials, and other features used to satisfy the landscaping and screening requirements of this zoning code.

2. Tree List

The planning director must annually prepare a list of recommended and prohibited tree species for use in administering and enforcing the regulations of this chapter.

3. Selection

Trees and plants used to satisfy the requirements of this zoning code must:

a. Meet or exceed the plant quality standards established in the latest edition of the American Standard for Nursery Stock (ANSI Z60.1);

b. Be native to North America or adapted for growing conditions in the Tulsa area, as determined by the land use administrator; and

c. Not be artificial plants or plants listed as prohibited species on the recommended and prohibited tree list.

4. Planting Areas

All planting areas must have amended soil to help ensure the health of newly installed plant material.

65.080-B Trees

1. Types

Unless otherwise expressly approved by the land use administrator, trees used to satisfy the tree planting requirements of this chapter must be selected from the recommended tree list (see also §65.080-A2).

2. Size

a. New Trees

New or transplanted trees provided to satisfy the requirements of this zoning code must comply with the following minimum size requirements:

(1) Large trees must be deciduous, with a minimum caliper size of 2 inches and a minimum height of 12 feet at the time of installation.

(2) Medium trees must have a minimum caliper size of 2 inches and a minimum height of 8 feet at the time of installation.

(3) Small trees must have a minimum caliper size of 1.5 inches and a minimum height of 6 feet at the time of installation.

(4) Evergreen trees must have a minimum height of 6 feet at the time of installation.

b. Overhead Lines

Trees to be installed below overhead lines must be selected from the list of small trees specified on the recommended and prohibited tree list or be otherwise expressly approved by the land use administrator.

3. Species

If more than 10 trees are required, no more than 40% may be of a single species. If more than 25 trees are required, no more than 25% may be of a single species. This requirement applies to trees being planted, not to existing trees.

4. Existing (Preserved) Trees

a. Preserved trees will be credited toward satisfying the tree planting requirements of this zoning code in accordance with the regulations of this subsection (§65.080-B4).

b. Credit will be given on the following basis:

(1) Preserved trees up to 6 inches in diameter at breast height (DBH) will be credited as 3 trees.

(2) Preserved trees larger than 6 inches DBH, up to 12 inches DBH will be credited as 4 trees;

(3) Preserved trees that are more than 12 inches DBH up to 24 inches DBH will be credited as 5 trees; and

(4) Preserved trees that are more than 24 inches DBH will be credited at a ratio of 10 trees.

c. The tree preservation incentive credits provided in this subsection (§65.080-B4) may not be used to reduce the number of trees required by this chapter by more than 50%.

d. To receive tree preservation credit, the following additional conditions must be met:

(1) Preserved trees for which credit is given must be in good health and condition and may not be prohibited species;

(2) The original grade of the dripline area of a preserved tree may not be changed; and

(3) Tree protection fencing must be installed around the outer limits of the dripline area and remain in place from commencement of construction activity until all exterior work is complete. Tree protection fencing must consist of orange vinyl construction fencing, chain link fencing, snow fencing or other similar fencing at least 42 inches in height and supported at no more than 10-foot intervals by posts or stakes to keep the fence upright and in place. A visible warning/no-disturb sign must be affixed to fence at 100-foot intervals.

e. The land use administrator is expressly authorized to reduce off-street parking requirements to allow for the preservation of existing trees.

f. If healthy, preserved trees are removed, they must be replaced by the number trees for which credit was given.

g. If preserved trees die or are lost to storms or natural causes within one year of the date of approval of the landscape plan, they must be replaced by the number trees for which credit was given. If preserved trees die or are lost to storms or natural causes beyond one year of the date of approval of the landscape plan, they must be replaced by an equal number of trees (1:1 basis).

65.080-C Shrubs

1. New Shrubs

a. Deciduous shrubs must have a minimum container size of 5 gallons.

b. Evergreen shrubs must have a minimum container size of 5 gallons.

c. Shrubs may also be balled and burlapped.

d. If more than 75 shrubs are required, no more than 40% may be of a single species.

2. Existing (Preserved) Shrubs

Existing shrubs may be used to satisfy the landscaping and screening requirements of this zoning code if protected and maintained during site development and construction phases of work and if such plants are not otherwise prohibited.

65.080-D Ground Cover

1. All required landscape areas that are not planted with trees or shrubs must be covered with ground cover plants, which may include turf. Mulch must be confined to areas underneath trees and shrubs and is not an allowed substitute for ground cover.

2. Ground cover plants other than turf must be minimum 4-inch pot or plug size. Areas planted in ground cover other than turf must be planted at distances appropriate for the species and at a density that will achieve complete coverage after the second full growing season.

65.080-E Mulch

All required trees and shrubs must be located within a mulched area and be separated from turf by a minimum distance of 2 feet (4-foot diameter mulched area). Mulch must be applied to provide a 2-inch (minimum) to 4-inch (maximum) soil cover, with no weed barrier material visible.

65.080-F Fences and Walls

Unless otherwise expressly stated, fences and walls provided to meet the regulations of this chapter are subject to the regulations of this subsection.

1. Fences must durable and constructed with materials that are customarily used for fences, including wood, decorative rigid vinyl (polyvinyl chloride), metal or wrought iron. Fence posts must be structurally stable.
2. The finished side of all fences other than tree protection fences must face the adjacent property or street. Chain-link fencing may not be used to satisfy the regulations of this chapter.
3. Walls, raised planting beds and planters must be constructed of brick, stone or other durable masonry material approved by the land use administrator.

Section 65.090 Landscape Installation, Irrigation and Maintenance

65.090-A Installation

1. Required landscaping must be installed in accordance with an approved landscape plan.
2. All trees and plant material must be installed in accordance with sound nursery practices, in a manner designed to encourage vigorous growth.
3. All newly installed trees must be staked.
4. Trees and plant material suitable for planting must be balled and burlapped or container grown. Planting areas should be at least twice the diameter of the root system or the container.
5. All landscaped areas that are adjacent to pavement must be protected with curbs or equivalent barriers. Flush curbs, curb cuts, or other methods must be used to direct stormwater to landscape areas that abut paved areas.
6. Landscaping may not obstruct traffic visibility at street intersections or driveways and must comply with the intersection sight distance regulations of Title 24 (§103.A) of the Tulsa Revised Ordinances as well as AASHTO (American Association of State Highway and Transportation Officials) guidelines.
7. The city is not liable for any damage to above-ground or below-ground improvements or landscaping within the public right-of-way, even when such damage or destruction is the direct result of government action. When landscaping is placed or installed within the public right-of-way, the city has no obligation to replace or repair such landscaping if removed or damaged by city field operations or other governmental functions. The city also has no obligation to maintain above ground or below ground improvements or landscaping within the public right-of-way.

65.090-B Protection

All landscape areas provided to meet the requirements of this zoning code must be protected from potential damage by adjacent uses and development, including parking and storage areas.

65.090-C Irrigation

1. All required landscaped areas must be provided with irrigation in accordance with one of the following 2 options:

a. A permanent irrigation system with a controller to tailor watering schedules to weather and site conditions; or

b. A temporary irrigation system that provides enough water to ensure that all trees and plants will become established.

2. Irrigation systems must comply with all applicable building and plumbing codes.

65.090-D Timing of Installation

1. All required landscaping and appurtenances, except trees, must be installed prior to the issuance of a final certificate of occupancy.

2. All required trees must be installed within 120 days after issuance of a final certificate of occupancy or temporary certificate of occupancy.

65.090-E Certificate of Installation

Within a CO, PUD or MPD district or whenever a mandatory or optional development plan is approved, certification of installation of required landscaping must be provided as required by any express provisions of the CO, PUD or MPD district or mandatory or optional development plan approval that was granted. In all other cases, within 120 days of the issuance of a certificate of occupancy or temporary certificate of occupancy, written certification by the owner of the property, an architect, landscape architect or engineer licensed to do business in the State of Oklahoma must be submitted to the city stating that all landscaping and appurtenances have been installed in accordance with the approved landscape plan.

65.090-F Maintenance

1. Required landscaping and screening must be continuously maintained, including necessary watering; weeding; pruning; pest control; litter and debris clean-up; and replacement of dead, diseased or damaged plant material.

2. Failure to comply with an approved landscaping plan, including failure to maintain required landscaping and screening and failure to replace dead, diseased or damaged landscaping, constitutes a violation of this zoning code and is subject to penalties and enforcement under Chapter 85.

3. The property owner is responsible for maintenance of trees and landscaping in accordance with the approved landscape plan and the regulations of this zoning code. Any dead, diseased or damaged trees, landscaping or screening materials must be removed and replaced by the property owner. Property owners are also responsible for replacing or restoring required landscaping that is damaged or destroyed as a direct result of government action or lawful action of a franchise utility provider.

Section 65.100 Landscape Plans

65.100-A Preparation of Landscape Plan

1. Except as expressly stated in §65.100-A2, required landscape plans must be accompanied by written certification from an architect, landscape architect or

engineer licensed to practice in the State of Oklahoma, that the landscape plan is in conformance with the minimum requirements of this chapter.

2. Required landscape plans for properties that (a) are subject to an approved mandatory or optional development plan or (b) have a lot area of more than 20,000 square feet and are occupied by buildings with a combined gross floor area of more than 15,000 square feet, must be sealed and signed by a landscape architect licensed to practice in the State of Oklahoma.

65.100-B Required Information

All building permit applications for sites requiring landscaping must include a landscape plan that complies with the landscape plan submittal requirements specified by the development administrator. Such submittal requirements must be in writing and made available to the public.

65.100-C Administrative Review

After receipt of a complete landscape plan, the development administrator must:

1. Approve the landscape plan as complying with the requirements of this chapter;
2. Approve the landscape plan with conditions of approval that will bring it into compliance with the requirements of this chapter; or
3. Reject the landscape plan as failing to comply with the requirements of this chapter.

65.100-D Alternative Compliance Landscape and Screening Plans

1. To accommodate creativity in landscape and screening design and to allow for flexibility in addressing site-specific development/redevelopment challenges, the land use administrator is authorized to approve alternative compliance landscape plans sealed by a landscape architect licensed to practice in the State of Oklahoma. In order to approve an alternative compliance landscape plan, the land use administrator must determine that one or more of the following conditions or opportunities are present:
    a. The subject site has space limitations, an unusual shape or other factors that make strict compliance with applicable landscaping and screening regulations impossible or impractical;
    b. Physical conditions on or adjacent to the site such as topography, soils, vegetation or existing structures or utilities are such that strict compliance is impossible, impractical or of no value in terms of advancing the general purposes of this chapter;
    c. Safety considerations such as intersection visibility, utility locations, etc., make alternative compliance necessary; or
    d. Creative, alternative landscape plans will provide an equal or better means of meeting the intent of the landscaping and screening regulations of this chapter.

2. The land use administrator is expressly authorized to approve alternative compliance landscape plans for projects implementing low-impact development practices or seeking sustainable development or green building certification from nationally recognized organizations, such as the International Code Council, the U.S. Green Building Council, the International Living Future Institute, the U.S. Green Building Initiative or SITES, as follows:

   a. Sites implementing low-impact development (LID) practices that comply with the City of Tulsa Stormwater Management Criteria Manual are expressly authorized for approval through the alternative compliance provisions of this section.

      (1) LID plans must be sealed by a landscape architect licensed to practice in the State of Oklahoma.

      (2) LID development solutions may be provided in the street right-of-way, subject to approval by all applicable city bodies, departments and agencies. Such improvements must be maintained by the adjoining property owner.

      (3) All aspects of an LID project, including permeable pavement, bioretention areas, rain gardens, filter strips, grassed swales, green roofs, wetlands, natural stream restoration or preservation will be considered part of the approved alternative compliance landscape plan.

   b. Plans for sites for which property owners are seeking sustainable development or green building certification from nationally recognized organizations may be approved as alternative compliance landscape plans.

      (1) Landscape plans must be sealed by a landscape architect licensed to practice in the State of Oklahoma.

      (2) Landscape improvements may be provided in the street right-of-way, subject to approval by all applicable city bodies, departments and agencies. Such improvements must be maintained by the adjoining property owner.

      (3) All proposed aspects of the proposed certification, including hardscape material selections, site lighting, grey water irrigation systems and other components of the site may be considered as part of the approved alternative compliance landscape plan.

Chapter 67 | Outdoor Lighting

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Section 67.020 Applicability and Exemptions 67-1
Section 67.030 General Standards 67-2
Section 67.040 Lighting Plans 67-3
Section 67.050 Measurement of Illumination 67-4

Section 67.010 Purposes

The outdoor lighting regulations of this chapter are intended to help ensure adequate lighting for motorized and nonmotorized travelers; provide for the efficient use of energy; and reduce the impacts of nuisance lighting and glare on nearby areas.

Section 67.020 Applicability and Exemptions

The outdoor lighting regulations of this section apply to all outdoor lighting installed after the effective date specified in Section 1.030, except that they do not apply to any of the following:

67.020-A Outdoor lighting on lots occupied by residential buildings containing fewer than 4 dwelling units;

67.020-B Public street lights;

67.020-C Airport runway and aviation safety lights required by the FAA (e.g., warning lights on radio, communication and navigation towers);

67.020-D Spotlighting of official government flags if the spotlighting is contained within the area of the flag;

67.020-E Outdoor lighting used exclusively for and during public recreational activities, sporting events at stadiums and ball fields or other outdoor public spaces or venues;

67.020-F Outdoor lighting used for emergency equipment and work conducted in the interest of law enforcement or for public health, safety or welfare;

67.020-G Outdoor lighting in association with special events approved by the city council;

67.020-H Outdoor lighting used for a temporary use lasting no more than 10 days;

67.020-I Lighting fixtures with a light output of no more than 1,000 lumens; and

67.020-J Temporary holiday light displays.

Section 67.030 General Standards

All outdoor lighting must comply with the following general standards:

67.030-A Canopy-Mounted Lights

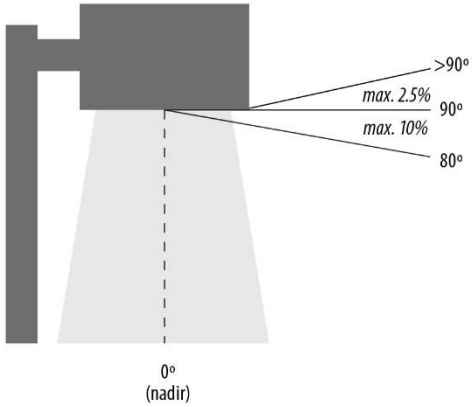
Recessed fixtures must be used in all under-canopy lighting. No lamps, reflectors, refractors or focusing or diffusing may extend below the underside of the canopy surface.

67.030-B Arrangement and Shielding

1. Lighting must be installed to shield and direct light away from abutting lots that are not under common ownership or control with the lot on which the lights are located. Shielding must be designed and installed to ensure that the light-producing element of the fixture is not visible from on the abutting property, as measured 5 feet above grade.

2. Light-producing elements must be concealed or shielded with cutoffs so that no more than 2.5% of the light emitted directly from the lamp or indirectly from the fixture is projected at an angle of more than 90 degrees above nadir and no more than 10% of the light emitted directly from the lamp or indirectly from the fixture is projected at an angle of more than 80 degrees above nadir.

Figure 67-1: Required Shielding



67.030-C Spillover Light

Light trespass along the lot line of the subject property may not exceed 0.5 foot-candles when abutting an agricultural, agricultural-residential, or residential zoning district and may not exceed 3.0 foot-candles when abutting any other zoning district or public right-of-way. Maximum illumination levels are measured 3 feet above grade or from the top of any opaque screening fence or wall along the property line.

Section 67.040 Lighting Plans

67.040-A General

Outdoor lighting plans demonstrating compliance with the standards of this section are required with the submittal of a site plan. If no outdoor lighting is proposed, a note must be placed on the face of the site plan indicating that no outdoor lighting will be provided. Applicants have 2 options for the format of the required lighting plan:

1. Submit a lighting plan that complies with the fixture height lighting plan requirements of §67.040-B; or
2. Submit a photometric plan demonstrating that compliance will be achieved using taller fixture heights, in accordance with §67.040-C.

67.040-B Option 1: Fixture Height Standard Lighting Plan

Option 1 (Fixture Height Standard Lighting Plans) establishes maximum light fixture heights but does not require submittal of a detailed photometric plan.

1. Information Required

a. Fixture height standard lighting plans must include at least the following: A scale drawing of the site with all outdoor lighting locations shown;

b. Fixture specifications, including catalog cut-sheets or generic standards;

c. Pole type and height of fixture;

d. Lamp type and size; and

e. Fixture mounting and orientation.

2. Maximum Fixture Heights

Allowable heights of light fixtures must be measured from the light-emitting surface to finished grade at the base of the pole. Maximum allowed light fixture heights are based on the (ground-level) horizontal distance between the light fixture and any agricultural, agricultural-residential, or residential zoning district or public right-of-way, as established in Table 67-1:

Table 67-1: Maximum Light Fixture Heights

Distance from AG District, AG-R District, R District, or Public Right-of-Way (feet)	**Maximum Fixture Height** (feet)
0 – 50	16
50.01 – 250	20
More than 250	35

67.040-C Option 2: Photometric Study

Under option 2 (Photometric Study Lighting Plan) no maximum fixture heights are established, but applicants are required to submit a photometric study in enough

detail to demonstrate that all applicable outdoor light standards will be met. The photometric study must include at least the following:

1. A scale drawing of the site with all outdoor lighting locations shown;
2. Fixture specifications, including catalog cut-sheets or generic standards;
3. Lamp type and size;
4. Fixture mounting heights, mounting orientation, and tilt angles if applicable; and
5. A representative point-by-point illumination array for the site showing property lines and all off-site lighting impacts.

Section 67.050 Measurement of Illumination

Light levels must be measured with a direct-reading, portable light meter, calibrated annually by an independent laboratory regularly engaged in the calibration of such instruments. The meter's sensor must be located at the top of the visual screening fence or wall along on the property line (or at a height of 3 feet above finished grade at the property line if there is no fence or wall), aimed towards the subject property in horizontal position. Readings must be recorded after the value has stabilized. Measurements are made after establishment of darkness with the light sources to be measured illuminated, and then with those light sources extinguished. The difference between these 2 readings must then be compared to the maximum allowed illumination at the property line. In this way, contributions to light levels by the moon and other ambient light sources are eliminated and the light intensity from the subject light sources can be accurately determined.

Chapter 70 | Review and Approval Procedures

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Section 70.010 Common Provisions

70.010-A Applicability

The common provisions of this section apply to all of the procedures in this chapter unless otherwise expressly stated.

Table 70-1: Review and Decision-making Authority Summary Table

Procedure	Staff	Preservation Commission	Planning Commission	Board of Adjustment	City Council	Public Notice
Zoning Code Text Amendments	R	–	<R>	–	<DM>	N[7]
Zoning Map Amendments (Non-HP)	R	–	<R>	–	<DM>	N,M,P[7]
Development Plans	R	–	<R>	–	<DM>	N,M,P[7]
Site Plans	DM[1]	–	–	–	–	–
Historic Pres. (HP) Zoning Map Amendments	R	R	<R>	–	<DM>	N,M,P[7]
HP Permits	R[2]	DM[2]	–	–	–	–
Zoning Code Interpretations	DM[3]	–	–	–	–	–
Spacing and Separation Distance Verification	DM[4]	–	–	–	–	–
Special Exceptions	–	–	–	<DM>	–	N,M,P[5]
Variances	–	–	–	<DM>	–	N,M
Appeals of Administrative Decisions	–	–	–	<DM>[6]	–	N,M

R = Review body (review and recommendation) | **DM** = Decision-making body (final decision to approve or deny)
< > = Public hearing required | Hearing Notice: **N** = Newspaper; **M** = Mail; **P** = Posting (signs)

Table 70-1 Notes

[1] Unless alternative site plan review procedure/decision-maker is established by city council at time of development plan approval (see 70.050-C)
[2] Preservation officer (staff) authorized to act on some applications (see 70.070-K)
[3] Development administrator authorized to issue written interpretations
[4] Development administrator authorized to verify spacing and separation distance requirements
[5] Special notice requirements for minor special exceptions (See 70.120-E)
[6] Appeals of administrative decisions on site plans go to the planning commission
[7] Notice required for planning commission public hearing but not for city council public hearing

70.010-B Review and Decision-making Authority (Summary Table)

Table 70-1 provides a summary of the review and approval procedures of this chapter. In the event of conflict between this summary table and the detailed procedures contained elsewhere in this chapter, the detailed procedures govern.

70.010-C Applications and Fees

1. Owner-initiated Applications

Whenever the provisions of this zoning code allow the filing of an application by the owner of the subject property, that application must be filed by all record title owners of the real properties that are the subject of the application or the property owners' authorized agent.

2. Pre-application Meetings

Purpose

Pre-application meetings provide an early opportunity for staff and applicants to discuss the procedures, standards and regulations required for development approval under this zoning code.

Applicability

Pre-application meetings are required whenever the provisions of this zoning code expressly state that they are required. They are encouraged in all cases.

Scheduling

Pre-application meetings must be scheduled with the land use administrator.

Guidelines

The land use administrator is authorized to establish guidelines for pre-application meetings, including information that should be provided and any available alternatives to face-to-face meetings, such as telephone conversations and email correspondence.

3. Form of Application

a. Applications required under this zoning code must be submitted in a form and in such numbers as required by the official responsible for accepting the application. Applications must include materials and information to assist authorized review and decision-making bodies in their consideration of the application, including at least the following:

(1) A list of the names and addresses of all owners of record of the property that is the subject of the application; and

(2) Maps, plats, surveys, dimensioned site plans, engineering documents, environmental reports, traffic studies, and other materials and information, as required by this zoning code or application checklists established by the official responsible for accepting the application. Application forms and submittal requirements must be made available to the general public.

4. Application Filing Fees and Notification Costs

All applications must be accompanied by the application fee that has been established by the city council and by an amount to cover the costs of required public hearing notices and publication.

5. Application Completeness, Accuracy and Sufficiency

a. An application will be considered complete and ready for processing only if it is submitted in the required number and form, includes all required information and is accompanied by the required application filing and notification fees.

b. The official responsible for accepting the application must make a determination of application completeness within 10 business days of application filing.

c. If an application is determined to be incomplete, the official responsible for accepting the application must provide notice to the applicant along with an explanation of the application's deficiencies. Notice of an incomplete application may be provided by personal service, electronic mail or first-class mail.

d. No further processing of incomplete applications will occur and incomplete applications will be pulled from the processing cycle. When the deficiencies are corrected, the application will be placed in the first available processing cycle. If the deficiencies are not corrected by the applicant within 60 days, the application will be deemed to have been withdrawn.

e. Applications deemed complete will be considered to be in the processing cycle and will be reviewed by staff and other review and decision-making bodies in accordance with applicable review and approval procedures of this zoning code.

f. The official responsible for accepting the application may require that applications or plans be revised before being placed on an agenda for possible action if the land use administrator determines that:

(1) The application or plan contains one or more significant inaccuracies or omissions that hinder timely or competent evaluation of the plan's/application's compliance with zoning code requirements or other regulations;

(2) The application contains multiple minor inaccuracies or omissions that hinder timely or competent evaluation of the plan's/application's compliance with zoning code requirements or other regulations; or

(3) The decision-making body does not have legal authority to approve the application.

70.010-D Application Processing Cycles

The land use administrator and other officials responsible for accepting applications, after consulting with review and decision-making bodies, is

authorized to promulgate reasonable cycles and timelines for processing applications, including deadlines for receipt of complete applications.

70.010-E Neighbor Communications

1. Neighbor communications are encouraged by the board of adjustment, planning commission and city council to help:
   a. educate applicants and neighbors about one another's interests;
   b. resolve issues in a manner that respects those interests; and
   c. identify unresolved issues before initiation of formal public hearings.
2. Applicants are encouraged to submit a summary of their neighbor communication activities at or before the first required public hearing. The recommended content of such summaries is as follows:
   a. Efforts to notify neighbors about the proposal (how and when notification occurred, and who was notified);
   b. How information about the proposal was shared with neighbors (mailings, work-shops, meetings, open houses, flyers, door-to-door handouts, etc.);
   c. Who was involved in the discussions;
   d. Suggestions and concerns raised by neighbors; and
   e. What specific changes (if any) were considered and/or made as a result of the neighbor communications.

70.010-F Public Hearing Notice

1. Newspaper Notice

Whenever the procedures of this chapter require that newspaper notice be provided, the notice must be published in a newspaper of general circulation within the City of Tulsa.

2. Mailed Notice

a. Whenever the procedures of this chapter require that notices be mailed, the notices must be sent by United States Postal Service first class mail.
b. Addresses must be based on property ownership information from the county assessor's office. When required notices have been properly addressed and deposited in the U.S. mail, alleged failure of a party to receive the mailed notice does not constitute grounds to invalidate any action taken.

3. Posted Notice

a. Except as expressly stated in 70.010-F.3.b, when the procedures of this chapter require that posted notice be provided, at least one notice sign must be posted on each public street frontage abutting the subject property in locations plainly visible to passers-by. If the subject application includes an area with more than 1,000 feet of street frontage

on a single street, at least one sign must be posted for each 1,000 feet of street frontage or fraction thereof on that street.

b. When the city initiates a zoning map amendment in order to ensure consistency with its comprehensive plan or to implement land use and zoning policies in areas that require special attention due to topography, geography, or other distinguishing features, such as floodplain, drainage, historic preservation, or blight, the land use administrator is authorized to designate the number and location of posted notice signs. The locations must be within the area proposed for rezoning, be plainly visible to passers-by and provide reasonable posted notice.

4. Content of Notice

All required public hearing notices must:

a. Indicate the date, time and place of the public hearing that is the subject of the notice;

b. Describe any property involved in the application by map, street address or by legal description, provided that a map must be included in the newspaper notice for any zoning map amendment;

c. Describe the action sought in the application or proposal;

d. Identify who will conduct the hearing; and

e. Indicate where additional information on the matter can be obtained.

5. Constructive Notice

a. Minor defects in required notices will not be deemed to impair the notice or invalidate proceedings pursuant to the notice. Minor defects in notice are limited to errors in a legal description or typographical or grammatical errors that do not impede communication of the notice to affected parties. If questions arise at the hearing regarding the adequacy of notice, the hearing body must make a formal finding about whether there was substantial compliance with the notice requirements of this zoning code.

b. When the records of the city document the publication, mailing, and posting of notices as required by this chapter, required notice of the public hearing will be presumed to have been given.

6. Courtesy Notice

a. In addition to otherwise required notices of public hearings, the land use administrator must endeavor to provide one or more of the following forms of additional courtesy notice of public hearings required under this zoning code:

(1) Mailing notices to registered neighborhood and resident organizations whose boundaries include or are abutting the subject property;

(2) Posting notices in city hall or in other government buildings; or

(3) Publishing notice on the city or planning commission website.

b. Failure to provide any form of courtesy notice that is not required under this zoning code or any defect in courtesy notice that is provided does not invalidate impair, or otherwise affect any application, public hearing or decision rendered in respect to the matter under consideration.

70.010-G Hearing Procedures

1. At required public hearings, interested persons must be permitted to submit information and comments, verbally or in writing. The hearing body is authorized to establish reasonable rules and regulations governing the conduct of hearings and the presentation of information and comments. The required city council public hearing may be conducted under the council agenda classification Authorities, Boards and Commissions or under any other agenda classification deemed appropriate by the city council.
2. Once commenced, a public hearing may be continued by the hearing body. No re-notification is required if the continuance is set for specified date and time and that date and time is announced at the time of the continuance.
3. If a public hearing requiring notice is continued or postponed for an indefinite period of time from the date of the originally scheduled public hearing, new public hearing notice must be given before the rescheduled public hearing. If the applicant requests and is granted a continuance or postponement requiring renotification, the applicant must pay any costs of renotification.

70.010-H Action by Review Bodies and Decision-Making Bodies

1. In taking action under the procedures of this chapter, review and decision-making bodies must act by simple majority vote of a quorum, unless otherwise expressly stated. Unless otherwise expressly stated "simple majority vote" means a simple majority vote of a quorum.
2. Review and decision-making bodies may take any action that is consistent with:
   a. The regulations of this zoning code;
   b. Any rules or by-laws that apply to the review or decision-making body; and
   c. The notice that was given.
3. In acting on zoning map amendments, review and decision-making bodies are expressly authorized to recommend and approve a less intensive zoning district classification than the zoning district that was described in required public notices (see "less intensive zoning district" in Section 95.150).
4. Review and decision-making bodies are authorized to continue a public hearing or defer action in order to receive additional information or further deliberate.

70.010-I Conditions of Approval

When the procedures of this chapter authorize approval with conditions, review bodies, including staff, are authorized to recommend conditions and decision-

making bodies are authorized to approve the subject application with conditions. Any conditions recommended or approved must relate to a situation likely to be created or aggravated by the proposed use or development and must be roughly proportional to the impacts of the use or development.

70.010-J Decision-Making Criteria; Burden of Proof or Persuasion

Applications must address relevant review and decision-making criteria. In all cases, the burden is on the applicant to show that an application or proposal complies with all applicable review or approval criteria.

70.010-K Required Time-frames for Action

Any time limit specified in this zoning code for any decision or action on behalf of a review or decision-making body may be extended if the applicant agrees to an extension. Unless otherwise expressly stated, if a review or decision-making body does not render a decision or take action within any time period required under this zoning code and the applicant has not agreed to an extension of that time limit, the application is deemed denied.

Section 70.020 Zoning Code Text Amendments

70.020-A Authority to File

Amendments to the text of this zoning code may be initiated only by the city council, planning commission or land use administrator.

Figure 70-1: Zoning Code Text Amendment Process (Generally)



70.020-B Review and Recommendation—Land Use Administrator

The land use administrator must prepare a report and recommendation on the proposed zoning code text amendment. The report must be transmitted to the planning commission before its public hearing on the proposed amendment.

70.020-C Notice of Hearing

Notice of the planning commission's required public hearing on a zoning code text amendment must be published in the newspaper at least 20 days before the scheduled public hearing (see §70.010-F for additional information on newspaper notices).

70.020-D Hearing and Recommendation—Planning Commission

The planning commission must hold a public hearing on the proposed zoning code text amendment. Following the close of the public hearing, the planning commission must act to recommend that the proposed text amendment be approved, approved with modifications, or denied and transmit its report and recommendations to the city council. Motions to approve, approve with modifications or deny zoning code text amendments may be approved by a simple

majority vote. If the planning commission arrives at a tie vote, the application must be forwarded to the city council with the notation of the tie vote.

70.020-E Final Action—City Council

Following receipt of the planning commission's report and recommendation, the city council must hold a public hearing and act to approve the proposed zoning code text amendment, approve the proposed text amendment with modifications or deny the proposed text amendment. The city council is also authorized to remand the proposed text amendment back to the planning commission for further consideration. Zoning code text amendments may be approved by a simple majority vote.

70.020-F Review and Approval Criteria

The decision to amend the zoning code text is a matter of legislative discretion that is not controlled by any one standard. In making recommendations and decisions about zoning code text amendments, review and decision-making bodies must consider all relevant factors, including at least the following:

1. Whether the proposed text amendment is in conformity with the policy and intent of the comprehensive plan; and
2. Whether the proposed zoning code text amendment corrects an error or inconsistency or is necessary or desirable to meet the challenge of a changed or changing condition.

70.020-G Applicability

1. All amendments to the text of this zoning code must be processed in accordance with the provisions of this section, except as stated in 70.020-G.2.
2. The land use administrator, in consultation with the city legal department, is authorized to correct typographical errors, reference errors, spelling errors, formatting errors, and errors in section, page, table, and figure numbering, without following the zoning code text amendment procedures of this section. The changes necessary to correct such errors may not change the meaning or regulations of the zoning code.

Section 70.030 Zoning Map Amendments (Rezonings)

70.030-A Authority to File

Amendments to the zoning map may be initiated only by the city council, the planning commission, the owner of the real property that is the subject of the proposed zoning map amendment or by the property owner's authorized agent.

Figure 70-2: Zoning Map Amendment Process (Generally)



70.030-B Application Filing

Property owner-initiated applications for zoning map amendments must be filed with the land use administrator. Property owners have the option of filing applications for zoning map amendments with or without a development plan. If the applicant elects to submit a development plan concurrently with a zoning map amendment application, the development plan procedures of Section 70.040 govern review and approval of the development plan.

70.030-C Review and Recommendation—Land Use Administrator

Following receipt of a complete zoning map amendment application or initiation of zoning map amendment by the planning commission or the city council, the land use administrator must prepare a report and recommendation on the proposed zoning map amendment. The report must be transmitted to the planning commission before its public hearing on the proposed amendment.

70.030-D Notice of Hearing

Notice of the planning commission's required public hearing on a zoning map amendment must be provided as follows (see §70.010-F for additional information on required newspaper, mail and posted notices):

1. Newspaper Notice

Notice must be published in the newspaper at least 20 days before the scheduled public hearing.

2. Mailed Notice

Notice must be mailed to all owners of property included within the area that is the subject of the proposed zoning map amendment and all owners of property within 300 feet of the subject property at least 20 days before the scheduled public hearing. Mailed notice is not required for city-initiated rezonings proposed as a means of revising the comprehensive plan or official map or designating areas that require specific land use development due to topography, geography or other distinguishing features, including but not limited to floodplain, drainage and blighted areas.

3. Posted Notice

Notice (signs) must be posted at least 20 days before the scheduled public hearing.

70.030-E Hearing and Recommendation—Planning Commission

1. Following receipt of a complete application for a zoning map amendment or initiation of a zoning map amendment by the planning commission or city council, the planning commission must hold a public hearing on the proposed amendment. Following the close of the public hearing, the planning commission must act to recommend that the proposed amendment be approved, approved with modifications, or denied.
2. All proposed zoning map amendments initiated by the city council or the planning commission must be transmitted to the city council within 15 days of the date of planning commission action.

3. A property owner-initiated zoning map amendment recommended for approval or approval with modifications must be transmitted to the city council within 15 days of the date of planning commission action.

4. A property owner-initiated application recommended for denial by the planning commission may not be considered further unless the applicant, within 15 days of the date of the planning commission's action, files a written request with the city clerk and the recording secretary of the planning commission for a public hearing by the city council. The request for hearing must be accompanied by the payment of the required filing fee. Upon notice of a request for a public hearing before the city council, the planning commission must transmit the application and its report and recommendations to the city council.

5. Motions to approve, approve with modifications or deny zoning map amendments may be approved by a simple majority vote. If the planning commission arrives at a tie vote, the application must be forwarded to the city council with the notation of the tie vote.

70.030-F Final Action—City Council

1. Following receipt of the planning commission's recommendation, the city council must hold a public hearing on the application and act to approve the proposed zoning map amendment, approve the proposed amendment with modifications, including approval of a less intensive zoning district or an optional development plan, or deny the proposed amendment. The city council is also authorized to remand the proposed zoning map amendment back to the planning commission for further consideration.

2. Zoning map amendments may be approved by a simple majority vote, except as stated in §70.030-G.

70.030-G Protest Petitions

1. If a valid protest petition is filed against any proposed zoning map amendment, passage of the zoning map amendment requires a favorable vote of three-fourths of the members of the entire city council.

2. A protest petition will be deemed valid if it is signed by the owners of 20% or more of the area of the lots included in the proposed zoning map amendment or by the owners of 50% or more of the area of the lots within 300 feet of the area included in the proposed zoning map amendment and if it meets the other regulations of this Section 70.030-G. Areas designated as right-of-way shall not be included in the calculation. The city council will determine sufficiency of a protest petition if its validity is challenged.

3. A written protest petition opposing a zoning map amendment must be submitted to the land use administrator at least 3 business days before the city council's vote.

4. The protest petition must identify the zoning case number for which the protest is filed and must state that it is a formal protest of the proposed zoning map amendment.

5. Persons signing the protest petition must be at least eighteen (18) years of age and must hold record title to their properties, as shown in the land records of the Tulsa County Clerk. If a lot is owned jointly by more than one owner, all owners must sign the protest petition. If a lot is owned by a trust, the trustee must sign, noting that he or she signs "as trustee". If there is more than one trustee, and no single trustee is authorized to sign, then all the trustees must sign. If a lot is owned by a corporation, the president or a vice-president or the chair or vice chair of the board of directors, must sign. If a lot is owned by a limited liability company, a manager must sign. If a lot is owned by any other legal entity, the person signing the protest petition must be someone authorized by that entity to convey title to land.
6. Persons signing the protest petition must indicate the street address of the lot owned. If no street address is assigned, a legal description (lot and block of a subdivision, metes and bounds description of unplatted tracts) or a map must be provided.
7. If a protest petition contains multiple signature pages, each page must contain the same protest language. Signatures must be the normal cursive signature of the person signing and should be accompanied by the legibly printed or typed name of the person signing. The name of the person signing must be the same as the name of that person as shown in the land records of the Tulsa County Clerk.
8. A protest petition may not be amended, supplemented or corrected subsequent to the deadline for filing the petition.

70.030-H Review and Approval Criteria

The decision to amend the zoning map is a matter of legislative discretion that is not controlled by any single standard or criterion. In making recommendations and decisions on zoning map amendments, review and decision-making bodies must consider all relevant factors, including at least the following:

1. Whether the proposed zoning map amendment is consistent with the policy and intent of comprehensive plan; and
2. Whether the proposed zoning map amendment corrects an error or inconsistency or is necessary or desirable to meet the challenge of a changed or changing condition.

Section 70.040 Development Plans

70.040-A Purpose

Development plans are required with some property owner-initiated rezonings and are optional with other property owner-initiated rezonings. Their purpose is to depict a property owner's generalized plan for the type, amount and character of development proposed on the subject property. By providing greater certainty about development proposals, development plans provide review and decision-making bodies with additional information on which to base rezoning decisions.

70.040-B Applicability

1. Mandatory

Development plans are required (mandatory) for Corridor (CO) district zoning map amendments and Master Planned Development (MPD) zoning map amendments. They are also required for major amendments to existing Planned Unit Developments (PUDs). In acting on mandatory development plans, the planning commission is authorized to recommend and the city council is authorized to approve use and development limitations that comply with, are more restrictive than or, as may be permitted by the respective CO, MPD, or PUD provisions of this code, are less restrictive than the base zoning district regulations and otherwise applicable standards of this zoning code.

2. Optional

Property owners may elect to submit a development plan with any zoning map amendment application. The optional development plan process is also used to process proposals to provide access to lots via a private street. In acting on optional development plans, the planning commission is authorized to recommend and the city council is authorized to approve use and development limitations that are at least as restrictive or are more restrictive than the base zoning regulations. Optional development plans may not be used to obtain relief from otherwise applicable zoning code regulations. The city council is authorized to request an optional development plan from the applicant if they deem it appropriate at the time of their consideration of a proposed zoning map amendment.

70.040-C Application Filing

Complete applications for development plan approval must be filed with the land use administrator concurrently with a zoning map amendment application.

70.040-D Review and Recommendation—Land Use Administrator

Following receipt of a complete application, including the required development plan, the land use administrator must prepare a report and recommendation. The report must evaluate the proposed development plan in light of all applicable standards and approval criteria. The report must also include a description of any development plan modifications or conditions of approval that would help ensure the development plan complies with applicable standards and approval criteria. The land use administrator's report must be transmitted to the planning commission before the required public hearing.

70.040-E Notice of Hearing

Notice of the planning commission's required public hearing must be provided as follows (see 70.010-F for additional information on required newspaper, mail and posted notices).

1. Newspaper Notice

Notice must be published in the newspaper at least 20 days before the scheduled public hearing.

2. Mailed Notice

Notice must be mailed to the owner of the subject property and all owners of property within 300 feet of the subject property at least 20 days before the scheduled public hearing. Notice for straight zoning constitutes notice for optional development plans.

3. Posted Notice

Notice (signs) must be posted at least 20 days before the scheduled public hearing.

70.040-F Hearing and Recommendation—Planning Commission

1. Within 60 days of the date of filing of a complete application for development plan approval, the planning commission must hold a public hearing to consider the proposed development plan. Following the close of the public hearing, the planning commission must act to recommend that the proposed development plan be approved, approved with modifications, or denied.
2. A development plan application recommended for approval or approval with modifications must be transmitted, with the report and recommendation of the planning commission, to the city council within 15 days of the date of planning commission action.
3. A development plan application recommended for denial by the planning commission, will be deemed denied and will not be considered further unless the applicant, within 15 days of the date of the planning commission's action, files a written request with the city clerk and with the recording secretary of the planning commission for a public hearing by the city council. The request for hearing must be accompanied by the payment of the required filing fee. Upon notice of a request for a public hearing before the city council, the planning commission must transmit the development plan application and its report and recommendations to the city council.
4. If the planning commission arrives at a tie vote, the application must be forwarded to the city council with a notation of the tie vote.

70.040-G Final Action—City Council

1. Following receipt of the planning commission's recommendation, the city council must hold a public hearing on the development plan and act to approve the proposed development plan, approve the proposed development plan with modifications or deny the proposed development plan. The city council is also authorized to remand the proposed development plan back to the planning commission for further consideration. The council may, but is not required to, consider and act upon an optional development plan submitted after the planning commission's public hearing on a proposed zoning map amendment.
2. Development plans may be approved by a simple majority vote, except that any accompanying zoning map amendment may require a super-majority vote, as stated in §70.030-G.

70.040-H Requirement for Filing of Site Plan

1. Unless a longer time period or a phasing plan is approved at the time of approval of a mandatory development plan, a complete application for site plan approval must be filed within 5 years of the date of mandatory development plan approval. If an application for site plan approval is not filed within the time required, no further site plans may be approved for the project until the subject property owner has filed the original or amended development plan for re-review and reconsideration by the planning commission and city council. Such re-review and reconsideration must follow the mandatory development plan review procedures of this zoning code. Following re-review and reconsideration, the planning commission is authorized to recommend and the city council is authorized to approve any of the following actions based on surrounding land use patterns and other relevant information presented at the time of reconsideration by the planning commission and city council:

   a. An extension of time for filing a site plan

   b. An amendment to the approved mandatory development plan; or

   c. Rezoning to another zoning district in accordance with the zoning map amendment procedures of Section 70.030.

2. The site plan filing deadline established in 70.040-H1 does not apply to optional development plans or to PUD or CO district development plans approved before the effective date specified in Section 1.030. The site plan filing deadline established in 70.040-H1 does apply to any major amendments to PUD or CO district development plans approved after the effective date specified in Section 1.030.

70.040-I Amendments to Approved Development Plans

1. Minor Amendments

a. The planning commission is authorized to approve amendments to approved development plans as minor amendments if the planning commission determines that substantial compliance is maintained with the approved development plan. The following is a non-exhaustive list of changes that may be considered as minor amendments:

   (1) Any deviation expressly authorized at the time of development plan approval;

   (2) The relocation or addition of customary accessory uses and structures;

   (3) Adjustment of internal development area boundaries, provided the allocation of land to particular uses and the relationship of uses within the project are not substantially altered;

   (4) Limitation or elimination of previously approved uses, provided the character of the development is not substantially altered;

(5) Modification of the internal circulation system that would not increase points of access from adjacent streets, change access to another street or increase projected traffic volumes;

(6) Lot splits that have been reviewed and approved in accordance with the subdivision and development regulations;

(7) Modifications to approved signage, provided the size, location, number and type of signs is not substantially altered;

(8) Modification to approved screening and landscaping plans, provided the modification is not a substantial deviation from the original approved plan;

(9) Changes reducing the number of permitted dwelling units, the amount of nonresidential floor area or the area covered by buildings or paved areas; and

(10) Reductions in off-street parking or loading by more than 10% or one space, whichever results in a greater reduction.

b. In those cases when the city council has expressly imposed a condition more restrictive than recommended by the planning commission, any amendment of that city council-imposed condition must be reviewed and approved by the city council.

c. Notice of the planning commission's public hearing on a development plan minor amendment request must be provided at least 10 days in advance of the hearing by mailing written notice to all owners of property within a 300-foot radius of the exterior boundary of the subject property.

d. If the planning commission determines that the proposed development plan amendment, if approved, will result in a significant departure from the approved development plan or otherwise significantly change the character of the subject area or that the cumulative effect of a number of minor amendments substantially alters the approved development plan, then the amendment must be deemed a major amendment to the development plan and processed as a new development plan following the development plan approval procedure of Section 70.040, including all requirements for fees, notices and hearings.

2. Appeal of Development Plan Minor Amendment Decisions

An appeal from any development plan minor amendment decision by the planning commission may be taken by any person aggrieved, or any taxpayer or any officer, department, board or bureau of the city. Appeals are made to the city council by filing notice of appeal with the city clerk and with the recording secretary of the planning commission within 10 days of the date of the decision being appealed. The appeal must specify the grounds of the appeal. No bond or deposit for costs are required for an appeal. Upon filing of the notice of appeal, the planning commission must transmit to the city council, the original or certified copies of all the papers constituting the

record in the case, together with the decision of the planning commission. The city council must notify the applicant and all interested parties, as recorded in the minutes of planning commission, of the appeal hearing location, date and time.

3. Major Amendments

Any amendment to an approved development plan that is not authorized as a minor amendment must be processed as a new development plan following the development plan approval procedure of Section 70.040, including all requirements for fees, notices and hearings.

Section 70.050 Site Plans

70.050-A Applicability

Site plan approval is required before the issuance of any permits for development or construction on any property included within the boundaries of any approved development plan and whenever a provision of this zoning code expressly states that site plan approval is required.

70.050-B Application Filing

Complete applications for site plan approval must be filed with the land use administrator. At a minimum, the application must include a site plan, landscape plan and sign plan.

70.050-C Review and Action by Land Use Administrator; Appeals

1. Unless otherwise required by the city council as a condition of approval of a development plan, the land use administrator is authorized to review and take action on site plans. The land use administrator must approve the site plan if it complies (as applicable) with an approved development plan, all conditions of development plan approval and all applicable regulations of this zoning code. If the submitted site plan does not comply with an approved development plan, any conditions imposed on that plan or applicable regulations of this zoning code, the land use administrator must disapprove the site plan and advise the landowner in writing of the specific reasons for disapproval.

2. If the land use administrator does not approve the site plan, the landowner may either: (1) resubmit the site plan to correct the plan's inconsistencies and deficiencies, or (2) within 60 days of the date of notice of disapproval, appeal the decision of the land use administrator by filing a notice of appeal with the recording secretary of the planning commission. If such an appeal is filed, the site plan must be reviewed by the planning commission following the hearing and notice requirements that apply to minor amendments of approved development plans (see §70.040-I1.c). The planning commission's decision may be appealed following the procedures of §70.040-I2.

70.050-D Effect of Approval

Approval of a site plan must occur before any building permits are issued. Site plan approval, in and of itself, does not constitute effective dedication of rights-of-way or any other public improvements. See also the zoning clearance permit provisions of Section 70.080.

Section 70.060 Historic Preservation (HP) Zoning Map Amendments

70.060-A Scope

The HP zoning procedures of this section govern the establishment, amendment or repeal of any HP zoning district.

Figure 70-3: HP District Zoning Map Amendment Process (Generally)



70.060-B Authority to File

HP zoning map amendments may be initiated only by the city council, the planning commission, the preservation commission or the owner of the real property that is the subject of the proposed zoning map amendment or the property owner's authorized agent.

70.060-C Application Filing

Complete applications for privately initiated HP zoning map amendments must be filed with the land use administrator.

70.060-D Notice of Meeting and Hearing

Notice of the preservation commission's meeting to consider an HP zoning map amendment must be given in accordance with the preservation commission's rules and regulations. Notice of the planning commission's required public hearing on an HP zoning map amendment must be provided as follows (see 70.010-F for additional information on required newspaper, mail and posted notices).

1. Newspaper Notice

Notice must be published in the newspaper at least 20 days before the planning commission's public hearing.

2. Mailed Notice

Notice must be mailed to all owners of property included within the area that is the subject of the proposed HP zoning map amendment and all owners of property within 300 feet of the subject property at least 20 days before the planning commission's public hearing. In addition to other information required in hearing notices (see 70.010-F), mailed notice for an HP zoning map amendment must include a statement indicating that upon approval of HP zoning, activities such as the erection, construction, reconstruction, renovation, alteration, painting, removal, or demolition of a building, structure or lot will trigger the need for the subject property owner to obtain an HP permit, regardless of whether a building permit is required for such work.

3. Posted Notice

Notice (signs) must be posted at least 20 days before the planning commission's public hearing.

70.060-E Review and Recommendation—Preservation Commission

The preservation commission must hold a public meeting and receive public comments on the HP zoning map amendment. After the public meeting, the preservation commission must prepare a report and recommendation on the proposed HP zoning map amendment in accordance with the general overlay district procedure described in 20.010-D. The report and recommendation must also include specific findings regarding the proposed map amendment's consistency with the HP zoning criteria of 70.060-J. The preservation commission's report and all other pertinent information must be transmitted to the planning commission before the planning commission's public hearing on the proposed HP zoning map amendment.

70.060-F Hearing and Recommendation—Planning Commission

1. The planning commission must hold a public hearing on all proposed HP zoning amendments. Following the close of the public hearing, the planning commission must act to recommend that the proposed HP zoning map amendment be approved, approved with modifications, or denied.
2. All proposed HP zoning map amendments initiated by the city council, the planning commission or the preservation commission must be transmitted to the city council within 15 days of the date of planning commission action.
3. A property owner-initiated HP zoning map amendment recommended by the planning commission for approval or approval with modifications must be transmitted to the city council within 15 days of the date of planning commission action.
4. A property owner-initiated HP application recommended for denial by the planning commission, may not be considered further unless the applicant, within 15 days of the date of the planning commission's action, files a written request with the city clerk for a public hearing by the city council. The request for hearing must be accompanied by the payment of the required filing fee. Upon notice of a request for a public hearing before the city council, the planning commission must transmit the application and its report and recommendations to the city council.
5. If the planning commission arrives at a tie vote, the application must be forwarded to the city council with a notation of the tie vote.

70.060-G Final Action—City Council

1. Following receipt of the planning commission's recommendation, the city council must hold a public hearing on the application and act to approve the proposed HP zoning map amendment, approve the proposed amendment with modifications or deny the proposed amendment. The city council is also authorized to remand the proposed HP zoning map amendment back to the planning commission for further consideration.
2. HP zoning map amendments may be approved by a simple majority vote, except as stated in 70.060-H.

70.060-H Protest Petitions

1. If a valid protest petition is filed against any proposed HP zoning map amendment, passage of the zoning map amendment requires a favorable vote of three-fourths of the members of the entire city council.
2. A protest petition will be deemed valid if it is signed by the owners of 20% or more of the area of the lots included in proposed HP zoning map amendment area or by the owners of 50% or more of the area of the lots within 300 feet of the area included in the proposed HP zoning map amendment area and if it meets the other regulations of this Section 70.060-H. Areas designated as right-of-way shall not be included in the calculation. The city council will determine sufficiency of a protest petition if its validity is challenged.
3. A written protest petition opposing an HP zoning map amendment must be submitted to the land use administrator at least 3 business days before the city council's vote.
4. The protest petition must identify the zoning case number for which the protest is filed and must state that it is a formal protest of the proposed HP zoning map amendment.
5. Persons signing the protest petition must be at least eighteen (18) years of age and must hold record title to their properties, as shown in the land records of the Tulsa County Clerk. If a lot is owned jointly by more than one owner, all owners must sign the protest petition. If a lot is owned by a trust, the trustee must sign, noting that he or she signs "as trustee". If there is more than one trustee, and no single trustee is authorized to sign, then all the trustees must sign. If a lot is owned by a corporation, the president or a vice-president or the chair or vice chair of the board of directors, must sign. If a lot is owned by a limited liability company, a manager must sign. If a lot is owned by any other legal entity, the person signing the protest petition must be someone authorized by that entity to convey title to land.
6. Persons signing the protest petition must indicate the street address of the lot owned. If no street address is assigned, a legal description (lot and block of a subdivision, metes and bounds description of unplatted tracts) or a map must be provided.
7. If a protest petition contains multiple signature pages, each page must contain the same protest language. Signatures must be the normal cursive signature of the person signing and should be accompanied by the legibly printed or typed name of the person signing. The name of the person signing must be the same as the name of that person as shown in the land records of the Tulsa County Clerk.
8. A protest petition may not be amended, supplemented or corrected subsequent to the deadline for filing the petition.

70.060-I Recordation

The preservation officer must file a copy of the HP zoning map amendment ordinance and a map indicating the boundaries of the HP-zoned area in the county clerk's office of the county in which the property is located.

70.060-J HP Zoning Approval Criteria

A building, structure, site or area containing buildings, structures or sites that are at least 50 years old, or less with exceptional importance and possessing integrity, may be classified in an HP overlay district if the subject building, structure, site or area meets one or more of the following criteria:

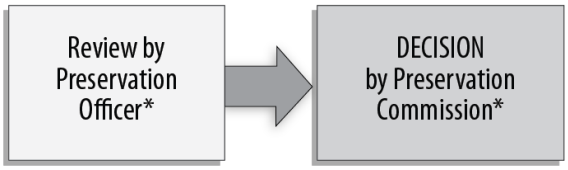
1. It has significant character, interest, or value as part of the historical development, history or cultural heritage of the city, state, or nation;
2. It has significance as the site of a historic event in the past of the city, state or nation;
3. It is associated with a person, or group of persons, who played a significant role in the historical development, history or cultural heritage of the city, state, or nation;
4. It is the embodiment of distinguishing characteristics, design, details, materials or craftsmanship which represent a historically significant architectural or engineering innovation, type, style or specimen;
5. It portrays the environment in an era of history characterized by a distinctive architectural, engineering, or construction style;
6. It represents a significant and distinguishable entity of historical importance whose components may lack individual distinction;
7. It has yielded, or is likely to yield, information important in prehistory or history; or
8. It is listed or meets the criteria for being listed on the *National Register of Historic Places*.

Section 70.070 HP Permits

70.070-A Applicability

Within any HP zoning district, an HP permit must be obtained in accordance with the procedures of this section before any work is performed on or changes are made to any existing building, structure or lot unless expressly exempted under 70.070-B. Examples of changes and work that require an HP permit include the erection, construction, reconstruction, renovation, alteration, painting, removal, or demolition of a building, structure, or lot, regardless of whether or not a building permit is required.

Figure 70-4: HP Permits (Generally)



**Preservation officer (staff) authorized to act on some applications.*

70.070-B Exemptions

The applicability provisions of 70.070-A notwithstanding, none of the following changes or work require an HP permit:

1. Ordinary maintenance and repair including the removal, installation, or replacement of guttering; the removal or replacement of roof covering with like material; and the application of any paint color to non-masonry surfaces;
2. The interior of buildings or structures;
3. Portions of buildings, structures, or sites not visible from adjoining streets;
4. Accessory structures or buildings, such as storage sheds, garages, decks, patios, fencing, swimming pools and pool houses that are not part of the primary structure, provided that the structures or buildings are not located in street yards.
5. Installation of radio or television antennas that are not visible from abutting streets;
6. General landscape maintenance and planting of new organic materials;
7. Installation of temporary landscape features not affixed to the ground, such as bird baths, non-masonry landscape edging, raised planting beds not on permanent foundation, and lawn or patio furniture;
8. Work required for temporary stabilization of a building or structure due to damage;
9. Installation, removal, or alteration of park furnishings within City of Tulsa parks, such as benches, tables, bicycle racks, planters, statues, lighting, trash receptacles, and drinking fountains, provided they have not been identified as historic resources within the design guidelines governing the applicable HP zoning district;
10. Installation, removal, or alteration of shade canopies or similar open-air shade structures within City of Tulsa parks, provided they are no more than 10 feet in height, and provided they have not been identified as historic resources within the design guidelines governing the applicable HP zoning district;
11. Removal or replacement of existing fencing with equivalent materials within City of Tulsa parks, provided the fencing has not been identified as a historic resource within the design guidelines governing the applicable HP zoning district;

12. Installation, removal, or alteration of sport courts, sport fields, swimming pools, and dog parks within City of Tulsa parks, inclusive of any fencing and lighting abutting the court, field, swimming pool, or dog park;

13. Installation, removal, or alteration of playground equipment and other recreational equipment within City of Tulsa parks, provided they are no more than 16 feet in height; and

14. Installation, removal, or alteration of signs within City of Tulsa parks that are erected and maintained pursuant to the discharge of governmental functions, or that are required by law, ordinance, or government regulation, or that are required to be posted in order to effectuate a legal right.

70.070-C Authority to File

Applications for an HP permit may be filed only by the owner of the subject property or by the property owner's authorized agent.

70.070-D Application Filing

Complete HP permit applications must be filed with the preservation officer in a form established by the preservation commission. The application must be accompanied by plans of sufficient clarity and detail to show the nature of the work to be performed and the materials to be used. The plans must depict at least the following information:

1. The location, orientation and placement of existing and proposed structures on the site;

2. A floor plan, if applicable, identifying the location and limits of the proposed work;

3. Facade elevations, if applicable, of the proposed work in sufficient detail to identify existing and proposed materials and the location of the proposed work; and

4. Any other drawings, photographs, material brochures or samples, specifications, or information that may be necessary to determine compliance with HP district regulations and design guidelines.

70.070-E Meeting and Final Decision—Preservation Commission

Within 30 business days of receipt of a complete HP permit application, the preservation commission must meet to consider the application and act to approve the HP permit, approve the HP permit with modifications and/or conditions, or deny the HP permit application based on the standards and review criteria of 70.070-F. Failure of the preservation commission to take action within 30 business days of receipt of a complete HP permit application is deemed to constitute approval of the HP permit, unless the applicant requests or agrees to an extension of the 30-business-day period, or unless the applicant fails to attend the meeting in which the application is considered. If the applicant fails to attend the meeting, the preservation commission may defer action on the application, and the 30-business-day period shall be extended until the preservation commission's next regular meeting.

70.070-F Standards and Review Criteria

In its review of HP permit applications, the preservation commission must use the adopted design guidelines to evaluate the proposed work and must, to the greatest extent possible, strive to affect a fair balance between the purposes and intent of HP district regulations and the desires and need of the property owner. In addition, the preservation commission must consider the following specific factors:

1. The degree to which the proposed work is consistent with the applicable design guidelines;
2. The degree to which the proposed work would destroy or alter all or part of the historic resource;
3. The degree to which the proposed work would serve to isolate the historic resource from its surroundings, or introduce visual elements that are out of character with the historic resource and its setting, or that would adversely affect the physical integrity of the resource;
4. The degree to which the proposed work is compatible with the significant characteristics of the historic resource; and
5. The purposes and intent of the HP district regulations and this zoning code.

70.070-G Demolition Requests

1. Any HP permit application for demolition, if not approved, is automatically stayed for a period of 60 days, unless the preservation commission determines that the building or structure meets one of more of the following criteria:
   a. It is imminently dangerous to life and property;
   b. The building or structure does not contribute significantly to the district; or
   c. The building or structure cannot be preserved.
2. During the 60-day stay period, the preservation commission must consult with the property owner and other interested parties to find alternatives to demolition. Should alternatives acceptable to the property owner not be found, the HP permit for demolition will be deemed automatically approved and must be issued upon termination of the stay period.
3. Prior to the expiration of the 60-day stay period, the preservation commission may request that the city council extend the stay for a period not to exceed an additional 60 days. The preservation commission must provide written notice to the property owner of such request and of the date of the public hearing to consider the request. At the hearing, the city council must consider whether:
   a. The preservation commission has presented reasonable alternatives that would preserve the structure;
   b. Suitable alternatives have been found and further time is required to finalize arrangements for achieving such alternatives; and

c. The property owner desires further time to search for or continue action on available alternatives.

4. After notice and public hearing, the city council must vote to approve, approve with conditions, or deny the request for an extension of the stay period. If the request is denied the HP permit for demolition will be deemed automatically approved and must be issued upon termination of the original stay period.

5. During any period of the stay of demolition the property owner may use the property in question in any legal manner, except that no action may be taken that would place the property in danger of damage or destruction.

70.070-H Lapse of Approval

1. An approved HP permit will lapse and become void 2 years after it is approved by the preservation commission, unless a building permit for the work or improvements authorized has been issued and the project is commenced and thereafter diligently pursued to completion. If no building permit is required, the work that is the subject of the HP permit application must be completed within the 2-year period.

2. The preservation commission may extend the expiration period by up to one year at the time of approval of the HP permit or any time before expiration of the approval.

70.070-I Transferability

Approved HP permits run with the land and are not affected by changes of tenancy, ownership, or management.

70.070-J Amendments

A request for changes in the specific nature of the approved HP permit or changes to any conditions attached to an approved HP permit must be processed as a new application.

70.070-K Action by Preservation Officer

1. The preservation officer is authorized to approve HP permit applications for proposed work on existing structures involving the replacement of existing materials with equivalent materials if the work complies with the design guidelines of the subject HP district.

2. The preservation officer is also authorized to approve HP permit applications for the following minor exterior alterations if the work complies with design guidelines of the subject HP district:

   a. Installation of storm windows and doors;

   b. Removal of non-historic materials, including but not limited to siding, storm windows and doors, awnings, shutters, retaining walls and fences; and

   c. Removal of paint from historic masonry surfaces.

3. The preservation officer is authorized to approve HP permit applications for the replacement of trails or walkways within City of Tulsa parks with an

alternative material if the work complies with the design guidelines of the subject HP district, provided that the location and size of the trail or walkway remain the same.

70.070-L Appeals

Any final decision of the preservation commission may be appealed to the board of adjustment in accordance with Section 70.140.

Section 70.080 Zoning Clearance and Permits

70.080-A Applicability

Property owners or their authorized agent must obtain a zoning clearance permit from the development administrator before constructing, moving, or structurally altering any building or structure or establishing or changing the use of any building or lot.

70.080-B Compliance with Development Regulations

1. Purpose

The requirements of this section are intended to help ensure that rights-of-way, streets, sidewalks and other public improvements are in place and adequate to serve proposed developments in accordance with applicable regulations.

2. Rezonings, Special Exceptions and Residential Uses

No building permit or zoning clearance permit may be issued until the subject lot or parcel for which the permit is sought has been determined to be in compliance with all applicable design and improvement requirements of the Tulsa Metropolitan Area *Subdivision and Development Regulations,* as evidenced by submittal of a recorded subdivision plat or ALTA/ACSM survey and separately recorded legal instruments. This requirement applies to any property for which:

a. A property owner-initiated zoning map amendment or development plan was approved after July 1, 1970;

b. A special exception was approved for any of the following:

(1) Group living use;

(2) Public, civic or institutional use;

(3) Outdoor assembly and entertainment use;

(4) Household living involving 3 or more households on a single lot;

(5) Marina;

(6) Gun club;

(7) Crematory; or

(8) Mausoleum; or

c. A building permit is requested for any of the following residential uses:

(1) Cottage house development;

(2) Patio house; or

(3) Townhouse

70.080-C Application

1. Zoning clearance permit applications must be accompanied by a legal description of the lot and plans in duplicate, drawn to scale, showing at least the following information:

a. The actual shape and dimension of the lot;

b. The location and dimensions of all easements;

c. The location, size and height of any existing buildings or structures to be erected or altered;

d. The existing and intended use of each building or structure and portion of the lot;

e. The number of dwellings and buildings proposed; and

f. Other information required by the development administrator to determine compliance with all applicable provisions this zoning code.

2. If the zoning code requires that the use, structure, or other development feature must be separated or spaced a minimum distance from another use, structure, or development feature, the zoning clearance permit application must also be accompanied by the following information:

a. An aerial photograph identifying the location of the proposed use, structure or development feature at the center of a circle drawn to scale, the radius of which is the required separation distance from another use, structure or development feature;

b. The location of the nearest use, structure, or development feature from which the proposed use, structure or development feature must be separated; and

c. Verification of having provided a copy of the zoning clearance permit application, concurrent with the submission of the application, to the City Councilor for the City Council District in which the subject property is located.

70.080-D Action

Following receipt of a complete application for a zoning clearance permit, the development administrator must review and take action on the permit. If the proposed development and construction complies with all applicable provisions of this zoning code, the permit must be issued. If the proposed development and construction does not comply with one or more provisions of this zoning code, the permit must be denied. The applicant must be notified of the action taken, and if the permit is denied, notified of the specific reasons for denial.

Section 70.090 Interpretations of Zoning Code, Zoning Map, and Approved Development Plans and Site Plans

70.090-A Purpose and Applicability

1. Day-to-day responsibility for administering and interpreting the provisions of this zoning code, including the zoning map, rests with the development administrator and land use administrator, whose decisions may be appealed to the board of adjustment, in accordance with the procedures of Section 70.140.
2. Occasionally, the zoning code may not sufficiently address an issue that arises in administering or interpreting the zoning code. In those cases, the development administrator may elect to issue, or a citizen may file an application for, a written zoning code interpretation to guide in future decision-making. The procedures of this section govern the issuance of such interpretations. The procedures also govern interpretations of the terms of approved development plans and site plans, such as those associated with PUDs, MPDs and CO zoning districts.

70.090-B Authority

The land use administrator, as to the zoning map and approved development plans and site plans, and the development administrator, as to the zoning code, are authorized to issue written interpretations pursuant to this section. The land use administrator and the development administrator are also authorized to refer the matter to the board of adjustment for an interpretation or for guidance in making an interpretation.

70.090-C Application

A complete application for a written interpretation request may be submitted either to the land use administrator or development administrator, as appropriate.

70.090-D Action

Within 30 days of receipt of a complete application, the land use administrator or development administrator, as appropriate, must (1) review and evaluate the interpretation request in light of the provisions that are the subject of the interpretation request and any other relevant documents (2) consult with affected staff and (3) prepare a written interpretation.

70.090-E Form

The interpretation must be provided to the applicant in writing and filed in the official record of interpretations held by the development administrator.

70.090-F Official Record

The development administrator must maintain an official record of written interpretations and provide copies to the land use administrator. The record of interpretations must be available for public inspection in the office of the land use administrator and development administrator during normal business hours.

70.090-G Appeal of decision

Appeals of written interpretations issued pursuant to this section may be taken to the board of adjustment in accordance with the appeal procedures of Section 70.140.

Section 70.100 Administrative Adjustments

70.100-A Intent

Administrative adjustments are intended to provide a streamlined approval procedure for minor (de minimis) modifications of selected zoning code regulations. Administrative adjustments are further intended to:

1. Allow development and construction that is in keeping with the general purpose and intent of zoning code regulations and the established character of the area in which the development or construction is located;
2. Provide flexibility that will help promote rehabilitation and reuse of existing buildings when such flexibility will not adversely affect nearby properties or neighborhood character; and
3. Provide flexibility for new construction when such flexibility is in keeping with the general purpose and intent of zoning code regulations and will not adversely affect nearby properties or surrounding neighborhood character.

70.100-B Authorized Administrative Adjustments

1. Administrative adjustments may be granted only as expressly identified in this section.
    a. The land use administrator is authorized to grant an administrative adjustment reducing minimum required street setbacks by up to 5 feet.
    b. The land use administrator is authorized to grant an administrative adjustment reducing minimum required side and rear setbacks in any R district by up to 20%.
    c. The land use administrator is authorized to grant an administrative adjustment reducing minimum required side setbacks to no less than 5 feet in any RM district to allow construction of a detached house or two-unit house.
    d. The land use administrator is authorized to grant an administrative adjustment of build-to-zone regulations by up to 20%.
    e. The land use administrator is authorized to approve an administrative adjustment reducing minimum transparency requirements by up to 10 square feet or 20%, whichever is greater.
    f. The land use administrator is authorized to approve an administrative adjustment reducing minimum lot width and lot frontage requirements by up to 10%.
    g. The land use administrator is authorized to approve an administrative adjustment waiving or modifying the parking structure design requirement of 40.280-B when the land use administrator determines

that compliance with that requirement would result in a reduction in the number of parking spaces within the parking structure or necessitate mechanical ventilation of the garage.

2. The administrative adjustment procedures may not be used to vary, modify or otherwise override a condition of approval or requirement imposed by an authorized decision-making body.

70.100-C Authority to File

Administrative adjustment applications may be filed by the owner of the subject property or by the property owner's authorized agent.

70.100-D Application Filing

Complete applications for administrative adjustments must be filed with the land use administrator. Applications must be accompanied by a letter of deficiency issued by the development administrator.

70.100-E Notice of Filing/Intent to Approve

Written notice of application filing must be delivered to all owners of property abutting the subject lot. The written notice must describe the nature of the requested administrative adjustment. It must also indicate the date on which the land use administrator will take action on the application and that the application will be available for review and comment until that date. Any interested party may submit written comments concerning the application to the land use administrator.

70.100-F Action by Land Use Administrator

1. The land use administrator must review each application for an administrative adjustment and act to approve the application, approve the application with conditions, deny the application or refer the application to the board of adjustment for consideration as a variance.
2. The land use administrator may not take final action to approve or deny an administrative adjustment application until at least 5 days after the required notices have been mailed.
3. The land use administrator decision to approve or deny an administrative adjustment must be based on the approval criteria and standards of 70.100-G and accompanied by written findings of fact.
4. At least once per calendar year, the land use administrator must provide to the board of adjustment a list of all administrative adjustment decisions.

70.100-G Standards and Review Criteria

Administrative adjustments may be approved only when the land use administrator determines that the following general approval criteria and any specific criteria associated with the authorized administrative adjustment have been met:

1. The requested administrative adjustment is consistent with all relevant purpose and intent statements of this zoning code and with the general purpose and intent of the comprehensive plan;

2. The requested administrative adjustment will not have a substantial or undue adverse effect upon adjacent property, the character of the area or the public health, safety and general welfare; and

3. Any adverse impacts resulting from the administrative adjustment will be mitigated to the maximum extent feasible.

70.100-H Conditions of Approval

In granting an administrative adjustment, the land use administrator is authorized to impose conditions upon the subject property that are necessary to reduce or minimize any potentially adverse impacts on other property in the surrounding area, and to carry out the stated purpose and intent of this zoning code.

70.100-I Lapse of Approval

An approved administrative adjustment will lapse and become void 3 years after it is granted by the land use administrator, unless a building permit for the work or improvements authorized has been issued and the project has commenced and is diligently pursued to completion. If no building permit is required, the improvement that is the subject of the administrative adjustment must be in place within the 3-year period.

70.100-J Transferability

Approved administrative adjustments run with the land and are not affected by changes of tenancy, ownership, or management.

70.100-K Amendments

A request for changes in the specific nature of an approved administrative adjustment or changes to any conditions attached to an approved administrative adjustment must be processed as a new administrative adjustment application, including all requirements for fees and notices.

70.100-L Appeals

The applicant or any interested party may appeal the administrative adjustment decision of the land use administrator in accordance with Section 70.140.

Section 70.110 Spacing and Separation Distance Verification

70.110-A Applicability

The spacing and separation distance verification procedure of this section applies whenever this zoning code requires that a use, structure or other development feature be separated or spaced a minimum distance from another use, structure or development feature. The procedure does not apply to a determination of compliance with building setback requirements that apply on individual lots.

70.110-B Action

The development administrator may rely upon the evidence provided by the applicant with an application for a zoning clearance permit to verify that the proposed use, structure or other development feature complies with the applicable spacing and separation distance requirements of this zoning code. Only other uses, structures, or development features that have been legally established by the issuance of a certificate of occupancy, an active building permit, active sign

permit or active zoning clearance permit will be considered in determining compliance with the applicable spacing and separation distance requirements. It is the responsibility of the applicant to provide all information requested by the development administrator to aid in the determination. For purposes of determining whether spacing and separation distance requirements are met, a zoning-clearance-only permit for the use, structure or development feature from which the subject use, structure or development feature must be separated is valid for 180 days after it is issued.

70.110-C Appeal of Decision

Appeals of spacing and distance verification decisions of the development administrator may be appealed to the board of adjustment in accordance with §70.140.

Section 70.120 Special Exceptions

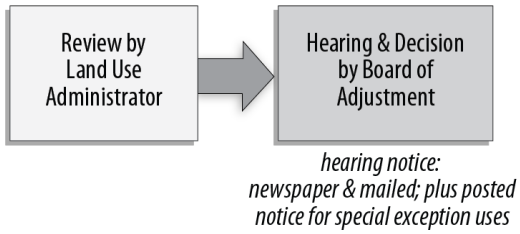
70.120-A Authorized Special Exceptions

Only those special exceptions expressly authorized in this zoning code may be approved as special exceptions.

70.120-B Authority to File

Applications for special exception approval may be filed only by the owner of the subject property or by the property owner's authorized agent.

Figure 70-5: Special Exception Process (Generally)



70.120-C Application Filing

Complete applications for special exception approval must be filed with the land use administrator.

70.120-D Review and Report—Land Use Administrator

Following receipt of a complete application, the land use administrator must prepare a report on the proposed special exception. The report must be transmitted to the board of adjustment before the required public hearing.

70.120-E Notice of Hearing

1. Minor Special Exceptions

Notice of the board of adjustment's required public hearing on any minor special exception application must be mailed to all owners of property that abut the subject property at least 10 days before the scheduled public hearing. (See §70.010-F for additional information on required mailed notices). Minor special exceptions are limited to the following:

a. A special exception to allow public or private schools at the primary, elementary, middle school or high school level to expand a principal

building or construct an accessory building, structure or use or to permit a use that is an accessory use to an existing principal use, provided the improvement does not include new athletic stadiums or other outdoor athletic facilities that include spectator seating or high-intensity lighting;

b. A special exception to allow recreational vehicles to be parked or stored in a street yard or required side setback if the conditions listed in 45.140-A cannot be met;

c. Amendments to plot plans that were made condition of the granting of a special exception that involve an increase in building floor area of no greater than 15% and do not require the granting of any variances;

d. A special exception to allow any of the following improvements in public parks:

(1) Non-illuminated outdoor courts,

(2) Non-illuminated athletic fields,

(3) Playgrounds,

(4) Picnic shelters,

(5) Parking lots and

(6) Renovation or expansion of existing buildings.

2. Other Special Exceptions

Except as expressly allowed for minor special exceptions under 70.120-E1, notice of the board of adjustment's required public hearing on a special exception application must be provided as follows (see 70.010-F for additional information on required newspaper, mail and posted notices).

Newspaper Notice

Notice must be published in the newspaper at least 10 days before the scheduled public hearing.

Mailed Notice

Notice must be mailed to the owner of the subject property and all owners of property within 300 feet of the subject property at least 10 days before the scheduled public hearing.

Posted Notice

For uses that require special exception approval, notice (signs) must be posted at least 10 days before the scheduled public hearing. Posting of signs is not required for non-use matters.

70.120-F Hearing and Final Decision—Board of Adjustment

1. The board of adjustment must hold a public hearing on the special exception application. Following the close of the public hearing, the board of adjustment must act to approve the proposed special exception, approve the special exception with conditions and/or modifications or deny the special exception.

Approval of a special exception requires an affirmative vote of at least 3 members of the board of adjustment.

2. In approving a special exception, the board of adjustment is authorized to impose such conditions and restrictions as the board of adjustment determines to be necessary to ensure compliance with the standards of 70.120-G, to reduce or minimize the effect of the special exception upon other properties in the area, and to better carry out the general purpose and intent of this zoning code.

70.120-G Approval Criteria

A special exception may be approved only if the board of adjustment makes each of the following findings:

1. That the special exception will be in harmony with the spirit and intent of this zoning code; and
2. That the special exception will not be injurious to the neighborhood or otherwise detrimental to the public welfare.

70.120-H Lapse of Approval

1. An approved special exception will lapse and become void 3 years after it is granted by the board of adjustment, unless a building permit has been issued and the project has commenced and is diligently pursued to completion. If no building permit is required, the use, improvement or activity that is the subject of the special exception must be in place within the 3-year period.
2. The board of adjustment may extend the expiration period by up to one year at the time of approval of the special exception or any time before expiration of the approval. Requests for extensions after the special exception is approved must be processed in accordance with the special exception procedures, including applicable fees, notices and public hearings.

70.120-I Transferability

Approved special exceptions run with the land and are not affected by changes of tenancy, ownership, or management.

70.120-J Amendments

1. Amendments to approved special exceptions must be processed as new special exception applications, including all requirements for fees, notices and public hearings, provided that the development administrator is authorized to approve the following:
   a. Any structures or uses authorized to be approved by the development administrator at the time of special exception approval; and
   b. The addition or relocation of customary accessory uses and structures.
2. Applications for amendments to approved special exceptions must be filed in a form established by the land use administrator.

70.120-K Appeals

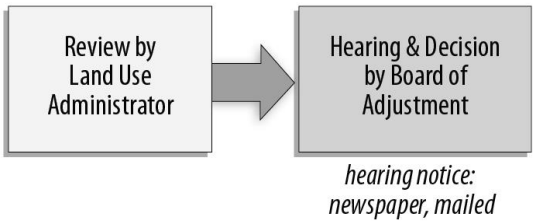
Board of adjustment decisions on special exceptions may be appealed to District Court in accordance with 75.010-K.

Section 70.130 Variances

70.130-A Intent

A variance is a grant of relief to a property owner from strict compliance with the regulations of this zoning code. The intent of a variance is not to simply remove an inconvenience or financial burden that may result from compliance with applicable zoning requirements. Variances are intended to help alleviate an unnecessary hardship or practical difficulty that would be caused by strict enforcement of the subject zoning code requirements. They are intended to provide relief when the requirements of this zoning code render property very difficult or impossible to put to reasonable use because of some unique or special characteristics of the property itself.

Figure 70-6: Variance Process



70.130-B Authorized Variances

The board of adjustment is authorized to grant a variance to any regulation in this zoning code in accordance with the variance procedures of this section, except that the variance procedures may not be used to do any of the following:

1. Allow a principal or an accessory use in a zoning district that is not otherwise allowed in that zoning district (i.e., "use variances" are prohibited);
2. Allow an accessory use on a lot that is not occupied by the principal use that such accessory use serves;
3. Waive, modify or amend any definition or use classification;
4. Waive, modify or otherwise vary any of the review and approval procedures of this chapter;
5. Waive, vary, modify or otherwise override a condition of approval or requirement imposed by an authorized decision-making body or the state or federal government; or
6. Waive, vary or modify applicable residential density regulations, provided that this provision is not intended to prohibit variances to minimum lot area or width requirements that apply to lots occupied by a single dwelling unit.

70.130-C Authority to File

Variance applications may be filed only by the owner of the subject property or by the property owner's authorized agent.

70.130-D Application Filing

Complete applications for variances must be filed with the land use administrator.

70.130-E Review and Report—Land Use Administrator

Following receipt of a complete application, the land use administrator must prepare a report on the requested variance. The report must be transmitted to the board of adjustment before the required public hearing.

70.130-F Notice of Hearing

Notice of the board of adjustment's required public hearing on a variance application must be provided as follows (see 70.010-F for additional information on required newspaper and mail notices).

1. Newspaper Notice

Notice must be published in the newspaper at least 10 days before the scheduled public hearing.

2. Mailed Notice

Notice must be mailed to the owner of the subject property and all owners of property within 300 feet of the subject property at least 10 days before the scheduled public hearing.

70.130-G Hearing and Final Decision—Board of Adjustment

1. Following receipt of a complete variance application, the board of adjustment must hold a public hearing to consider the requested variance. Following the close of the public hearing, the board of adjustment must act to approve the requested variance, approve the variance with modifications and/or conditions, or deny the variance request based on the standards and review criteria of 70.130-H. Approval of a variance requires an affirmative vote of at least 3 members of the board of adjustment.

2. In approving a variance, the board of adjustment is authorized to impose such conditions and restrictions as the board determines to be necessary to ensure compliance with the standards of 70.130-H, to reduce or minimize the effect of the variance upon other properties in the area, and to better carry out the general purpose and intent of this zoning code.

70.130-H Standards and Review Criteria

1. No variance may be approved unless the board of adjustment determines that the following facts, favorable to the property owner, have been established:

   a. That the physical surroundings, shape, or topographical conditions of the subject property would result in unnecessary hardships or practical difficulties for the property owner, as distinguished from a mere inconvenience, if the strict letter of the regulations were carried out;

   b. That literal enforcement of the subject zoning code provision is not necessary to achieve the provision's intended purpose;

   c. That the conditions leading to the need of the requested variance are unique to the subject property and not applicable, generally, to other property within the same zoning classification;

d. That the alleged practical difficulty or unnecessary hardship was not created or self-imposed by the current property owner;

e. That the variance to be granted is the minimum variance that will afford relief;

f. That the variance to be granted will not alter the essential character of the neighborhood in which the subject property is located, nor substantially or permanently impair use or development of adjacent property; and

g. That the variance to be granted will not cause substantial detriment to the public good or impair the purposes, spirit, and intent of this zoning code or the comprehensive plan.

70.130-I Lapse of Approval

1. An approved variance will lapse and become void 3 years after it is granted by the board of adjustment, unless a building permit for the work or improvements authorized has been issued and the project has commenced and is diligently pursued to completion. If no building permit is required, the improvement that is the subject of the variance must be in place within the 3-year period.
2. The board of adjustment may extend the expiration period by up to one year at the time of approval of the variance or any time before expiration of the approval. Requests for extensions after the variance is approved must be processed in accordance with the variance procedures, including applicable fees, notices and public hearings.

70.130-J Transferability

Approved variances run with the land and are not affected by changes of tenancy, ownership, or management.

70.130-K Amendments

A request for changes in the specific nature of the approved variance or changes to any conditions attached to an approved variance must be processed as a new variance application, including all requirements for fees, notices and public hearings.

70.130-L Appeals

Board of adjustment decisions on variances may be appealed to District Court in accordance with 75.010-K.

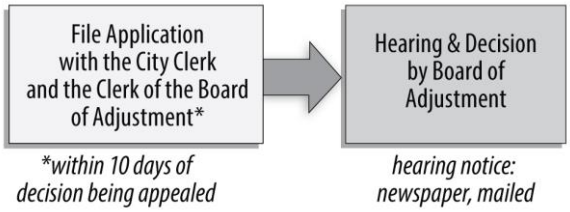
Section 70.140 Appeals of Administrative Decisions

70.140-A Authority

Appeals of administrative (staff-level) decisions on site plans go to the planning commission (See 70.050-C). The board of adjustment is authorized to hear and decide all other appeals where it is alleged there has been an error in any order, requirement, decision or determination made by the land use administrator, the development administrator or any other administrative official in the administration, interpretation or enforcement of this zoning code. For the purpose of applying the procedures of Section 70.140 to appeal of any final decision of the

preservation commission (See §70.070-L), the final decision of the preservation commission is deemed an administrative decision and the preservation commission is deemed an administrative official.

Figure 70-7: Appeals of Administrative Decisions (Generally)



70.140-B Right to Appeal

Appeals of administrative decisions may be filed by any person aggrieved by the land use administrator's, the development administrator's or other administrative official's decision or action. The board of adjustment is authorized to make determinations about whether individuals filing appeals are "aggrieved" by the decision or action.

70.140-C Application Filing

1. Complete applications for appeals of administrative decisions must be filed with the clerk of the board of adjustment and the city clerk, who will accept the appeal on behalf of the administrative official who made the decision being appealed and forward it to said official.
2. Appeals of administrative decisions must be filed within 10 business days of the date of the decision being appealed.

70.140-D Effect of Filing

The filing of a complete notice of appeal stays all proceedings in furtherance of the action appealed, unless the land use administrator or the administrative official who made the decision being appealed certifies to the board of adjustment, after the appeal is filed, that, because of facts stated in the certification, a stay would cause immediate peril to life or property, in which case the proceedings will not be stayed unless by a restraining order, which may be granted by the board of adjustment or by a court of record based on due cause shown.

70.140-E Record of Decision

Upon receipt of a complete application of appeal, the land use administrator or other administrative official whose decision is being appealed must transmit to the board of adjustment all papers constituting the record related to decision being appealed

70.140-F Notice of Hearing

Notice of the board of adjustment's required public hearing must be provided as follows (see 70.010-F for additional information on required newspaper and mail notices).

1. Newspaper Notice

Notice must be published in the newspaper at least 10 days before the scheduled public hearing.

2. Mailed Notice

When an appeal affects a specific property, notice must be mailed to the owner of the subject property and all owners of property within 300 feet of the subject property at least 10 days before the scheduled public hearing.

70.140-G Hearing and Final Decision

1. The board of adjustment must hold a public hearing on the appeal.
2. Following the close of the public hearing, the board of adjustment must make its findings and take action on the appeal.
3. In exercising the appeal power, the board of adjustment has all the powers of the administrative official from whom the appeal is taken. The board of adjustment may affirm or may, upon the concurring vote of at least 3 members, reverse, wholly or in part, or modify the decision being appealed.
4. In acting on the appeal, the board of adjustment must grant to the official's decision a presumption of correctness, placing the burden of persuasion of error on the appellant.

70.140-H Review Criteria

The decision being appealed may be reversed or wholly or partly modified only if the board of adjustment finds that the land use administrator, the development administrator or other administrative official erred.

70.140-I Appeals

Board of adjustment decisions may be appealed to District Court in accordance with 75.010-K.

Chapter 75 | Administration

Section 75.010 Board of Adjustment 75-1
Section 75.020 Preservation Commission 75-2

Section 75.010 Board of Adjustment

75.010-A Composition

The board of adjustment must consist of 5 members.

75.010-B Appointments

Board of adjustment members must be appointed by the mayor and confirmed by the city council.

75.010-C Terms

Members of the board of adjustment serve 3-year terms.

75.010-D Vacancies

In the event of a vacancy occurring in the membership of the board of adjustment for any reason, an appointment for the remainder of the vacant term must be made in the same manner as regular appointments.

75.010-E Removal

A board of adjustment member may be removed for cause by the city council after notice, written charges and public hearing.

75.010-F Compensation

Members of the board of adjustment serve without compensation.

75.010-G Officers

The board of adjustment must elect a chairperson, vice chairperson and secretary.

75.010-H Rules of Procedure

The board of adjustment must adopt rules necessary for the conduct of its affairs.

75.010-I Meetings

Meetings are held at the call of the chairperson and at other times as the board of adjustment may determine. The chairperson, or in the chairperson's absence, the acting chairperson, may administer oaths and compel attendance of witnesses. All meetings of the board of adjustment must be conducted in compliance with the Oklahoma *Open Meeting Act*. The board of adjustment must keep records of its proceedings and official actions, all of which must be open to the public in compliance with the Oklahoma *Open Records Act*. Except as stated in 70.010-K, the board of adjustment must decide all matters within 90 days after the filing of a complete application.

75.010-J Powers and Duties

The board of adjustment has the powers and duties that are expressly identified in this zoning code, including hearing and acting on applications for variances, special exceptions, and appeals of administrative decisions.

75.010-K Appeals to District Court

1. Procedure

a. An appeal from any action, decision, ruling, judgment, or order of the board of adjustment may be taken by any person or persons who were entitled, pursuant to any provision of this zoning code, to mailed notice of the public hearing before the board of adjustment, by any person or persons whose property interests are directly affected by such action decision, ruling, judgment or order of the board of adjustment, or by the city council to the District Court of Tulsa County by filing with the city clerk and with the clerk of the board of adjustment within 10 days of the date of such action, a notice of appeal that specifies the grounds for the appeal. No bond or deposit for costs is required for such an appeal.

b. Upon filing of the notice of appeal, the board of adjustment must transmit to the clerk of the Tulsa County District Court, the original or certified copies of all papers constituting the record in the case, together with the order, decision or ruling of the board of adjustment.

c. The appeal is heard and tried de novo in the District Court of Tulsa County. An appeal from the action of the District Court may be taken as in all other civil actions. All issues in any proceedings under this section have preference over all other civil actions and proceedings.

d. Costs are not allowed against the board of adjustment unless the court finds that the board of adjustment, in making its decision, acted with gross negligence, in bad faith or with malice.

2. Stay of Proceedings

During the pendency of such an appeal, the effectiveness of a decision of the board of adjustment shall not be suspended unless a party applies to the district court for a stay pending the district court's determination of the merits of the appeal and the district court issues the stay. Stays in appeals from the board of adjustment to the district court shall be obtained only as set forth in §Title 11 Oklahoma Statutes Section 44-110.

Section 75.020 Preservation Commission

75.020-A Composition

Members of the preservation commission must have a demonstrated interest in historic preservation, as required by the Oklahoma State Historic Preservation Office, to maintain certified local government status with the National Park Service. The preservation commission must be composed of 11 members appointed to positions as "professional members," "historic property owner members," a planning commission member, and an at-large member. The composition and qualifications of each class of members are as follows:

1. Professional Members

The professional membership of the preservation commission must be composed of 5 members as follows:

a. One member must be a licensed architect;

b. One member must be a licensed landscape architect;

c. One member must be a developer or builder;

d. One member must be a licensed real estate broker; and

e. One member must be an architectural historian or historian.

2. Historic Property Owner Members

The historic property owner membership of the preservation commission must be composed of 4 members, each of whom must own an individual National Register-listed property or a property within a National Register-listed or eligible historic district. For a district to be considered eligible, it must be identified as eligible for National Register listing in the *Tulsa Historic Preservation Resource Guide* and agreed to by the Oklahoma State Historic Preservation Office. At least 3 of the 4 historic property owner members must reside in their historic property, or within their listed or eligible historic district, and at least one of the historic property owner members must reside within an HP district.

3. Planning Commission Member

One member of the preservation commission must be a member of the planning commission.

4. At-Large Member

The at-large member must be someone with a demonstrated interest in historic preservation.

75.020-B Appointments

Professional members, historic property owner members, and the at-large member of the preservation commission must be appointed by the mayor and confirmed by the city council. The planning commission member must be appointed by the planning commission to serve on the preservation commission.

75.020-C Terms

The terms of office of all members of the preservation commission, except the planning commission member, will be 3 years. The planning commission member will serve terms on the preservation commission commensurate with the term of office served on the planning commission, without any of the limitations on terms provided in this paragraph. Regardless of the expiration of any term of office, except in the event of death, resignation, or removal from office, all members of the preservation commission must continue to serve until their successor is duly appointed by the mayor.

75.020-D Vacancies

In the event of a vacancy occurring in the membership of the preservation commission for any reason, an appointment for the remainder of the vacant term of office must be made in the same manner as regular appointments.

75.020-E Compensation

Members of the preservation commission serve without compensation.

75.020-F Officers

The preservation commission must annually elect from its members a chairperson, vice chairperson and secretary. Vacancies of officer positions must be filled in the same manner as regular election.

75.020-G Rules of Procedure

The preservation commission must adopt rules necessary for the conduct of its affairs.

75.020-H Meetings

The preservation commission must meet at least once a month for the purpose of transacting its business and duties. All meetings of the preservation commission must be conducted in compliance with the Oklahoma *Open Meeting Act*. The preservation commission must keep records of its proceedings and official actions, all of which must be open to the public in compliance with the Oklahoma *Open Records Act*.

75.020-I Quorum

A simple majority of the entire membership of the preservation commission, regardless of vacancies, constitutes a quorum for the transaction of business.

75.020-J Minimum Vote

Issues must be decided by at least a simple majority vote of a quorum.

75.020-K Conflict of Interest

Members of the preservation commission to whom some private benefit, directly or indirectly, may come as a result of a public action taken by the preservation commission, should not be a participant in that action. The possibility, not actuality, of a conflict should govern. The individual experiencing a conflict of interest must declare their interest, and abstain from voting on the matter. The individual may not discuss the matter with a fellow member or a member of the city council or planning commission for the purpose of influencing a decision on the action.

75.020-L Staff

The Tulsa Planning Office, or such other department, division or section as directed by the mayor, must provide staff to the preservation commission to assist in the performance of its duties.

75.020-M Powers and Duties

The powers and duties of the preservation commission are as follows:

1. Prepare, or cause to be prepared, a comprehensive inventory of historic resources within the City of Tulsa and update the inventory as deemed necessary.
2. Prepare, or cause to be prepared, proposed HP zoning map amendments and amendments to the historic preservation plan.
3. Prepare reports and recommendations on HP zoning map amendments in accordance with Section 70.060.

4. Promulgate design guidelines as necessary for the review and approval of applications for HP permits and inform residents, property owners, and the general public of those guidelines. Design guidelines must relate to the significant characteristics of the historic resources being proposed for HP zoning. Design guidelines must be developed by the preservation commission and include the input of property owners and other parties directly affected by proposed HP zoning. Design guidelines are subject to approval and adoption by the city council, after a public hearing by the planning commission, and the recommendation of the preservation commission and planning commission.
5. Act upon applications for HP permits and perform other duties as set forth in Section 70.070.
6. Make recommendations to the mayor and the city council concerning grants and programs from federal and state agencies, private groups and individuals and the utilization of budgetary appropriations to promote the preservation of historic resources in the city.
7. Coordinate and oversee such programs and projects as may be directed by the mayor or the city council.
8. Recommend to the mayor the need for employing staff and making contracts with professional and technical experts as may be required for the furtherance of preservation commission work.
9. Increase public awareness of the historic resources and disseminate information to the public concerning historic resources in the city deemed worthy of preservation. Provide notification, as effectively as possible, to property owners within HP zoning districts of the rights and responsibilities associated with HP zoning of their properties. Advise and disseminate information to property owners on the preservation, conservation, protection, enhancement, perpetuation, and use of historic resources.
10. Place, or cause to be placed, monuments, markers, or other identifying elements at locations of historic resources as funds are available.
11. Coordinate, comment on and make recommendations to the appropriate body concerning actions undertaken by other city, state, and federal agencies with respect to the effect of such actions upon the historic resources in the City of Tulsa.
12. Consider methods other than those provided for in this zoning code for encouraging and achieving preservation of historic resources in the City of Tulsa and make appropriate recommendations to the mayor, the city council and to other bodies and agencies, public and private.
13. Prepare, or cause to be prepared, studies and reports, and undertake other preservation related tasks as may be deemed appropriate.
14. Prepare, or cause to be prepared, in accordance with the goals and objectives set forth for neighborhood conservation in the comprehensive plan, programs and plans designed to implement neighborhood stabilization, revitalization, and conservation in those neighborhoods that are 50 years or older which may

not qualify for historic or HP zoning designation, yet represent valuable resources to the City of Tulsa and its citizens.

15. Perform any other duties and functions imposed by this zoning code or which may be specified by the mayor and city council.

Chapter 80 | Nonconformities

Section 80.010 General 80-1
Section 80.020 Nonconforming Lots 80-2
Section 80.030 Nonconforming Structures 80-3
Section 80.040 Nonconforming Uses 80-5
Section 80.050 Sexually Oriented Business Establishment 80-7
Section 80.060 Nonconforming Signs 80-7
Section 80.070 Nonconforming Development Features 80-8

Section 80.010 General

80.010-A Intent

The adoption and amendment of the zoning code text and map, beginning with the adoption of the city's first zoning code in 1923, has resulted in some lots, uses and structures becoming nonconforming (i.e., established in compliance with regulations in effect at the time of their establishment, but which would be prohibited under subsequently adopted regulations). The nonconformity regulations of this chapter are intended to explain the effect of this nonconforming status and help differentiate nonconformities, which have legal status under this zoning code, from zoning violations, which are illegal and subject to penalties and enforcement action. The regulations of this chapter are also intended to:

1. Recognize the interests of landowners in continuing to use their property for uses that were lawfully established;
2. Promote maintenance, reuse and rehabilitation of existing buildings; and
3. Place reasonable limits on nonconformities that have the potential to adversely affect surrounding properties.

80.010-B Authority to Continue

Any nonconformity that existed on the effective date specified in Section 1.030 or any lot, structure use or situation that becomes nonconforming upon adoption of any amendment to this zoning code or any amendment of the zoning map subsequent to the effective date specified in Section 1.030 may be continued, subject to the regulations of this chapter.

80.010-C Determination of Nonconforming Status

1. The burden of proving that a nonconformity exists (as opposed to a zoning code violation) rests entirely with the subject owner.
2. The development administrator is authorized to determine whether reliable evidence of nonconforming status has been provided by the subject owner.
3. Building permits, zoning clearance reports, lawfully recorded plats, lawfully recorded instruments of conveyance, aerial photography owned by a governmental agency and other official government records that indicate lawful establishment of the use, lot or structure constitute conclusive evidence of nonconforming status. If such forms of conclusive evidence are not

available, the development administrator is authorized to consider whether other forms of evidence provided by the owner are reliable and adequate to document nonconforming status. Common examples of evidence that may be determined to be reliable and adequate include:

a. Professional registrations or business licenses;

b. Utility billing records;

c. Rent records;

d. Advertisements in dated publications;

e. Listings in telephone or business directories; and

f. Notarized affidavits affirming the date of lawful establishment of the use or structure.

4. The development administrator's determination of nonconforming status may be appealed in accordance with Section 70.140.

80.010-D Repairs and Maintenance

1. Repairs and normal maintenance necessary to keep a nonconformity in sound condition are permitted unless the work increases the extent of the nonconformity or is otherwise expressly prohibited by this zoning code.

2. If a nonconforming structure or a structure occupied by a nonconforming use becomes physically unsafe or unlawful due to lack of repairs and maintenance, and a final order of vacation or demolition is entered by any duly authorized official by reason of physical condition, it may not thereafter be used, restored, or repaired, or rebuilt except in conformity with the provisions of the zoning district in which it is located.

3. Nothing in this chapter is intended to prevent nonconformities from being structurally strengthened or restored to a safe condition in accordance with an order from a duly authorized public official.

80.010-E Change of Tenancy or Ownership

Nonconforming status runs with the land and is not affected by changes of tenancy, ownership or management.

Section 80.020 Nonconforming Lots

80.020-A Description

A nonconforming lot is a lot that does not comply with the applicable minimum lot area, minimum lot width, minimum street frontage or minimum open space requirements of the subject zoning district and that meets at least one of the following criteria:

1. The lot was a lot of record on or before July 1, 1970;

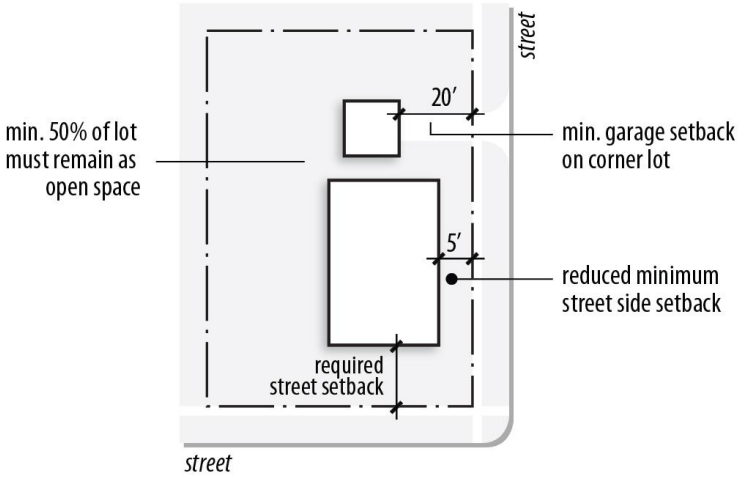
2. The lot is located within a subdivision approved by the planning commission; or

3. The lot is a lot of record for which a recorded instrument of conveyance bears the endorsement of the planning commission.

80.020-B Nonconforming Lots in Residential Zoning Districts

In residential zoning districts, a single detached house may be erected on a nonconforming lot without complying with the minimum lot area, minimum lot area per unit, minimum lot width, minimum street frontage or minimum open space per unit requirements of the subject zoning district, provided that at least 50% of the lot area remains as open space. All other lot and building regulations apply, except that detached houses may be erected on corner lots that are nonconforming with regard to lot width, subject to a reduced minimum street side building setback of 5 feet. Garages that are accessed through a side yard abutting a street must be set back at least 20 feet.

Figure 80-1: Detached House on Nonconforming Lot in R District



80.020-C Nonconforming Lots in Nonresidential Zoning Districts

In nonresidential districts, on any lot of record created on or before July 1, 1970, or on any lot within a subdivision having received approval of the planning commission, or any lot of record for which a recorded instrument of conveyance bears the endorsement of the planning commission a permitted use may be located on such lot irrespective of its street frontage. Such uses are subject to compliance with other lot and building regulations of the district and applicable use regulations.

Section 80.030 Nonconforming Structures

80.030-A Description

A nonconforming structure is a structure, other than a sign, that was lawfully established but that no longer complies with applicable zoning regulations because of the adoption or amendment of zoning regulations after the structure was established.

80.030-B Use

A nonconforming structure may be used for any use allowed in the zoning district in which the structure is located, including a lawfully established nonconforming use.

80.030-C Movement

A nonconforming structure may be moved in whole or in part to another location on the same lot only if the movement or relocation does not create additional or new nonconformities. A nonconforming structure may be moved to another lot only if the structure would comply with the zoning regulations that apply to that (relocation) lot.

80.030-D Alterations, Enlargements and Expansions

Alterations, including enlargements and expansions, are permitted if the proposed alteration or expansion complies with all applicable lot and building regulations and does not increase the extent of the nonconformity. A building with a nonconforming street setback, for example, may be expanded to the rear as long as the rear expansion complies with applicable rear setback regulations and all other applicable lot and building regulations. Horizontal and vertical extensions of an exterior wall that is nonconforming with regard to applicable setbacks may be approved in accordance with the special exception procedures of Section 70.120, provided the extensions are not located closer to the lot line than the existing structure.

80.030-E Restoration or Re-establishment of Damaged or Destroyed Structures

1. Antenna-supporting structures, if damaged or destroyed by any means, may be reconstructed, provided the supporting structure is placed in the same location and has no greater height or area that the structure it replaces.
2. If any other nonconforming structure is damaged or partially destroyed by any means to the extent of more than 50% of its replacement cost at time of damage, it may be restored as a nonconforming structure only if approved in accordance with the special exception procedures of Section 70.120. In order to approve a special exception for re-establishment of a nonconforming structure, the board of adjustment must find that restoration as a conforming structure cannot reasonably be made in view of the nature and extent of the nonconformity and the nature and extent of the damages.
3. If a nonconforming structure is damaged or partially destroyed by any means to the extent of 50% or less of its replacement cost at time of damage it may be restored as a nonconforming structure.
4. Re-establishment as a nonconforming structure may not increase the extent of nonconformity, except that the board of adjustment is authorized to approve a special exception for building additions that increase the extent of nonconformity if the board of adjustment determines that such additions:
    a. Do not increase the habitable or leasable floor area of the building; and
    b. Are required to be provided because of building or energy code amendments adopted after construction of the original building.

5. In all cases, any permits required to restore the damaged structure must be obtained within 2 years of the date of damage. If required permits are not obtained within 2 years, the structure's nonconforming status is lost.

Section 80.040 Nonconforming Uses

80.040-A Description

A nonconforming use is a use that was lawfully established in accordance with all zoning regulations in effect at the time of its establishment but that is no longer allowed by the use regulations of the zoning district in which the use is located. Lawfully established uses that do not comply with separation distance (spacing) requirements are also deemed to be nonconforming uses.

80.040-B Change of Use

1. A nonconforming use in a residential zoning district may be changed only to a use that is allowed in the subject zoning district. Once changed to a conforming use, the nonconforming use may not be re-established.

2. A nonconforming use located in a zoning district other than a residential zoning district, may be changed to a use that is allowed in the subject zoning district, in which case the nonconforming use may not be re-established. A nonconforming use located in a zoning district other than a residential zoning district, may be changed to another nonconforming use only if approved in accordance with the special exception procedures of Section 70.120. The change of a use to another use included within the same use category does not constitute a "change of use" within the meaning of this section. In order to approve a special exception for a nonconforming use substitution, the board of adjustment must find that the proposed use substitution will not result in any increase in adverse impacts on the surrounding area when compared to the previous nonconforming use of the property. In making such a determination, the board of adjustment must consider all of the following factors, as applicable:

   a. Traffic to and from the site;

   b. Hours of operation,

   c. Outdoor display, storage and work activities; and

   d. Other factors likely to have an effect on the surrounding area.

80.040-C Expansion of Use

A nonconforming use of a portion of a building may be expanded or extended into the remaining portions of the building if the development administrator determines that the areas of the building in which the expansion is proposed were manifestly arranged and designed for the use. Nonconforming use may not be expanded or extended in any other way unless the expansion reduces or eliminates the nonconformity.

80.040-D Movement

A nonconforming use may be moved in whole or in part to another location on the same lot only if the movement or relocation does not create additional or new

nonconformities. A nonconforming use may be moved to another lot only if the use would comply with the zoning regulations that apply to that (relocation) lot.

80.040-E Loss of Nonconforming Status

1. If a structure containing a nonconforming use is damaged or partially destroyed to the extent of more than 50% of its replacement cost at time of damage, the nonconforming use may be re-established only if approved in accordance with the special exception procedures of Section 70.120. In order to approve a special exception for re-establishment of a nonconforming use, the board of adjustment must find that re-establishment will not result in any increase in adverse impacts on the surrounding area when compared to the previous nonconforming use of the structure. In making such a determination, the board of adjustment must consider all of the following factors, as applicable:
   a. Traffic to and from the site;
   b. Hours of operation,
   c. Outdoor display, storage and work activities; and
   d. Other factors likely to have an effect on the surrounding area.
2. If a nonconforming use is changed to a conforming use, no matter how short the period of time, all nonconforming use rights are lost and re-establishment of the nonconforming use is prohibited.
3. If a nonconforming use of a building is discontinued for 36 consecutive months or for 36 months during any 4-year period, the nonconforming use may not be re-established. Periods of time when governmental action impedes access to or the use of the premises are not counted as periods of discontinuance.

80.040-F Nonconforming Use of Unimproved Land

Nonconforming uses of unimproved land are land uses and activities that meet the definition of a nonconforming use but that include structures that are all accessory or incidental to the use and in the aggregate do not cover more than 10% of the lot area devoted to the nonconforming use. Common examples include storage yards, construction debris sites, used vehicle sales lots, vehicle impound yards, auto wrecking, junkyards, and similar open-air uses. Nonconforming uses of unimproved land are subject to the nonconforming use regulations of this section (Section 80.040), except as modified by the following specific regulations:

1. No nonconforming use of unimproved land may be changed to another nonconforming use, nor enlarged, increased or moved to another portion of the lot, nor extended to occupy a greater area of land than was occupied at the time that the use became nonconforming.
2. No additional structure (other than fences) may be erected in connection with a nonconforming use of unimproved land.
3. If any nonconforming use of unimproved land ceases for any reason for a period of more than 90 days, (except when government action impedes access

to or use of the premises) any subsequent use of such land must conform in all respects to the regulations of the zoning district in which it is located.

Section 80.050 Sexually Oriented Business Establishment

A sexually oriented business establishment lawfully existing on the effective date specified in Section 1.030, or any subsequent amendment, but that does not comply with any parking, loading, spacing or screening requirement of this zoning code, is deemed nonconforming. Such use may continue subject to the following provisions:

80.050-A No such use may be enlarged or extended.

80.050-B No such use may be changed to another use that does not comply with parking, loading, screening and spacing requirements, except that changes to an office or retail use are permitted, and the board of adjustment is authorized to approve a change to another use otherwise permitted by right or special exception within the subject zoning district, even though such use does not comply with applicable parking, loading, screening or spacing requirements.

80.050-C A change of a use from one type of sexually oriented business establishment to another type of sexually oriented business establishment is considered a change of use and is not permitted unless the new use complies with all applicable requirements of this zoning code.

80.050-D If the use of a nonconforming sexually oriented business establishment is discontinued for any reason whatsoever for a period of 180 days or more, such use may not be reestablished unless it complies with all of the requirements of this zoning code.

80.050-E If 2 or more existing sexually oriented business establishments are separated by a lesser distance than required by this zoning code, the first sexually oriented business establishment licensed and continually operating at a particular location will be deemed the conforming use with regard to required spacing and separation distances and all later established sexually oriented business establishments will be deemed the nonconforming use with regard to required spacing distance.

Section 80.060 Nonconforming Signs

80.060-A Description

A nonconforming sign is a sign that was lawfully established but that no longer complies with applicable zoning code regulations because of the adoption or amendment of regulations after the sign was established.

80.060-B Off-Premise Outdoor Advertising Signs

Nonconforming off-premise outdoor advertising signs may continue subject to the following provisions:

1. Nonconforming off-premise outdoor advertising signs must be maintained in good repair and safe condition, in accordance with §80.010-D. No permits may be issued for upgrades or modifications of nonconforming signs. The conversion of a dynamic display component of a sign to a different dynamic display method or technology is considered a sign modification.

2. If an off-premise outdoor advertising sign is nonconforming by reason of restrictions on its brightness or illumination or its use of strobe or beacon lights, the sign must be immediately removed or made to conform.
3. If a nonconforming off-premise outdoor advertising sign is damaged or partially destroyed to the extent of more than 50% of its replacement cost at the time of damage, the sign must be removed or made to conform to all applicable regulations within 90 days of the date of the date of damage or destruction.
4. If a nonconforming off-premise outdoor advertising sign is not used for advertising purposes for a period of 180 consecutive days, the nonconforming off-premise outdoor advertising sign is deemed to have been abandoned and must be removed. A sign that directs attention to the sign owner's outdoor advertising business, commodity, or service is not considered "outdoor advertising" for purposes administering and enforcing the provisions of this paragraph.

80.060-C On-premise Signs

Nonconforming on-premise signs may continue subject to the following provisions:

1. Nonconforming on-premise signs must be maintained in good repair and safe condition, in accordance with 80.010-D. No permits may be issued for upgrades or modifications of nonconforming signs.
2. If an on-premise sign is nonconforming by reason of restrictions on its brightness or illumination or its use of strobe or beacon lights, the sign must be immediately removed or made to conform.
3. A window sign that is nonconforming by reason of restrictions on its sign area must be immediately removed or made to conform.
4. If a nonconforming on-premise sign is damaged or partially destroyed to the extent of more than 50% of its replacement cost at the time of damage, the sign must be removed or made to conform to all applicable regulations within 90 days of the date of the date of damage or destruction.
5. If the on-premise sign is not used for advertising purposes for a period of 180 consecutive days, the sign is deemed abandoned and must be removed.

80.060-D Strobe Lights and Beacons

Search lights, strobe lights and rotating beacon lights that are visible from public right-of-way are prohibited and must be removed immediately, except as otherwise required by law.

Section 80.070 Nonconforming Development Features

80.070-A Description

A nonconforming development feature is any aspect of a development—other than a nonconforming lot, nonconforming structure, nonconforming use or nonconforming sign—that was lawfully established in accordance with zoning regulations in effect at the time of its establishment but that no longer complies with one or more applicable zoning regulations. Common examples are off-street

parking areas that contain fewer spaces than required by current regulations and sites that do not comply with current landscaping, screening or lighting regulations.

80.070-B General

Nonconforming development features may remain except as otherwise expressly stated in this zoning code, but the nature and extent of nonconforming development features may not be increased.

Chapter 85 | Violations, Penalties and Enforcement

Section 85.010 Responsibility for Enforcement....85-1
Section 85.020 Violations....85-1
Section 85.030 Continuing Violations....85-2
Section 85.040 Remedies and Enforcement Powers....85-2
Section 85.050 Remedies Cumulative....85-3
Section 85.060 Persons Subject to Penalties....85-3
Section 85.070 Enforcement Procedures....85-4
Section 85.080 Appeals....85-4

Section 85.010 Responsibility for Enforcement

The development administrator, the code enforcement division, and any other officials or agencies designated by the mayor have responsibility for enforcing this zoning code. All departments, officials, agencies and employees vested with the authority to review, recommend or issue development approvals, permits or licenses must act in accordance with the provisions of this zoning code.

Section 85.020 Violations

Unless otherwise expressly allowed by this zoning code or state law, any violation of a provision of this zoning code—including any of the following—are subject to the remedies and penalties provided for in this zoning code.

85.020-A To use land, buildings or other structures in any way that is not consistent with the requirements of this zoning code;

85.020-B To erect a building or other structure in any way not consistent with the requirements of this zoning code;

85.020-C To install or use a sign in any way not consistent with the requirements of this zoning code;

85.020-D To engage in the use of a building, structure or land, the use or installation of a sign, or any other activity requiring one or more permits or approvals under this zoning code without obtaining such required permits or approvals;

85.020-E To engage in the use of a building, structure or land, the use or installation of a sign, or any other activity for which a permit or approval has been granted under this zoning code or under previous zoning codes of the city in any way inconsistent with such permit or approval or any conditions imposed on the permit or approval;

85.020-F To violate the terms of any permit or approval granted under this zoning code or under previous zoning codes of the city or any condition imposed on the permit or approval;

85.020-G To obscure, obstruct or destroy any notice required to be posted under this zoning code;

85.020-H To violate any lawful order issued by any authorized public official;

85.020-I To continue any violation after receipt of notice of a violation; or

85.020-J To fail to install or maintain required landscaping and screening material.

Section 85.030 Continuing Violations

Each day that a violation continues constitutes a separate violation of this zoning code.

Section 85.040 Remedies and Enforcement Powers

The city has all remedies and enforcement powers allowed by law, including, without limitation, all of the following:

85.040-A Fines

Any person violating any provisions of this zoning code or failing to comply with any of its requirements may be deemed guilty of a misdemeanor punishable by a fine of not more than $1,200.00 or by imprisonment not exceeding 6 months, or by both fine and imprisonment.

85.040-B Withhold Permit

1. The development administrator may deny or withhold all permits, certificates or other forms of authorization on any land or structure or improvements upon which there is an uncorrected violation of a provision of this zoning code or of a condition or qualification of a permit, certificate, approval or other authorization previously granted by the city. This enforcement provision may be used regardless of whether the current owner or applicant is responsible for the violation in question.
2. The development administrator may deny or withhold all permits, certificates or other forms of authorization on any land where an uncorrected violation exists. The development administrator may also withhold all permits, certificates or other forms of authorization on any other land owned by the owner of land on which an uncorrected violation exists. This enforcement provision may be used regardless of whether the property for which the permit or other approval is sought is the property in violation.
3. Instead of withholding or denying a permit or other authorization, the development administrator may grant such authorization subject to the condition that the violation be corrected.

85.040-C Revoke Permits

1. A permit, certificate or other form of authorization required under this zoning code may be revoked by the development administrator when the development administrator determines:
    a. That there are unapproved significant, material departures from approved plans or permits;
    b. That the development permit was procured by false representation or was issued by mistake; or
    c. That any of the provisions of this zoning code or approval previously granted by the city are being violated.

2. Written notice of revocation must be served upon the owner, the owner's agent or contractor, or upon any person employed on the building or structure for which such permit was issued. If no persons can reasonably be served with notice, the notice must be posted in a prominent location.

85.040-D Stop Work

A code enforcement official or the development administrator, with or without revoking permits, may stop work on any building or structure on any land on which there is an uncorrected violation of a provision of this zoning code or of a permit or other form of authorization issued under this or previous zoning codes. A stop work order shall be in writing and shall be posted at the property. A stop work order will be effective immediately upon posting at the property. Written notice, which states the reason for the stop work order and the conditions under which the cited work is authorized to resume, shall also be given to the owner of the property by mail based on property ownership information from the County Assessor's office. No prior notice is required before a stop work order is issued. Any person who violated a posted stop work order may be subject to the criminal penalties described in Section 85.040-A.

85.040-E Injunctive Relief

The city may seek an injunction or other equitable relief in court to stop any violation of this zoning code or of a permit, certificate or other form of authorization granted under this or previous zoning codes.

85.040-F Forfeiture and Confiscation of Signs on Public Property

Any sign installed or placed on public property, except in compliance with the regulations of this zoning code will be considered forfeited to the public and subject to confiscation. In addition to other remedies and penalties of this chapter, the city has the right to recover from the sign owner or person who placed the sign, the full costs of sign removal and disposal.

85.040-G Abatement

The city may seek a court order in the nature of mandamus, abatement, injunction or other action or proceeding to abate or remove a violation or to otherwise restore the premises in question to the condition in which they existed prior to the violation.

85.040-H Other Penalties, Remedies and Powers

The city may seek such other penalties and remedies as are provided by law.

85.040-I Continuation of Previous Enforcement Actions

Nothing in this zoning code prohibits the continuation of previous enforcement actions, undertaken by the city pursuant to previous valid ordinances and laws.

Section 85.050 Remedies Cumulative

The remedies and enforcement powers established in this zoning code are cumulative, and the city may exercise them in any combination or order.

Section 85.060 Persons Subject to Penalties

The owner or tenant of any building, structure, premises, or part thereof, and any architect, builder, contractor, or agent, or other person who commits, participates

in, assists in, or maintains such violations may each be found guilty of a separate offense and be subject to penalties, remedies and enforcement actions.

Section 85.070 Enforcement Procedures

85.070-A Non-Emergency Matters

In the case of violations of this zoning code that do not constitute an emergency or require immediate attention, the development administrator must give notice of the nature of the violation to the property owner by personal service, U.S. first class mail or by posting notice on the premises. Notices of violation must state the nature of the violation and the time period for compliance and may state the corrective steps necessary and the nature of subsequent penalties and enforcement actions should the situation not be corrected.

85.070-B Emergency Matters

In the case of violations of this zoning code that constitute an emergency situation as a result of public health or safety concerns if not remedied immediately, the city may use the enforcement powers available under this zoning code without prior notice, but the development administrator must attempt to give notice to the property owner simultaneously with beginning enforcement action.

Section 85.080 Appeals

A determination made by the development administrator or other administrative officials that a zoning code violation has occurred may be appealed by the affected party in accordance with Section 70.140.

Chapter 90 | Measurements

Section 90.010 Fractions and Rounding 90-1
Section 90.020 Lot Area 90-1
Section 90.030 Lot Area per Unit 90-1
Section 90.040 Floor Area 90-2
Section 90.050 Floor Area Ratio 90-2
Section 90.060 Lot Width 90-2
Section 90.070 Frontage or Street Frontage 90-2
Section 90.080 Open Space per Unit 90-3
Section 90.090 Setbacks 90-3
Section 90.100 Parking Setbacks 90-11
Section 90.110 Build-to-Zone 90-12
Section 90.120 Building Coverage 90-12
Section 90.130 Ceiling Height 90-12
Section 90.140 Transparency 90-13
Section 90.150 Street-facing Building Entrances 90-14
Section 90.160 Building Height 90-14
Section 90.170 Other Height Measurements 90-15
Section 90.180 Noise and Sound 90-16
Section 90.190 Occupancy 90-16

Section 90.010 Fractions and Rounding

When calculations required under this zoning code result in fractions, the results must be rounded as follows:

90.010-A Minimum Requirements

When a regulation is expressed in terms of a minimum requirement, any fractional result must be rounded up to the next consecutive whole number. For example, if a minimum requirement of one tree for every 30 feet is applied to a 50-foot strip, the resulting fraction of 1.67 is rounded up to 2 required trees.

90.010-B Maximum Limits

When a regulation is expressed in terms of maximum limits, any fractional result must be rounded down to the preceding whole number. For example, if a maximum limit of one dwelling unit for every 3,750 square feet of lot area is applied to an 8,000 square foot lot, the resulting fraction of 2.13 is rounded down to 2 allowed dwelling units.

Section 90.020 Lot Area

Lot area is measured as the total ground-level surface area contained within the property lines of a lot.

Section 90.030 Lot Area per Unit

Lot area per unit is a measure of residential density. It governs the amount of lot area required for each dwelling unit on the subject lot. To determine the number of dwelling units allowed on a lot, divide the area of the lot by the minimum lot-area-per-unit requirement, and round any fractional result down to a whole number. If, for example, a minimum lot-area-per-unit requirement of 1,750 feet is applied to a 10,000 square foot lot, a maximum of 5 units would be allowed on that lot (5.71

rounded down to 5). In applying minimum lot-area-per-unit requirements to fraternity, sorority and rooming/boarding house uses, each 600 square feet of floor area is counted as one dwelling unit.

Section 90.040 Floor Area

The floor area of a building is measured as the sum of the gross horizontal areas of all floors within the building, including basements, as measured from the exterior faces of the exterior walls or from the centerline of walls separating 2 buildings. The floor area of enclosed required off-street parking areas is not included in the measurement of floor area.

Section 90.050 Floor Area Ratio

The floor area ratio (FAR) is the floor area of all buildings on a lot, divided by the area of that lot.

Section 90.060 Lot Width

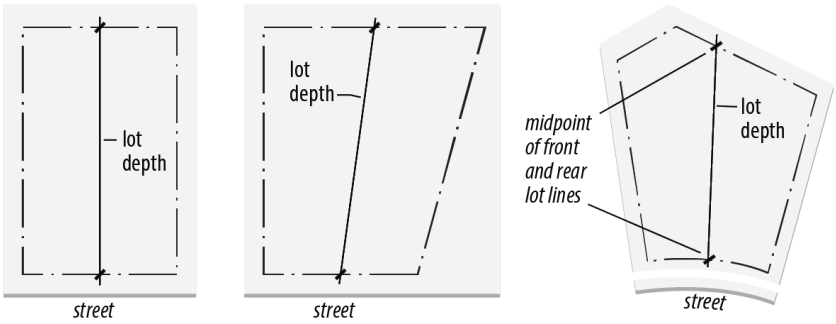
Lot width refers to the average horizontal distance between the side property lines of a lot. Lot width is calculated as follows:

Lot Width = *Lot Area (square feet) divided by (/) Lot Depth (feet)*

Section 90.065 Lot Depth

Lot depth is measured as the distance, in a straight line, between the midpoint of the front lot line and the midpoint of the rear lot line.

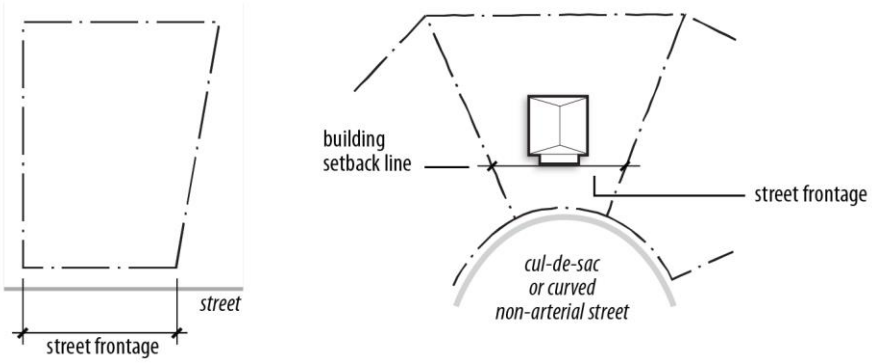
Figure 90-1: Lot Depth Measurement



Section 90.070 Frontage or Street Frontage

Street frontage is measured between side property lines of a lot along the property line that abuts the street. For purposes of determining compliance with zoning district lot and building regulations, the frontage of a lot that abuts a cul-de-sac or similarly curved non-arterial street may be measured along the required setback line. Lot boundaries that abut a limited access freeway are not considered street frontage for the purpose of complying with zoning district lot and building regulations.

Figure 90-2: Street Frontage Measurement



Section 90.080 Open Space per Unit

90.080-A Open space per unit refers to the amount of outdoor open space required to be provided on a lot for each dwelling unit on the subject lot. Multiply the minimum open space-per-unit requirement by the number of dwelling units to determine the total amount of open space required on a lot. In applying minimum open space-per-unit requirements to fraternity, sorority and rooming/boarding house uses, each 600 square feet of floor area is counted as one dwelling unit.

90.080-B The following may be counted toward satisfying minimum open space-per unit requirements:

1. Outdoor areas that are not occupied by buildings, driveways or parking areas and are generally useable by residents;
2. Driveways and parking areas located in the rear yard of a detached house or duplex; and
3. Green roofs covering 25% or more of the subject building's overall roof area.

90.080-C Required open space within a townhouse development may be provided on each townhouse lot or may be provided in outdoor common areas within the townhouse development, as designated on the recorded subdivision plat or in a separately recorded legal instrument.

Section 90.090 Setbacks

90.090-A Measurement

Required setbacks are measured from the applicable lot line, right-of-way, planned right-of-way or location referred to below. Building setbacks are measured to the nearest exterior building wall. Minimum setbacks that apply to other features (parking areas, fences, storage areas) are measured from the nearest point of the area or feature for which a setback is required. See 90.090-C for information on structures and building features that are allowed to occupy setback and yard areas in R zoning districts. Unless otherwise expressly stated, no part of any structure may be located within the street right-of-way, nor within the planned right-of-way of streets shown on the major street and highway plan, nor within 25 feet of the centerline of the right-of-way on streets not shown on the major street and highway plan. If a variance of the prohibition

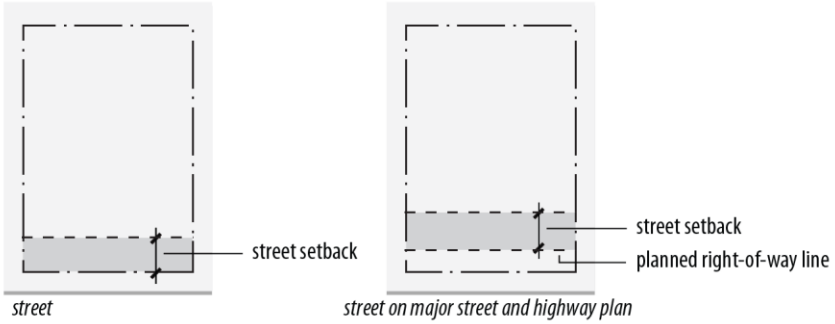
against location of a structure within the right-of-way or planned right-of-way is granted by the Board of Adjustment, no part of any structure may be located within the street right-of-way, nor within the planned right-of-way of streets shown on the major street and highway plan, nor within 25 feet of the centerline of the right-of-way on streets not shown on the major street and highway plan, unless a license has been granted by the city, in the case of the right-of-way, or a removal agreement has been entered into, in the case of the planned right-of-way.

1. Street setbacks are measured from the actual right-of-way line of the street (other than an alley), provided that if the following measurement results in a greater setback, the greater setback applies:

   a. For streets shown on the major street and highway plan, if the width of the planned right-of-way exceeds the width of the actual right-of-way, the measurement must be taken from the planned right-of-way; and

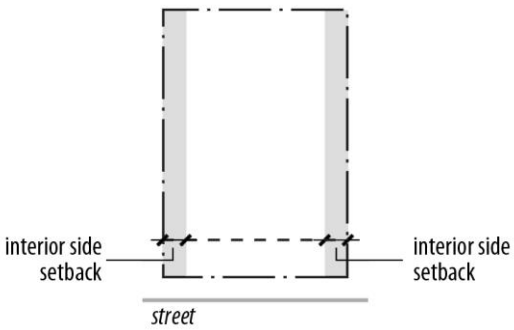
   b. For streets not shown on the major street and highway plan, if the width of the right-of-way is 50 feet or less, the measurement must be taken from a point that is 25 feet from the centerline of the actual right-of-way.

Figure 90-3: Street Setback Measurement



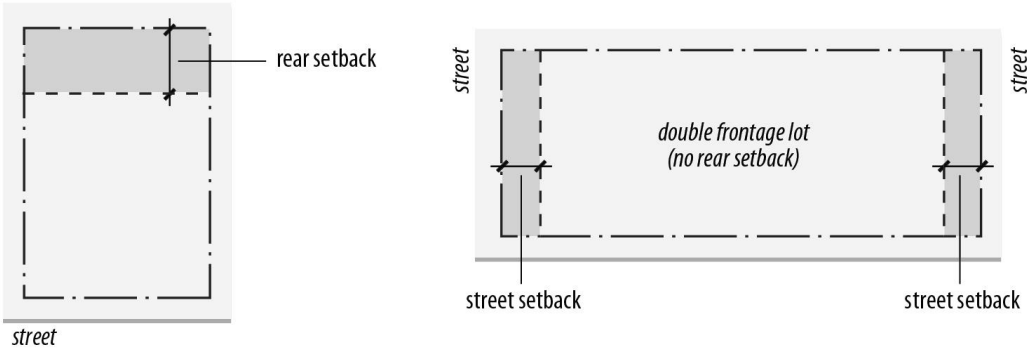
2. Side (interior) setbacks are measured from a side lot line that does not abut a street.

Figure 90-4: Side (Interior) Setback Measurement



3. Rear setbacks are measured from the rear lot line, except on double-frontage lots. On double-frontage lots, street setbacks apply from all property lines that abut streets.

Figure 90-5: Rear Setback Measurement

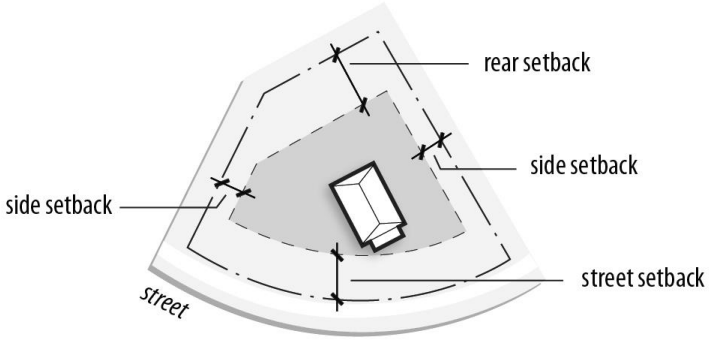


90.090-B Setbacks on Irregular Lots

Setbacks are measured from lot lines towards the center of the lot, as follows:

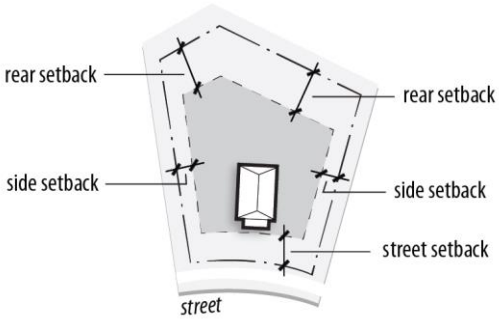
1. Generally, setbacks are measured as set out in 90.090-A.
2. When lot lines are curvilinear, setbacks must be measured parallel to the curvilinear lot line.

Figure 90-6: Setbacks from Curvilinear Lot Lines



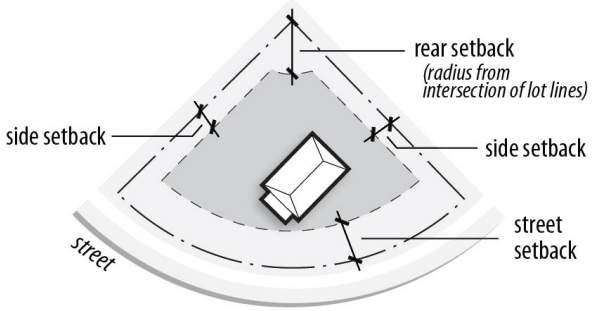
3. When there are multiple rear lot lines, the rear setback must be measured from each of rear lot lines.

Figure 90-7: Setbacks from Multiple Rear Lot Lines



4. When there is no rear lot line, the rear setback must be measured as a radial distance from the intersection of side lot lines at the rear of the lot.

Figure 90-8: Rear Setback Measurement When There is No Rear Lot Line



90.090-C Permitted Setback Obstructions in R Zoning Districts

Setbacks in R zoning districts must be unobstructed and unoccupied from the ground to the sky except as indicated in Table 90-1:

Table 90-1: Permitted Setback Obstructions in R Zoning Districts

Obstruction	Setback		
	Street	Side	Rear
Accessory buildings (see also 90.090-C2)	No	No [4]	Yes [4]
Air conditioning units	No	Yes	Yes
Arbors and trellises	Yes	Yes	Yes
Awnings, canopies, light shelves and architecturally integrated solar shading devices projecting no more than 2 feet into the setback	Yes	Yes	Yes
Barbeque pits and outdoor fireplaces	No	No	Yes
Bay windows projecting no more than 2 feet into the setback	Yes	Yes	Yes
Carports	Yes [1]	Yes [2]	Yes [2]
Chimneys and flues projecting no more than 2 feet into the setback	Yes	Yes	Yes
Clotheslines	No	Yes	Yes
Decks, patios, and other features and structures less than 30 inches in height above grade	Yes	Yes	Yes
Eaves and gutters projecting no more than 2 feet into the setback	Yes	Yes	Yes
Fences and walls (see also Section 45.070)	Yes	Yes	Yes
Fire escapes projecting no more than 4.5 feet into the setback	Yes	Yes	Yes
Flagpoles and similar features	Yes	Yes	Yes
Geothermal heat pumps and geothermal heat exchange system equipment up to 4 feet in height above grade	No	No	Yes
Green houses and hoop houses (see also Section 90.090-C.2)	No	No [4]	Yes [4]
Insulation added to the outside of the exterior wall of an existing building	Yes	Yes	Yes
Plants and cold frames	Yes	Yes	Yes
Rainwater harvesting equipment projecting no more than 4.5 feet into the setback	Yes	Yes	Yes
Recreational equipment (e.g., swing sets, playground equipment, tree houses, etc.)	No	No	Yes
Satellite dish antennas	See Section 45.170		
Signs (see also Chapter 60)	Yes	Yes	Yes
Sills, belt courses, cornices and similar architectural features projecting no more than 2 feet into the setback	Yes	Yes	Yes
Solar energy systems (see also Section 45.190)	No	Yes	Yes
Swimming pools and tennis courts	No [3]	No	Yes
Vehicle parking/storage, inoperable (see also Section 45.130)	No	No	Yes
Wheelchair lifts and ramps that meet federal, state and local accessibility standards	Yes	Yes	Yes

Table 90-1 Notes

[1] Special exception approval required; see 90.090-C1.

[2] Detached carports located outside of the street setback and street yard in an R district must be set back at least 3 feet from side and rear lot lines. See Section 90.090-C.1 for carports located in street setbacks or street yards in R districts.

[3] May be allowed in the street setback within a rear yard.

[4] Except that, when located in the rear setback, accessory buildings must be set back at least 3 feet from all interior lot lines; see Section 90.090-C.2.

1. Carports

Carports are allowed in street setbacks and yards in R zoning districts only if approved in accordance with the special exception procedures of Section 70.120. Any carport that occupies all or a portion of the street setback or street yard area must comply with the following regulations, unless otherwise expressly approved by the board of adjustment as part of the special exception process:

a. A carport may be a detached accessory building or an integral part of the principal building.

b. The area of a carport may not exceed 20 feet in length by 20 feet in width.

c. A detached carport may not exceed 8 feet in height at its perimeter or 18 feet in height at its highest point. A carport erected as an integral part of the principal building may not exceed 8 feet in height within 10 feet of a side lot line or 18 feet at its highest point.

d. The carport structure must be setback from side lot lines by a minimum distance of 5 feet or the depth of the principal building setback, whichever is a greater distance from the side lot line.

e. The carport structure may project into the required street setback by a maximum distance of 20 feet. This distance must be measured from the required street setback line or the exterior building wall of the principal building, whichever results in the least obstruction of the street setback.

f. All sides of a carport that are within the required street setback must be open and unobstructed, except for support columns, which may not obstruct more than 15% of the area of any side.

g. The entire area under a carport may be used only for storage of operable, licensed motor vehicles (i.e., cars, boats, pickup trucks, vans, sport utility vehicles), which are customarily accessory to the dwelling. No other use of the carport area is allowed.

2. Detached Accessory Buildings in R Districts.

a. Detached accessory buildings may be located in rear setbacks, provided that:

(1) The accessory building does not exceed one story or 18 feet in height and is not more than 10 feet in height to the top of the top plate; and

(2) The accessory building does not exceed two stories or 25 feet in height and is not more than 18 feet in height to the top of the top plate if it contains an Accessory Dwelling Unit on the second floor; and

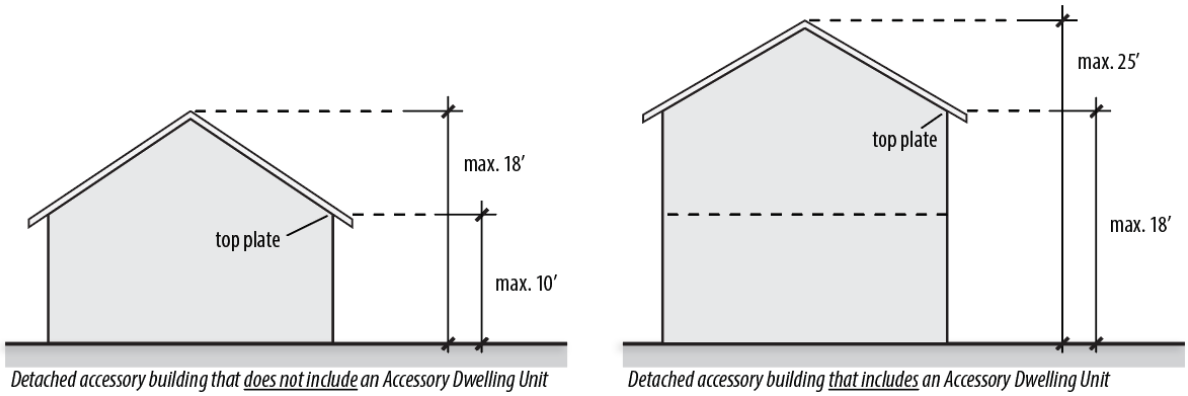
(3) Garage doors are limited to 8 feet in height; and

(4) Accessory building coverage in the rear setback does not exceed the maximum limits established in Table 90-2:

Table 90-2: Accessory Building Coverage Limits in Rear Setback

Zoning District	Maximum Coverage of Rear Setback
RE and RS-1 Districts	30%
RS-2 District	35%
RS-3, RS-4, RS-5, RD, RT, and RM Districts	40%

Figure 90-9: Maximum Height of Accessory Buildings In Rear Setbacks

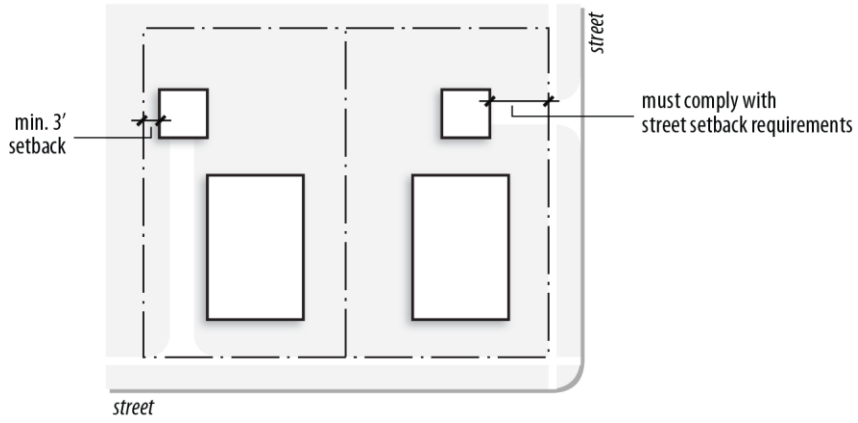


Detached accessory building that does not include an Accessory Dwelling Unit

Detached accessory building that includes an Accessory Dwelling Unit

b. Detached accessory buildings in the rear setback must be set back at least 3 feet from all interior lot lines. For lot lines abutting street right-of-way, detached accessory buildings must comply with the same setback requirements that apply to principal buildings.

Figure 90-10: Required Setbacks for Accessory Buildings in Rear Setbacks within R Districts



c. Nonconforming detached accessory buildings in the rear yard that are set back less than 3 feet from interior lot lines may be expanded or demolished and reconstructed without complying with the 3-foot setback requirements, provided that the reconstructed or expanded building complies with all of the following requirements:

(1) It is no closer to any interior lot line than the existing nonconforming structure;

(2) It is not over one story in height;

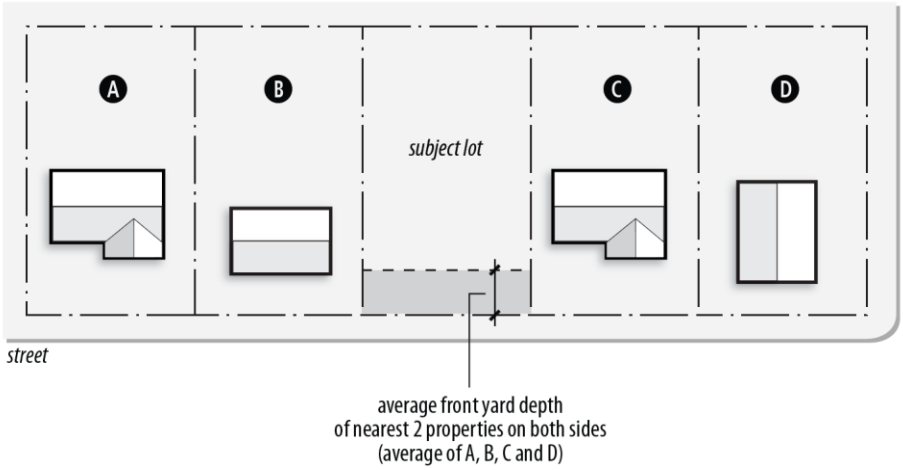
(3) It does not cover more of the required rear yard than permitted in §90.090-C2.a(4); and

(4) It does not exceed 500 square feet in floor area if the building does not comply with the setback requirements of 90.090-C2.b.

90.090-D Contextual Setbacks

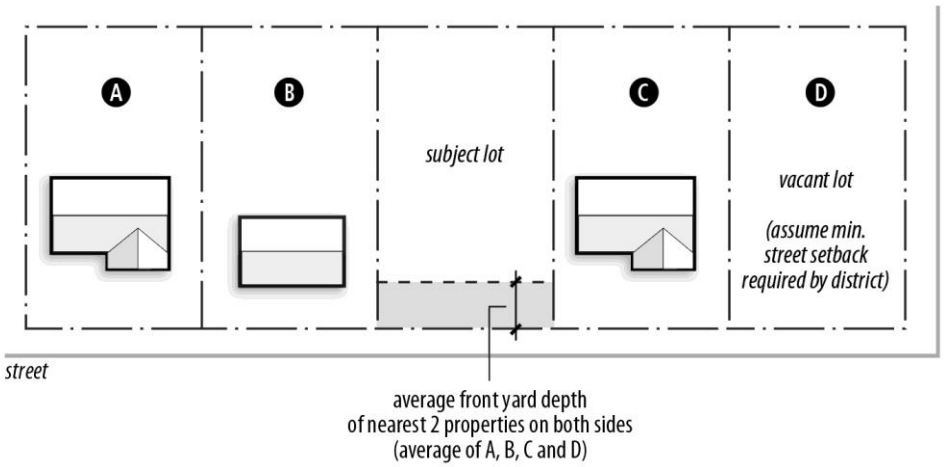
When existing buildings on one or more abutting lots are closer to the street (front or street side) property line than the otherwise required setback, additions to existing buildings or construction of new buildings on the subject lot may comply with the average street yard depth that exists on the nearest 2 lots on either side of the subject lot instead of complying with the zoning district's minimum street setback requirement. Existing yard depths must be based on the front corners of the buildings on the lots used in the contextual setback determination that are nearest to the subject lot.

Figure 90-11: Contextual Setbacks (1)



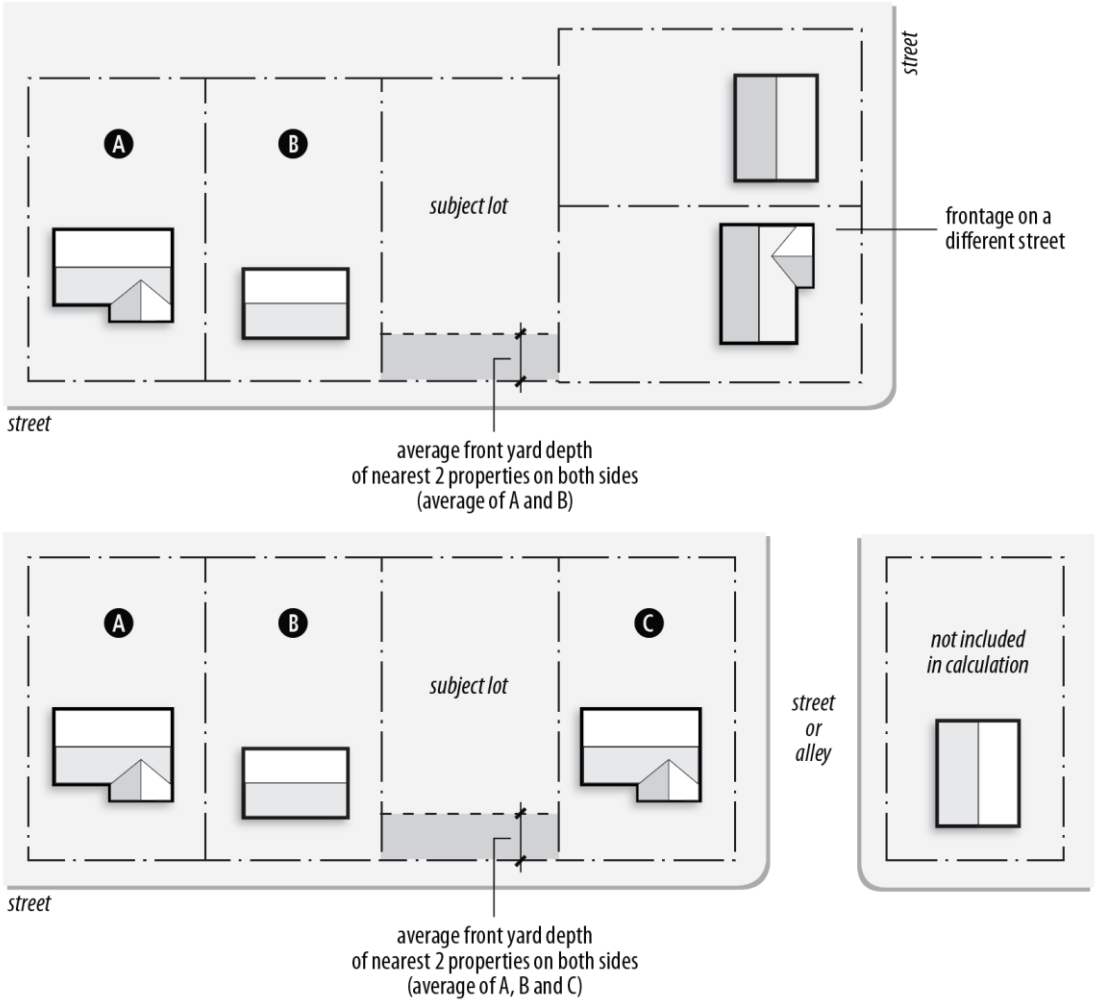
1. If one or more of the lots required to be included in the averaging calculation is vacant, that vacant lot will be deemed to have a street yard depth equal to the minimum street setback requirement of the subject zoning district.

Figure 90-12: Contextual Setbacks (2)



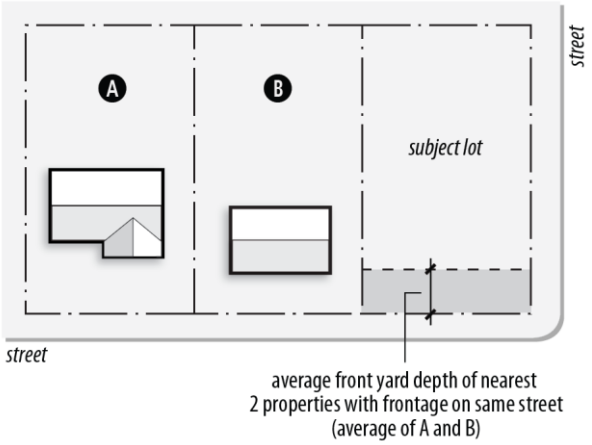
2. Lots with frontage on a different street than the subject lot or that are separated from the subject lot by a street or alley may not be used in computing the average.

Figure 90-13: Contextual Setbacks (3)



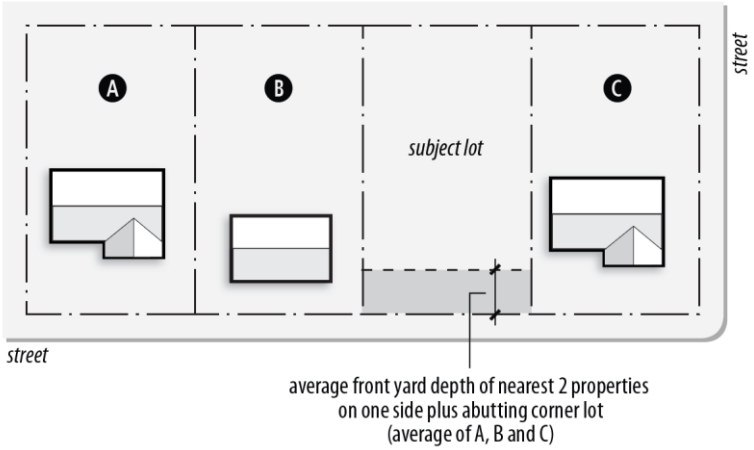
3. When the subject lot is a corner lot, the average street yard depth will be computed on the basis of the nearest 2 lots with frontage on the same street as the subject lot.

Figure 90-14: Contextual Setbacks (4)



4. When the subject lot abuts a corner lot with frontage on the same street, the average street yard depth will be computed on the basis of the abutting corner lot and the nearest 2 lots with frontage on the same street as the subject lot.

Figure 90-15: Contextual Setbacks (5)



5. These contextual setback provisions may not be used to reduce the setback of a street-facing garage door to less than 20 feet.

Section 90.100 Parking Setbacks

90.100-A All on-site parking spaces must be located behind any applicable parking setback line. This requirement applies whether such spaces are located in a surface (open-air) parking lot or in a parking structure. Parking setbacks do not apply to on-street parking spaces, parking spaces located in an underground structure or parking spaces located above the ground floor.

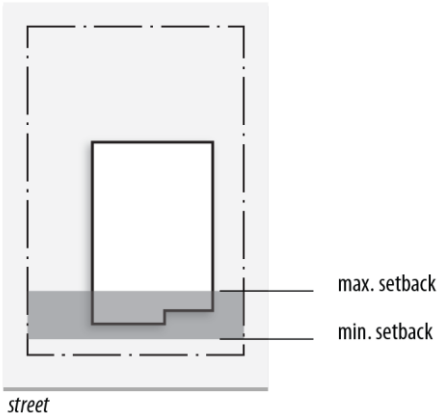
90.100-B Parking setbacks are measured in accordance with 90.090-A.

Section 90.110 Build-to-Zone

90.110-A The build-to-zone is the area on the lot where all or a portion of the street-facing building façade must be located, established as a minimum and maximum setback range, measured in accordance with the setback measurement provisions of 90.090-A.

90.110-B The street-facing building façade must be located in and extend along the length of the build-to-zone for a minimum distance equal to a percentage of the width of the lot, as required by specific provisions of this zoning code. The required minimum percentage is calculated by dividing the width of the building façade located within the build-to-zone by the width of the lot. For purposes of this calculation, the width of the lot is the narrowest width of the lot within the build-to-zone.

Figure 90-16: Build-to-Zone



90.110-C On corner lots, the development administrator is authorized to designate which street is the primary street and which street is the secondary or side street. The primary street designation must be based on consideration of the following criteria:

1. The street with the highest functional street classification;
2. The street that the lot takes its address from; and
3. The street parallel to an alley within the block.

90.110-D On corner lots, the building must be within the required build-to-zone for the first 25 feet extending from the intersection of the 2 street rights-of-way.

Section 90.120 Building Coverage

Building coverage is the total area of a lot covered by principal and accessory buildings. Only building areas beneath a roof are counted for purposes of measuring building coverage. A porch with a roof, for example, is counted, but an uncovered deck structure is not considered building coverage.

Section 90.130 Ceiling Height

Ceiling height is measured from the finished floor to the ceiling immediately above. At least 50% of the enclosed ground floor area must comply with established floor-to-ceiling height requirements

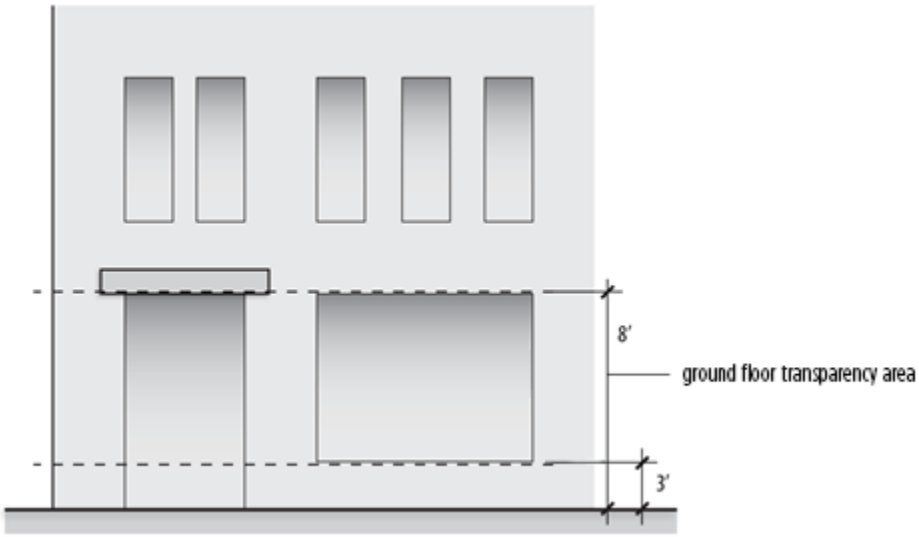
and all of the first 30 feet of building depth, measured from the principal street-facing façade, must comply with established ceiling height requirements. Buildings in existence or that were the subject of an approved building permit before the effective date specified in Section 1.030 are exempt from ceiling height requirements.

Section 90.140 Transparency

90.140-A Transparency regulations govern the percentage of a street-facing building façade that must be covered by transparent elements (e.g., transparent windows and doors). Such transparent elements shall be designed and maintained to provide views into and out of the building, and shall not be permanently obstructed by fixed elements, such as signage, shelving, furniture, etc.

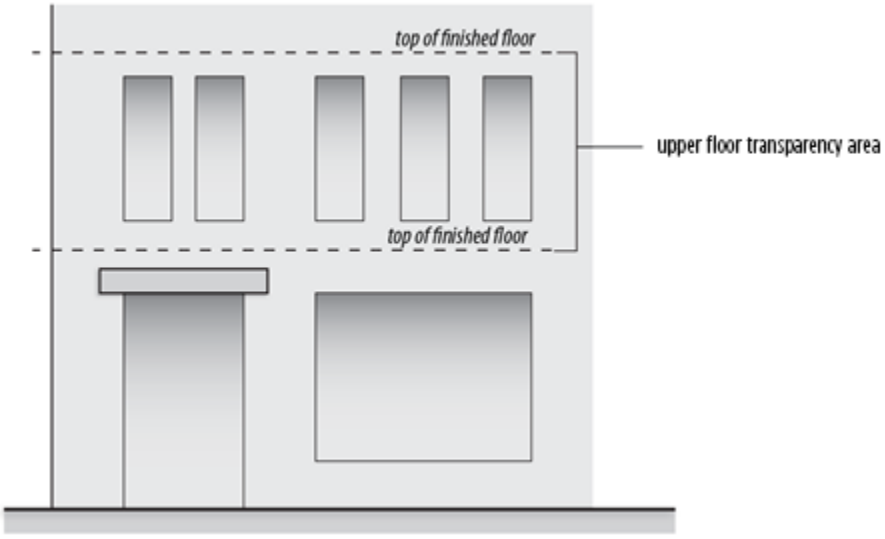
90.140-B Unless otherwise expressly stated, the transparency area of a ground floor facade is measured between 3 and 8 feet above the adjacent curb. Such transparent elements shall not begin higher than 3 feet above the level of the adjoining curb and shall have a minimum width of 2 feet.

Figure 90-17: Ground Floor Transparency Measurement



90.140-C The transparency of an upper story facade is measured from top of the finished floor to the top of the finished floor above. When there is no floor above, upper story transparency is measured from the top of the finished floor to the top of the wall plate.

Figure 90-18: Upper Floor Transparency Measurement



90.140-D Glazed elements used to satisfy minimum transparency requirements must be clear and non-reflective and not be painted or tinted (transparent, low-emissivity glass is permitted).

Section 90.150 Street-facing Building Entrances

90.150-A Required street-facing building entrances must provide ingress and egress for residents and customers. Additional entrances off another street, pedestrian area or internal parking area are also permitted.

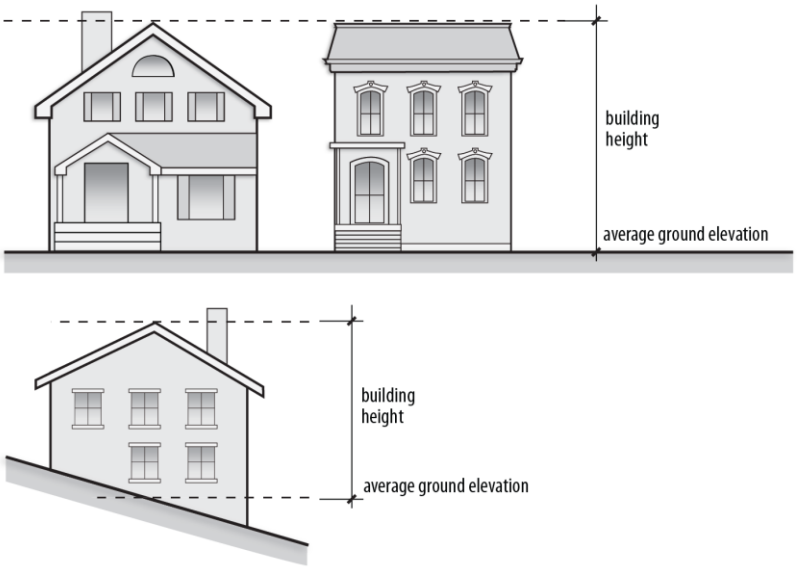
90.150-B An angled entrance may be provided at any corner of a building along the street to meet street-facing entrance requirements.

Section 90.160 Building Height

90.160-A Measurement

1. Building height is measured as the vertical distance from the average ground elevation along the exterior building wall to the highest point of the subject building. For purposes of measuring height:
    a. The average ground elevation is the mid-point between the highest and lowest ground elevations along the exterior building wall; and
    b. The highest point of the building is the coping of a flat roof, the top of a mansard roof or shed roof, or the peak of the highest gable of a gambrel or hip roof. For buildings without a roof, height is measured to the highest point of the structure.

Figure 90-19: Building Height Measurement



90.160-B Exceptions

1. Farm buildings and farm-related structures are not subject to building height limits.
2. Chimneys, elevators, equipment penthouses, monitors, cooling towers and ventilators may exceed maximum building height limits, provided they are not intended for human occupancy and they do not extend more than 20 feet above the top of the principal structure to which they are attached. This 20-foot limit may be increased through the special exception procedures of Section 70.120.
3. Belfries, clock towers, cupolas, domes, flag poles and spires may exceed maximum building height limits, provided they are not intended for human occupancy and they are not more than 150% taller than the applicable height limit. This 150% limit may be increased through the special exception procedures of Section 70.120.

Section 90.170 Other Height Measurements

90.170-A Fences and Walls

The height of fences and walls is measured as vertical distance from the average finished grade on the inside of the fence to the top of the fence or wall. Fences atop walls or landscape features (e.g., raised beds) are measured to average finished grade at the base of the wall or landscape feature. In the case of retaining walls, average finished grade may be measured from the side of the retaining wall abutting and contacting the earth being supported. Fence posts may exceed the height of the highest connected portion of the fence by up to 12 inches.

90.170-B Other Structures

The height of structures other than buildings, fences or walls is measured as vertical distance from the average finished grade at the base of the structure to the highest point of the structure. Unless otherwise expressly stated, the height of

a structure may not exceed the maximum building height allowed in the subject zoning district.

Section 90.180 Noise and Sound

For the purpose of determining compliance with any noise limits expressed in db(A) (A-weighted decibels), the noise must be measured on the A-weighting scale on a sound level meter of standard design and quality having characteristics established by the American National Standards Institute.

Section 90.190 Occupancy

For the purpose of determining compliance with standards or requirements based on building occupancy or capacity, calculations must be based on the building code.

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Section 95.010 General

Words and terms expressly defined in this zoning code have the specific meanings assigned unless the context clearly indicates another meaning. Words and terms that are not expressly defined in this zoning code have the meaning given in the latest edition of *Merriam-Webster's Unabridged Dictionary*.

Section 95.020 Use Definitions

See Chapter 35 for an explanation of the use categorization system used in this zoning code and for use type definitions.

Section 95.030 Measurement-Related Terms

See Chapter 90 for an explanation of various lot and building regulation terms, such as "lot area," "building height," "setbacks" and "build-to-zone."

Section 95.040 Terms Beginning with "A"

Abut or Abutting
To touch or share a contiguous boundary or border, except that in the context of hearing notice and screening or enclosure requirements, "abutting" includes properties that are contiguous or separated only by a non-arterial street, alley or railroad right-of-way.

Accessory Use Bar
A commercial establishment open to the public that sells and serves alcoholic beverages for consumption on the premises, but that is incidental and subordinate to and that occupies no more than 25% of the floor area of a principal use restaurant or fraternal organization. In order to be classified as an accessory use bar, the bar must occupy the same principal building and contiguous tenant space as the principal use and not contain a separate exterior public entrance (i.e., it must be served solely by the customer entrance that serves the principal use restaurant, hotel/motel or fraternal organization).

Accessory Dwelling Unit
See §45.031-A.

Accessory Use or Structure
A use or structure that meets the criteria established in 45.010-B.

Adjacent
Lying near or in the immediate vicinity

Agent
A person duly authorized to act on behalf of the owner of the subject property.

Alcoholic Beverage
As defined in Title 37-A of Oklahoma Statutes

Alley
A public right-of-way that affords a means of access to abutting property, generally secondary in nature.

All-Weather Surface (or Material)
A hard surface, dustless material capable, during ordinary use, of withstanding without substantial deterioration, normal weather conditions. Gravel, rock, or screenings, when treated with a road surface binder approved by the development administrator, meet the definition of an all-weather surface.

Applicant
The owner of the subject property or an agent authorized by the subject property owner to submit an application on the owner's behalf.

Arterial
A street designated on the major street and highway plan as an arterial, parkway or scenic drive.

Arts Commission
The arts commission of the City of Tulsa.

Average Ground Elevation
See §90.160-A1.a.

Awning
A roof-like structure typically made of cloth, metal or other material attached to a frame that extends from and is supported by a building. Awnings are typically erected over a window, doorway or building front and they may be raised or retracted to a position adjacent to the building.

Section 95.050 Terms Beginning with “B”

Base (Zoning) District
Any zoning district that is not an overlay district.

Bioretention
The use of soil and plants to remove pollutants from stormwater runoff.

Block Face
All lots abutting one side of a street between the 2 nearest intersecting streets.

Board of Adjustment (BOA)
The Board of Adjustment of the City of Tulsa.

Build-to-Zone (or Build-to Line)
See Section 90.110.

Building
A structure that is permanently affixed to the land; with or without a roof, or walls on all sides; and used or intended for supporting or sheltering any use or occupancy.

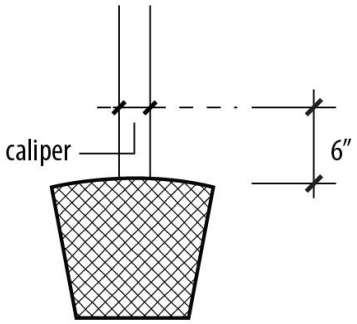
Building Coverage
See Section 90.120.

Building Height
See Section 90.160.

Section 95.060 Terms Beginning with “C”

Caliper
The diameter of the tree trunk measured at a point 6 inches above the root ball or soil level.

Figure 95-1: Caliper (Tree) Measurement



Carport
Any parking space or spaces having a roof, but not enclosed by walls, and accessory to a dwelling or dwellings. Parking garages and parking structures are not carports.

Car-share Program
A system in which a fleet of cars (or other motor vehicles) is made available for use by members of the car-share program and that exhibit all of the following characteristics:

1. Members are permitted to use vehicles from the car-share program fleet on an hourly basis;
2. Car-share vehicles are generally available 24 hours a day and 7 days a week to members in parking spaces at dispersed locations or facilities; and
3. No separate written agreement is required each time a member reserves and uses a car-share vehicle.

Car-share Vehicle
A motor vehicle from a car-share program fleet.

Character
Any letter of the alphabet or any numeral.

City
The City of Tulsa, Oklahoma.

City Council
The City Council of the City of Tulsa.

Coffee Roasting
Applying heat to green coffee beans to produce darker roasted beans that can be used to brew coffee.

Cold Frame
An unheated structure no more than 4 feet in height used for protecting seedlings and plants from the cold.

Commercial Message
Any sign, wording, logo, or other representation that directly or indirectly, names, advertises, or calls attention to a business, product, service or other commercial activity.

Comprehensive Plan
The City of Tulsa's official comprehensive plan, as adopted by the planning commission and approved by the city council.

Curb Level
The average (mean) level of the established curb at the frontage of the subject lot. Where no curb has been established, the city engineer is authorized to establish such curb level or its equivalent.

Section 95.070 Terms Beginning with "D"

Designated Residential Development Area
An area specifically designated for residential development by conditions imposed in a PUD, MPD or CO district.

Design Guidelines
The criteria used to guide the preservation commission in review of an application for an HP permit, unless the context clearly indicates another meaning.

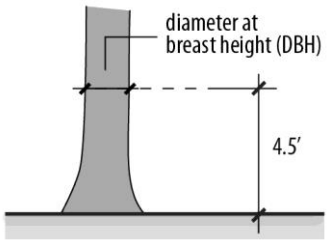
Development
Any man-made change to improved or unimproved real estate, including but not limited to, buildings or other structures, mining, dredging, filling, grading, paving, excavation, or drilling operations.

Development Administrator
See §1.090-I9.

Development Plan
See Section 70.040.

Diameter at Breast Height (DBH)
The diameter of a tree trunk measured at a point 4.5 feet above ground level at the base of the tree.

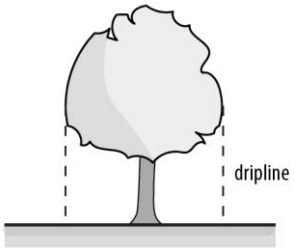
Figure 95-2: Diameter at Breast Height (DBH)



Donation Bins
See "Recyclable Material Bins/Donation Bins".

Dripline
The periphery of the area underneath a tree that would be encompassed by perpendicular lines extending from the exterior edges of the crown of the tree.

Figure 95-3: Dripline (of aTree)



Dumpster
A container with a capacity of more than 1.5 cubic yards or a height of more than 4.5 feet that is designed for receiving, transporting, and depositing waste materials produced by uses that are on the subject site. Dumpsters are typically designed to be hoisted and emptied into a garbage truck. (See Section 45.050 for applicable regulations)

Dwelling Unit
A room or group of rooms arranged, intended, or designed as a habitable unit, containing kitchen, bath and sleeping facilities, for not more than one household living independently of any other household.

Section 95.080 Terms Beginning with "E"

Electric Vehicle
Any vehicle that is licensed and registered for operation on public and private highways, roads, and streets; either partially or exclusively, on electrical energy from the grid or an off-board source, that is stored on-board via a battery. "Electric vehicle" includes: (1) battery electric vehicles; and (2) plug-in hybrid electric vehicles.

Electric Vehicle (EV) Charging Station
A public or private parking space that is served by battery charging station equipment.
Electric vehicle charging station, private (restricted-access) means an EV charging station that is not available for use by the general public. Examples include electric vehicle charging stations that serve residential homeowners or renters, executive parking areas, designated employee parking areas and fleet parking areas.

Electric Vehicle Charging Station, Public
An EV charging station that is accessible to and available for use by the general public.

Electric Vehicle Parking Space
Any parking space that is clearly identified to be used exclusively for the parking of an electric vehicle.

Electrical Fence Charger System
A labeled circuit arrangement, whether energized by a battery or other electrical power source that is or is designed or intended to impart an electrical shock to any person or animal coming in contact with such un-insulated conductors.

Section 95.090 Terms Beginning with "F"

Floor Area
See Section 90.040.

Floor Area Ratio
See Section 90.050.

Floor-to-Ceiling Height
See Section 90.130.

Foot-candle
A measure of illumination, the amount of light falling onto a surface. One lumen of light, shining evenly across one square foot of surface, illuminates that surface to one foot-candle.

Freeway
A street designated as a freeway on the major street and highway plan.

Section 95.100 Terms Beginning with "G"

Garage Sale
The sale of tangible personal property at retail by a person who is not in the business or does not hold himself or herself out to be in the business of selling tangible personal property at retail, when such sale occurs on residentially-zoned property (including in a garage, on a driveway, patio or porch, in the yard or in the residential structure) and is open to the public. Also referred to as Yard Sale, Estate Sale, Moving Sale, Occasional Sale, etc.,

Geothermal Heat Exchange System
Equipment that exchanges thermal energy between the ground (or a water source) and a building. This includes vertical closed loop, horizontal closed loop, water body closed loop system and open loop systems. Also known as ground source heat pumps and geothermal heat pumps.

Grade, Finished
The vertical location of the ground or pavement surface after site grading work is completed in accordance with an approved plan.

Green Roof
An extension of an above-grade building roof that includes at least a waterproof membrane, a root repellent system, a drainage system, a filtering layer, soil with a minimum depth of 3 inches and native or naturalized plants. Also commonly referred to as a "vegetated roof."

Ground-Floor Level
The lowest level of a building that is at or above grade for at least 50% of its interior floor-to-ceiling height.

Section 95.110 Terms Beginning with "H"

Height, Building
See Section 90.160.

Height, Sign
See 60.130-B.

Historic Preservation
The adaptive use, conservation, protection, reconstruction, rehabilitation, restoration, or stabilization of a historic resource.

Adaptive Use
The restrained alteration of a historic resource to accommodate uses for which the resource was not originally constructed, but in such a way so as to maintain the general historical and architectural character.

Conservation
The sustained appearance of a historic resource essentially in its existing state.

Protection
The security of a historic resource as it exists through the establishment of the mechanisms of this zoning code.

Reconstruction
The process of recreating or reproducing by new construction all or part of the form and detail of a vanished historic resource as it appeared at a specific period in time.

Rehabilitation
The process of recreating a historic resource to a state of efficiency or soundness by repair or alteration designed to encourage its continued use, but without noticeably changing the exterior appearance of the historic resource.

Restoration
The process of accurately recovering all or part of the form and detail of a historic resource and its setting as it appeared at a particular period of time by means of the removal of later work and the replacement of missing earlier work.

Stabilization
The process of applying measures designated to halt deterioration and to establish the structural stability of an unsafe or deteriorated resource while maintaining the essential form as it presently exists and without noticeably changing the exterior appearance of the historic resource.

Historic Preservation District
A supplemental zoning district consisting of a building, structure, or site or an area containing buildings, structures, or sites that is a historic resource.

(Historic Preservation) Work
Solely for purposes of administering and enforcing the historic preservation-related provisions of this zoning code, "work" means any changes to an existing building, structure, or lot, or any portion thereof, including but not limited to, the erection, construction, reconstruction, renovation, alteration, painting, removal, or demolition of a building, structure, or lot, irrespective of whether or not a building permit is required.

Historic Resource
A building, structure, site or area containing a concentration, linkage, or continuity of buildings, structures, or sites that are generally 50 years or older and that contain one or more of the following attributes:

1. Significant characteristics, interest, or value as part of the historical development, history, or cultural heritage of the city, state, or nation;
2. Significance as the site of a historic event in the past of the city, state, or nation;
3. Associated with a person, or group of persons, who played a significant role in the historical development, history, and cultural heritage of the city, state, or nation;
4. That is the embodiment of distinguishing characteristics, design, details, materials or craftsmanship which represent a historically significant architectural or engineering innovation, type, style or specimen;
5. That portrays the environment in an era of history characterized by a distinctive architectural, engineering, or construction style;
6. That represents a significant and distinguishable entity of historical importance whose components may lack individual distinction;

7. Yielded and is likely to yield, information important in prehistory or history; or
8. Meets the criteria for listing on the National Register of Historic Places.

Historic Resource: Significant Characteristics

Those characteristics that are important to the historic resource by design or location, and include, but are not limited to materials, detail, height, orientation, proportion, rhythm, scale, setback, setting, shape, and workmanship.

Materials

The physical elements of a building, structure, site, or area that create an aesthetic and structural appearance of the resource, including characteristics such as texture, form, composition, and style.

Detail

Aspects of a building, structure, site or area which, due to particular treatment, draw attention to certain parts or features of the building, structure, site, or area.

Orientation

The position of a building, structure, site, or area relative to a particular point in which it is viewed or in relation to other fixed elements in the environment.

Proportion

The visible relationship and order established between buildings, structures, sites or areas, their individual parts to one another, as well as between the parts and the whole.

Rhythm

The regular pattern or harmonious recurrence of lines, shapes, or forms, such elements occurring within or between buildings, structures, sites or areas; including, but not limited to, windows, doors, roofs, porches, driveways, sidewalks, setbacks and heights

Scale

The size of the parts of a building, structure, site or area in relationship to one another and to the human figure.

Setback

The location of a building or structure as it relates to the street and other buildings and structures around it.

Setting

The surrounding buildings, structures, landscaping and familiar features which provide a visual aesthetic or perceptual quality to historic resources.

Shape

The physical configuration of a building, structure, site or area, established by its form, surfaces, edges, height, width, and depth.

Workmanship

A level of quality exhibited in the construction, detailing, or design of a historic resource.

Home Occupation

An accessory use of a dwelling unit for business or commercial purposes. Home occupations are subject to the regulations of Section 45.090.

Hoop House
A temporary or permanent structure typically made of flexible pipe or other material covered with translucent plastic, constructed in a "half-round" or "hoop" shape, for the purposes of protecting and cultivating plants. A hoop house is considered more temporary than a greenhouse.

Household
One or more persons who inhabit a single dwelling unit, as a single housekeeping unit, that is: (1) traditionally characterized by matrimonial or parent-child relationship, provided that all such persons are related by blood, marriage, adoption, fosterage, or guardianship and no more than 2 unrelated inhabitants are included in the housekeeping unit; or (2) predominantly characterized by voluntary associational, communal relationships, provided no more than 8 inhabitants are included in the housekeeping unit. The term "household" expressly includes community-based residential facilities licensed by or contracted with the Oklahoma Department of Human Services that provide care or supervision by a responsible adult for no more than 8 individuals with developmental or physical disabilities as a single housekeeping unit.

HP Permit
The official document issued by the preservation commission authorizing work within an HP district.

Section 95.120 Terms Beginning with "I"

Inoperable Vehicle
Any motor vehicle from which, for a period of 7 days, the engine, wheels, or other parts have been removed, or in which the engine, wheels, or other parts have been altered, damaged, or otherwise modified so that the vehicle is incapable of being driven under its own motor power. "Inoperable motor vehicle" does not include a motor vehicle that has been rendered temporarily incapable of being driven under its own motor power, solely to perform ordinary service or repair operations.

Intersection, Signalized
The area where motor vehicle traffic is regulated by an official traffic control signal or light, which is also embraced within the prolongation or connection of the lateral curb lines, or if none, then the lateral boundary lines of the roadways of 2 streets that join one another at or approximately at right angles, or the area within which vehicles travel upon different streets joining at any other angle that may conflict, whether or not one such street or roadway crosses the other.

Section 95.130 Terms Beginning with "J"
RESERVED

Section 95.140 Terms Beginning with "K"
RESERVED

Section 95.150 Terms Beginning with "L"

Landscaped Area
The unpaved area of a lot that contains grass, shrubs, flowers, ground cover, trees or plant materials and that may include decorative fixtures such as rock, pools and planters. Areas of a lot containing artificial plants, artificial trees or other artificial vegetation are not considered landscaped area.

Land Use Administrator
See 1.090-I10.

Lawfully Established
A use, structure, lot or sign (as the context indicates) that was established in conformance with all applicable zoning code regulations in effect at the time of its establishment.

Less Intensive Zoning District
A zoning district classification that is identified as being less intensive than another zoning district within the same grouping of districts, as indicated in Table 5-1, Table 10-1, Table 15-1. Overlay districts, special district and zoning districts that are expressly excluded from the relative intensity scales identified in these tables do not qualify as less intensive zoning districts.

Light Trespass
Light that is emitted into an unintended area.

Liner Building
A building or portion of a building that is specifically designed to mask a parking garage or structure from frontage on a public street and that consists of habitable or occupiable floor space.

Lot
A lot of record.

Lot Area
See Section 90.020.

Lot Area per Unit
A measurement of allowed residential density. See Section 90.030.

Lot, Corner
A lot abutting 2 or more streets at their intersection or upon 2 segments of the same street, when such segments form an interior angle of less than 135 degrees. The point of intersection of street rights-of-way lines is the corner.

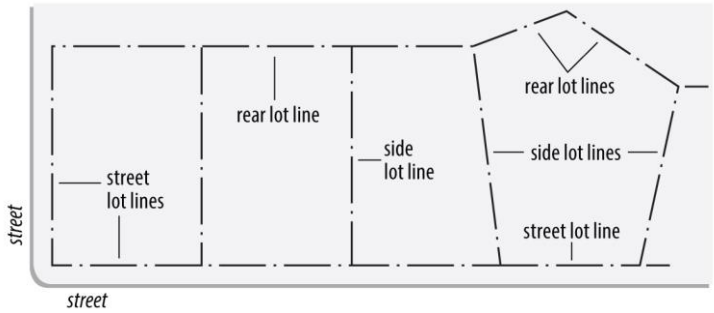
Lot, Double-frontage
An interior lot with frontage on more than one street or a corner lot with frontage on more than 2 streets.

Lot, Interior
A lot other than a corner lot.

Lot of Record
A lot that is part of a subdivision, the plat of which is recorded in the county clerk's office; a parcel of land, the conveyance of which is lawfully recorded in the county clerk's office; or the balance of a parcel of land where the conveyance of another portion of that parcel is lawfully recorded in the county clerk's office.

Lot Line
Any boundary of a lot.

Figure 95-4: Lot Lines



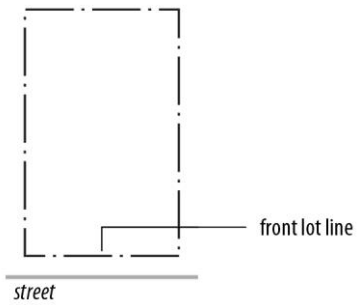
Lot Line, Front

The boundary of a lot that abuts the street. Unless otherwise expressly stated, the owner of the subject property may select which lot line is the front lot line on corner lots.

Lot Line, Street

The boundary of a lot that abuts a street. A lot may have more than one street lot line, and a street lot line may also be a front lot line.

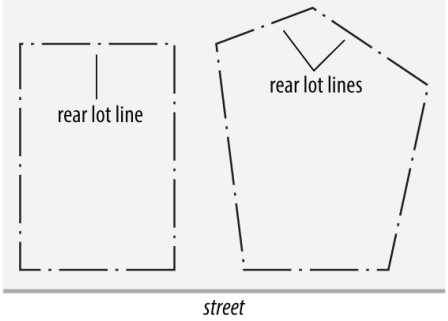
Figure 95-5: Street Lot Line



Lot Line, Rear

The boundary of a lot that is most distant from and most nearly parallel to the front lot line.

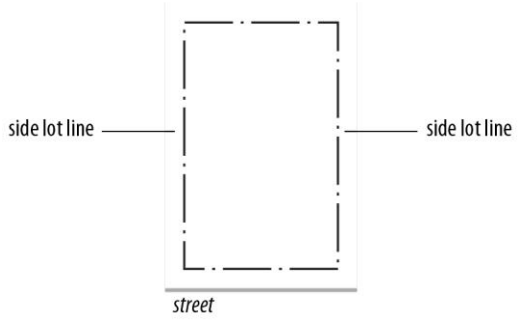
Figure 95-6: Rear Lot Line



Lot Line, Side

Any boundary of a lot that is not a street lot line or a rear lot line.

Figure 95-7: Side Lot Lines



Lot Width
See Section 90.060.

Low-Impact Development (LID)
An approach to land development (or redevelopment) that works with nature to manage stormwater as close to its source as possible. LID employs principles such as preserving and recreating natural landscape features, minimizing impervious area to create functional and appealing site drainage features that treat stormwater as a resource rather than a waste product. Common LID practices include bioretention facilities, rain gardens, green roofs, rain barrels or cisterns, and permeable paving.

Section 95.160 Terms Beginning with "M"

Major Street and Highway Plan
The Tulsa Metropolitan Area Major Street and Highway Plan, which is adopted as a functional element of the comprehensive plan.

Massage Therapy
The manipulation of soft or connective tissues of the human body to alleviate pain, enhance circulation, improve joint mobilization, relieve stress or muscle tension. This definition expressly excludes sexually oriented business establishments and any manipulation of the human body associated with a sexually oriented business establishment.

Mobile Storage Unit, Temporary
A mobile, fully enclosed container that is specifically designed and used for the temporary storage of household goods, wares, and materials for the purpose of moving, relocation, or temporary storage during construction. This definition does not include a shipping or cargo container, modified or otherwise.

Multi-tenant Development
A development typically under unified ownership and control consisting of 2 or more business establishments, which may be on the same lot or on separate lots. The tenants of multi-tenant development typically share vehicle access and parking facilities.

Section 95.170 Terms Beginning with "N"

NA (or –)
Not applicable or no requirement.

Neon
Gas-filled tubing made of glass or similar products which creates illumination when charged with electricity. Tubing may contain alternatives such as light-emitting diodes (LED) provided that any alternative must produce illumination that is a continuous, uninterrupted line similar to illumination produced by gaseous illumination technology.

NIT
A unit of illuminative brightness equal to one candela per square meter, measured perpendicular to the rays of the source.

Nonconforming Development Feature
See 80.070-A.

Nonconforming Lot
See 80.070-A.

Nonconforming Use
See 80.070-A.

Nonconforming Sign
See 80.070-A.

Nonconforming Structure
See 80.070-A.

Nonconformity
A nonconforming lot, nonconforming use, nonconforming structure, nonconforming development feature or nonconforming sign.

Nonresidential Building
Any principal building other than a residential building.

Nonresidential Development Area
An area designated for nonresidential development on an approved development plan, such as in a PUD, MPD or CO district.

Nonresidential District or Nonresidential Zoning District
Any zoning districts other an R (residential) district.

Section 95.180 Terms Beginning with "O"

Open-Air Uses
Uses of land that do not involve buildings or that involve buildings that are incidental and accessory to the open-air use of the lot. Typical examples include storage yards, vehicle impound yards, auto wrecking and junkyard uses.

Open Space per Unit
See Section 90.080.

Outdoor Customer Seating/Dining Area
The area of all unenclosed areas used or intended to be used for seating and dining by customers and guests, including standing table areas.

Overlay District
A zoning district that over-lays one or more base zoning districts and imposes requirements in addition to those of the base district or modifies the regulations otherwise applicable in the base zoning district.

Section 95.190 Terms Beginning with "P"

Package Store
As defined in Title 37-A of Oklahoma Statutes.

Parapet or Parapet Wall
A wall-like barrier at the edge of a roof that acts as a vertical extension of an exterior building wall extending above the roof height of the building. Parapets may serve as a safety or architectural feature.

Parking Area
The vehicular driving surfaces and parking area which includes the parking spaces, the maneuvering areas necessary to enter and exit the spaces and the drives providing access to the parking spaces and maneuvering areas from a public or private street or other parking areas.

Parking Space, Off-Street
A space on a lot intended and reserved for the parking of an automobile.

Parking Space, Required Off-Street
A space on a lot reserved for parking required by this zoning code.

Permanent Foundation
A foundation that meets the requirements established in Title 51 Tulsa Revised Ordinances.

Photovoltaic Cell
A semiconductor device that converts solar energy into electricity.

Planned (Street) Right-of-Way
The right-of-way designated in the *Tulsa Metropolitan Area Major Street and Highway Plan*.

Planning Commission
See §1.090-I5.

Planning Director
See §1.090-I-4.

Preservation (Historic)
See "historic preservation."

Preservation Commission
See §1.090-I7.

Preservation Officer
See §1.090-I8.

Principal Building
A building or combination of buildings of chief importance or function on a lot. In general, the principal use is carried out in the principal building.

Principal Use
A use or activity or combination of which are of chief importance on the lot; one of the main purposes for which the land, buildings or structures are intended, designed or ordinarily used.

Proof Gallon
One liquid gallon of beverage grade spirits that is 50% alcohol by volume at 60 degrees F. Note: spirits bottled at 80 proof (40% alcohol) would be 0.8 proof gallons per gallon of liquid. At 125 proof, a gallon of liquid would be 1.25 proof gallons.

Section 95.200 Terms Beginning with "Q"
RESERVED

Section 95.210 Terms Beginning with "R"

Rainwater Harvesting Equipment
A rain barrel, cistern or similar container that collects and stores rainwater or other water that would otherwise be lost as runoff.

Recreational Vehicle (RV)
A trailer, boat trailer, travel trailer, camping trailer, truck camper, camper shell, motor home, tent trailer, boat, houseboat, or similar vehicle or unit. Camper shells that are attached to a pickup truck are not considered a recreational vehicle.

Recyclable Material Bins/Donation Bins
A container or drop box with a capacity of more than 1.5 cubic yards or a height of more than 4.5 feet that is provided for receiving and temporary storing of recyclable materials or salvageable personal property such as paper, metal, glass, and plastic, as well as clothing, shoes, books, and toys. Recyclable material bins/donation bins may receive items to be reused or resold for the purpose of charitable solicitation. Recyclable material bins/donation bins include both containers used by uses located on the subject site and those used by consumers who bring their recyclables from other (off-site) locations. (See Section 45.051 for applicable regulations)

Residential Building
A detached house, townhouse, duplex or apartment/condo building (See also building types described in Section 35.010)

Residential Development Area
An area designated for residential development on an approved development plan, such as in a PUD, MPD or CO district.

Retaining Wall
A vertical structure built from stone or brick masonry, reinforced concrete, segmented block or other material approved by the development administrator and built to support earth of a higher level on one side than on the other.

Roomer
An occupant of a rooming unit who is not a member of the household occupying the principal residential building.

Rooming Unit
Any habitable room or group of adjoining habitable rooms that is an accessory use to a household living use and forming a single unit with facilities that are used or intended to be used primarily for living and sleeping but not for cooking.

Route 66 Commission
The Route 66 Commission of the City of Tulsa.

Section 95.220 Terms Beginning with "S"

Setback
An open, unobstructed area that is required to be provided by this zoning code. See Section 90.090.

Sexual Conduct
Any and all of the following: (1) the fondling or other touching of human genitals, pubic region, buttocks, or female breasts; (2) ultimate sex acts, normal or perverted, actual or simulated, including intercourse, oral copulation, sodomy; (3) masturbation; and (4) excretory functions as part of or in connection with any of the activities set forth in (1) through (3) above.

Sign
Any object, device, structure or part thereof used to advertise, identify, display or attract attention to an object, person, institution, organization, business, product, service, event or location by any means, including words, letters, figures, designs, symbols, fixtures, colors, illumination or projected images. Signs as defined herein do not include temporary holiday decorations; or landscape features that display no words or symbols.

Sign, Animation
The presentation of pictorials and graphics on signs displayed in a progression of frames that give the illusion of motion, including but not limited to the illusion of moving objects, moving patterns or bands of light, or expanding or contracting shapes.

Sign Area
See 60.130-A.

(Sign) Banner
A sign composed of lightweight, flexible, non-rigid material that is mounted to a pole or a structure at one or more edges either vertically or horizontally. Flags are not considered banners.

Sign Budget
Sign regulations governing the maximum aggregate number and/or maximum aggregate area of all or a defined group of signs on a lot.

Sign, Campaign
A temporary sign displayed on a lot during an active local, state, or federal campaign for public office or ballot issue or referenda.

(Sign) Commercial Message
See "Commercial Message."

Sign, Construction
A temporary sign located on a lot upon which building or construction is actively occurring.

Sign Corridor, Freeway
An area 400 feet in width on each side of and adjacent to the publicly acquired right-of-way of a freeway.

Sign, Development Plan
A sign approved as part of a development plan (See Section 70.040) that directs attention to a business, commodity, service, or activity that is conducted, sold, or offered on property that lies within the boundaries of an approved development plan covering a contiguous area that includes both the subject sign and the subject business, commodity, service, or activity.

Sign, Drive-through
A sign located on the site of an allowed drive-through use.

Sign, Driveway
A sign located near a driveway entrance from a street or near an internal site driveway or drive aisle (See also 60.030-A).

(Sign) Dwell Time
The duration or interval of time during that each individual advertisement or message is displayed on any sign with a dynamic display.

Sign, Dynamic Display
Any element of a sign or sign structure capable of displaying words, symbols, figures, images or messages that can be electronically or mechanically changed by remote or automatic means. This also includes any display that incorporates rotating panels, LED lights manipulated through digital input, "digital ink" or any other method or technology that allows a sign to present a series of images, messages or displays. This does not include electronic message center signs.

Sign, Electronic Message Center
An electronic sign or portion thereof which displays alphanumeric characters only, which can be electronically changed or rearranged without altering the face or the surface of the sign.

(Sign) Flag
A generally rectangular or triangular sign or part of a sign made of fabric or other pliant material attached to a flagpole only along one side and which predominately displays distinctive colors, images, shapes or designs rather than legible words, letters, numbers or other linguistic characters.

Sign, Flashing (Illumination)
A light source or other image that in whole or in part physically changes in light intensity or gives the appearance of such change.

Sign, Freestanding
A sign that is part of a self-supporting structure, other than a building or portion of a building. Sometimes referred to as a "ground sign."

Figure 95-8: Freestanding Sign



Sign, Height of
See 60.130-B.

Sign, Illuminated
Any sign, other than a dynamic display, that is directly lighted by any constant light source, internal or external, except light sources specifically and clearly operated for the purpose of lighting the general area in which the sign is located rather than the sign itself.

Sign, Illumination and Luminance
See 60.130-D.

Sign, Monument
A freestanding sign where the base of the sign structure is on the ground or no more than 12 inches above the ground adjacent to the sign. Typically constructed of brick, wood, stone, or metal, monument signs have a base that is at least 75% of the width of the sign face.

(Sign) Nameplate
A sign attached flush against a building.

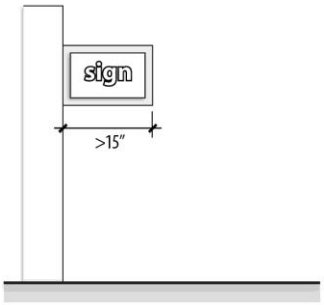
Sign, Off-premise Business
A sign that directs attention to a business, commodity, service, or activity that is conducted, sold or offered within the development where the subject sign is located and that is expressly approved as part of a mandatory development plan.

Sign, Off-premise Outdoor Advertising
See 35.100-B.

Sign, On-premise
A sign that directs attention to a business, commodity, service, or activity that is conducted, sold or offered upon the lot where the subject sign is located.

Sign, Projecting
A sign that is affixed to a building wall, canopy, awning or marquee and that extends horizontally more than 15 inches from the wall, canopy, awning or marquee.

Figure 95-9: Projecting Sign



Sign, Promotional
A temporary sign that is located on a lot on which a business promotion is actively occurring and that consists of tinsel, flags, balloons, banners, wind devices, or similar attention-getting devices, whether or not the same contain any words, numbers or characters.

Sign, Real Estate
A temporary sign located on a lot or portion of a lot that is actively being marketed for sale, rental or lease.

Sign, Roof
A sign that is affixed to a roof, extended roof, pitched roof, or canopy, and that extends above the building wall or parapet wall.

(Sign) Rules of Measurement
See Section 60.130.

Sign, Special Event
A sign approved in connection with a special event permit approved by the city council (see also 60.030-E6)

(Sign) Storyboarding
The consecutive display of advertisements or messages on a sign, used to provide a continuing or evolving message, theme or story.

(Sign) Static Message
An advertisement or message that, when displayed, contains no motion, flashing, changeable copy, running lights, variances in brightness, or animation.

Sign, Wall
A sign affixed to a building wall, canopy, awning, marquee or parapet wall, or a sign displayed in or on a door that does not extend horizontally more than 15 inches from the wall, canopy, awning, marquee, parapet wall, or door, nor extend above the parapet wall.

(Sign) Wind Device
Any flag, banner, pennant, streamer or similar device that moves freely in the wind.

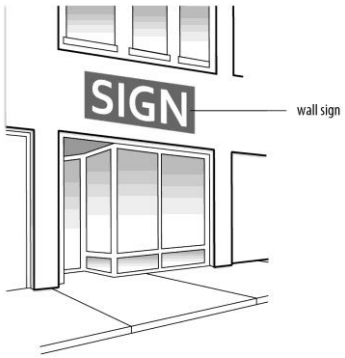
Sign, Window
A sign attached to a window.

(Sign) Word

Any and all of the following (otherwise, each separate character is considered to be a word):

1. A word in any language found in any standard unabridged dictionary or dictionary of slang.
2. A proper noun or any initial.
3. A separate symbol or abbreviation, such as "&", "S", "%" and "INC".
4. A telephone number, street number or commonly used combination of numerals and/or symbols such as "$5.00" or "50%".
5. A symbol or logo that is a registered trademark, but that itself contains no word or character.

Figure 95-10: Wall Sign



Site Plan

A detailed plan or set of plans depicting the arrangement of buildings, parking, landscaping, lighting, walls, grading, elevations, building materials, signs, dumpsters, and other information necessary to determine compliance with applicable regulations (see also Section 70.050).

Solar Energy System

A system intended to convert solar energy into thermal, mechanical or electrical energy.

Solar Energy System, Building-Integrated

A solar energy system that is an integral part of a principal or accessory building, rather than a separate mechanical device, replacing or substituting for an architectural or structural part of the building. Building-integrated systems include, but are not limited to, photovoltaic or hot water systems that are contained within roofing materials, windows, skylights, shading devices and similar architectural components.

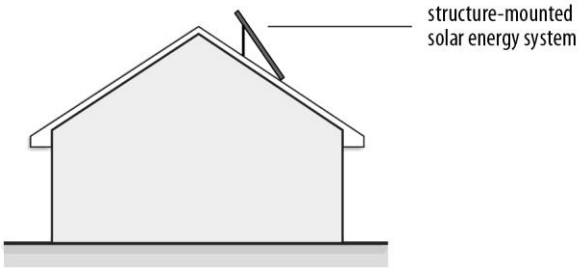
Figure 95-11: Building-Integrated Solar Energy System



Solar Energy System, Structure-Mounted

A solar energy system that is mounted on the façade or roof of either a principal or accessory structure.

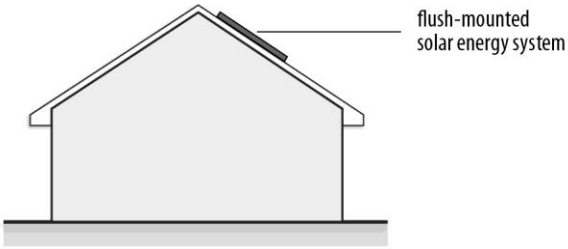
Figure 95-12: Structure-Mounted Solar Energy System



Solar Energy System, Flush-Mounted

A solar energy system that is mounted flush with a finished building surface, at no more than 6 inches in height above that surface.

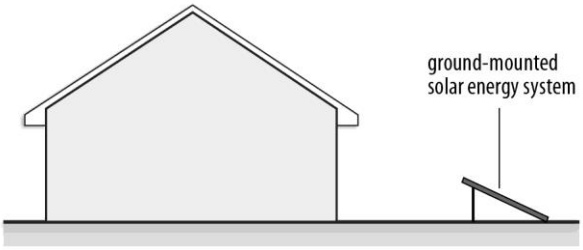
Figure 95-13: Flush-Mounted Solar Energy System



Solar Energy System, Ground-Mounted

A solar energy system mounted on the ground and not attached to any other structure other than structural supports.

Figure 95-14: Ground_mounted Solar Energy System



Solar Panel
A group of photovoltaic cells assembled on a panel. Panels are assembled on-site into solar arrays.

Special Event
A temporary event or group of related temporary events typically involving a mass gathering of people on public right-of-way or public property; or on private property in a manner that results in significant impacts on public property or right-of-way.

Special Exception
A use or a design element or characteristic of a use or development that is not permitted by right because of potential adverse effect, but that if controlled in the particular instance as to its relationship to the neighborhood and to the general welfare, may be permitted by the board of adjustment. In order to be approved as a special exception, the special exception must be expressly authorized by this zoning code and reviewed in accordance with the substantive and procedural standards of this zoning code.

Specified Anatomical Areas
Any and all of the following: (1) human genitals, pubic region, buttocks, and female breasts below a point immediately above the top of the areola; and (2) human male genitals in a discernible turgid state, even if completely and opaquely covered.

Street-Facing Building Entrance
See Section 90.150.

Street Frontage
See Section 90.070.

Street, Minor
All classifications of public streets not defined as major streets.

Street, Major
All classifications of streets shown on and defined by the major street and highway plan, except residential collector streets. Major streets include freeways and freeway service roads.

Street, Perimeter
A public street that abuts the exterior boundary of a residential or nonresidential development.

Street Wall
The wall or part of the building nearest the abutting street.

Street Yard
See Yard, Street.

Structure
Anything constructed or erected with a fixed location on the ground, or attached to something having a fixed location on the ground, and includes buildings, parking areas, walks, fences canopies and signs.

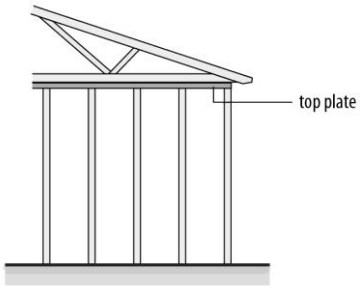
Section 95.230 Terms Beginning with "T"

Tasting Room
A room that is ancillary to the production of beer at a microbrewery or large brewery where the public can purchase and /or consume only the beer produced on site.

Tent
Any structure, enclosure, or shelter constructed of fabric or other pliable material supported by any manner except by air or the contents protected by the material.

Top Plate
The horizontal timber directly carrying the trusses of a roof or the rafters.

Figure 95-15: Top Plate



Transition Time
The duration or interval of time between which each individual advertisement or message is displayed on any dynamic display.

Transparency
See Section 90.140.

Tree
A woody plant having one or more defined stems or trunks.

Tree, Large
A tree that will attain a mature height of over 60 feet and a spread or canopy that is at least 35 feet in width.

Tree, Medium
A tree that will attain a mature height of between 30 and 60 feet and a spread or canopy that is at least 25 feet in width.

Tree, Small
A Tree that will attain a mature height of less than 30 feet and a spread or canopy that is at least 15 feet in width.

Tulsa Metropolitan Area Planning Commission
See §1.090-I5.

Section 95.240 Terms Beginning with "U"

Utility-scale Energy Production
An energy production facility that produces electric energy for widespread distribution through the electric power grid.

Section 95.250 Terms Beginning with "V"

Variance
See Section 70.130.

Vehicle Fuels, Alternative
Electricity, CNG (compressed natural gas), LNG (liquefied natural gas), LPG (liquefied petroleum gas), and hydrogen.

Vehicle Fuels, Conventional
Gasoline and diesel fuel.

Section 95.260 Terms Beginning with "W"

Walkability
The extent to which the built environment is safe and inviting for pedestrians and for the presence of people living, shopping, visiting, enjoying or spending time in an area.

Walkway
A clearly defined path for non-motorized movement between buildings, structures, destinations, or other walkways on or adjacent to a site.

Wind Energy Conversion System
A device that directly converts wind energy into usable thermal, mechanical, or electrical energy, including such devices as windmills and wind turbines. The "system" includes towers and supporting structures and directly connected facilities such as generators, alternators, inverters, batteries, and associated control equipment.

Wind Energy Conversion System, Small
A wind energy conversion system with a power-related capacity of no more than 100 kW that is primarily intended to produce power for on-site consumption, as a supplement to utility power or in lieu of utility power. Small wind energy systems are often connected to the electric utility for the purpose of "net metering."

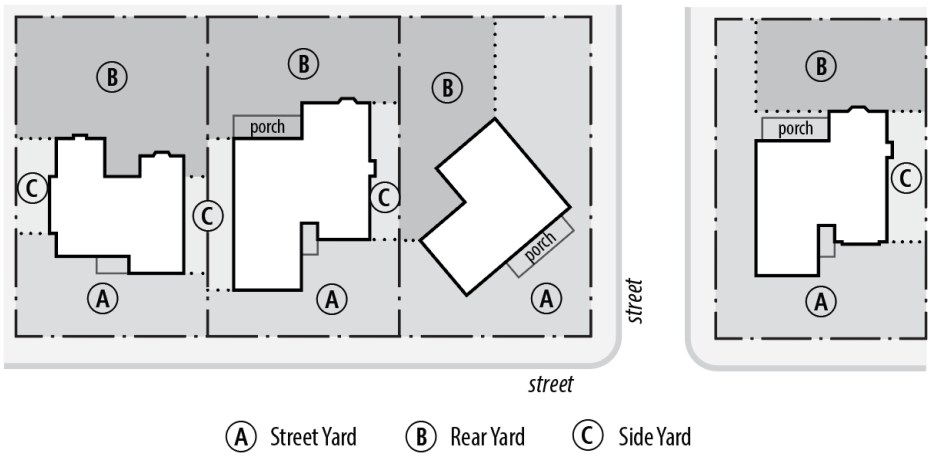
Window Area
See 60.130-E.

Section 95.270 Terms Beginning with "X"
RESERVED

Section 95.280 Terms Beginning with "Y"

Yard
An actual (as opposed to "required") open, unoccupied space that exists on a lot between a principal building and a lot line.

Figure 95-16: Yards



Yard, Front
A yard extending along the full width of the lot from the front lot line to the façade of the principal building oriented toward the front lot line, not including projections, such as porches, chimneys, and bay windows.

Yard, Rear
A yard extending along the full width of the lot from the rear lot line to the façade of the principal building oriented toward the rear lot line, not including projections, such as porches, chimneys, and bay windows. On a corner lot, the rear yard extends between the interior side lot line and the street yard.

Yard, Side
A yard extending along a side lot line between the front yard and the rear yard.

Yard, Street
A yard extending along the full width of the lot from the street lot line to the façade of the principal building oriented toward the street, not including projections, such as porches, chimneys, and bay windows.

Section 95.290 Terms Beginning with "Z"
RESERVED

Appendix

Amendment Inventory

Description	*Section(s)*	*Ordinance*	*Effective*
Original adoption of Zoning Code	ALL	23403	01/01/2016
River Design Overlay and notice requirements amendment	20.050 70.010	23514	07/11/2016
Driveway width amendments	30.010-I.2.c [9]	23617	01/23/2017
	55.090-F.3	23974	09/18/2018

Chapter 1: Introductory Provisions

Description	*Section(s)*	*Ordinance*	*Effective*
Amended to reflect the change in City of Tulsa department reorganization.	1.090-I.4 1.090-I.8 1.090-I.9 1.090-I.10	23963	08/28/2018
	1.090-I.4 1.090-I.10	24108	05/14/2019
		25055	07/04/2023

Chapter 5: Residential Districts

Description	*Section(s)*	*Ordinance*	*Effective*
Added specific uses to Household Living subcategory and deleted building types.	Table 5-2	23668	05/10/2017
Created new section and table to clarify which residential building types are permitted for specific uses in the Household Living subcategory.	5.020-G Table 5-2.5		
Added lot area per unit requirements for other allowed buildings/uses permitted by right and special exception.	Table 5-3		
Amended to correct typographical error.	5.030-B.4		
Added Farm, Market- or Community-supported as a use permitted by Special Exception.	Table 5-2 Table 5-2 Notes	24108	05/14/2019
Changed reference to lighting standards to reflect the new Lighting Chapter.	5.040-G	24165	08/06/2019
Added table notes pertaining to accessory dwelling units.	5.020, Table 5-2 Notes	24246	12/09/2019

Chapter 5: Residential Districts

Description	*Section(s)*	*Ordinance*	*Effective*
Allowed short-term rentals to be permitted by right in residential zoning districts.	Table 5-2	24328	07/01/2020
Reduced the minimum lot area, lot area per unit, and lot width for certain building types; reduced the minimum building setback from streets in certain districts; specified that a particular setback applies only to non-residential uses requiring special exception approval.	Table 5-3 Table 5-3 Notes	24644	08/31/2021
Corrected "Governmental Service" to read "Governmental Service or Similar Functions."	Table 5-2	24725	12/24/2021
Included vacant lots and lots occupied by residential uses when determining whether a minimum 25 ft. setback is required for non-residential uses requiring special exception approval.	Table 5-3 Note 4	24825	06/28/2022
Removed an incorrect statement that building types are listed in Table 5-2.	5.020-A	25055	07/04/2023
Removed the 25-foot building setback requirement for day care uses.	Table 5-3 Table Note [4]	25092	09/05/2023
Specify three distinct uses under the Day Care subcategory: Family Child Care Homes established before Nov. 15, 2023, Family Child Care Homes established after Nov. 15, 2023, and Child Care Center; and add Table Note [4]	Table 5-2, Table 5-2 Notes	25192	01/17/2024
Removed unnecessary references to accessory dwelling units in table notes; renumbered table notes; changed deadline for family child care homes	Table 5-2	25429	12/10/2024
Added provisions for farmers markets	Table 5-2	25604	07/29/2025
Allowed three or more households on a single lot in RS-5	Table 5-2	25656	10/21/2025
Allowed minimum side street setbacks to be reduced on arterial streets in addition to non-arterial streets.	Table 5-3 Notes		

Chapter 10: Mixed-Use Districts

Description	*Section(s)*	*Ordinance*	*Effective*
Amended height designation to match Table 10-8	10.010-C.3	23668	05/10/2017
Renumbered sections 10.030-B through 10.030-E	10.030		
Amended language and tables to be consistent with the addition of vertical mixed-use and mixed-use as building; corrected build-to-zone typo; established min/max feet as a percentage in primary and secondary street BTZ section of the tables.	10.030-B.2.a 10.030-B.3 Table 10-4 10.030-C.2.a 10.030-C.3 Table 10-5 10.030-D.2.a 10.030-D.3 Table10-6 Table 10-7		
Added Small Box Discount Store and Grocery Store to use tables.	Table 10-2, 10.020-G Table Notes	23904	04/21/2018
Amended table to reduce minimum lot width and lot size requirements for Mixed-use buildings in -F Character zones.	Table 10-7	23911	06/11/2018
Added Medical Marijuana dispensary to use table; added reference to supplemental use regulations for Medical Marijuana Uses.	Table 10-2	24051	12/09/2018
Deleted references to supplemental regulations.	Table 10-2	24108	05/14/2019
Revised language to reflect new terms surrounding alcohol.	10.020-G Table Notes		
Changed reference to lighting standards to reflect the new Lighting Chapter.	10.050-G	24165	08/06/2019
Allowed short-term rentals by right in MX zoning districts	Table 10-2	24328	07/01/2020
Corrected “Governmental Service” to read “Governmental Service or Similar Functions”	Table 10-2	24725	12/24/2021
Removed “-P” from section title to be consistent with other similar section titles	10.030-B		
Revised build-to-zone from 10 feet to 20 feet	Table 10-4		
Updated figure to more accurately depict the regulations	Figure 10-3		

Chapter 10: Mixed-Use Districts

Description	*Section(s)*	*Ordinance*	*Effective*
Added reference for measuring the build-to-zone	Tables 10-4, 10-5, 10-6		
Corrected formatting error	Table 10-6		
Specified that drive aisles are not prohibited between the building and the street right-of-way.	Table 10-4 Note [1]	25055	07/04/2023
Specify two distinct uses under the Day Care subcategory: Child Care Center, and Family Child Care Home	Table 10-2	25192	01/17/2024
Added provisions for farmers markets	Table 10-2	25604	07/29/2025
Removed unnecessary and out-of-date descriptions of comprehensive plan designations associated with MX zoning districts.	10.010-B	25656	10/21/2025
Reduced the minimum ground floor ceiling height to 12 feet.	Table 10-4, Table 10-5, Table 10-6		

Chapter 15: Office, Commercial, and Industrial Districts

Description	*Section(s)*	*Ordinance*	*Effective*
Added specific uses to Household Living subcategory and deleted building types; deleted Greenhouse as an agricultural use subcategory; removed supplemental regulation reference for Religious Assembly subcategory; amended Restaurant use subcategory to be permitted by right in OH district; Modified table note to allow restaurants as an accessory use, with limitations, in all OL, OM, and OMD districts.	Table 15-2 15.020-G.1	23668	05/10/2017
Created new section and table to clarify which residential building types are permitted for specific uses in the Household Living subcategory; added Trade School use by Special Exception to OM, OMH, and OH districts.	15.020-H Table 15-2.5		
Amended to correct a typo.	15.030-B.3		
Revised garage door street setback regulations.	15.030-B.4		
Amended to include storage of recyclable materials as an outdoor storage and display in CS district.	15.040-A		
Added Small Box Discount Store and Grocery Store to use tables.	Table15-2 15.020-G Table Notes	23904	04/21/2018
Added Trade School use by Special Exception to OM, OMH, and OH districts.	Table 15-2	23911	06/11/2018
Amended to allow patio house by right in OL districts and by special exceptions in higher intensity O and C districts.	Table 15-2.5		
Added Medical Marijuana Dispensary to use table; added references to supplemental use regulations for Medical Marijuana Uses.	Table 15-2	24051	12/09/2018
Deleted certain references to supplemental regulations; Revised language to reflect new terms surrounding alcohol.	Table 15-2 15.020-G Table Notes	24108	05/14/2019
Added references to supplemental regulations	Table 15-2.5		
Changed reference to lighting standards to reflect the new Lighting Chapter.	15.040-H	24165	08/06/2019
Added a provision for building setbacks from the AG-R district; Added a reference to the AG-R district	Table 15-3 Table 15-3 Note 6 15.040-A	24246	12/09/2019

Chapter 15: Office, Commercial, and Industrial Districts			
Description	***Section(s)***	***Ordinance***	***Effective***
Revise the title of a use subcategory to read "Governmental and Social Service" and to allow Horticultural Nursery Use by Special Exception in CG and CH Zoning Districts.	Table 15-2	24382	06/19/2020
Allowed short-term rentals in O, C, and I zoning districts.	Table 15-2	24328	07/01/2020
Corrected household living uses for Industrial zoning districts; corrected formatting error.	Table 15-2	24725	12/24/2021
Provides a building setback from railroad right-of-way.	Table 5-3 Note [6]	25055	07/04/2023
Allowed Day Care use by right in OL district	Table 15-2	25092	09/05/2023
Specify two distinct uses under the Day Care subcategory: Child Care Center, and Family Child Care Home	Table 15-2	25192	01/17/2024
Allowed Duplexes, Multi-Unit Houses, Apartments/Condos, and Cottage House Developments in more O and C districts	Table 15-2	25429	12/10/2024
Removed requirements for Lot Area per Unit and Open Space per Unit in O, C, and I districts; renumbered table notes	Table 15-3 Table 15-3 Notes		
Added provisions for farmers markets	Table 15-2	25604	07/29/2025
Added note to clarify that minimum street frontages apply to townhouse developments, not to individual townhouse units	Table 15-3, Table 15-3 Note [4]	25656	10/21/2025

Chapter 20: Overlay Districts

Description	*Section(s)*	*Ordinance*	*Effective*
Amended to allow for park accessory buildings to be exempt from overlay standards.	20.050-A.4.d	23668	05/10/2017
Revised to allow special provisions for developments on larger parcels to be located in an MPD.	20.050-A.7		
Added specific uses to Household Living subcategory and deleted building types.	Table 20-1		
Created new section and table to clarify which residential building types are permitted for specific uses in the Household Living subcategory.	20.050-C Table 20-1.5		
Renumbered section.	20.050-D		
Added Healthy Neighborhoods section	20.060	23904	04/21/2018
Added Route 66 Overlay District.	20.070	23933	06/17/2018
Added Medical Marijuana Dispensary to use table.	Table 20-1	24051	12/09/2018
Added Neighborhood Infill Overlay District.	20.080	24644	08/31/2021
Corrected the number of Figure 20-5.	20.080-E.2 Figure 20-5	24725	12/24/2021
Reduced the maximum number of dwelling units permitted on a single lot from 8 to 6.	Table 20-4.5 Note 1	24825	06/28/2022
Clarified that drive aisles are not prohibited, and specified the type of townhouse to which the regulation applies.	20.080-E2		
Added Neighborhood Character Overlay District.	20.090	24959	01/03/2023
Specified that HP overlays, PI overlays, and PUDs are not considered Special Area Overlays.	20.030-A	25055	07/04/2023
Refers to CBD as CBD zoning rather than CBD district.	20.030-C		
Added new Neighborhood Infill Overlay-2 District.	20.100	25087	08/28/2023
Added requirement to HP design guidelines to identify historic resources within City parks within HP zoning map amendments	20.020-D	25212	02/07/2024
Added map abbreviation to title	20.070	25322	06/02/2024
Removed restriction on overlays implementing design requirements requiring discretionary review and approval	20.030-B.3		
Added provisions for roadside attractions within the Route 66 overlay district	20.070-A.1-3 20.070-C		
Removed requirement of recordation of Special Area Overlays	20.030-E	25330	07/16/2024

Chapter 20: Overlay Districts

Description	*Section(s)*	*Ordinance*	*Effective*
Clarified what triggers compliance for nonconforming structures	20.050-A.5.b(2)		
Required masonry skirting for by-right status of manufactured housing units built in 2016 or later.	20.100-C.1 Table 20-7 Notes		
Removed unnecessary table notes and references	Table 20-4 Notes Table 20-6 Notes	25429	12/10/2024
Removed reference to detached houses and duplexes	20.090-C		
Added exemptions from and ability to modify RDO regulations within MPDs of at least 20 acres.	20.050-A.4.g 20.050-A.7.d	25455	12/17/2024
Created NCO-2, Neighborhood Character Overlay-2	20.110	25621	08/26/2025
Clarified that accessory dwelling units are allowed by right.	20.080-F, 20.100-G	25656	10/21/2025
Allowed garage setbacks on arterial streets to be reduced to 20 feet, the same as non-arterial streets.	20.090-B.4		

Chapter 25: Special Districts

Description	*Section(s)*	*Ordinance*	*Effective*
Added specific uses to Household Living subcategory and deleted building types.	Table 25-1	23668	05/10/2017
Created new section and table to clarify which residential building types are permitted for specific uses in the Household Living subcategory.	25.020-C Table 25-1.5		
Renumbered section.			
Established minimum lot frontage requirement in AG districts.	5.020-D		
Added specific uses to Household Living subcategory and deleted building types; deleted Greenhouse as an agricultural use subcategory; removed supplemental regulation reference for Religious Assembly subcategory; omitted "except as below" from Financial Services subcategory; permitted Off-premise outdoor advertising signs if approved as part of an approved development plan.	Table 25-2 Table 25-4	23668	05/10/2017
Created new section and table to clarify which residential building types are permitted for specific uses in the Household Living subcategory.	25.040-C Table 25-4.5		
Renumbered sections.	25.040-D 25.040-E		
Removed supplemental regulation reference for Religious Assembly subcategory.	Table 25-5		
Renumbered sections 25.060-D through 25.060-J	25.060		
Added specific uses to Household Living subcategory and deleted building types; removed supplemental regulation reference for Religious Assembly subcategory.	Table 25-7		
Created new section and table to clarify which residential building types are permitted for specific uses in the Household Living subcategory.	25.060-C Table 25-7.5		
Amended to correct build-to-zone typo.	25.060-C.1 25.060-G.2.a		
Added Small Box Discount Store and Grocery Store to IMX use tables.	Table 25-7 25-7-3 Table Notes	23904	04/21/2018
Amended to be consistent with the updated Subdivision and Development Regulations.	25.040-E.3-6 25.070-D.1.c 25.070-D.3-4 25.070-G	23890	05/10/2018

Chapter 25: Special Districts

Description	*Section(s)*	*Ordinance*	*Effective*
Added references to supplemental use regulations for Medical Marijuana Uses.	Table 25-1 Table 25-4 Table 25-5 Table 25-7	24051	12/09/2018
Added Medical Marijuana Dispensary to use tables.	Table 25-4 Table 25-7		
Added and removed references to supplemental regulations.	Table 25-1 Table 25-5 Table 25-7 Table 25-7.5	24108	05/14/2019
Revised language to reflect new terms surrounding alcohol.	25.060-B3 Table Notes		
Changed the title to include the AG-R district	25.020	24246	12/09/2019
Added the purpose of the AG-R district	25.020-A		
Established use regulations for the AG-R district, and added a reference to Accessory Dwelling Units	25.020-B Table 25-1		
Added table notes with references to Accessory Dwelling Units and the AG-R district	Table 25-1 Notes		
Added references to the AG-R district	25.020-D, 25.020-E, Table 25-3, Table 25-6, 25.060-E, 25.060-H1, 25.060-J		
Allowed short-term rentals in AG and AG-R zoning districts	Table 25-1	24328	07/01/2020
Corrected the title of the Supplemental Regulations column; corrected household living uses; corrected formatting error.	Table 25-1	24725	12/24/2021
Corrected “Governmental Service” to read “Governmental Service or Similar Functions.”	Table 25-1 Table 25-4 Table 25-5 Table 25-7		
Specify three distinct uses under the Day Care subcategory: Family Child Care Homes established before Nov. 15, 2023, Family Child Care Homes established after Nov. 15, 2023, and Child Care Center; and add Table Note [4]	Table 25-1, Table 25-1 Notes	25192	01/17/2024
Specify two distinct uses under the Day Care subcategory: Child Care Center, and Family Child Care Home	Table 25-4 Table 25-5 Table 25-7		
Removed unnecessary table note referencing supplemental regulations; renumbered table notes; changed deadline for family child care homes	Table 25-1	25429	12/10/2024

Chapter 25: Special Districts

Description	*Section(s)*	*Ordinance*	*Effective*
Added provisions for farmers markets	Table 25-1 Table 25-4 Table 25-5 Table 25-7	25604	07/29/2025
Moved day care uses to the Public, Civic and Institutional category, to be consistent with the way they are listed in other tables.	Table 25-1	25656	10/21/2025

Chapter 30: Legacy Districts			
Description	***Section(s)***	***Ordinance***	***Effective***
Amended to be consistent with the updated Subdivision and Development Regulations.	30.010-B.3 30.010-E.3-4 30.010-F-G 30.010-I.2.a 30.010-I.2.c (10) 30.010-J-K	23890	05/10/2018
Amended to be consistent with the updated Subdivision and Development Regulations.	30.010-B.1	23911	06/11/2018
Clarified operative base zoning regulations in a PUD and corrected reference to council authority.	30.010-B.2		
Clarified applicable sign regulations for signs in a PUD.	30.010-D.3		
Removed the sign notification requirements for PUD minor amendments.	30.010-I.2.d		

Chapter 35: Building Types and Use Categories

Description	*Section(s)*	*Ordinance*	*Effective*
Amended to correct typo.	35.010-F	23668	05/10/2017
Created mixed-use, Vertical building type designation; Changed figure title to match new designation.	35.010-L Figure 35-8		
Renumbered and changed mixed-use building type definition.	35.010-M		
Renumbered; amended definition to clarify uses allowed in a commercial building.	35.010-N		
Renumbered sections.	35.010-O-P		
Added food truck courts in the Assembly and Entertainment use subcategory.	35.050-B		
Established revised thresholds for coffee roasting capacity within a restaurant use.	35.050-K.2		
Amended definition to allow coffee roasting, with a maximum capacity of 35 kilograms per batch, as a Low-Impact Manufacturing and Industry use.	35.070-A		
Allowed coffee roasting, exceeding 35 kilograms per batch, as a Moderate-Impact Manufacturing and Industry use.	35.070-B		
Renumbered; deleted Greenhouse use subcategory; amended Farm, market or Community-Supported and Horticulture Nursery use subcategory definitions to clarify that a greenhouse is a building type that would be included within those subcategories.	35.090-C 35.090-D		
Added Small Box Discount Store and Grocery Store use categories to Retail Sales; amended Convenience Goods and Consumer Shopping Goods to conform to new use categories.	35.050-L.1-2 35.050-L.4-5	23904	04/21/2018
Amended to remove examples of merely possible use within a use table and reflect that a use must be categorized within a defined use.	35.030-B 35.050-D 35.050-E 35.050-G 35.050-I-L	23911	06/11/2018
Revised the Business and Professional Office use type to allow governmental offices to be classified as a Business or Professional Office Use.	35.050-I.1		
Changed the use regulations of “Community Garden” to align it with “Farm, Market or Community-Supported.”	35.090-B		
Amended to reflect the change in City of Tulsa department reorganization.	35.020-E.1-3	23963	08/28/2018

Chapter 35: Building Types and Use Categories			
Description	***Section(s)***	***Ordinance***	***Effective***
Amended to include medical marijuana testing laboratories and medical marijuana research.	35.050-D.5	24051	12/09/2018
Added Medical Marijuana Dispensary as a specific use type; amended Convenience Goods, Consumer Shopping Goods, Small Box Discount Store and Grocery Store to conform to new use category.	35.050-L		
Amended to include production of medical marijuana edibles using medical marijuana components processed elsewhere to use category.	35.070-A		
Added Moderate-impact Medical Marijuana Processing Facility as a specific use type.	35.070-B		
Added High-impact Medical Marijuana Processing Facility as a specific use type.	35.070-C		
Added Medical Marijuana Grower Operation as a specific use type.	35.090-D		
Removed fortune telling services from Personal Improvement Service category	35.050-D	24108	05/14/2019
Revised language to reflect new terms surrounding alcohol.	35.050-K.1		
Removed medical marijuana dispensaries from Convenience Goods category	35.050-L		
Added reference to Accessory Dwelling Units	35.010-A	24246	12/09/2019
Changed the definition of a Consumer Material Drop-off Station to include a minimum number of hours the site is staffed by personnel, and added reference to Section 45.051.	35.080-B	24279	01/21/2020
Revised the title to read “Governmental Service or Similar Functions” and add soup/food kitchens and food pantries as typical uses.	35.040-G	24382	06/21/2020
Amended definitions of lodging types, including short-term rentals	35.050-G	24328	07/01/2020
Provides that Day Cares are subject to the same lot and building regulations that apply to detached houses and changed the number of children for whom care and supervision can be provided in a Family Child Care Home.	35.040-D	25092	09/05/2023
Specify two distinct uses under the Day Care subcategory: Child Care Center, and Family Child Care Home	35.040-D	25192	01/17/2024

Chapter 35: Building Types and Use Categories			
Description	***Section(s)***	***Ordinance***	***Effective***
Updated references from the Oklahoma State Department of Health to the Oklahoma Medical Marijuana Authority	35.050-D.5 35.050-L.6 35.070-C.1 35.090-D.1	25330	07/16/2024
Expressly included licensed medical marijuana education facilities	35.050-P		
Added uses related to the transport and distribution of medical marijuana products to the category	35.060-D		
Expanded the range of produced medical marijuana products to which the section applies	35.070-A		
Added definition for Low-impact Medical Marijuana Processor	35.070-A.3		
Replaced moderate-impact medical marijuana processing facilities with medical marijuana waste disposal facilities.	35.070-B 35.070-B.2		
Updated the name of the hazardous medical marijuana process license	35.070-C.1		
Amended the definition of Junk or Salvage Yard	35.070-D		
Added reference to and definition for data center	35.070-A 35.070-A.4	25455	12/17/2024
Added provisions for farmers markets	35.050-R	25604	07/29/2025
Broadened the definition of transitional living center and removed occupancy time limitations	35.030-B	25656	10/21/2025
Clarified that car wash-related uses are included.	35.050-Q		

Chapter 40: Supplemental Use and Building Regulations			
Description	***Section(s)***	***Ordinance***	***Effective***
Removed section requiring an applicant to submit a letter with the special exception for a manufactured housing unit application; Renumbered sections.	40.210-A 40.210-B 40.210-C	23668	05/10/2017
Removed screening requirement between a manufactured housing unit and other residential uses; deleted figure depicting screening requirement; renumbered figures.	40.210-E Figure 40-8 Figure 40-16		
Changed the arterial street frontage requirement for mini-storage facilities; amended to allow for a single dwelling unit (caretakers unit) within the storage facility.	40.360-A.3-4		
Added sections; created design and dimensional standards for parking and vehicle display areas within 300 feet of an R-zoned lot.	40.400.A-B		
Amended to be consistent with the updated Subdivision and Development Regulations.	40.110-H 40.290-C 40.290-E 40.390-D	23890	05/10/2018
Amended screening requirement between Self-Service storage facilities and R-zoned property.	40.360-A.2	23911	06/11/2018
Added Section 40.225; established supplemental use regulations for Medical Marijuana Uses.	40.225	24051	12/09/2018
Allowed Farms, Market- or Community-supported, in residentially-zones districts. Prohibits dumpster-style trash containers.	40.090	24108	05/14/2019
Revised 'liquor store' to 'package store' language to reflect new terms surrounding the sale of alcohol.	40.300		
Added references to the AG-R district.	40.020, 40.030, 40.040, 40.080, 40.090-J, 40.100-E, 40.100-G, 40.120, 40.160, 40.170, 40.180, 40.190-A, 40.190-C, 40.200, 40.210, 40.260-D, 40.310, 40.330, 40.340-A, 40.360-A2, Figure 40-12, 46.360-B, 40.360-C, 40.370-A, 40.370-D, 40.380, 40.400, 40.410	24246	12/09/2019

Chapter 40: Supplemental Use and Building Regulations			
Description	***Section(s)***	***Ordinance***	***Effective***
Added a new section pertaining to short-term rentals	40.375	24328	07/01/2020
Removed prohibition of drive-through windows and drive-through lanes for medical marijuana dispensaries.	40.225	24569	03/07/2021
Made the screening requirement applicable to an apartment/condo building of any size.	40.030	24825	06/28/2022
Removed additional lot area requirements for day camps and provides additional supplemental regulations.	40.120	25092	09/05/2023
Include provisions for Child Care Centers and Family Child Care Homes	40.120	25192	01/17/2024
Changed moderate-impact to low-impact	40.225-B	25330	07/16/2024
Added waste disposal facilities	40.225-F		
Updated references from the Oklahoma State Department of Health to the Oklahoma Medical Marijuana Authority	40.225-G 40.225-H 40.225-I		
Added transportation facilities, education facilities, waste disposal facilities, and testing laboratories	40.225-G 40.225-H		
Added requirement that medical marijuana waste disposal facilities be located inside an enclosed building	40.225-J		
Clarified that a lot may contain more than one grouping of cottage houses; reduced minimum number of cottages to 3	40.110	25429	12/10/2024
Removed one-year time limit for manufactured homes	40.210		
Exempted communication towers from monopole design restriction in the IL district; Added provisions for towers accessory to data centers	40.420-E.2.b 40.420-E.2.c	25455	12/17/2024
Added provisions for farmers markets	40.430	25604	07/29/2025

Chapter 45: Accessory Uses and Structures

Description	*Section(s)*	*Ordinance*	*Effective*
Added reference to Chapter 90; permitted detached accessory buildings on RM-zoned lots.	45.030-A.1 45.030-A.2	23668	05/10/2017
Amended section title; established carports as an accessory use in R districts; referenced Chapter 70 and Chapter 90.	45.030-B		
Amended to clarify maximum fence height permitted in side street setbacks on corner lots and in street setbacks abutting the rear lot line on double frontage lots.	45.080-A		
Established provision to allow for a Type 2 home occupations approval through the development plan process.	45.100-G.2.a 45.100-G.2.b 45.100-J.1		
Added reference to nameplate regulations.	45.100-H.4		
Prohibited barbed-wire fencing in all districts except industrial districts unless allowed by Special Exception.	45.080-C	23911	06/11/2018
Revised language to reflect new terms surrounding alcohol.	45.110	24108	05/14/2019
Allowed parking and storage of recreational vehicles in AG, O-, and MX- Districts	45.150-B		
Added a reference to the AG-R district	45.020, 45.030-A, 45.140, 45.150-A, 45.150-B	24246	12/09/2019
Added a new section pertaining to Accessory Dwelling Units in R, AG, and AG-R Districts	45.031		
Split Section 45.050 into two sections that pertain to Dumpsters and Recyclable Material Bins/Donation Bins separately, and changed regulations regarding each.	45.050, 45.051	24279	01/21/2020
Clarified where barbed-wire and razor-wire fencing is allowed.	45.080-C	24382	06/21/2020
Added new section for short-term rental—accessory	45.185	24328	07/01/2020
Amended the title to include all commercial vehicles, not just trucks; specified the characteristics of vehicles prohibited from parking in residential districts, and identified where parking is prohibited.	45.130	24725	12/24/2021
Permits additional employees in a family child care home and allows a maximum of 12 children.	45.070	25092	09/05/2023
Deleted section concerning a 300-foot spacing requirement for Family Child Care Homes, along with the accompanying illustrative figure	45.070-F Figure 45-2	25192	01/17/2024

Chapter 45: Accessory Uses and Structures

Description	*Section(s)*	*Ordinance*	*Effective*
Removed unnecessary references to accessory dwelling units; added reference for exceptions to ADU size limits	45.030	25429	12/10/2024
Removed specific zoning district names from section title; replaced references to detached houses with household living uses and principal buildings; provided additional square footage allowances for ADUs; added regulations for second story windows in ADUs	45.031		
Added provisions for farmers markets	45.210	25604	07/29/2025
Added applicability of accessory building size regulations to RD and RT districts	45.030-A.2	25656	10/21/2025
Clarified that accessory dwelling unit entrances may face side or rear property lines abutting streets.	45.031-D.8.a		
Added references to measurements and additional regulations related to fences and walls.	45-080-A		
Removed unnecessary word to add clarity	45.150-C		

Chapter 50: Temporary Uses

Description	*Section(s)*	*Ordinance*	*Effective*
Created regulations for temporary dumpsters in residential areas.	50.050-B.1.a-e 50.050-B.2	23668	05/10/2017
Revised time frame for Parking lot sales.	50.050-A-G	23911	06/11/2018
Changed to allow temporary dumpsters in street yards	50.050-B.1.c		

Chapter 55: Parking

Description	*Section(s)*	*Ordinance*	*Effective*
Removed measurement variable and added minimum parking ratios for Community Group Home and Re-Entry Facility use subcategory; clarified minimum parking ratio in CBD-zoned districts for Airport, Cemetery, Detention and Correctional Facility, Governmental Service, Postal Services, Major Utilities and Public Service Facility, Gun Club, Marina use subcategories; removed Greenhouse use subcategory.	Table 55-1	23668	05/10/2017
Established marked parking space requirement for all pavement types.	55.090-D		
Amended to clarify that, except for household living uses, tandem parking is not permitted	55.090-E		
Amended to correct typo.	55.130-B		
Added parking requirements for Small Box Discount Stores and Grocery Stores.	Table 55-1	23904	04/21/2018
Amended to correct typo.	55.090-F.1	23911	06/11/2018
Reduced minimum parking requirements for Trade Schools.	Table 55-1		
Added parking requirements for Medical Marijuana Dispensaries.	Table 55-1	24051	12/09/2018
Changed reference to lighting standards to reflect the new Lighting Chapter.	55.090-I	24165	08/06/2019
Allows reduction in required parking spaces to accommodate required interior parking lot landscape area.	55.050-L		
Added references to the AG-R district.	55.080-C 55.100-C2 55.120	24246	12/09/2019
Corrected “Governmental Service” to read “Governmental Service or Similar Functions.”	Table 55-1	24725	12/24/2021
Reduced the parking required for schools.			
Eliminated the requirement for a parking study for alternative compliance	55.050-K		
Eliminated the requirement for a minimum 25 ft. setback for parking areas accessory to apartment/condo buildings or group living uses	55.080-C2	24825	06/28/2022

Chapter 55: Parking

Description	*Section(s)*	*Ordinance*	*Effective*
Clarified that recreational vehicles must be parked, stored, or displayed on a dustless, all-weather surface	55.090-F.2	25330	07/16/2024
Added provision for driveways serving residential uses in AG and AG-R zoning districts to use gravel in place of a dustless, all-weather surface outside the street right-of-way	55.090-F.3		
Added table name and number to the maximum driveway width table, and renumbered the drive-through stacking space requirements table.	Table 55-6, Table 55-7		
Removed additional parking required for a change of use to residential uses	55.010-B.3	25429	12/10/2024
Reduced minimum parking requirements citywide; merged all household living subcategories; merged 'All Other Districts and PI Overlay' column into 'CH and MX District' column, applying existing CH and MX standards citywide	Table 55-1		
Established minimum parking requirements for data centers	55.050-M	25455	12/17/2024
Added provisions for farmers markets	Table 55-1	25604	07/29/2025
Added provisions for ribbon driveways and re-numbered subsequent sections	55.090-F.4	25656	10/21/2025
Added applicability of driveway widths to RD and RT districts; clarified how driveway width is determined	Table 55-6, Table 55-6 Notes		
Removed specific limitations to the types of pervious pavement that may be used	55.090-F.6		
Allowed drive-throughs on corner lots, added screening requirements for such facilities, and renumbered the subsequent section	55.100-C.2 55.100-C.3		

Chapter 60: Signs

Description	*Section(s)*	*Ordinance*	*Effective*
Amended to require removal agreement rather than a license when planned sign is in right-of-way; established special provisions for CBD.	60.020-E	23668	05/10/2017
Changed to limit sign exception to one banner.	60.030-E.3.a		
Modified regulations relating to sign exceptions for government signs, flags, and wall plaques.	60.030-F.1-3		
Clarified that a variance of off-premise business signs would be a use variance.	60.040-E		
Amended to regulate placement of permitted wall signs in R and AG districts for buildings with multiple public entrances.	60.050-B.2.a		
Clarified that that where the adjacent freeway is 10 feet or more above grade, the maximum height of the permitted sign is the greater of 60 feet or 20 feet above the travel lanes.	60.080-F.3		
Clarified that a new permit is required if an off-premise outdoor advertising sign is converted to a dynamic display.	60.080-11.c		
Removed mixed-use from applicable zoning districts for signs in CO district regulations.	60.090-C		
Provided ability for an office or commercial development to have a development identification sign.	60.060-B 60.070-B.4 60.080-B.6	23911	06/11/2018
Increased maximum sign height within the Downtown Entertainment District and the Route 66 Overlay from 20 feet to 25 feet above the point where the sign is attached to the roof.	60.080-B.5	23933	06/17/2018
Added MX districts to the list of districts with maximum aggregate number of signs allowed.	Table 60-2	24108	05/14/2019
Added references to the AG-R district	60.030-B.3 Table 60-1 60.040-B.3-4 60.050, 60.080-F.5 60.090-A, 60.100-F	24246	12/09/2019
Added a reference to Title 51 of Tulsa Revised Ordinances.	60.020	24725	12/24/2021
Revised the term “outdoor advertising sign” to read “off-premise outdoor advertising sign.”	60.100-J 60.100-K		
Added provisions for Electronic Message Center Signs	60.040-G	25512	03/13/2025
Revised requirements for roof signs	60.080-B.5 60.080-C	25604	07/29/2025
Allowed up to 2 secondary drive-through signs per lot	60.030-B.2	25656	10/21/2025

Chapter 65: Landscaping and Screening			
Description	***Section(s)***	***Ordinance***	***Effective***
Removed exemption from screening regulations.	65.020-A.1	23668	05/10/2017
Established street setback landscape requirement.	65.030-B.1		
Amended to specify screening location of mechanical equipment from R-zoned lots.	65.060-B.3.a 65.060-B.3.b		
Added to establish the location of the required screening in instances where there is no common lot line.	65.060-C.7		
Removed note requirement if no lighting is required.	65.090-C.1		
Amended to reflect the change in City of Tulsa department reorganization.	65.080-B.3	23963	08/28/2018
Established new minimum requirements for landscaping and screening. Removed lighting standards from the chapter; established a new, separate Lighting Chapter	65.010-65.100	24165	08/06/2019
Changed name to reflect sole focus on dumpsters, and revised regulations pertaining to the screening of dumpsters.	65.070-B Figure 65-5	24279	01/21/2020
Added references to highways and agricultural-residential zoning districts as areas requiring buffers or screening.	65.060-A 65.060-C1a 65.060-C2 Figure 65-4 65.070-B3a Figure 65-6 65.070-B3b 65.070-C5	24382	06/21/2020
Revised the title to “Tree List” and removed references to a plant list.	65.080-A2 65.080-B1		
Deleted a reference to a plant list; permitted trees and plants that are not native to North America but that are adapted to local growing conditions.	65.080-A3	24725	12/24/2021
Added provisions for the S2, Mid-profile Screen and re-numbered the subsequent sections	65.070-C.2	25656	10/21/2025

Chapter 67: Outdoor Lighting

Description	*Section(s)*	*Ordinance*	*Effective*
Added references to agricultural-residential zoning districts	67.030-C 67.040-B2 Table 67-1	24382	06/21/2020

Chapter 70: Review and Approval Procedures

Description	*Section(s)*	*Ordinance*	*Effective*
Added to align with Article II Section 6.3 of the Charter	70.030-G.2-8	23668	05/10/2017
Clarified the authority to approve regulations in mandatory development plans that are less restrictive than the otherwise applicable standards of the code.	70.040-B.1		
Amended to accommodate optional development plan process that evolves after straight zoning application has been submitted and noticed.	70.040-E.2		
Removed because authority is already defined in the PUD, CO, and MPD provisions section.	70.040-G.2		
Changed to allow staff the ability to better track noticing requirements.	70.100-F.2		
Amended to be consistent with the updated Subdivision and Development Regulations.	70.040-B.2 70.040-I.1.a(6) 70.050-D 70.080 70.080-B	23890	05/10/2018
Clarified that a “simple majority vote” refers to a simple majority of a quorum.	70.030-H.1	23911	06/11/2018
Removed “and acknowledged;” clarified that areas designated as right-of-way are not included in percentage calculation; added provision to clarify that City Council can determine sufficiency of a challenged petition.	70.030-G.2		
Removed sentence requiring simple majority approval for an HI permit.	70.070-E		
Changed text to clarify that notice must be given and is not the sole responsibility of the applicant	70.100-E		
Amended to reflect the change in City of Tulsa department reorganization.	Table 70-1 70.090-A.2 70.090-B-F	23963	07/29/2018
Clarified amendments as “zoning map amendments” and clarified that right-of-way shall not be included in the calculation of protests. Clarified the petition process and documentation requirements.	70.060-H	24108	05/14/2019

Chapter 70: Review and Approval Procedures

Description	*Section(s)*	*Ordinance*	*Effective*
Removed language requiring the development issue to issue or not issue permits.	70.110-D		
Deleted Section 70.080-B4 Sidewalks	70.080-B.4	24382	06/21/2020
Requires that certain information accompany an application for zoning clearance permit when a separation or spacing requirement applies.	70.080-C		
Provides for administrative verification of spacing and separation distance requirements.	70.110		
Amended to reflect that the Development Administrator verifies spacing and separation distance requirements.	Table 70-1 and Table Notes	24725	12/24/2021
Added Section 70.020-G to provide for administrative correction of typographical and certain other errors in the zoning code.	70.020-G		
Deleted the requirement for posting notice of development plan minor amendments	70.040-I.1.c		
Deleted Section 70.080-B.3, Early Release Permits	70.080-B.3		
Amended to confirm that an appeal from the preservation commission is covered by the procedures of the section.	70.140-A		
Amended figure to reflect filing requirements for appeals	Figure 70-7		
Specified filing requirements for appeals	70.140-C.1		
Added a new Note [7] to specify that certain required notice is for the planning commission public hearing.	Table 70-1 Table Note [7]	25055	07/04/2023
Specified that the required city council public hearing may be heard under agenda classifications deemed appropriate by the city council.	70.010-G.1		
Identified when new public hearing notice is required for rescheduled public hearings.	70.010-G.3		
Added HP Permit exemptions regarding City of Tulsa parks located in HP overlays.	70.070-B	25212	02/07/2024
Added allowance of administrative approval for several types of projects in City of Tulsa parks located in HP overlays.	70.070-K		
Revised timeliness for appeals of administrative decisions from 10 days to 10 business days.	70.140-C.2	25330	07/16/2024
Added temporary landscape features to list of exemptions	70.070-B	25638	09/09/2025
Clarified that action must occur within 30 business days; extend the period if an applicant fails to attend a meeting.	70.070-E		

Chapter 70: Review and Approval Procedures			
Description	***Section(s)***	***Ordinance***	***Effective***
Clarified that the city council may modify a proposed map amendment by requesting or approving an optional development plan	70.030-F, 70.040-B.2, 70.040-G.1	25656	10/21/2025

Chapter 75: Administration

Description	*Section(s)*	*Ordinance*	*Effective*
Amended to incorporate state statutes as amended in 2016.	75.010-K.1.a 75.010-K.2	23668	05/10/2017
Amended to reflect the change in City of Tulsa department reorganization.	75.020-L	23963	08/28/2018
		25055	07/04/2023
Removed reference to land use spacing verification	75.010-J	25656	10/21/2025
Replaced references to 'allied commission members' with 'planning commission member' and added an at-large member to the preservation commission	75.020-A, 75.020-A.3, 75.020-A.4, 75.020-B, 75.020-C.1		
Removed limitation of terms of members of the preservation commission	75.020-C.2		

Chapter 80: Nonconformities

Description	*Section(s)*	*Ordinance*	*Effective*
Provided clarification of nonconforming wall extension requirements.	80.030-D	23668	05/10/2017
Removed dynamic displays to correct inconsistency with other code provisions regarding nonconforming dynamic displays.	80.060-B.2 80.060-C.2		
Clarified language related to non-conforming dynamic display sign modifications	80.060-B.1	25330	07/16/2024

Chapter 85: Violations, Penalties and Enforcement

Description	*Section(s)*	*Ordinance*	*Effective*
Added the failure to install or maintain required landscaping and screening material as an item subject to remedies and penalties	85.020-J	24165	08/06/2019
Updated reference from "Neighborhood Inspections" and "Working in Neighborhoods" to "Code Enforcement"	85.010	25330	07/16/2024
Clarified that code enforcement officials may issue stop work orders, and clarified the procedures thereof	85.040-D	25656	10/21/2025

Chapter 90: Measurements

Description	*Section(s)*	*Ordinance*	*Effective*
Changed to reference the newly added setback measurement requirements	Table 90-1 Table 90-1 Note [2]	23668	05/10/2017
Clarified detached accessory building regulations in specified districts and zoned lots	90.090-C.2 Figure 90-9 90.090-C.2.a Table 90-2 Figure 90-10		
Amended to correct rear setback requirements	90.090-C.2.b		
Amended to correct typos	90.110-B Figure 90-16		
Amended to be consistent with the updated Subdivision and Development Regulations	90.080-C	23890	05/10/2018
Added a license agreement for building inside planned City right-of-way	90.090-A	23911	06/11/2018
Allowed swimming pools and tennis courts within the street setback of a rear yard	Table 90-1 and Table Notes	24108	05/14/2019
Clarified the definition of transparency and transparent materials	90.140-A		
Clarified the transparency area of a ground floor façade	90.140-B		
Added the word “area” to the illustrations	Figure 90-17 Figure 90-18		
Added references to Accessory Dwelling Units	90.090-C, Figure 90-9, Table 90-2, Figure 90-10	24246	12/09/2019
Replaced Lot Width Measurement figure with Lot Depth Measurement figure	Figure 90-1	25330	07/16/2024
Amended definition of Lot Width	90.060		
Added a definition for Lot Depth	90.065		
Amended the definition of fence and wall heights	90.170-A		
Removed unnecessary references to ADUs; increased allowable heights if accessory building contains an ADU on the second floor; limits garage doors in accessory buildings to 8 feet in height	90.090-C.2	25429	12/10/2024
Removed unnecessary references to ADUs and specific zoning districts in figure titles; replaced Figure 90-9 to add illustration of height limits for two-story accessory buildings containing an ADU	Figure 90-9 Figure 90-10		
Increased maximum coverage of rear setback of accessory buildings; combined rows containing identical values	Table 90-2		

Chapter 90: Measurements

Description	*Section(s)*	*Ordinance*	*Effective*
Added Table Note [4] and references thereto to clarify setbacks for accessory buildings in rear setbacks	Table 90-1, Table 90-1 Notes	25656	10/21/2025
Combined the two types of solar energy systems and added reference to supplemental regulations	Table 90-1		
Clarified requirements for carports in R districts	Table 90-1 Note [2]		
Clarified references to accessory buildings	90.090-C.2.a		

Chapter 95: Definitions

Description	*Section(s)*	*Ordinance*	*Effective*
Amended Measurement-Related Terms, definition of Abut or Abutting, term Build-to-Zone to correct typos.	95.030 95.040 95.050	23668	05/10/2017
Deleted Greenhouse subcategory term and definition.	95.100		
Changed definition to clarify that drive aisle is part of the parking area.	95.190		
Revised definitions of (Sign), (Sign) Banner, (Sign) Flag, Sign, Special Event) to reflect content neutrality.	95.220		
Amended to be consistent with the updated Subdivision and Development Regulations.	95.150	23890	05/10/2018
Added definition for Neon.	95.170	23933	06/17/2018
Deleted Planning and Development Director term; added Planning Director term to reflect the change in City of Tulsa department reorganization.	95.190	23963	08/28/2018
Added definitions for Accessory Use Bar and Package Store. Removed definitions for Intoxicating Beverages and Low Point Beer.	95.040, 95.120, 95.150, 95.190	24108	05/14/2019
Added a reference to Accessory Dwelling Unit	95.040	24246	12/09/2019
Added a reference to Donation Bins; modified definition of Recyclable Material Bins/Donation Bins	95.210	24279	01/21/2020
Revised the definition of “Campaign Sign”	95.220	24382	06/21/2020
Revised the definition of “Arterial” to correct/replace a reference to “special traffic-way” with “scenic drive.”	95.040	24725	12/24/2021
Corrected the section number referred to in the definition of the term Land Use Administrator.	95.150	25055	07/04/2023
Added a definition for the Route 66 Commission	95.210	25322	06/02/2024

Chapter 95: Definitions

Description	*Section(s)*	*Ordinance*	*Effective*
Added provision for gravel, rock, and screenings to meet the definition of an "All-Weather Surface (or Material)" when treated with a road surface binder approved by the development administrator	95.040	25330	07/16/2024
Amended Figure 95-4 to more clearly illustrate multiple lot lines	95.150, Figure 95-4		
Amended Figure 95-6 to illustrate lots with more than one rear lot line	95.150, Figure 95-6		
Added a definition for Retaining Wall	95.210		
Added definition for Electronic Message Center Sign	95.220	25512	03/13/2025
Removed definition for Downtown Entertainment District	95.070	25604	07/29/2025
Replaced multiple figures with a single figure that illustrates multiple definitions and scenarios	Figure 95-16, Figure 95-17, Figure 95-18	25656	10/21/2025
Clarified definitions for Yards, Front Yards, Rear Yards, and Street Yards	95.280		